The Penal Code, 1860

[Act 45 of 1860]

along with

State Amendments

and

Case Law

HIGH COURT OF TRIPURA
8 MAY 2023
AGARTALA

JUDGES LIBRARY
Class No.....
Catlg No.....
Accn No. RT/2043
Date 06.05.2023
AGARTALA, TRIPURA

Book No.....11.....
Page No.....234..

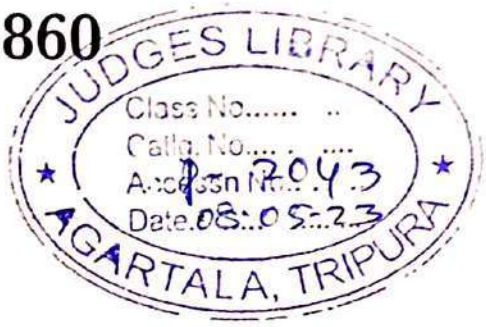
***With* complete legislative history**

EBC

Lucknow | Delhi | Prayagraj | Guwahati
Bengaluru | Ahmedabad | Nagpur

The Penal Code, 1860

Book No....11.....
Page No....234..



CONTENTS

CHAPTER I
INTRODUCTION

Sections *Pages*

1. Title and extent of operation of the Code 6
2. Punishment of offences committed within India 6
3. Punishment of offences committed beyond, but which by law may be tried within, India 6
4. Extension of Code to extra-territorial offences 6
5. Certain laws not to be affected by this Act 7

CHAPTER II
GENERAL EXPLANATIONS

6. Definitions in the Code to be understood subject to exceptions 7
7. Sense of expression once explained 8
8. Gender 8
9. Number 8
10. "Man", "Woman" 8
11. "Person" 8
12. "Public" 8
13. "Queen" [*Repealed*] 8
14. "Servant of Government" 8
15. "British India" [*Repealed*] 8
16. "Government of India" [*Repealed*] 8
17. "Government" 8
18. "India" 9
19. "Judge" 9
20. "Court of Justice" 9
21. "Public servant" 9

Sections *Pages*

STATE AMENDMENTS

Rajasthan 11

22. "Movable property" 11
23. "Wrongful gain" 11
"Wrongful loss" 11
Gaining wrongfully, losing wrongfully 11
24. "Dishonestly" 11
25. "Fraudulently" 12
26. "Reason to believe" 12
27. Property in possession of wife, clerk or servant 12
28. "Counterfeit" 12
29. "Document" 12
29-A. Electronic record 13
30. "Valuable security" 13
31. "A will" 13
32. Words referring to acts include illegal omissions 13
33. "Act", "Omission" 13
34. Acts done by several persons in furtherance of common intention . 13
35. When such an act is criminal by reason of its being done with a criminal knowledge or intention 15
36. Effect caused partly by act and partly by omission 15
37. Co-operation by doing one of several acts constituting an offence . 15
38. Persons concerned in criminal act may be guilty of different offences 16
39. "Voluntarily" 16
40. "Offence" 16
41. "Special law" 16
42. "Local law" 16
43. "Illegal", "Legally bound to do" 16
44. "Injury" 17
45. "Life" 17
46. "Death" 17
47. "Animal" 17
48. "Vessel" 17

Sections *Pages*

49. "Year", "Month" 17
50. "Section" 17
51. "Oath" 17
52. "Good faith" 17
52-A. "Harbour" 17

CHAPTER III
OF PUNISHMENTS

53. "Punishments" 17
53-A. Construction of reference to transportation 18
54. Commutation of sentence of death 18
55. Commutation of sentence of imprisonment for life 19
55-A. Definition of "appropriate Government" 19
56. Sentence of Europeans and Americans to penal servitude. Proviso as to sentence for term exceeding ten years but not for life [*Repealed*] 19
57. Fractions of terms of punishment 19
58. Offenders sentenced to transportation how dealt with until transported [*Repealed*] 19
59. Transportation instead of imprisonment [*Repealed*] 19
60. Sentence may be (in certain cases of imprisonment) wholly or partly rigorous or simple 20
61. Sentence of forfeiture of property [*Repealed*] 20
62. Forfeiture of property in respect of offenders punishable with death, transportation or imprisonment [*Repealed*] 20
63. Amount of fine 20
64. Sentence of imprisonment for non-payment of fine 20
65. Limit to imprisonment for non-payment of fine, when imprisonment and fine awardable 21
66. Description of imprisonment for non-payment of fine 21
67. Imprisonment for non-payment of fine, when offence punishable with fine only 21
68. Imprisonment to terminate on payment of fine 21
69. Termination of imprisonment on payment of proportional part of fine 21

JUDGES LIBRARY
Class No.....
Catlg. No.....
Access No. P.T. 2043
Date. 09.05.23
AGARTALA, TRIPURA
Book No...11.....
Page No...334.....

Sections *Pages*

70. Fine leviable within six years, or during imprisonment. Death not to discharge property from liability 21
71. Limit of punishment of offence made up of several offences 22
72. Punishment of person guilty of one of several offences, the judgment stating that it is doubtful of which 22
73. Solitary confinement 22
74. Limit of solitary confinement 22
75. Enhanced punishment for certain offences under Chapter XII or Chapter XVII after previous conviction 23

CHAPTER IV
GENERAL EXCEPTIONS

76. Act done by a person bound, or by mistake of fact believing himself bound, by law 23
77. Act of Judge when acting judicially 23
78. Act done pursuant to the judgment or order of Court 23
79. Act done by a person justified, or by mistake of fact believing himself justified, by law 24
80. Accident in doing a lawful act 24
81. Act likely to cause harm, but done without criminal intent, and to prevent other harm 24
82. Act of a child under seven years of age 25
83. Act of a child above seven and under twelve of immature understanding 25
84. Act of a person of unsound mind 25
85. Act of a person incapable of judgment by reason of intoxication caused against his will 25
86. Offence requiring a particular intent or knowledge committed by one who is intoxicated 26
87. Act not intended and not known to be likely to cause death or grievous hurt, done by consent 26
88. Act not intended to cause death, done by consent in good faith for person's benefit 26
89. Act done in good faith for benefit of child or insane person, by or by consent of guardian 27

Provisos 27

Sections *Pages*

90. Consent known to be given under fear or misconception 27
Consent of insane person 27
Consent of child 27
91. Exclusion of acts which are offences independently of harm caused 27
92. Act done in good faith for benefit of a person without consent 28
93. Communication made in good faith 29
94. Act to which a person is compelled by threats 29
95. Act causing slight harm 29

Of the right of private defence

96. Things done in private defence 29
97. Right of private defence of the body and of property 29
98. Right of private defence against the act of a person of unsound mind, etc. 29
99. Acts against which there is no right of private defence 30
Extent to which the right may be exercised 30
100. When the right of private defence of the body extends to causing death 30
101. When such right extends to causing any harm other than death 31
102. Commencement and continuance of the right of private defence of the body 31
103. When the right of private defence of property extends to causing death 31

STATE AMENDMENTS

Karnataka 32
Maharashtra 32
Uttar Pradesh 32

104. When such right extends to causing any harm other than death 32
105. Commencement and continuance of the right of private defence of property 32
106. Right of private defence against deadly assault when there is risk of harm to innocent person 33

CHAPTER V
OF ABETMENT

107. Abetment of a thing 33
108. Abettor 34

Sections *Pages*

108-A. Abetment in India of offences outside India 35

109. Punishment of abetment if the act abetted is committed in consequence and where no express provision is made for its punishment 35

110. Punishment of abetment if person abetted does act with different intention from that of abettor 36

111. Liability of abettor when one act abetted and different act done 36

112. Abettor when liable to cumulative punishment for act abetted and for act done 36

113. Liability of abettor for an effect caused by the act abetted different from that intended by the abettor 37

114. Abettor present when offence is committed 37

115. Abetment of offence punishable with death or imprisonment for life—if offence not committed 37

if act causing harm be done in consequence 37

116. Abetment of offence punishable with imprisonment—if offence be not committed 37

if abettor or person abetted be a public servant whose duty it is to prevent offence 37

117. Abetting commission of offence by the public or by more than ten persons 38

118. Concealing design to commit offence punishable with death or imprisonment for life 38

if offence be committed — if offence be not committed 38

119. Public servant concealing design to commit offence which it is his duty to prevent 39

if offence be committed 39

if offence be punishable with death, etc. 39

if offence be not committed 39

120. Concealing design to commit offence punishable with imprisonment 39

if offence be committed — if offence be not committed 39

CHAPTER V-A

CRIMINAL CONSPIRACY

120-A. Definition of criminal conspiracy 40

120-B. Punishment of criminal conspiracy 40

Sections *Pages*

CHAPTER VI
OF OFFENCES AGAINST THE STATE

121. Waging, or attempting to wage war, or abetting waging of war, against the Government of India 41
121-A. Conspiracy to commit offences punishable by Section 121 41
122. Collecting arms, etc., with intention of waging war against the Government of India 42
123. Concealing with intent to facilitate design to wage war 42
124. Assaulting President, Governor, etc., with intent to compel or restrain the exercise of any lawful power 42
124-A. Sedition 43
125. Waging war against any Asiatic Power in alliance with the Government of India 43
126. Committing depredation on territories of Power at peace with the Government of India 43
127. Receiving property taken by war or depredation mentioned in Sections 125 and 126 44
128. Public servant voluntarily allowing prisoner of State or war to escape 44
129. Public servant negligently suffering such prisoner to escape 44
130. Aiding escape of, rescuing or harbouring such prisoner 44

CHAPTER VII
OF OFFENCES RELATING TO THE ARMY, NAVY AND AIR FORCE

131. Abetting mutiny, or attempting to seduce a soldier, sailor or airman from his duty 44
132. Abetment of mutiny, if mutiny is committed in consequence thereof 45
133. Abetment of assault by soldier, sailor or airman on his superior officer, when in execution of his office 45
134. Abetment of such assault, if the assault is committed 45
135. Abetment of desertion of soldier, sailor or airman 46
136. Harbouring deserter 46
137. Deserter concealed on board merchant vessel through negligence of master 46
138. Abetment of act of insubordination by soldier, sailor or airman 46

Sections		*Pages*
138-A.	Application of foregoing sections to the Indian Marine Service [*Repealed*]	47
139.	Persons subject to certain Acts	47
140.	Wearing garb or carrying token used by soldier, sailor or airman	47
	CHAPTER VIII	
	OF OFFENCES AGAINST THE PUBLIC TRANQUILLITY	
141.	Unlawful assembly	47
142.	Being member of unlawful assembly	48
143.	Punishment	48
144.	Joining unlawful assembly armed with deadly weapon	48
145.	Joining or continuing in unlawful assembly, knowing it has been commanded to disperse	48
146.	Rioting	49
147.	Punishment for rioting	49
148.	Rioting, armed with deadly weapon	49
149.	Every member of unlawful assembly guilty of offence committed in prosecution of common object	49
150.	Hiring, or conniving at hiring, of persons to join unlawful assembly	50
151.	Knowingly joining or continuing in assembly of five or more persons after it has been commanded to disperse	50
152.	Assaulting or obstructing public servant when suppressing riot, etc.	50
153.	Wantonly giving provocation with intent to cause riot—if rioting be committed — if not committed	50
153-A.	Promoting enmity between different groups on grounds of religion, race, place of birth, residence, language, etc., and doing acts prejudicial to maintenance of harmony	50
	Offence committed in place of worship, etc.	51
153-AA.	Punishment for knowingly carrying arms in any procession or organising, or holding or taking part in any mass drill or mass training with arms	52
153-B.	Imputations, assertions prejudicial to national integration	52
154.	Owner or occupier of land on which an unlawful assembly is held	53
155.	Liability of person for whose benefit riot is committed	53

Sections *Pages*

156. Liability of agent of owner or occupier for whose benefit riot is committed 53
157. Harbouring persons hired for an unlawful assembly 53
158. Being hired to take part in an unlawful assembly or riot 54
or to go armed 54
159. Affray 54
160. Punishment for committing affray 54

CHAPTER IX
OF OFFENCES BY OR RELATING TO PUBLIC SERVANTS

161. Public servant taking gratification other than legal remuneration in respect of an official act [*Omitted*] 54
162. Taking gratification, in order, by corrupt or illegal means, to influence public servant [*Omitted*] 55
163. Taking gratification, for exercise of personal influence with public servant [*Omitted*] 55
164. Punishment for abetment by public servant of offences defined in Section 162 or Section 163 [*Omitted*] 55
165. Public servant obtaining valuable thing, without consideration, from person concerned in proceeding or business transacted by such public servant [*Omitted*] 56
165-A. Punishment for abetment of offences defined in Section 161 or Section 165 [*Omitted*] 56
166. Public servant disobeying law, with intent to cause injury to any person 57
166-A. Public servant disobeying direction under law 57

STATE AMENDMENTS

Arunachal Pradesh 58
166-B. Punishment for non-treatment of victim 58
167. Public servant framing an incorrect document with intent to cause injury 58
168. Public servant unlawfully engaging in trade 58
169. Public servant unlawfully buying or bidding for property 58
170. Personating a public servant 58
171. Wearing garb or carrying token used by public servant with fraudulent intent 59

Sections *Pages*

CHAPTER IX-A
OF OFFENCES RELATING TO ELECTIONS

171-A. "Candidate", "Electoral right" defined 59
171-B. Bribery 59
171-C. Undue influence at elections 59
171-D. Personation at elections 60
171-E. Punishment for bribery 60
171-F. Punishment for undue influence or personation at an election 60
171-G. False statement in connection with an election 60
171-H. Illegal payments in connection with an election 60
171-I. Failure to keep election accounts 61

CHAPTER X
OF CONTEMPTS OF THE LAWFUL AUTHORITY OF PUBLIC SERVANTS

172. Absconding to avoid service of summons or other proceeding 61
173. Preventing service of summons or other proceeding, or preventing publication thereof 61
174. Non-attendance in obedience to an order from public servant 62
174-A. Non-appearance in response to a proclamation under Section 82 of Act 2 of 1974 62
175. Omission to produce document or electronic record to public servant by person legally bound to produce it 62
176. Omission to give notice or information to public servant by person legally bound to give it 63
177. Furnishing false information 63
178. Refusing oath or affirmation when duly required by public servant to make it 64
179. Refusing to answer public servant authorised to question 64
180. Refusing to sign statement 64
181. False statement on oath or affirmation to public servant or person authorised to administer an oath or affirmation 64
182. False information, with intent to cause public servant to use his lawful power to the injury of another person 65
183. Resistance to the taking of property by the lawful authority of a public servant 65
184. Obstructing sale of property offered for sale by authority of public servant 66

Sections *Pages*

185. Illegal purchase or bid for property offered for sale by authority of public servant 66

186. Obstructing public servant in discharge of public functions 66

STATE AMENDMENTS

Andhra Pradesh 66

187. Omission to assist public servant when bound by law to give assistance 66

188. Disobedience to order duly promulgated by public servant 66

189. Threat of injury to public servant 67

STATE AMENDMENTS

Andhra Pradesh 67

190. Threat of injury to induce person to refrain from applying for protection to public servant 67

STATE AMENDMENTS

Andhra Pradesh 67

CHAPTER XI

OF FALSE EVIDENCE AND OFFENCES AGAINST PUBLIC JUSTICE

191. Giving false evidence 67

192. Fabricating false evidence 68

193. Punishment for false evidence 69

194. Giving or fabricating false evidence with intent to procure conviction of capital offence 69

if innocent person be thereby convicted and executed 69

195. Giving or fabricating false evidence with intent to procure conviction of offence punishable with imprisonment for life or imprisonment 70

195-A. Threatening any person to give false evidence 70

196. Using evidence known to be false 70

197. Issuing or signing false certificate 70

198. Using as true a certificate known to be false 70

199. False statement made in declaration which is by law receivable as evidence 71

200. Using as true such declaration knowing it to be false 71

201. Causing disappearance of evidence of offence, or giving false information to screen offender 71

if a capital offence 71

Sections *Pages*

if punishable with imprisonment for life 71
if punishable with less than ten years' imprisonment 71
202. Intentional omission to give information of offence by person bound to inform 71
203. Giving false information respecting an offence committed 72
204. Destruction of document or electronic record to prevent its production as evidence 72
205. False personation for purpose of act or proceeding in suit or prosecution 72
206. Fraudulent removal or concealment of property to prevent its seizure as forfeited or in execution 72
207. Fraudulent claim to property to prevent its seizure as forfeited or in execution 73
208. Fraudulently suffering decree for sum not due 73
209. Dishonestly making false claim in Court 73
210. Fraudulently obtaining decree for sum not due 73
211. False charge of offence made with intent to injure 73
STATE AMENDMENTS
Chhattisgarh 74
212. Harbouring offender 74
if a capital offence 74
if punishable with imprisonment for life, or with imprisonment ... 74
213. Taking gift, etc., to screen an offender from punishment 75
if a capital offence 75
if punishable with imprisonment for life, or with imprisonment ... 75
214. Offering gift or restoration of property in consideration of screening offender 75
if a capital offence 75
if punishable with imprisonment for life, or with imprisonment ... 75
215. Taking gift to help to recover stolen property, etc. 76
216. Harbouring offender who has escaped from custody or whose apprehension has been ordered 76
if a capital offence 76
if punishable with imprisonment for life, or with imprisonment ... 76
216-A. Penalty for harbouring robbers or dacoits 77
216-B. Definition of "harbour" in Sections 212, 216 and 216-A 77

Sections *Pages*

[*Repealed*] .....

217. Public servant disobeying direction of law with intent to save person from punishment or property from forfeiture 77

218. Public servant framing incorrect record or writing with intent to save person from punishment or property from forfeiture 78

219. Public servant in judicial proceeding corruptly making report, etc., contrary to law 78

220. Commitment for trial or confinement by person having authority who knows that he is acting contrary to law 78

221. Intentional omission to apprehend on the part of public servant bound to apprehend 78

222. Intentional omission to apprehend on the part of public servant bound to apprehend person under sentence or lawfully committed 79

223. Escape from confinement or custody negligently suffered by public servant 79

224. Resistance or obstruction by a person to his lawful apprehension .. 79

225. Resistance or obstruction to lawful apprehension of another person 80

225-A. Omission to apprehend, or sufferance of escape, on part of public servant, in cases not otherwise provided for 80

225-B. Resistance or obstruction to lawful apprehension, or escape or rescue in cases not otherwise provided for 81

226. Unlawful return from transportation [*Repealed*] 81

227. Violation of condition of remission of punishment 81

228. Intentional insult or interruption to public servant sitting in judicial proceeding 81

STATE AMENDMENTS

Andhra Pradesh 81

228-A. Disclosure of identity of the victim of certain offences, etc. 82

STATE AMENDMENTS

Arunachal Pradesh 83

229. Personation of a juror or assessor 83

229-A. Failure by person released on bail or bond to appear in Court 83

CHAPTER XII

OF OFFENCES RELATING TO COIN AND GOVERNMENT STAMPS

230. "Coin" defined 84

Indian coin 84

Sections *Pages*

231. Counterfeiting coin 84
232. Counterfeiting Indian coin 84
233. Making or selling instrument for counterfeiting coin 84
234. Making or selling instrument for counterfeiting Indian coin 85
235. Possession of instrument, or material for the purpose of using the same for counterfeiting coin 85
if Indian coin 85
236. Abetting in India the counterfeiting out of India of coin 85
237. Import or export of counterfeit coin 85
238. Import or export of counterfeits of the Indian coin 85
239. Delivery of coin, possessed with knowledge that it is counterfeit .. 85
240. Delivery of Indian coin, possessed with knowledge that it is counterfeit 86
241. Delivery of coin as genuine, which, when first possessed, the deliverer did not know to be counterfeit 86
242. Possession of counterfeit coin by person who knew it to be counterfeit when he became possessed thereof 86
243. Possession of Indian coin by person who knew it to be counterfeit when he became possessed thereof 86
244. Person employed in mint causing coin to be of different weight or composition from that fixed by law 86
245. Unlawfully taking coining instrument from mint 87
246. Fraudulently or dishonestly diminishing weight or altering composition of coin 87
247. Fraudulently or dishonestly diminishing weight or altering composition of Indian coin 87
248. Altering appearance of coin with intent that it shall pass as coin of different description 87
249. Altering appearance of Indian coin with intent that it shall pass as coin of different description 87
250. Delivery of coin possessed with knowledge that it is altered 87
251. Delivery of Indian coin, possessed with knowledge that it is altered 88
252. Possession of coin by person who knew it to be altered when he became possessed thereof 88

Sections *Pages*

253. Possession of Indian coin by person who knew it to be altered when he became possessed thereof 88

254. Delivery of coin as genuine which, when first possessed, the deliverer did not know to be altered 88

255. Counterfeiting Government stamp 88

256. Having possession of instrument or material for counterfeiting Government stamp 89

257. Making or selling instrument for counterfeiting Government stamp 89

258. Sale of counterfeit Government stamp 89

259. Having possession of counterfeit Government stamp 89

260. Using as genuine a Government stamp known to be counterfeit 89

261. Effacing, writing from substance bearing Government stamp, or removing from document a stamp used for it, with intent to cause loss to Government 89

262. Using Government stamp known to have been before used 90

263. Erasure of mark denoting that stamp has been used 90

263-A. Prohibition of fictitious stamps 90

CHAPTER XIII

OF OFFENCES RELATING TO WEIGHTS AND MEASURES

264. Fraudulent use of false instrument for weighing 90

265. Fraudulent use of false weight or measure 91

266. Being in possession of false weight or measure 91

267. Making or selling false weight or measure 91

CHAPTER XIV

OF OFFENCES AFFECTING THE PUBLIC HEALTH, SAFETY, CONVENIENCE, DECENCY AND MORALS

268. Public nuisance 91

269. Negligent act likely to spread infection of disease dangerous to life 91

270. Malignant act likely to spread infection of disease dangerous to life 91

271. Disobedience to quarantine rule 91

272. Adulteration of food or drink intended for sale 92

STATE AMENDMENTS

Orissa 92

Uttar Pradesh 92

West Bengal 92

Sections *Pages*

273. Sale of noxious food or drink 92
274. Adulteration of drugs 92
275. Sale of adulterated drugs 93
276. Sale of drug as a different drug or preparation 93
277. Fouling water of public spring or reservoir 93
278. Making atmosphere noxious to health 93
279. Rash driving or riding on a public way 93
280. Rash navigation of vessel 93
281. Exhibition of false light, mark or buoy 93
282. Conveying person by water for hire in unsafe or overloaded vessel . 94
283. Danger or obstruction in public way or line of navigation 94
284. Negligent conduct with respect to poisonous substance 94
285. Negligent conduct with respect to fire or combustible matter 94
286. Negligent conduct with respect to explosive substance 94
287. Negligent conduct with respect to machinery 95
288. Negligent conduct with respect to pulling down or repairing buildings 95
289. Negligent conduct with respect to animal 95

STATE AMENDMENTS

Himachal Pradesh 95

290. Punishment for public nuisance in cases not otherwise provided for 95
291. Continuance of nuisance after injunction to discontinue 95
292. Sale, etc., of obscene books, etc. 96

STATE AMENDMENTS

Orissa 97
Tamil Nadu 97

SECTION 292-A

Orissa 97
Tamil Nadu 97
293. Sale, etc., of obscene objects to young person 98

STATE AMENDMENTS

Orissa 99
Tamil Nadu 99
294. Obscene acts and songs 99
294-A. Keeping lottery office 99

Sections *Pages*

STATE AMENDMENTS

Andhra Pradesh 99
Gujarat 100
Karnataka 100
Maharashtra 100
Manipur 100
Uttar Pradesh 100

CHAPTER XV
OF OFFENCES RELATING TO RELIGION

295. Injuring or defiling place of worship with intent to insult the religion of any class 100
295-A. Deliberate and malicious acts intended to outrage religious feelings of any class by insulting its religion or religious beliefs 100
296. Disturbing religious assembly 100
297. Trespassing on burial places, etc. 100
298. Uttering words, etc., with deliberate intent to wound religious feelings 101

STATE AMENDMENTS

Andhra Pradesh 101

CHAPTER XVI
OF OFFENCES AFFECTING THE HUMAN BODY

Of offences affecting life

299. Culpable homicide 101
300. Murder 102
301. Culpable homicide by causing death of person other than person whose death was intended 105
302. Punishment for murder 105
303. Punishment for murder by life-convict 111
304. Punishment for culpable homicide not amounting to murder 111
304-A. Causing death by negligence 112

STATE AMENDMENTS

Himachal Pradesh 112

304-B. Dowry death 112
305. Abetment of suicide of child or insane person 114
306. Abetment of suicide 114
307. Attempt to murder 115
308. Attempt to commit culpable homicide 116

Sections *Pages*

309. Attempt to commit suicide 116
310. Thug 116
311. Punishment 117

Of the causing of miscarriage, of injuries to unborn children, of the exposure of infants, and of the concealment of births

312. Causing miscarriage 117
313. Causing miscarriage without woman's consent 117
314. Death caused by act done with intent to cause miscarriage 117
315. Act done with intent to prevent child being born alive or to cause it to die after birth 117
316. Causing death of quick unborn child by act amounting to culpable homicide 117
317. Exposure and abandonment of child under twelve years, by parent or person having care of it 118
318. Concealment of birth by secret disposal of dead body 118

Of hurt

319. Hurt 118
320. Grievous hurt 118
321. Voluntarily causing hurt 118
322. Voluntarily causing grievous hurt 118
323. Punishment for voluntarily causing hurt 119
324. Voluntarily causing hurt by dangerous weapons or means 119
325. Punishment for voluntarily causing grievous hurt 119
326. Voluntarily causing grievous hurt by dangerous weapons or means 119
326-A. Voluntarily causing grievous hurt by use of acid, etc. 120
326-B. Voluntarily throwing or attempting to throw acid 120
327. Voluntarily causing hurt to extort property, or to constrain to an illegal act 121
328. Causing hurt by means of poison, etc., with intent to commit an offence 121
329. Voluntarily causing grievous hurt to extort property, or to constrain to an illegal act 121
330. Voluntarily causing hurt to extort confession, or to compel restoration of property 121

Sections *Pages*

331. Voluntarily causing grievous hurt to extort confession, or to compel restoration of property 122

332. Voluntarily causing hurt to deter public servant from his duty 122

STATE AMENDMENTS

Maharashtra 122

333. Voluntarily causing grievous hurt to deter public servant from his duty 122

334. Voluntarily causing hurt on provocation 122

335. Voluntarily causing grievous hurt on provocation 122

336. Act endangering life or personal safety of others 123

337. Causing hurt by act endangering life or personal safety of others .. 123

338. Causing grievous hurt by act endangering life or personal safety of others 123

Of wrongful restraint and wrongful confinement

339. Wrongful restraint 123

340. Wrongful confinement 123

341. Punishment for wrongful restraint 123

342. Punishment for wrongful confinement 124

343. Wrongful confinement for three or more days 124

344. Wrongful confinement for ten or more days 124

345. Wrongful confinement of person for whose liberation writ has been issued 124

346. Wrongful confinement in secret 124

347. Wrongful confinement to extort property, or constrain to illegal act 124

348. Wrongful confinement to extort confession, or compel restoration of property 124

Of criminal force and assault

349. Force 125

350. Criminal force 125

351. Assault 126

352. Punishment for assault or criminal force otherwise than on grave provocation 126

353. Assault or criminal force to deter public servant from discharge of his duty 127

Sections *Pages*

STATE AMENDMENTS

Maharashtra 127

354. Assault or criminal force to woman with intent to outrage her modesty 127

STATE AMENDMENTS

Andhra Pradesh 127
Arunachal Pradesh 127
Chhattisgarh 127

354-A. Sexual harassment and punishment for sexual harassment 128

STATE AMENDMENTS

Madhya Pradesh 128

354-B. Assault or use of criminal force to woman with intent to disrobe ... 129

STATE AMENDMENTS

Arunachal Pradesh 129

354-C. Voyeurism 129

354-D. Stalking 130

STATE AMENDMENTS

Arunachal Pradesh 130
Chhattisgarh 130
Union Territory of Jammu and Kashmir 131
Union Territory of Ladakh 131

355. Assault or criminal force with intent to dishonour person, otherwise than on grave provocation 131

356. Assault or criminal force in attempt to commit theft of property carried by a person 131

357. Assault or criminal force in attempt wrongfully to confine a person 131

358. Assault or criminal force on grave provocation 132

Of kidnapping, abduction, slavery and forced labour

359. Kidnapping 132

360. Kidnapping from India 132

361. Kidnapping from lawful guardianship 132

STATE AMENDMENTS

Manipur 132

362. Abduction 132

363. Punishment for kidnapping 132

STATE AMENDMENTS

Uttar Pradesh 133

363-A. Kidnapping or maiming a minor for purposes of begging 133

Sections *Pages*

364. Kidnapping or abducting in order to murder 133
364-A. Kidnapping for ransom, etc. 134
365. Kidnapping or abducting with intent secretly and wrongfully to confine person 134
366. Kidnapping, abducting or inducing woman to compel her marriage, etc. 134
366-A. Procuration of minor girl 135
366-B. Importation of girl from foreign country 135
367. Kidnapping or abducting in order to subject person to grievous hurt, slavery, etc. 135
368. Wrongfully concealing or keeping in confinement, kidnapped or abducted person 136
369. Kidnapping or abducting child under ten years with intent to steal from its person 136
370. Trafficking of person 136
370-A. Exploitation of a trafficked person 137
371. Habitual dealing in slaves 137
372. Selling minor for purposes of prostitution, etc. 137
373. Buying minor for purposes of prostitution, etc. 138
374. Unlawful compulsory labour 138

Sexual Offences

375. Rape 138

STATE AMENDMENTS

Manipur 141

376. Punishment for rape 141
376-A. Punishment for causing death or resulting in persistent vegetative state of victim 144

STATE AMENDMENTS

Arunachal Pradesh 144

376-AB. Punishment for rape on woman under twelve years of age 145
376-B. Sexual intercourse by husband upon his wife during separation 145
376-C. Sexual intercourse by a person in authority 145
376-D. Gang rape 146
376-DA. Punishment for gang rape on woman under sixteen years of age ... 147

STATE AMENDMENTS

Arunachal Pradesh 147

Sections		*Pages*
376-DB.	Punishment for gang rape on woman under twelve years of age ...	147
376-E.	Punishment for repeat offenders	147
	STATE AMENDMENTS	
	Chhattisgarh	148
	Of unnatural offences	
377.	Unnatural offences	148
	CHAPTER XVII	
	OF OFFENCES AGAINST PROPERTY	
	Of theft	
378.	Theft	149
379.	Punishment for theft	150
	STATE AMENDMENTS	
	Gujarat	150
	Haryana	151
	Punjab	151
	Union Territory of Chandigarh	151
380.	Theft in dwelling house, etc.	152
	STATE AMENDMENTS	
	Tamil Nadu	152
381.	Theft by clerk or servant of property in possession of master	152
382.	Theft after preparation made for causing death, hurt or restraint in order to the committing of the theft	152
	STATE AMENDMENTS	
	Tripura	153
	Of extortion	
383.	Extortion	153
384.	Punishment for extortion	154
385.	Putting person in fear of injury in order to commit extortion	154
386.	Extortion by putting a person in fear of death or grievous hurt	154
387.	Putting person in fear of death or of grievous hurt, in order to commit extortion	154
388.	Extortion by threat of accusation of an offence punishable with death or imprisonment for life, etc.	154
389.	Putting person in fear of accusation of offence, in order to commit extortion	154
	Of robbery and dacoity	
390.	Robbery	155
	When theft is robbery	155

Sections *Pages*

When extortion is robbery 155
391. Dacoity 155
392. Punishment for robbery 156
393. Attempt to commit robbery 156
394. Voluntarily causing hurt in committing robbery 156
395. Punishment for dacoity 156
396. Dacoity with murder 156
397. Robbery or dacoity, with attempt to cause death or grievous hurt .. 156
398. Attempt to commit robbery or dacoity when armed with deadly weapon 156
399. Making preparation to commit dacoity 156
400. Punishment for belonging to gang of dacoits 157
401. Punishment for belonging to gang of thieves 157
402. Assembling for purpose of committing dacoity 157

Of criminal misappropriation of property

403. Dishonest misappropriation of property 157
404. Dishonest misappropriation of property possessed by deceased person at the time of his death 158

Of criminal breach of trust

405. Criminal breach of trust 158
406. Punishment for criminal breach of trust 160
407. Criminal breach of trust by carrier, etc. 160
408. Criminal breach of trust by clerk or servant 160
409. Criminal breach of trust by public servant, or by banker, merchant or agent 160

Of the receiving of stolen property

410. Stolen property 161
411. Dishonestly receiving stolen property 161

STATE AMENDMENTS 161

Tamil Nadu .....

412. Dishonestly receiving property stolen in the commission of a dacoity 161
413. Habitually dealing in stolen property 162
414. Assisting in concealment of stolen property 162

Of cheating

415. Cheating 162
416. Cheating by personation 164
417. Punishment for cheating 164

Sections *Pages*

418. Cheating with knowledge that wrongful loss may ensue to person whose interest offender is bound to protect 164
419. Punishment for cheating by personation 164
420. Cheating and dishonestly inducing delivery of property 164

Of fraudulent deeds and dispositions of property

421. Dishonest or fraudulent removal or concealment of property to prevent distribution among creditors 165
422. Dishonestly or fraudulently preventing debt being available for creditors 165
423. Dishonest or fraudulent execution of deed of transfer containing false statement of consideration 165
424. Dishonest or fraudulent removal or concealment of property 165

Of mischief

425. Mischief 165
426. Punishment for mischief 166
427. Mischief causing damage to the amount of fifty rupees 166
428. Mischief by killing or maiming animal of the value of ten rupees .. 166
429. Mischief by killing or maiming cattle, etc., of any value or any animal of the value of fifty rupees 166
430. Mischief by injury to works of irrigation or by wrongfully diverting water 167
431. Mischief by injury to public road, bridge, river or channel 167
432. Mischief by causing inundation or obstruction to public drainage attended with damage 167
433. Mischief by destroying, moving or rendering less useful a lighthouse or sea-mark 167
434. Mischief by destroying or moving, etc., a landmark fixed by public authority 167
435. Mischief by fire or explosive substance with intent to cause damage to amount of one hundred or (in case of agricultural produce) ten rupees 167
436. Mischief by fire or explosive substance with intent to destroy house, etc. 168
437. Mischief with intent to destroy or make unsafe a decked vessel or one of twenty tons burden 168
438. Punishment for the mischief described in Section 437 committed by fire or explosive substance 168
439. Punishment for intentionally running vessel aground or ashore with intent to commit theft, etc. 168
440. Mischief committed after preparation made for causing death or hurt 168

Sections *Pages*

Of criminal trespass

441. Criminal trespass 168

STATE AMENDMENTS

Karnataka 169
Orissa 169
Uttar Pradesh 169

442. House-trespass 169
443. Lurking house-trespass 169
444. Lurking house-trespass by night 169
445. House-breaking 169
446. House-breaking by night 170
447. Punishment for criminal trespass 170
448. Punishment for house-trespass 171
449. House-trespass in order to commit offence punishable with death . 171
450. House-trespass in order to commit offence punishable with imprisonment for life 171
451. House-trespass in order to commit offence punishable with imprisonment 171
452. House-trespass after preparation for hurt, assault or wrongful restraint 171
453. Punishment for lurking house-trespass or house-breaking 171
454. Lurking house-trespass or house-breaking in order to commit offence punishable with imprisonment 171

STATE AMENDMENTS

Tamil Nadu 172

455. Lurking house-trespass or house-breaking after preparation for hurt, assault or wrongful restraint 172
456. Punishment for lurking house-trespass or house-breaking by night 172
457. Lurking house-trespass or house-breaking by night in order to commit offence punishable with imprisonment 172

STATE AMENDMENTS

Tamil Nadu 172

458. Lurking house-trespass or house-breaking by night after preparation for hurt, assault, or wrongful restraint 172
459. Grievous hurt caused whilst committing lurking house-trespass or house-breaking 173
460. All persons jointly concerned in lurking house-trespass or house-breaking by night punishable where death or grievous hurt caused by one of them 173
461. Dishonestly breaking open receptacle containing property 173
462. Punishment for same offence when committed by person entrusted with custody 173

Sections *Pages*

CHAPTER XVIII
OF OFFENCES RELATING TO DOCUMENTS AND TO PROPERTY MARKS

463. Forgery 173
464. Making a false document 174
465. Punishment for forgery 176
466. Forgery of record of Court or of public register, etc. 176
467. Forgery of valuable security, will, etc. 177
468. Forgery for purpose of cheating 177
469. Forgery for purpose of harming reputation 177
470. Forged document or electronic record 177
471. Using as genuine a forged document or electronic record 177
472. Making or possessing counterfeit seal, etc., with intent to commit forgery punishable under Section 467 178
473. Making or possessing counterfeit seal, etc., with intent to commit forgery punishable otherwise 178
474. Having possession of document or electronic record described in Section 466 or 467, knowing it to be forged and intending to use it as genuine 178
475. Counterfeiting device or mark used for authenticating documents described in Section 467, or possessing counterfeit marked material 178
476. Counterfeiting device or mark used for authenticating documents other than those described in Section 467, or possessing counterfeit marked material 179
477. Fraudulent cancellation, destruction, etc., of will, authority to adopt, or valuable security 179
477-A. Falsification of accounts 179

Of property and other marks

478. Trade mark [*Repealed*] 180
479. Property mark 180
480. Using a false trade mark [*Repealed*] 180
481. Using a false property mark 180
482. Punishment for using a false property mark 180
483. Counterfeiting a property mark used by another 181
484. Counterfeiting a mark used by a public servant 181
485. Making or possession of any instrument for counterfeiting a property mark 181
486. Selling goods marked with a counterfeit property mark 182
487. Making a false mark upon any receptacle containing goods .....

Sections *Pages*

488. Punishment for making use of any such false mark 182
489. Tampering with property mark with intent to cause injury 182

Of currency-notes and bank-notes

489-A. Counterfeiting currency-notes or bank-notes 183
489-B. Using as genuine, forged or counterfeit currency-notes or bank-notes 183
489-C. Possession of forged or counterfeit currency-notes or bank-notes .. 183
489-D. Making or possessing instruments or materials for forging or counterfeiting currency-notes or bank-notes 183
489-E. Making or using documents resembling currency-notes or bank-notes 184

CHAPTER XIX
OF THE CRIMINAL BREACH OF CONTRACTS OF SERVICE

490. Breach of contract of service during voyage or journey [*Repealed*] 184
491. Breach of contract to attend on and supply wants of helpless person 184
492. Breach of contract to serve at distant place to which servant is conveyed at master's expense [*Repealed*] 185

CHAPTER XX
OF OFFENCES RELATING TO MARRIAGE

493. Cohabitation caused by a man deceitfully inducing a belief of lawful marriage 185
494. Marrying again during lifetime of husband or wife 185
495. Same offence with concealment of former marriage from person with whom subsequent marriage is contracted 185
496. Marriage ceremony fraudulently gone through without lawful marriage 186
497. Adultery 186
498. Enticing or taking away or detaining with criminal intent a married woman 186

CHAPTER XX-A
OF CRUELTY BY HUSBAND OR RELATIVES OF HUSBAND

498-A. Husband or relative of husband of a woman subjecting her to cruelty 186

CHAPTER XXI
OF DEFAMATION

499. Defamation 187
Imputation of truth which public good requires to be made or published 188
Public conduct of public servants 188

Sections		*Pages*
	Conduct of any person touching any public question	188
	Publication of reports of proceedings of courts	188
	Merits of case decided in Court or conduct of witnesses and others concerned	188
	Merits of public performance	189
	Censure passed in good faith by person having lawful authority over another	189
	Accusation preferred in good faith to authorised person	189
	Imputation made in good faith by person for protection of his or other's interests	190
	Caution intended for good of person to whom conveyed or for public good	190
500.	Punishment for defamation	191
501.	Printing or engraving matter known to be defamatory	191
502.	Sale of printed or engraved substance containing defamatory matter	191
	CHAPTER XXII	
	OF CRIMINAL INTIMIDATION, INSULT AND ANNOYANCE	
503.	Criminal intimidation	191
504.	Intentional insult with intent to provoke breach of the peace	192
505.	Statements conducing to public mischief	192
	Statements creating or promoting enmity, hatred or ill-will between classes	192
	Offence under sub-section (2) committed in place of worship, etc. .	192
506.	Punishment for criminal intimidation	193
	STATE AMENDMENTS	
	Meghalaya	193
507.	Criminal intimidation by an anonymous communication	193
508.	Act caused by inducing person to believe that he will be rendered an object of the Divine displeasure	193
509.	Word, gesture or act intended to insult the modesty of a woman	194
	STATE AMENDMENTS	
	Chhattisgarh	194
510.	Misconduct in public by a drunken person	194
	CHAPTER XXIII	
	OF ATTEMPTS TO COMMIT OFFENCES	
511.	Punishment for attempting to commit offences punishable with imprisonment for life or other imprisonment	194

The Penal Code, 1860

List of Amending Acts/Adaptation Orders since 1948

1. Repealing and Amending Act, 1891 (12 of 1891)
2. Indian Independence (Adaptation of Central Acts and Ordinances) Order, 1948
3. Criminal Law (Removal of Racial Discriminations) Act, 1949 (17 of 1949)
4. Indian Penal Code and the Code of Criminal Procedure (Amendment) Act, 1949 (42 of 1949)
5. Adaptation of Laws Order, 1950
6. Repealing and Amending Act, 1950 (35 of 1950)
7. Part B States (Laws) Act, 1951 (3 of 1951)
8. Criminal Law Amendment Act, 1952 (46 of 1952)
9. Repealing and Amending Act, 1952 (48 of 1952)
10. Repealing and Amending Act, 1953 (42 of 1953)
11. Code of Criminal Procedure (Amendment) Act, 1955 (26 of 1955)
12. Adaptation of Laws (No. 2) Order, 1956
13. Repealing and Amending Act, 1957 (36 of 1957)
14. Criminal Law Amendment Act, 1958 (2 of 1958)
15. Trade and Merchandise Marks Act, 1958 (43 of 1958)
16. Indian Penal Code (Amendment) Act, 1959 (52 of 1959)
17. Indian Penal Code (Amendment) Act, 1961 (41 of 1961)
18. Anti-Corruption Laws (Amendment) Act, 1964 (40 of 1964
19. Criminal and Election Laws Amendment Act, 1969 (35 of 1969)
20. Indian Penal Code (Amendment) Act, 1969 (36 of 1969)
21. Criminal Law (Amendment) Act, 1972 (31 of 1972)
22. Employees' Provident Funds and Family Pension Fund (Amendment) Act, 1973 (40 of 1973)
23. Employees' State Insurance (Amendment) Act, 1975 (38 of 1975)
24. Election Laws (Amendment) Act, 1975 (40 of 1975)
25. Criminal Law (Amendment) Act, 1983 (43 of 1983)
26. Criminal Law (Second Amendment) Act, 1983 (46 of 1983)

27. Dowry Prohibition (Amendment) Act, 1986 (43 of 1986)
28. Employees' Provident Fund and Miscellaneous Provisions (Amendment) Act, 1988 (33 of 1988)
29. Prevention of Corruption Act, 1988 (49 of 1988)
30. Criminal Law (Amendment) Act, 1993 (42 of 1993)
31. Indian Penal Code (Amendment) Act, 1995 (24 of 1995)
32. Information Technology Act, 2000 (21 of 2000)
33. Election Laws (Amendment) Act, 2003 (24 of 2003)
34. Code of Criminal Procedure (Amendment) Act, 2005 (25 of 2005)
35. Criminal Law (Amendment) Act, 2005 (2 of 2006)
36. Information Technology (Amendment) Act, 2008 (10 of 2009)
37. Criminal Law (Amendment) Act, 2013 (13 of 2013)
38. Criminal Law (Amendment) Act, 2018 (22 of 2018)
39. Jammu and Kashmir Reorganisation Act, 2019 (34 of 2019)

The Penal Code, 1860

[Act 45 of 1860][1]

[*6th October, 1860*]

Preamble.—Whereas it is expedient to provide a general Penal Code for [2][India];

It is enacted as follows:

Statement of Objects and Reasons of Amendment Act 43 of 1983.—There have been pressing demands inside and outside Parliament for the amendment of the law relating to rape so that it becomes more difficult for the offenders to escape conviction and severe penalties are imposed on those convicted. A petition was also presented to LokSabha on the subject suggesting inter alia, in-camera trial of rape cases and certain changes in the law of evidence especially in the matter of shifting the onus of proving consent of the victim to the accused if the latter were a policeman and it was proved that while on duty he had sexual intercourse with the prosecutrix. The Law Commission which was requested to study the subject has made recommendations for changes in the Indian Penal Code, the Code of Criminal Procedure and the Indian Evidence Act in its 84th Report.

2. The recommendations of the Law Commission have been examined in consultation with the State Government, Various suggestions on the subject have also been received. In the light of the consultation with the State Government and the suggestions which have been received, it is proposed to make suitable changes in the Indian Penal Code, the Code of Criminal Procedure and the Indian Evidence Act with respect mainly to the offence of rape. The changes proposed in the-Bill have been formulated principally on the basis of the following considerations:—

(1) The law should be made more stringent without jeopardising considerations of fair trial;
(2) the definition of rape should be amended to remove certain loopholes and inadequacies and to censure that consent should be vitiated unless it is real and given out of free choice;
(3) minimum punishments for rape should be prescribed;

---

1. The Penal Code has been declared in force in—
Sonthal Parganas, by the Sonthal Parganas Settlement Regulation, 1872 (3 of 1872), S. 2; Panth Piploda, by the Panth Piploda Laws Regulation, 1929 (1 of 1929), S. 2 and Sch.; Khondmals District, by the Khondmals Laws Regulation, 1936 (4 of 1936), S. 3 and Sch.; and Angul District, by the Angul Laws Regulation, 1936 (5 of 1936), S. 3 and Sch.
It has been declared under S. 3(*a*) of the Scheduled Districts Act, 1874 (14 of 1874), to be in force in the following Scheduled Districts, namely: the United Provinces Tarai Districts, *see* Gazette of India, 1876, Pt. I, p. 505; the Districts of Hazaribagh, Lohardaga (now called the Ranchi District, *see* Calcutta Gazette, 1899, Pt. I, p. 44) and Manbhum and Pargana. Dhalbhum and the Kolhan in the District of Singhbhum, *see* Gazette of India, 1881, Pt. I, p. 504.
It has been extended to Berar by the Berar Laws Act, 1941 (4 of 1941).
It has been extended under S. 5 of the same Act to the Lushai Hills, *see* Gazette of India, 1898, Pt. II, p. 345.
The Act has been extended to—
Goa, Daman and Diu by Reg. 12 of 1962, S. 3 and Sch.;
Dadra and Nagar Haveli by Reg. 6 of 1963, S. 2 and Sch. I;
Pondicherry by Reg. 7 of 1963, S. 3 and Sch. I
Laccadive, Minicoy and Amindivi Islands by Reg. 8 of 1965, S. 3 and Sch.
It has been extended to the State of Sikkim w.e.f. 13-9-1994 [*Vide* Noti. No. S.O. 516(E), dt. 9th July, 1994].
2. *Subs.* for "the whole of India except Part B States" by Act 3 of 1951.

(4) the prosecutrix should be protected from the glare of embarrassing publicity during the investigatory as well as trial stages and any information leading to identification of the victim should not be disclosed.

(5) in the case of rape by a police officer or by a group of persons or by a person having a custodial control by virtue of his special position over the victim, once it is proved that sexual intercourse has taken place, the onus should be on the accused to prove that the sexual intercourse was with the consent of the woman.

3. The Bill seeks to achieve the above objects.

Statement of Objects and Reasons of Amendment Act 46 of 1983.—The increasing number of dowry deaths is a matter of serious concern. The extent of the evil has been commented upon by the Joint Committee of the Houses to examine the working of the Dowry Prohibition Act, 1961. Cases of cruelty by the husband and relatives of the husband which culminate in suicide by, or murder of the hapless woman concerned, constitute only a small fraction of the cases involving such cruelty. It is, therefore, proposed to amend the Indian Penal Code, the Code of Criminal Procedure and the Indian Evidence Act suitably to deal effectively not only with cases of dowry deaths but also cases of cruelty to married woman by their in-laws.

2. The following are the changes which are proposed to be made:—

(*i*) The Indian Penal Code is proposed to be amended to make cruelty to a woman by her husband or any relative of her husband punishable with imprisonment for a term which may extend to three years and also with fine. Wilful conduct of such a nature by the husband or any relative of the husband as is likely to drive the woman to commit suicide or cause grave physical or mental injury to her, and harassment of a woman by her husband or by any relative of her husband with a view to coercing her or any of her relatives to meet any unlawful demand for property would be punishable as cruelty. The offence will be cognizable if information relating to the commission of the offence is given to the officer-in-charge of a police station by the victim of the offence or a relative of the victim of the offence or in the absence of any such relative by any public servant authorised in this behalf by the State Government. It is also being provided that no Court shall take cognizance of the offence except upon a police report or a complaint made by the victim of the offence or by her father, mother, brother, sister or by her father's or mother's brother or sister or with the leave of the Court by any other person related to her by blood, marriage or adoption (vide clauses 2, 5 and 6 of the Bill).

(*ii*) Provision is being made for inquest by Executive Magistrates and for post-mortem in all cases where a woman has, within seven years of her marriage, committed suicide or died in circumstances raising a reasonable suspicion that some other person has committed an offence. Postmortem is also being provided for in all cases where a married woman has died within seven years of her marriage and a relative of such woman has made a request in this behalf (vide Cls. 3 and 4 of the Bill).

(*iii*) The Indian Evidence Act, 1872 is being amended to provide that where a woman has committed suicide within a period of seven years from the date of her marriage and it is shown that her husband or any relative of her husband had subjected her to cruelty, the Court may presume that such suicide had been abetted by her husband or by such relative of her husband (vide clause 7 of the Bill).

3. The Bill seeks to achieve the above objects.

Statement of Objects and Reasons of Amendment Act 21 of 2000.—New communication systems and digital technology have made dramatic changes in the way we live. A revolution is occurring in the way people transact business. Businesses and consumers are increasingly using computers to create, transmit and store information in the electronic form instead of traditional paper documents. Information stored in electronic form has many advantages. It is cheaper, easier to store,

retrieve and speedier to communicate. Although people are aware of these advantages they are reluctant to conduct business or conclude any transaction in the electronic form due to lack of appropriate legal framework. The two principal hurdles which stand in the way of facilitating electronic commerce and electronic governance are the requirements as to writing and signature for legal recognition. At present many legal provisions assume the existence of paper based records and documents and records which should bear signatures. The Law of Evidence is traditionally based upon paper based records and oral testimony. Since electronic commerce eliminates the need for paper based transactions, hence to facilitate e-commerce, the need for legal changes have become an urgent necessity. International trade through the medium of e-commerce is growing rapidly in the past few years and many countries have switched over from traditional paper based commerce to e-commerce.

2. The United Nations Commission on International Trade Law (UNCITRAL) adopted the Model Law on Electronic Commerce in 1996. The General Assembly of United Nations by its Resolution No. 51/162 dated 30th January, 1997 recommended that all States should give favourable considerations to the said Model Law when they enact or revise their laws. The Model Law provides for equal legal treatment of users of electronic communication and paper based communication. Pursuant to a recent declaration by member countries, the World Trade Organisation is likely to form a work programme to handle its work in this area including the possible creation of multilateral trade deals through the medium of electronic commerce.

3. There is a need for bringing in suitable amendments in the existing laws in our country to facilitate e-commerce. It is, therefore, proposed to provide for legal recognition of electronic records and digital signatures. This will enable the conclusion of contracts and the creation of rights and obligations through the electronic medium. It is also proposed to provide for a regulatory regime to supervise the Certifying Authorities issuing digital Signature Certificates. To prevent the possible misuse arising out of transactions and other dealings concluded over the electronic medium, it is also proposed to create civil and criminal liabilities for contravention of the provisions of the proposed legislation.

4. With a view to facilitiate Electronic Governance, it is proposed to provide for the use and acceptance of electronic records and digital signatures in the Government offices and its agencies. This will make the citizens interaction with the Government offices hassle free.

5. It is also proposed to make consequential amendments in the Indian Penal Code and the Indian Evidence Act, 1872 to provide for necessary changes in the various provisions which deal with offences relating to documents and paper based transactions. It is also proposed to amend the Reserve Bank of India Act, 1934 to facilitate electronic fund transfers between the financial institutions and banks and the Bankers' Books Evidence Act, 1891 to give legal sanctity for books of account maintained in the electronic form by the banks.

6. The proposal was also circulated to the State Governments. They have supported the proposed legislation and have also expressed urgency for such legislation.

7. The Bill seeks to achieve the above objectives.

Statement of Objects and Reasons of Amendment Act 10 of 2009.—The Information Technology Act was enacted in the year 2000 with a view to give a fillip to the growth of electronic based transactions, to provide legal recognition for e-commerce and e-transactions, to facilitate e-governance, to prevent computer based crimes and ensure security practices and procedures in the context of widest possible use of information technology worldwide.

2. With proliferation of information technology enabled services such as e-governance, e-commerce and e-transactions, protection of personal data and information and implementation of security practices and procedures relating to these applications of electronic communications have assumed greater importance and they require harmonisation with the provisions of the Information Technology Act. Further, protection of Critical Information Infrastructure is pivotal to national

security, economy, public health and safety, so it has become necessary to declare such infrastructure as a protected system so as to restrict its access.

3. A rapid increase in the use of computer and internet has given rise to new forms of crimes like publishing sexually explicit materials in electronic form, video voyeurism and breach of confidentiality and leakage of data by intermediary, e-commerce frauds like personation commonly known as Phishing, identity theft and offensive messages through communication services. So, penal provisions are required to be included in the Information Technology Act, the Indian Penal Code, the Indian Evidence Act and the Code of Criminal Procedure to prevent such crimes.

4. The United Nations Commission on International Trade Law (UNCITRAL) in the year 2001 adopted the Model Law on Electronic Signatures. The General Assembly of the United Nations by its resolution No. 56/80, dated 12th December, 2001, recommended that all States accord favourable consideration to the said Model Law on Electronic Signatures. Since the digital signatures are linked to a specific technology under the existing provisions of the Information Technology Act, it has become necessary to provide for alternate technology of electronic signatures for bringing harmonisation with the said Model Law.

5. The service providers may be authorised by the Central Government or the State Government to set up, maintain and upgrade the computerised facilities and also collect, retain and appropriate service charges for providing such services at such scale as may be specified by the Central Government or the State Government.

6. The Bill seeks to achieve the above objects.

Statement of Objects and Reasons of Amendment Act 13 of 2013.—On the basis of the recommendations of the Law Commission of India in its One Hundred Seventy Second report on 'Review of Rape Laws' as well as the recommendations of the National Commission for Women for providing stringent punishment for the offence of rape, a High Power Committee was constituted consisting of the representatives of the Ministry of Women and Child Development, Ministry of Law and Justice, National Commission for Women, Law Commission of India and the Ministry of Home Affairs to examine the matter considering the suggestions of various quarters on the subject. The Committee submitted its report along with the draft Criminal Law (Amendment) Bill, 2011 and recommended to the Government for its enactment. The draft Bill was further examined by the Government.

2. The Criminal Law (Amendment) Bill, 2012 seeks to amend the Indian Penal Code, 1860, the Code of Criminal Procedure, 1973 and the Indian Evidence Act, 1872, inter alia, so as to—

(*a*) substitute Sections 375, 376, 376-A and 376-B by replacing the existing Sections 375, 376, 376-A, 376-B, 376-C and 376-D of the Indian Penal Code, and replacing the word 'rape' wherever it occurs by the words 'sexual assault,' to make the offence of sexual assault gender neutral and also widening the scope of the offence of sexual assault;

(*b*) include Sections 326-A and 326-B in the Indian Penal Code to make acid attack a specific offence;

(*c*) enhance the punishment under Sections 354 and 509 of the Indian Penal Code, making the offence more stringent;

(*d*) amend Sections 154, 160 and 161 of the Code of Criminal Procedure, 1973 for providing women and male person under the age of eighteen years or above the age of sixty-five years more protections;

(*e*) amend the Indian Evidence Act, 1872 by way of inserting a new Section 53-A wherein evidence of the character of the victim or of his or her previous sexual experience shall not be relevant or questioned.

3. The Bill seeks to achieve the above objectives.

Statement of Objects and Reasons of Amendment Act 22 of 2018.—Recent incidents of rape and gang rape on women under the age of sixteen years and twelve years have shaken the

conscience of the entire Nation. Therefore, the offences of rape and gang rape on women under the age of sixteen years and twelve years required effective deterrence through legal provisions of more stringent punishment. Some of the incidents in recent years have been marked by increased brutality and violence perpetrated on minor girls. This has fueled demands from various sections of the society to make the penal provisions more stringent and effective, immediate arrest of the accused and ensure speedy trial in such cases.

2. As the Parliament was not in session and immediate action was required to be taken in this regard to make necessary amendments in the Indian Penal Code, Indian Evidence Act, 1872, the Code of Criminal Procedure, 1973 and the Protection of Children from Sexual Offences Act, 2012, the President promulgated the Criminal Law (Amendment) Ordinance, 2018 on 21st April, 2018.

3. It is, therefore, proposed to introduce the Criminal Law (Amendment) Bill, 2018 to replace the Criminal Law (Amendment) Ordinance, 2018, which, inter alia, provides for—

(*a*) punishment for the offence of rape from the minimum imprisonment of seven years to ten years, which is extendable to imprisonment for life;

(*b*) punishment for the offence of rape on a woman under sixteen years of age shall be rigorous imprisonment for a term not less than twenty years but may extend to imprisonment for life, which shall mean imprisonment for the remainder of that person's natural life and shall also be liable to fine;

(*c*) punishment for the offence of rape on a woman under twelve years of age shall be rigorous imprisonment for a term not less than twenty years but may extend to imprisonment for life, which shall mean imprisonment for the remainder of that person's natural life and with fine or with death;

(*d*) punishment for the offence of gang rape on a woman under sixteen years of age shall be imprisonment for life, which shall mean imprisonment for the remainder of that person's natural life and with fine;

(*e*) punishment for the offence of gang rape on a woman under twelve years of age shall be imprisonment for life, which shall mean imprisonment for the remainder of that person's natural life and with fine or with death;

(*f*) investigation in relation to all rape cases shall be completed within a period of two months from the date on which the information recorded by the officer-in-charge of the police station;

(*g*) completion of inquiry or trial relating to the offence of rape, within a period of two months;

(*h*) dispose of an appeal against a conviction or a cquittal in rape cases within a period of six months from the date of filing of the appeal;

(*i*) the provisions of anticipatory bail shall not be applicable in cases of rape or gang rape of woman under sixteen and twelve years of age;

(*j*) consequential amendments in the Indian Penal Code, Indian Evidence Act, 1872, the Code of Criminal Procedure, 1973 and the Protection of Children from Sexual Offences Act, 2012 relating to the cases of rape, gang rape of the woman below the age of sixteen years, twelve years, repeat offenders, to extend the applicability of compulsory registration of FIRs, fine imposed to be paid to victim, facilitate better recording of evidence and protect the dignity of rape survivor and treatment free of cost in hospitals.

4. The Bill seeks to achieve the above objectives.

CHAPTER I
INTRODUCTION

1. Title and extent of operation of the Code.—This Act shall be called the Indian Penal Code, and shall [3][extend to the whole of India [4][* * *]].

2. Punishment of offences committed within India.—Every person shall be liable to punishment under this Code and not otherwise for every act or omission contrary to the provisions thereof, of which he shall be guilty within [5][India] [6][* * *].

3. Punishment of offences committed beyond, but which by law may be tried within, India.—Any person liable, by any [7][Indian law], to be tried for an offence committed beyond [8][India] shall be dealt with according to the provisions of this Code for any act committed beyond [9][India] in the same manner as if such act had been committed within [10][India].

[11][**4. Extension of Code to extra-territorial offences.**—The provisions of this Code apply also to any offence committed by—

[12][(1) any citizen of India in any place without and beyond India;

(2) any person on any ship or aircraft registered in India wherever it may be;]

[13][(3) any person in any place without and beyond India committing offence targeting a computer resource located in India.]

[14][*Explanation.*—In this section—

(*a*) the word "offence" includes every act committed outside India which, if committed in India, would be punishable under this Code;

---

3. *Subs.* by the A.O. 1948 for "take effect * throughout British India".
   * The words and figures "on and from the first days of May, 1861" occurring between the words "effect" and "throughout" were *rep.* by Act 12 of 1891.
4. The words "except the State of Jammu and Kashmir" *omitted* by Act 34 of 2019, Ss. 95 & 96 and Sch. V (w.e.f. 31-10-2019).
5. *Subs.* for "the States" by Act 3 of 1951.
6. The words and figures "on or after the said first day of May, 1861" *omitted* by Act 12 of 1891.
7. *Subs.* for "law passed by the Governor-General of India in Council" by the A.O. 1937.
8. *Subs.* for "the States" by Act 3 of 1951.
9. *Subs.* for "the States" by Act 3 of 1951.
10. *Subs.* for "the States" by Act 3 of 1951.
11. *Subs.* by Act 4 of 1898, S. 2. Prior to substitution it read as:
    "4. *Punishment of offences committed by a servant of the Queen within a foreign allied States.*—Every servant of the Queen shall be subject to punishment under this Code for every act or omission contrary to the provisions thereof, of which he, whilst in such service, shall be guilty on or after the said 1st day of January, 1862, within the dominions of any Prince or State in alliance with the Queen, by virtue of any treaty or engagement heretofore entered into with the East India Company or which may have been or may hereafter be made in the name of the Queen by any Government of India."
12. *Subs.* by the A.O. 1950 for the original clauses (1) to (4).
13. *Ins.* by Act 10 of 2009, S. 51 (w.e.f. 27-10-2009).
14. *Subs.* by Act 10 of 2009, S. 51 (w.e.f. 27-10-2009). Prior to substitution it read as:
    '*Explanation.*—In this section the word "offence" includes every act committed outside India which, if committed in India, would be punishable under this Code.'

(*b*) the expression "computer resource" shall have the meaning assigned to it in clause (*k*) of sub-section (1) of Section 2 of the Information Technology Act, 2000 (21 of 2000).]

[15][*Illustration*]

[16][* * *] *A*, [17][who is [18][a citizen of India]], commits a murder in Uganda. He can be tried and convicted of murder in any place in [19][India] in which he may be found.

[20][* * *]

CASE LAW ▸ Jurisdiction.—The accused had a domicile of origin in the district of Multan and had to be assigned Pakistani domicile on partition of India. He committed an offence in Pakistan. He cannot be tried for that offence by a Criminal Court of India after his migration to India on his acquisition of the status of a citizen of India, *Central Bank of India Ltd.* v. *Ram Narain*, AIR 1955 SC 36.

[21][**5. Certain laws not to be affected by this Act.**—Nothing in this Act shall affect the provisions of any Act for punishing mutiny and desertion of officers, soldiers, sailors or airmen in the service of the Government of India or the provisions of any special or local law.]

CHAPTER II
GENERAL EXPLANATIONS

6. Definitions in the Code to be understood subject to exceptions.—Throughout this Code every definition of an offence, every penal provision, and every illustration of every such definition or penal provision, shall be understood subject to the exceptions contained in the Chapter entitled "General Exceptions", though those exceptions are not repeated in such definition, penal provision or illustration.

Illustrations

(*a*) The sections, in this Code, which contain definitions of offences, do not express that a child under seven years of age cannot commit such offences, but the definitions are to be understood subject to the general exception which provides that nothing shall be an offence which is done by a child under seven years of age.

(*b*) *A*, a police-officer, without warrant, apprehends *Z*, who has committed murder. Here *A* is not guilty of the offence of wrongful confinement; for he was bound by law to apprehend *Z*, and therefore the case falls within the general exception which provides that "nothing is an offence which is done by a person who is bound by law to do it".

---

15. *Subs.* for "Illustrations" by Act 36 of 1957, S. 3 and Sch. II.
16. The brackets and letters "(*a*)" *omitted* by Act 36 of 1957, S. 3 and Sch. II.
17. *Subs.* for "a coolie, who is a Native Indian subject" by the A.O. 1948.
18. *Subs.* for "a British subject of Indian domicile" by the A.O. 1950.
19. *Subs.* for "the States" by Act 3 of 1951.
20. *Illustrations* (*b*), (*c*) and (*d*) were *omitted* by the A.O. 1950. Prior to omission they read as:
"(*b*) *B*, a European British subject, commits a murder in Kashmir. He can be tried and convicted of murder in any place in British India in which he may be found.
(*c*) *C*, a foreigner who is in the service of the Punjab Government, commits a murder in Jhind. He can be tried and convicted of murder at any place in British India in which he may be found.
(*d*) D, a British subject living in Indore, instigates *E* to commit a murder in Bombay. *D* is guilty of abetting murder."
21. *Subs.* by the A.O. 1950.

CASE LAW ▸ **Interpretation/Construction.**—Section 105, Evidence Act can be looked upon as analogous to a proviso only if Section 6, IPC and Section 105, Evidence Act are viewed together. It is certainly difficult to see the purpose of Section 105 of the Evidence Act unless it is viewed in the context of Section 6, IPC, *Rishikesh Singh* v. *State*, AIR 1970 All 51 : 1970 Cri LJ 132 (FB).

7. Sense of expression once explained.—Every expression which is explained in any part of this Code, is used in every part of this Code in conformity with the explanation.

8. Gender.—The pronoun "he" and its derivatives are used of any person, whether male or female.

9. Number.—Unless the contrary appears from the context, words importing the singular number include the plural number, and words importing the plural number include the singular number.

10. "Man", "Woman".—The word "man" denotes a male human being of any age: the word "woman" denotes a female human being of any age.

11. "Person".—The word "person" includes any Company or Association or body of persons, whether incorporated or not.

12. "Public".—The word "public" includes any class of the public, or any community.

13. "Queen".—[22][* * *]

[23][**14. "Servant of Government".**—The words "servant of Government" denote any officer or servant continued, appointed or employed in India by or under the authority of Government.]

15. "British India".—[24][* * *]

16. "Government of India".—[25][* * *]

[26][**17. "Government".**—The word "Government" denotes the Central Government or the Government of a [27][* * *] State.]

---

22. *Omitted* by the Adaptation of Laws Order, 1950. Prior to omission it read as:
'13. "*Queen*".—The words "Queen" denotes the Sovereign for the time being of the United Kingdom of Great Britain and Ireland.'.

23. *Subs.* by the A.O. 1950. Prior to substitution it read as:
'14. *Servant of the Queen.*—The words "servant of the Queen" denote all officers or servants continued, appointed, or employed in India by or under the authority of the said Statute 21 and 22 Viet. e. 106, entitled "An Act for the better Government of India," or by or under the authority of the Government of India or any Government.'

24. *Omitted* by the Government of India (Adaptation of Indian Laws) Order, 1937. Prior to omission it read as:
'15. "*British India*".—The words "British India" denote the Territories which are or may become vested in Her Majesty by the said Statute 21 and 21 Vict., c. 106 entitled "An Act for the better Government of India," except the Settlement of Prince of Wales' Island, Singapore and Malacca.'.

25. *Omitted* by the Government of India (Adaptation of Indian Laws) Order, 1937. Prior to omission it read as:
'16. "*Government of India*".—The words "Government of India" denote the Governor General of India in Council; or, during the absence of the Governor General of India from his Council, the President in Council, or the Governor General of India alone, as regards the powers which may be lawfully exercised by them or him respectively.'.

26. *Subs.* by A.O. 1950. Prior to substitution it read as:
"17. *Government.*—The word 'Government' denotes the person or persons authorised by law to administer Executive Government in any part of British India."

27. The words "Part A" were *omitted* by Act 3 of 1951 (w.e.f. 1-4-1951).

[28][**18. "India"**.—"India" means the territory of India excluding the State of Jammu and Kashmir.]

19. "Judge".—The word "Judge" denotes not only every person who is officially designated as a Judge, but also every person,—

who is empowered by law to give, in any legal proceeding, civil or criminal, a definitive judgment, or a judgment which, if not appealed against, would be definitive, or a judgment which, if confirmed by some other authority, would be definitive, or

who is one of a body of persons, which body of persons is empowered by law to give such a judgment.

Illustrations

(*a*) A Collector exercising jurisdiction in a suit under Act 10 of 1859, is a Judge.

(*b*) A Magistrate exercising jurisdiction in respect of a charge on which he has power to sentence to fine or imprisonment with or without appeal, is a Judge.

(*c*) A member of a panchayat which has power, under [29]Regulation VII, 1816, of the Madras Code, to try and determine suits, is a Judge.

(*d*) A Magistrate exercising jurisdiction in respect of a charge on which he has power only to commit for trial to another Court, is not a Judge.

20. "Court of Justice".—The words "Court of Justice" denote a Judge who is empowered by law to act judicially alone, or a body of Judges which is empowered by law to act judicially as a body, when such Judge or body of Judges is acting judicially.

Illustration

A panchayat acting under Regulation VII, 1816, of the Madras Code, having power to try and determine suits, is a Court of Justice.

21. "Public servant".—The words "public servant" denote a person falling under any of the descriptions hereinafter following, namely:—

First.—[30][* * *]

Second.—Every Commissioned Officer in the Military, [31][Naval or Air] Forces [32][[33][* * *] of India];

[34][*Third.*—Every Judge including any person empowered by law to discharge, whether by himself or as a member of any body of persons, any adjudicatory functions;]

Fourth.—Every officer of a Court of Justice (including a liquidator, receiver or commissioner) whose duty it is, as such officer, to investigate or report on

---

28. *Subs.* by Act 3 of 1951 (w.e.f. 1-4-1951).
29. *Omitted* by the Madras Civil Courts Act, 1873 (3 of 1873).
30. *Omitted* by the Adaptation of Laws Order, 1950. Prior to omission it read as:
"*First.*—Every covenanted servant of the Queen;"
31. *Subs.* for "or Naval" by Act 10 of 1927, S. 2 and Sch. I.
32. *Subs.* by the A.O. 1948. Prior to substitution it read as:
"of the Queen while serving under any Government in British India or the Crown Representative"
33. The words "of the Dominion" were *omitted* by the A.O. 1950.
34. *Subs.* by Act 40 of 1964, S. 2 (w.e.f. 18-12-1964).

any matter of law or fact, or to make, authenticate, or keep any document, or to take charge or dispose of any property, or to execute any judicial process, or to administer any oath, or to interpret, or to preserve order in the Court, and every person specially authorised by a Court of Justice to perform any of such duties;

Fifth.—Every juryman, assessor, or member of a panchayat assisting a Court of Justice or public servant;

Sixth.—Every arbitrator or other person to whom any cause or matter has been referred for decision or report by any Court of Justice, or by any other competent public authority;

Seventh.—Every person who holds any office by virtue of which he is empowered to place or keep any person in confinement;

Eighth.—Every officer of [35][the Government] whose duty it is, as such officer, to prevent offences, to give information of offences, to bring offenders to justice, or to protect the public health, safety or convenience;

Ninth.—Every officer whose duty it is, as such officer, to take, receive, keep or expend any property on behalf of [36][the Government], or to make any survey, assessment or contract on behalf of [37][the Government], or to execute any revenue process, or to investigate, or to report, on any matter affecting the pecuniary interests of [38][the Government], or to make, authenticate or keep any document relating to the pecuniary interests of [39][the Government], or to prevent the infraction of any law for the protection of the pecuniary interests of [40][the Government] [41][* * *];

Tenth.—Every officer whose duty it is, as such officer, to take, receive, keep or expend any property, to make any survey or assessment or to levy any rate or tax for any secular common purpose of any village, town or district, or to make, authenticate or keep any document for the ascertaining of the rights of the people of any village, town or district;

[42][*Eleventh.*—Every person who holds any office in virtue of which he is empowered to prepare, publish, maintain or revise an electoral roll or to conduct an election or part of an election;]

[43][*Twelfth.*—Every person—

(*a*) in the service or pay of the Government or remunerated by fees or commission for the performance of any public duty by the Government;

---

35. *Subs.* for "the Crown" by the A.O. 1950.
36. *Subs.* for "the Crown" by the A.O. 1950.
37. *Subs.* for "the Crown" by the A.O. 1950.
38. *Subs.* for "the Crown" by the A.O. 1950.
39. *Subs.* for "the Crown" by the A.O. 1950.
40. *Subs.* for "the Crown" by the A.O. 1950.
41. *Omitted* by Act 40 of 1964, S. 2 (w.e.f. 18-12-1964). Prior to omission it read as:
"and every officer in the service or pay of the Government or remunerated by fees or commission for the performance of any public duty"
42. *Ins.* by Act 39 of 1920, S. 2.
43. *Subs.* by Act 40 of 1964, S. 2 (w.e.f. 18-12-1964).

(*b*) in the service or pay of a local authority, a corporation established by or under a Central, Provincial or State Act or a Government company as defined in Section 617 of the Companies Act, 1956 (1 of 1956).]

Illustration

A Municipal Commissioner is a public servant.

Explanation 1.—Persons falling under any of the above descriptions are public servants, whether appointed by the Government or not.

Explanation 2.—Wherever the words "public servant" occur, they shall be understood of every person who is in actual possession of the situation of a public servant, whatever legal defect there may be in his right to hold that situation.

[44][*Explanation 3*.—The word "election" denotes an election for the purpose of selecting members of any legislative, municipal or other public authority, of whatever character, the method of selection to which is by, or under, any law prescribed as by election.]

STATE AMENDMENTS

Rajasthan.—In its application to the State of Rajasthan, in Section 21 after clause twelfth the following new clause shall be *added*, namely:—

"*Thirteenth*.—Every person employed or engaged by any public body in the conduct and supervision of any examination recognised or approved under any law.

Explanation.—The expression 'Public Body' includes—

(*a*) a University, Board of Education or other body, either established by or under a Central or State Act or under the provisions of the Constitution of India or constituted by the Government; and

(*b*) a local authority." [*Vide* Rajasthan Act 4 of 1993, S. 2 (w.e.f. 9-1-1993).]

22. "Movable property".—The words "movable property" are intended to include corporeal property of every description, except land and things attached to the earth or permanently fastened to anything which is attached to the earth.

23. "Wrongful gain".—"Wrongful gain" is gain by unlawful means of property to which the person gaining is not legally entitled.

"Wrongful loss".—"Wrongful loss" is the loss by unlawful means of property to which the person losing it is legally entitled.

Gaining wrongfully, losing wrongfully.—A person is said to gain wrongfully when such person retains wrongfully, as well as when such person acquires wrongfully. A person is said to lose wrongfully when such person is wrongfully kept out of any property, as well as when such person is wrongfully deprived of property.

24. "Dishonestly".—Whoever does anything with the intention of causing wrongful gain to one person or wrongful loss to another person, is said to do that thing "dishonestly".

---

44. *Ins*. by Act 39 of 1920, S. 2.

CASE LAW ▸ Wrongful Gain.—The expression "wrongful gain" includes wrongful retention and wrongful loss includes being kept out of the property as well as being wrongfully deprived of property, *Krishan Kumar* v. *Union of India*, AIR 1959 SC 1390 : 1959 Cri LJ 1508.

25. "Fraudulently".—A person is said to do a thing fraudulently if he does that thing with intent to defraud but not otherwise.

CASE LAW ▸ Interpretation/Construction.—The words "intent to defraud" are not synonymous with the words "intent to deceive" and require some action resulting in some disadvantage which but for the deception, the person deceived would have avoided, *S. Dutt (Dr)* v. *State of U.P.*, AIR 1966 SC 523 : 1966 Cri LJ 459.

26. "Reason to believe".—A person is said to have "reason to believe" a thing, if he has sufficient cause to believe that thing but not otherwise.

27. Property in possession of wife, clerk or servant.—When property is in the possession of a person's wife, clerk or servant, on account of that person, it is in that person's possession within the meaning of this Code.

Explanation.—A person employed temporarily or on a particular occasion in the capacity of a clerk or servant, is a clerk or servant within the meaning of this section.

28. "Counterfeit".—A person is said to "counterfeit" who causes one thing to resemble another thing, intending by means of that resemblance to practise deception, or knowing it to be likely that deception will thereby be practised.

[45][*Explanation 1.*—It is not essential to counterfeiting that the imitation should be exact.

Explanation 2.—When a person causes one thing to resemble another thing, and the resemblance is such that a person might be deceived thereby, it shall be presumed, until the contrary is proved, that the person so causing the one thing to resemble the other thing intended by means of that resemblance to practise deception or knew it to be likely that deception would thereby be practised.]

29. "Document".—The word "document" denotes any matter expressed or described upon any substance by means of letters, figures or marks, or by more than one of those means, intended to be used, or which may be used, as evidence of that matter.

Explanation 1.—It is immaterial by what means or upon what substance the letters, figures or marks are formed, or whether the evidence is intended for, or may be used in, a Court of Justice, or not.

Illustrations

A writing expressing the terms of a contract, which may be used as evidence of the contract, is a document.

A cheque upon a banker is a document.

A power-of-attorney is a document.

---

45. *Subs.* by Act 1 of 1889, S. 9. Prior to substitution it read as:
"*Explanation.*—It is not essential to counterfeiting that the imitation should be exact."

A map or plan which is intended to be used or which may be used as evidence, is a document.

A writing containing directions or instructions is a document.

Explanation 2.—Whatever is expressed by means of letters, figures or marks as explained by mercantile or other usage, shall be deemed to be expressed by such letters, figures or marks within the meaning of this section, although the same may not be actually expressed.

Illustration

A writes his name on the back of a bill of exchange payable to his order. The meaning of the endorsement, as explained by mercantile usage, is that the bill is to be paid to the holder. The endorsement is a document, and must be construed in the same manner as if the words "pay to the holder" or words to that effect had been written over the signature.

CASE LAW ▸ Admissibility.—The fact that a document was procured by improper or even illegal means will not be a bar to its admissibility, *Magraj Patodia* v. *R.K. Birla*, (1970) 2 SCC 888.

[46][**29-A. Electronic record.**—The words "electronic record" shall have the meaning assigned to them in clause (*t*) of sub-section (1) of Section 2 of the Information Technology Act, 2000.]

30. "Valuable security".—The words "valuable security" denote a document which is, or purports to be, a document whereby any legal right is created, extended, transferred, restricted, extinguished or released, or whereby any person acknowledges that he lies under legal liability, or has not a certain legal right.

Illustration

A writes his name on the back of a bill of exchange. As the effect of this endorsement is to transfer the right to the bill to any person who may become the lawful holder of it, the endorsement is a "valuable security".

CASE LAW ▸ Forged Certificate.—A certificate forged to get admission in college is not a valuable security, *Shriniwas Pandit* v. *State of Maharashtra*, (1980) 4 SCC 551 : 1981 SCC (Cri) 45.

31. "A will".—The words "a will" denote any testamentary document.

32. Words referring to acts include illegal omissions.—In every part of this Code, except where a contrary intention appears from the context, words which refer to acts done extend also to illegal omissions.

33. "Act", "Omission".—The word "act" denotes as well a series of acts as a single act: the word "omission" denotes as well a series of omissions as a single omission.

[47][**34. Acts done by several persons in furtherance of common intention.**—When a criminal act is done by several persons, in furtherance of the common intention of all, each of such persons is liable for that act in the same manner as if it were done by him alone.]

---

46. *Ins.* by Act 21 of 2000, S. 91 and Sch. I (w.e.f. 17-10-2000).
47. *Subs.* by Act 27 of 1870, S. 1. Prior to substitution it read as:
"34. *Each of several persons liable for an act done by all, in like manner as if done by him alone.*—When a criminal act is done by several persons, each of such persons is liable for that act in the same manner as if the act were done by him alone."

CASE LAW ▸ Applicability.—To attract applicability of Section 34 prosecution is under obligation to establish that there existed common intention which requires prearranged plan. Before a person can be vicariously convicted for criminal act of another, act must have been done in furtherance of common intention of all. In absence of prearranged plan and thus a common intention, even if several persons simultaneously attack the man each one of them would be individually liable for whatever injury he caused and none could be vicariously convicted for act of any or the other. Thus, it is necessary either to have direct proof of prior concert or proof of circumstances which necessarily lead to that inference and incriminating facts must be incompatible with innocence of accused and incapable of explanation or any other reasonable hypothesis, *Indrapal Singh* v. *State of U.P.*, (2022) 4 SCC 631.

▸ **Object and scope.**—Under Section 34 a pre-concert in the sense of distinct previous plan is not necessary to be proved. Essence of liability under Section 34, is conscious meeting of minds of persons participating in criminal action to bring about a particular result. Question whether there was any common intention or not depends upon inference to be drawn from proved facts and circumstances of each case. Totality of circumstances must be taken into consideration in arriving at conclusion whether accused had a common intention to commit offence with which they could be convicted, *Sudip Kumar Sen* v. *State of W.B.*, (2016) 3 SCC 26.

▸ **Ingredients of.**—The essence of Section 34 is simultaneous consensus of the minds of persons participating in the criminal action to bring about a particular result. Such consensus can be developed at the spot and thereby intended by all of them, *Surendra Chauhan* v. *State of M.P.*, (2000) 4 SCC 110 : 2000 SCC (Cri) 772.

▸ **Common intention.**—Where participation of the accused in the crime is proved but a common intention is absent, then Section 34 cannot be invoked. It has to be inferred from the facts and circumstances of each case, *Jai Bhagwan* v. *State of Haryana*, (1999) 3 SCC 102: 1999 SCC (Cri) 388.

▸ **Proof or inference of common intention.**—Precedents cannot be used to establish common intention. Common intention has to be found out from facts of each case. Mere similarity of facts of one case cannot be used to determine existence of common intention in another case, *Ezajhussain Sabdarhussain* v. *State of Gujarat*, (2019) 14 SCC 339.

▸ **Inference of vicarious liability.**—In order to invoke principle of joint liability in commission of criminal act as laid down in Section 34, prosecution should show that criminal act in question was done by one of the accused persons in furtherance of common intention of all. Common intention may be through a pre-arranged plan, or it may be generated just prior to the incident. Common intention denotes action in concert, and a prior meeting of minds. The acts may be different, and may vary in their character, but they are all actuated by the same common intention. Question as to whether there is any common intention or not depends upon the inference to be drawn from the proven facts and circumstances of each case. Totality of the circumstances must be taken into consideration in arriving at the conclusion whether accused persons had the common intention to commit the offence, *Virender* v. *State of Haryana*, (2020) 2 SCC 700.

▸ **Imposition of vicarious liability.**—Imposition of vicarious liability with aid of Section 34, when permissible and requirements of the same, explained. Significance of amendment made to Section 34 in 1870 adding the phrase "in furtherance of the common intention", also discussed. Necessity of proving that accused on whom vicarious liability is sought to be imposed shared common intention, determined. Case

law surveyed in detail and principles summarized regarding how common intention is to be inferred and determined in each case, *Jasdeep Singh* v. *State of Punjab*, (2022) 2 SCC 545.

▸ **Prior concert — What is.**—Common intention contemplated by Section 34 IPC pre-supposes prior concert. It requires meeting of minds. It requires a prearranged plan before a man can be vicariously convicted for the criminal act of another. The criminal act must have been done in furtherance of the common intention of all the accused. In a given case, the plan can be formed suddenly, *Gadadhar Chandra* v. *State of W.B.*, (2022) 6 SCC 576.

▸ **Conviction with aid of Section 34 — Requirements.**—When a part of the evidence produced by the prosecution to bring the accused within the fold of Section 34 is disbelieved, held, the remaining part must be examined with adequate care and caution, *Shishpal* v. *State (NCT of Delhi)*, (2022) 9 SCC 782.

35. When such an act is criminal by reason of its being done with a criminal knowledge or intention.—Whenever an act, which is criminal only by reason of its being done with a criminal knowledge or intention, is done by several persons, each of such persons who joins in the act with such knowledge or intention is liable for the act in the same manner as if the act were done by him alone with that knowledge or intention.

36. Effect caused partly by act and partly by omission.—Wherever the causing of a certain effect, or an attempt to cause that effect, by an act or by an omission, is an offence, it is to be understood that the causing of that effect partly by an act and partly by an omission is the same offence.

Illustration

A intentionally causes *Z*'s death, partly by illegally omitting to give *Z* food, and partly by beating *Z*. *A* has committed murder.

37. Co-operation by doing one of several acts constituting an offence.—When an offence is committed by means of several acts, whoever intentionally co-operates in the commission of that offence by doing any one of those acts, either singly or jointly with any other person, commits that offence.

Illustrations

(*a*) *A* and *B* agree to murder *Z* by severally and at different times giving him small doses of poison. *A* and *B* administer the poison according to the agreement with intent to murder *Z*. *Z* dies from the effect of the several doses of poison so administered to him. Here *A* and *B* intentionally co-operate in the commission of murder and as each of them does an act by which the death is caused, they are both guilty of the offence though their acts are separate.

(*b*) *A* and *B* are joint jailors, and as such have the charge of *Z*, a prisoner, alternatively for six hours at a time. *A* and *B*, intending to cause *Z*'s death, knowingly co-operate in causing that effect by illegally omitting, each during the time of his attendance, to furnish *Z* with food supplied to them for that purpose. *Z* dies of hunger. Both *A* and *B* are guilty of the murder of *Z*.

(*c*) *A*, a jailor, has the charge of *Z*, a prisoner. *A*, intending to cause *Z*'s death, illegally omits to supply *Z* with food; in consequence of which *Z* is much reduced in strength, but the starvation is not sufficient to cause his death. *A* is dismissed from his office, and *B* succeeds him. *B*, without collusion or co-operation with *A*, illegally omits to supply *Z* with food, knowing that he is likely thereby to cause *Z*'s death. *Z* dies of hunger. *B* is guilty of murder, but, as *A* did not co-operate with *B*, *A* is guilty only of an attempt to commit murder.

38. Persons concerned in criminal act may be guilty of different offences.—Where several persons are engaged or concerned in the commission of a criminal act, they may be guilty of different offences by means of that act.

Illustration

(*a*) *A* attacks *Z* under such circumstances of grave provocation that his killing of *Z* would be only culpable homicide not amounting to murder. *B*, having ill-will towards *Z* and intending to kill him, and not having been subject to the provocation, assists *A* in killing *Z*. Here, though *A* and *B* are both engaged in causing *Z*'s death, *B* is guilty of murder, and *A* is guilty only of culpable homicide.

39. "Voluntarily".—A person is said to cause an effect "voluntarily" when he causes it by means whereby he intended to cause it, or by means which, at the time of employing those means, he knew or had reason to believe to be likely to cause it.

Illustration

A sets fire, by night, to an inhabited house in a large town, for the purpose of facilitating robbery and thus causes the death of a person. Here, *A* may not have intended to cause death; and may even be sorry that death has been caused by his act; yet, if he knew that he was likely to cause death, he has caused death voluntarily.

[48][**40. "Offence".**—Except in the [49][Chapters] and sections mentioned in clauses 2 and 3 of this section, the word "offence" denotes a thing made punishable by this Code.

In Chapter IV, [50][Chapter V-A] and in the following sections, namely, Sections [51][64, 65, 66, [52][67], 71], 109, 110, 112, 114, 115, 116, 117, [53][118, 119 and 120], 187, 194, 195, 203, 211, 213, 214, 221, 222, 223, 224, 225, 327, 328, 329, 330, 331, 347, 348, 388, 389 and 445, the word "offence" denotes a thing punishable under this Code, or under any special or local law as hereinafter defined.

And in Sections 141, 176, 177, 201, 202, 212, 216 and 441, the word "offence" has the same meaning when the thing punishable under the special or local law is punishable under such law with imprisonment for a term of six months or upwards, whether with or without fine.]

41. "Special law".—A "special law" is a law applicable to a particular subject.

42. "Local law".—A "local law" is a law applicable only to a particular part of [54][[55][* * *][56][India]].

43. "Illegal", "Legally bound to do".—The word "illegal" is applicable to everything which is an offence or which is prohibited by law, or which furnishes ground for a civil action; and a person is said to be "legally bound to do" whatever it is illegal in him to omit.

---

48. *Subs.* by Act 27 of 1870, S. 2. Prior to substitution it read as:
'40. *Offence.*—The word "offence" denotes a thing made punishable by this Code.'
49. *Subs.* for "chapter" by Act 8 of 1930, S. 2 and Sch. I.
50. *Ins.* by Act 8 of 1913, S. 2.
51. *Ins.* by Act 8 of 1882, S. 1.
52. *Ins.* by Act 10 of 1886, S. 21(1).
53. *Ins.* by Act 10 of 2009, S. 51 (w.e.f. 27-10-2009).
54. *Subs.* for "British India" by the A.O. 1948.
55. The words "the territories comprised in" *omitted* by Act 48 of 1952, S. 3 and Sch. II.
56. *Subs.* for "the States" by Act 3 of 1951 (w.e.f. 1-4-1951).

CASE LAW ▸ Illegal Act.—Pointing a gun at a person without legal excuse is an illegal act, *Kwaku Mensah* v. *King*, AIR 1946 PC 20 : 47 Cri LJ 569.

▸ **Act or Omission which is prohibited by law.**—When omission to do something is unlawful, individual is legally bound to do it, *Common Cause* v. *Union of India*, (2018) 5 SCC 1.

44. "Injury".—The word "injury" denotes any harm whatever illegally caused to any person, in body, mind, reputation or property.

45. "Life".—The word "life" denotes the life of a human being, unless the contrary appears from the context.

46. "Death".—The word "death" denotes the death of a human being unless the contrary appears from the context.

47. "Animal".—The word "animal" denotes any living creature, other than a human being.

48. "Vessel".—The word "vessel" denotes anything made for the conveyance by water of human beings or of property.

49. "Year", "Month".—Wherever the word "year" or the word "month" is used, it is to be understood that the year or the month is to be reckoned according to the British calendar.

50. "Section".—The word "section" denotes one of those portions of a Chapter of this Code which are distinguished by prefixed numeral figures.

51. "Oath".—The word "oath" includes a solemn affirmation substituted by law for an oath, and any declaration required or authorised by law to be made before a public servant or to be used for the purpose of proof, whether in a Court of Justice or not.

52. "Good faith".—Nothing is said to be done or believed in "good faith" which is done or believed without due care and attention.

[57][**52-A. "Harbour".**—Except in Section 157, and in Section 130 in the case in which the harbour is given by the wife or husband of the person harboured, the word "harbour" includes the supplying a person with shelter, food, drink, money, clothes, arms, ammunition or means of conveyance, or the assisting a person by any means, whether of the same kind as those enumerated in this section or not, to evade apprehension.]

CHAPTER III
OF PUNISHMENTS

53. "Punishments".—The punishments to which offenders are liable under the provisions of this Code are,—

First.—Death;

[58][*Secondly.*—Imprisonment for life;]

---

57. *Ins.* by Act 8 of 1942, S. 2.
58. *Subs.* for "*Secondly.*—Transportation" by Act 26 of 1955, S. 117 and Sch.

Thirdly.—[59][* * *];

Fourthly.—Imprisonment, which is of two descriptions, namely:—

(1) Rigorous, that is, with hard labour;

(2) Simple;

Fifthly.—Forfeiture of property;

Sixthly.—Fine.

CASE LAW ▸ Measure of Punishment.—The fact that the accused is a budding lawyer is not a ground for a lesser sentence, *State of U.P.* v. *Paras Nath Singh*, (1973) 3 SCC 647: 1973 SCC (Cri) 453.

[60]**[53-A. Construction of reference to transportation.**—(1) Subject to the provisions of sub-section (2) and sub-section (3), any reference to "transportation for life" in any other law for the time being in force or in any instrument or order having effect by virtue of any such law or of any enactment repealed shall be construed as a reference to "imprisonment for life".

(2) In every case in which a sentence of transportation for a term has been passed before the commencement of the Code of Criminal Procedure (Amendment) Act, 1955 (26 of 1955), the offender shall be dealt with in the same manner as if sentenced to rigorous imprisonment for the same term.

(3) Any reference to transportation for a term or to transportation for any shorter term (by whatever name called) in any other law for the time being in force shall be deemed to have been omitted.

(4) Any reference to "transportation" in any other law for the time being in force shall,—

(*a*) if the expression means transportation for life, be construed as a reference to imprisonment for life;

(*b*) if the expression means transportation for any shorter term, be deemed to have been omitted.]

54. Commutation of sentence of death.—In every case in which sentence of death shall have been passed, [61][the appropriate Government] may, without the consent of the offender, commute the punishment for any other punishment provided by this Code.

CASE LAW ▸ Validity of non-remittable special category sentence in substitution of death sentence.—Life imprisonment in terms of Sections 53 and 45 IPC means imprisonment for rest of the life of the convict. Special category sentence, in substitution of death sentence, that is, sentence barring remission under CrPC for specified term beyond 14 yrs, is valid, *Union of India* v. *V. Sriharan*, (2016) 7 SCC 1.

---

59. *Omitted* by Act 17 of 1949, S. 2 (w.e.f. 6-4-1949). Prior to omission it read as:
"*Thirdly*.—Penal servitude"

60. *Ins*. by Act 26 of 1955, S. 117 and Sch.

61. *Subs*. by the A.O. 1950. Prior to substitution it read as:
"the Central Government or the Provincial Government of the Province within which the offender shall have been sentenced".

55. Commutation of sentence of imprisonment for life.—In every case in which sentence of [62][imprisonment] for life shall have been passed, [63][the appropriate Government] may, without the consent of the offender, commute the punishment for imprisonment of either description for a term not exceeding fourteen years.

[64][**55-A. Definition of "appropriate Government".**—In Sections 54 and 55 the expression "appropriate Government" means,—

(*a*) in cases where the sentence is a sentence of death or is for an offence against any law relating to a matter to which the executive power of the Union extends, the Central Government; and

(*b*) in cases where the sentence (whether of death or not) is for an offence against any law relating to a matter to which the executive power of the State extends, the Government of the State within which the offender is sentenced.]

56. Sentence of Europeans and Americans to penal servitude. Proviso as to sentence for term exceeding ten years but not for life.—[65][* * *]

57. Fractions of terms of punishment.—In calculating fractions of terms of punishment, [66][imprisonment] for life shall be reckoned as equivalent to [67][imprisonment] for twenty years.

CASE LAW ▸ Sentence of life imprisonment.—Spending 13½ yrs in jail does not mean that death convict has undergone a sentence for life. Nor can it be pleaded that his death sentence was converted to life imprisonment. A sentence of life imprisonment means entire life and not merely 14 yrs in jail, *Mohd. Arif* v. *Supreme Court of India*, (2014) 9 SCC 737 : (2014) 5 SCC (Cri) 408.

58. Offenders sentenced to transportation how dealt with until transported.—[68][* * *]

59. Transportation instead of imprisonment.—[69][* * *]

---

62. *Subs.* for "transportation" by Act 26 of 1955, S. 117 and Sch (w.e.f. 1-1-1956).
63. *Subs.* by the A.O. 1950. Prior to substitution it read as:
"the Provincial Government of the Province within which the offender shall have been sentenced".
64. *Subs.* by A.O. 1950. Earlier *inserted* by the A.O. 1937.
65. *Omitted* by 17 of 1949 (w.e.f. 6-4-1949). Prior to omission it read as:
"56. *Sentence of Europeans and Americans to penal servitude instead of transportation.*—Whenever any person being a European or American is convicted of an offence punishable under this Code with transportation, the Court shall sentence the offender to penal servitude instead of transportation, according to the provisions of Act XXIV of 1855.".
66. *Subs.* for "transportation" by Act 26 of 1955, S. 117 and Sch (w.e.f. 1-1-1956).
67. *Subs.* for "transportation" by Act 26 of 1955, S. 117 and Sch (w.e.f. 1-1-1956).
68. *Omitted* by Act 26 of 1955, S. 117 and Sch. (w.e.f. 1-1-1956). Prior to omission it read as:
"58. *Offenders sentenced to transportation how dealt with until transported.*—In every case in which a sentence of transportation is passed, the offender, unitl he is transported, shall be dealt with in the same manner as if sentenced to rigorous imprisonment, and shall be held to have been undergoing his sentence of transportation during the term of his imprisonment.".
69. *Omitted* by Act 26 of 1955, S. 117 and Sch. (w.e.f. 1-1-1956). Prior to omission it read as:
"59. *In what cases transportation may be awarded instead of imprisonment.*—In every case in which an offender is punishable with imprisonment for a term of seven years or upwards, it shall be competent to the Court which sentences such offender, instead of awarding sentence of imprisonment,

60. Sentence may be (in certain cases of imprisonment) wholly or partly rigorous or simple.—In every case in which an offender is punishable with imprisonment which may be of either description, it shall be competent to the Court which sentences such offender to direct in the sentence that such imprisonment shall be wholly rigorous, or that such imprisonment shall be wholly simple, or that any part of such imprisonment shall be rigorous and the rest simple.

61. Sentence of forfeiture of property.—[70][* * *]

62. Forfeiture of property in respect of offenders punishable with death, transportation or imprisonment.—[71][* * *]

63. Amount of fine.—Where no sum is expressed to which a fine may extend, the amount of fine to which the offender is liable is unlimited, but shall not be excessive.

CASE LAW ▸ Amount of fine to be imposed.—Where no sum is expressed to which a fine may extend, amount of fine should not be excessive but, where law in question or provision concerned stipulates the quantum or minimum amount of fine, courts must be guided by such specification, *Sharad Hiru Kolambe* v. *State of Maharashtra*, (2018) 18 SCC 718.

64. Sentence of imprisonment for non-payment of fine.—[72][In every case, of an offence punishable with imprisonment as well as fine, in which the offender is sentenced to a fine, whether with or without imprisonment,

and in every case of an offence punishable [73][with imprisonment or fine, or] with fine only, in which the offender is sentenced to a fine,]

it shall be competent to the Court which sentences such offender to direct by the sentence that, in default of payment of the fine, the offender shall suffer imprisonment for a certain term, which imprisonment shall be in excess of any other imprisonment to which he may have been sentenced or to which he may be liable under a commutation of a sentence.

---

to sentence the offender to transportation for a term not less than seven years, and not exceeding the term for which by this Code such offender is liable to imprisonment.".

70. *Omitted* by the Penal Code (Amendment) Act, 1921 (16 of 1921), S. 4. Prior to omission it read as:
"61. *Sentence of forfeiture of property.*—In every case in which a person is convicted of an offence for which he is liable to forfeiture of all his property, the offender shall be incapable of acquiring any property except for the benefit of Government until he shall have undergone the punishment awarded, or the punishment to which it shall have been commuted, or until he shall have been pardoned."

71. *Omitted* by the Penal Code (Amendment) Act, 1921 (16 of 1921), Section 4. Prior to omission it read as:
"62. *Forfeiture of property in respect of offenders punishable with death, transportation or imprisonment.*—Whenever any person is convicted of an offence punishable with death, the Court may adjudge that all his property, moveable and immoveable, shall be forfeited to Government; and whenever any person shall be convicted of any offence for which he shall be transported or sentenced to imprisonment for a term of seven years or upwards, the Court may adjudge that the rents and profits of all his moveable and immoveable estate during the period of his transportation or imprisonment, shall be forfeited to Government, subject to such provision for his family and dependents as the Government may think fit to allow during such period."

72. *Subs.* for "in every case in which an offender is sentenced to a fine" by Act 8 of 1882, S. 2.

73. *Ins.* by Act 10 of 1886, S. 21(2).

65. Limit to imprisonment for non-payment of fine, when imprisonment and fine awardable.—The term for which the Court directs the offender to be imprisoned in default of payment of a fine shall not exceed one-fourth of the term of imprisonment which is the maximum fixed for the offence, if the offence be punishable with imprisonment as well as fine.

CASE LAW ▸ Exercise of Power.—While a Magistrate's powers are specifically limited by Section 33, CrPC, they must also be so exercised as not to contravene Section 65, IPC, *Chhaju Lal* v. *State of Rajasthan*, (1972) 3 SCC 411 : 1972 SCC (Cri) 561.

66. Description of imprisonment for non-payment of fine.—The imprisonment which the Court imposes in default of payment of a fine may be of any description to which the offender might have been sentenced for the offence.

67. Imprisonment for non-payment of fine, when offence punishable with fine only.—If the offence be punishable with fine only, [74][the imprisonment which the Court imposes in default of payment of the fine shall be simple, and] the term for which the Court directs the offender to be imprisoned, in default of payment of fine, shall not exceed the following scale, that is to say, for any term not exceeding two months when the amount of the fine shall not exceed fifty rupees, and for any term not exceeding four months when the amount shall not exceed one hundred rupees, and for any term not exceeding six months in any other case.

68. Imprisonment to terminate on payment of fine.—The imprisonment which is imposed in default of payment of a fine shall terminate whenever that fine is either paid or levied by process of law.

69. Termination of imprisonment on payment of proportional part of fine.—If, before the expiration of the term of imprisonment fixed in default of payment, such a proportion of the fine be paid or levied that the term of imprisonment suffered in default of payment is not less than proportional to the part of the fine still unpaid, the imprisonment shall terminate.

Illustration

A is sentenced to a fine of one hundred rupees and to four months' imprisonment in default of payment. Here, if seventy-five rupees of the fine be paid or levied before the expiration of one month of the imprisonment, *A* will be discharged as soon as the first month has expired. If seventy-five rupees be paid or levied at the time of the expiration of the first month, or at any later time while *A* continues in imprisonment, *A* will be immediately discharged. If fifty rupees of the fine be paid or levied before the expiration of two months of the imprisonment, *A* will be discharged as soon as the two months are completed. If fifty rupees be paid or levied at the time of the expiration of those two months, or at any later time while *A* continues in imprisonment, *A* will be immediately discharged.

70. Fine leviable within six years, or during imprisonment. Death not to discharge property from liability.—The fine, or any part thereof which remains unpaid, may be levied at any time within six years after the passing of the sentence, and if, under the sentence, the offender be liable to imprisonment for a longer period than six years, then at any time previous to the expiration of that period; and

74. *Ins.* by Act 8 of 1882, S. 3.

AGARTALA HIGH COURT JUDGES LIBRARY

the death of the offender does not discharge from the liability any property which would, after his death, be legally liable for his debts.

71. Limit of punishment of offence made up of several offences.—Where anything which is an offence is made up of parts, any of which parts is itself an offence, the offender shall not be punished with the punishment of more than one of such of his offences, unless it be so expressly provided.

[75][Where anything is an offence falling within two or more separate definitions of any law in force for the time being by which offences are defined or punished, or

where several acts, of which one or more than one would by itself or themselves constitute an offence, constitute, when combined, a different offence,

the offender shall not be punished with a more severe punishment than the Court which tries him could award for any one of such offences.]

Illustrations

(*a*) *A* gives *Z* fifty strokes with a stick. Here *A* may have committed the offence of voluntarily causing hurt to *Z* by the whole beating, and also by each of the blows which make up the whole beating. If *A* were liable to punishment for every blow, he might be imprisoned for fifty years, one for each blow. But he is liable only to one punishment for the whole beating.

(*b*) But if, while *A* is beating *Z*, *Y* interferes, and *A* intentionally strikes *Y*, here, as the blow given to *Y* is no part of the act whereby *A* voluntarily causes hurt to *Z*, *A* is liable to one punishment for voluntarily causing hurt to *Z*, and to another for the blow to *Y*.

72. Punishment of person guilty of one of several offences, the judgment stating that it is doubtful of which.—In all cases in which judgment is given that a person is guilty of one of several offences specified in the judgment, but that it is doubtful of which of these offences he is guilty, the offender shall be punished for the offence for which the lowest punishment is provided if the same punishment is not provided for all.

73. Solitary confinement.—Whenever any person is convicted of an offence for which under this Code the Court has power to sentence him to rigorous imprisonment, the Court may, by its sentence, order that the offender shall be kept in solitary confinement for any portion or portions of the imprisonment to which he is sentenced, not exceeding three months in the whole, according to the following scale, that is to say—

a time not exceeding one month if the term of imprisonment shall not exceed six months;

a time not exceeding two months if the term of imprisonment shall exceed six months and [76][shall not exceed one] year;

a time not exceeding three months if the term of imprisonment shall exceed one year.

74. Limit of solitary confinement.—In executing a sentence of solitary confinement, such confinement shall in no case exceed fourteen days at a time,

---

75. *Ins.* by Act 8 of 1882, S. 4.
76. *Subs.* for "be less than a" by Act 8 of 1882, S. 5.

with intervals between the periods of solitary confinement of not less duration than such periods and when the imprisonment awarded shall exceed three months, the solitary confinement shall not exceed seven days in any one month of the whole imprisonment awarded with intervals between the periods of solitary confinement of not less duration than such periods.

[77][**75. Enhanced punishment for certain offences under Chapter XII or Chapter XVII after previous conviction.**—Whoever, having been convicted,—

(*a*) by a Court in [78][India], of an offence punishable under Chapter XII or Chapter XVII of this Code with imprisonment of either description for a term of three years or upwards, [79][* * *]

(*b*) [80][* * *]

shall be guilty of any offence punishable under either of those Chapters with like imprisonment for the like term, shall be subject for every such subsequent offence to [81][imprisonment for life], or to imprisonment of either description for a term which may extend to ten years.]

CHAPTER IV
GENERAL EXCEPTIONS

76. Act done by a person bound, or by mistake of fact believing himself bound, by law.—Nothing is an offence which is done by a person who is, or who by reason of a mistake of fact and not by reason of a mistake of law in good faith believes himself to be, bound by law to do it.

Illustrations

(*a*) *A*, a soldier, fires on a mob by the order of his superior officer, in conformity with the commands of the law. *A* has committed no offence.

(*b*) *A*, an officer of a Court of Justice, being ordered by that court to arrest *Y*, and, after due enquiry, believing *Z* to be *Y*, arrests *Z*. *A* has committed no offence.

77. Act of Judge when acting judicially.—Nothing is an offence which is done by a Judge when acting judicially in the exercise of any power which is, or which in good faith he believes to be, given to him by law.

78. Act done pursuant to the judgment or order of Court.—Nothing which is done in pursuance of, or which is warranted by the judgment or order of, a Court of Justice, if done whilst such judgment or order remains in force, is an offence,

---

77. *Subs.* by Act 3 of 1910. Prior to substitution it read as:
"75. *Punishment of persons convicted, after a previous conviction, of an offence punishable with three years imprisonment.*—Whoever having been convicted of an offence punishable under Chapter XII or Chapter XVII of this Code with imprisonment of either description for a term of three years or upwards, shall be guilty of any offence punishable under either of those Chapters with imprisonment of either description for a term of three years or upwards, shall be subject for every such subsequent offence to transportation for life, or to double the amount of punishment to which he would otherwise have been liable for the same; provided that he shall not in any case be liable to imprisonment for a term exceeding ten years."

78. *Subs.* for "the States" by Act 3 of 1951 (w.e.f. 1-4-1951).

79. The word "or" *omitted* by Act 3 of 1951 (w.e.f. 1-4-1951).

80. *Omitted* by Act 3 of 1951 (w.e.f. 1-4-1951).

81. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch. (w.e.f. 1-1-1956).

notwithstanding the Court may have had no jurisdiction to pass such judgment or order, provided the person doing the act in good faith believes that the Court had such jurisdiction.

79. Act done by a person justified, or by mistake of fact believing himself justified, by law.—Nothing is an offence which is done by any person who is justified by law, or who by reason of a mistake of fact and not by reason of a mistake of law in good faith, believes himself to be justified by law, in doing it.

Illustration

A sees *Z* commit what appears to *A* to be a murder. *A*, in the exercise, to the best of his judgment, exerted in good faith, of the power which the law gives to all persons of apprehending murderers in the act, seizes *Z*, in order to bring *Z* before the proper authorities. *A* has committed no offence, though it may turn out that *Z* was acting in self-defence.

CASE LAW ▸ Criminal negligence.—Grant of no-objection certificates by authorities, and renewal of cinematograph license from time to time, does not relieve the occupiers/licensees of their obligations which are implicit in the issue and renewal of the cinematograph licence, *Sushil Ansal* v. *State*, (2014) 6 SCC 173 : (2014) 2 SCC (Cri) 717.

80. Accident in doing a lawful act.—Nothing is an offence which is done by accident or misfortune, and without any criminal intention or knowledge in the doing of a lawful act in a lawful manner by lawful means and with proper care and caution.

Illustration

A is at work with a hatchet; the head flies off and kills a man who is standing by. Here, if there was no want of proper caution on the part of *A*, his act is excusable and not an offence.

CASE LAW ▸ Ingredients of.—Section 80 says that if anything is done by accident or misfortune it would not be an offence. To claim the benefit of this provision it has to be shown: (1) that the act in question was without any criminal intention or knowledge, (2) that the act was being done in a lawful manner by lawful means; and (3) that act was being done with proper care and caution, *Atmendra* v. *State of Karnataka*, (1998) 4 SCC 256 : 1998 SCC (Cri) 827.

81. Act likely to cause harm, but done without criminal intent, and to prevent other harm.—Nothing is an offence merely by reason of its being done with the knowledge that it is likely to cause harm, if it be done without any criminal intention to cause harm, and in good faith for the purpose of preventing or avoiding other harm to person or property.

Explanation.—It is a question of fact in such a case whether the harm to be prevented or avoided was of such a nature and so imminent as to justify or excuse the risk of doing the act with the knowledge that it was likely to cause harm.

Illustrations

(*a*) *A*, the captain of a steam vessel, suddenly and without any fault or negligence on his part, finds himself in such a position that, before he can stop his vessel, he must inevitably run down a boat *B*, with twenty or thirty passengers on board, unless he changes the course of his vessel, and that, by changing his course, he must incur risk of running down a boat *C* with only two passengers on board, which he may possibly clear. Here, if *A* alters his course without any intention to run down the boat *C* and in good faith for the purpose of avoiding the danger to the passengers in the boat *B*, he is not

guilty of an offence, though he may run down the boat *C* by doing an act which he knew was likely to cause that effect, if it be found as a matter of fact that the danger which he intended to avoid was such as to excuse him in incurring the risk of running down the boat *C*.

(*b*) *A*, in a great fire, pulls down houses in order to prevent the conflagration from spreading. He does this with the intention in good faith of saving human life or property. Here, if it be found that the harm to be prevented was of such a nature and so imminent as to excuse *A*'s act, *A* is not guilty of the offence.

CASE LAW ▸ Harm.—The expression "harm" in Section 81 includes physical injury, *Veeda Menezes* v. *Yusuf Khan*, AIR 1966 SC 1773 : 1966 Cri LJ 1489.

▸ **Criminal intention.**—Protection to act done with knowledge that it is likely to cause harm is available when act is done without criminal intent to cause harm, in good faith and for preventing other harm. *Common Cause* v. *Union of India*, (2018) 5 SCC 1.

82. Act of a child under seven years of age.—Nothing is an offence which is done by a child under seven years of age.

83. Act of a child above seven and under twelve of immature understanding.—Nothing is an offence which is done by a child above seven years of age and under twelve, who has not attained sufficient maturity of understanding to judge of the nature and consequences of his conduct on that occasion.

84. Act of a person of unsound mind.—Nothing is an offence which is done by a person who, at the time of doing it, by reason of unsoundness of mind, is incapable of knowing the nature of the act, or that he is doing what is either wrong or contrary to law.

CASE LAW▸ Plea of unsoundness of mind - Proper stage for.— Pleas of unsoundness of mind under Section 84 IPC or mitigating circumstances like juvenility of age, ordinarily, ought to be raised during trial itself. Belated claims not only prevent proper production and appreciation of evidence, but they also undermine genuineness of defence's case, *Mohd. Anwar* v. *State (NCT of Delhi)*, (2020) 7 SCC 391.

▸ **Defence of mental unsoundness.**— In order to successfully claim defence of mental unsoundness under Section 84, accused must show by preponderance of probabilities, that he/she suffered from serious-enough mental disease or infirmity, which would affect individual's ability to distinguish right from wrong. Further, it must be established, that accused was afflicted by such disability particularly at the time of crime, and that but for such impairment, crime would not have been committed, *Mohd. Anwar* v. *State (NCT of Delhi)*, (2020) 7 SCC 391.

85. Act of a person incapable of judgment by reason of intoxication caused against his will.—Nothing is an offence which is done by a person who, at the time of doing it, is, by reason of intoxication, incapable of knowing the nature of the act, or that he is doing what is either wrong, or contrary to law: provided that the thing which intoxicated him was administered to him without his knowledge or against his will.

CASE LAW ▸ Applicability of exception.—Defence of intoxication/drunkenness can be availed of only when intoxication produces such a condition as accused loses the requisite intention for the offence and onus of proof about reason of intoxication, due to which accused had become incapable of having particular knowledge in forming particular intention, is on the accused. Evidence of drunkenness which renders accused

incapable of forming the specific intent essential to constitute the crime should be taken into account with the other facts proved in order to determine whether or not he had the intention. Merely establishing that his mind was affected by drink so that he more readily gave way to some violent passion, does not rebut the presumption that a man intends the natural consequences of his acts, *Suraj Jagannath Jadhav* v. *State of Maharashtra*, (2020) 2 SCC 693.

▸ **Intoxication.**—Voluntary intoxication is not a plea recognized as an exception to criminal liability, *Chet Ram* v. *State*, 1971 Cri LJ 1246.

86. Offence requiring a particular intent or knowledge committed by one who is intoxicated.—In cases where an act done is not an offence unless done with a particular knowledge or intent, a person who does the act in a state of intoxication shall be liable to be dealt with as if he had the same knowledge as he would have had if he had not been intoxicated, unless the thing which intoxicated him was administered to him without his knowledge or against his will.

CASE LAW ▸ Drunkenness when a defence or mitigating factor.—So far as knowledge is concerned, in cases of voluntary drunkenness, knowledge is to be presumed in the same manner as if there was no drunkenness. So far as intention is concerned, it must be gathered from the attending general circumstances of the case paying due regard to the degree of intoxication. Was the man beside his mind altogether for the time being? If so, it would not be possible to fix him with the requisite intention but if he had not gone so deep in drinking, and from the facts it could be found that he knew what he was about, the rule to be applied is that a man is presumed to intend the natural consequences of his act or acts, *Paul* v. *State of Kerala*, (2020) 3 SCC 115.

▸ **Defence of being under the influence of liquor.**— Mere intoxication is not enough to attract Section 86, *Chherturam* v. *State of Chhattisgarh*, (2022) 9 SCC 571.

87. Act not intended and not known to be likely to cause death or grievous hurt, done by consent.—Nothing which is not intended to cause death, or grievous hurt, and which is not known by the doer to be likely to cause death or grievous hurt, is an offence by reason of any harm which it may cause, or be intended by the doer to cause, to any person, above eighteen years of age, who has given consent, whether express or implied, to suffer that harm; or by reason of any harm which it may be known by the doer to be likely to cause to any such person who has consented to take the risk of that harm.

Illustration

A and *Z* agree to fence with each other for amusement. This agreement implies the consent of each to suffer any harm which in the course of such fencing, may be caused without foul play; and if *A*, while playing fairly hurts *Z*, *A* commits no offence.

88. Act not intended to cause death, done by consent in good faith for person's benefit.—Nothing, which is not intended to cause death, is an offence by reason of any harm which it may cause, or be intended by the doer to cause, or be known by the doer to be likely to cause, to any person for whose benefit it is done in good faith, and who has given a consent, whether express or implied, to suffer that harm, or to take the risk of that harm.

Illustration

A, a surgeon, knowing that a particular operation is likely to cause the death of *Z*, who suffers under a painful complaint, but not intending to cause *Z*'s death and intending in good faith, *Z*'s benefit performs that operation on *Z*, with *Z*'s consent. *A* has committed no offence.

89. Act done in good faith for benefit of child or insane person, by or by consent of guardian.—Nothing which is done in good faith for the benefit of a person under twelve years of age, or of unsound mind, by or by consent, either express or implied, of the guardian or other person having lawful charge of that person, is an offence by reason of any harm which it may cause, or be intended by the doer to cause or be known by the doer to be likely to cause to that person: Provided—

Provisos.—*First.*—That this exception shall not extend to the intentional causing of death, or to the attempting to cause death;

Secondly.—That this exception shall not extend to the doing of anything which the person doing it knows to be likely to cause death, for any purpose other than the preventing of death or grievous hurt, or the curing of any grievous disease or infirmity;

Thirdly.—That this exception shall not extend to the voluntary causing of grievous hurt, or to the attempting to cause grievous hurt, unless it be for the purpose of preventing death or grievous hurt, or the curing of any grievous disease or infirmity;

Fourthly.—That this exception shall not extend to the abetment of any offence, to the committing of which offence it would not extend.

Illustration

A, in good faith, for his child's benefit without his child's consent, has his child cut for the stone by a surgeon. Knowing it to be likely that the operation will cause the child's death, but not intending to cause the child's death. *A* is within the exception, inasmuch as his object was the cure of the child.

90. Consent known to be given under fear or misconception.—A consent is not such a consent as is intended by any section of this Code, if the consent is given by a person under fear of injury, or under a misconception of fact, and if the person doing the act knows, or has reason to believe, that the consent was given in consequence of such fear or misconception; or

Consent of insane person.—if the consent is given by a person who, from unsoundness of mind, or intoxication, is unable to understand the nature and consequence of that to which he gives his consent; or

Consent of child.—unless the contrary appears from the context, if the consent is given by a person who is under twelve years of age.

91. Exclusion of acts which are offences independently of harm caused.—The exceptions in Sections 87, 88 and 89 do not extend to acts which are offences independently of any harm which they may cause, or be intended to cause, or be known to be likely to cause, to the person giving the consent, or on whose behalf the consent is given.

Illustration

Causing miscarriage (unless caused in good faith for the purpose of saving the life of the woman) is an offence independently of any harm which it may cause or be intended to cause to the woman. Therefore, it is not an offence "by reason of such harm"; and the consent of the woman or of her guardian to the causing of such miscarriage does not justify the act.

92. Act done in good faith for benefit of a person without consent.—Nothing is an offence by reason of any harm which it may cause to a person for whose benefit it is done in good faith, even without that person's consent, if the circumstances are such that it is impossible for that person to signify consent, or if that person is incapable of giving consent, and has no guardian or other person in lawful charge of him from whom it is possible to obtain consent in time for the thing to be done with benefit: Provided—

Provisos.—*First.*—That this exception shall not extend to the intentional causing of death, or the attempting to cause death;

Secondly.—That this exception shall not extend to the doing of anything which the person doing it knows to be likely to cause death, for any purpose other than the preventing of death or grievous hurt, or the curing of any grievous disease or infirmity;

Thirdly.—That this exception shall not extend to the voluntary causing of hurt, or to the attempting to cause hurt, for any purpose other than the preventing of death or hurt;

Fourthly.—That this exception shall not extend to the abetment of any offence, to the committing of which offence it would not extend.

Illustrations

(*a*) *Z* is thrown from his horse, and is insensible. *A*, a surgeon, finds that *Z* requires to be trepanned. *A*, not intending *Z*'s death, but in good faith, for *Z*'s benefit, performs the trepan before *Z* recovers his power of judging for himself. *A* has committed no offence.

(*b*) *Z* is carried off by a tiger. *A* fires at the tiger knowing it to be likely that the shot may kill *Z*, but not intending to kill *Z*, and in good faith intending *Z*'s benefit. *A*'s ball gives *Z* a mortal wound. *A* has committed no offence.

(*c*) *A*, a surgeon, sees a child suffer an accident which is likely to prove fatal unless an operation be immediately performed. There is no time to apply to the child's guardian. *A* performs the operation in spite of the entreaties of the child, intending, in good faith, the child's benefit. *A* has committed no offence.

(*d*) *A* is in a house which is on fire, with *Z*, a child. People below hold out a blanket. *A* drops the child from the house-top, knowing it to be likely that the fall may kill the child, but not intending to kill the child, and intending, in good faith, the child's benefit. Here, even if the child is killed by the fall, *A* has committed no offence.

Explanation.—Mere pecuniary benefit is not benefit within the meaning of Sections 88, 89 and 92.

CASE LAW ▸ Unintended harm.—Act done in good faith for benefit of another person, even if causes unintended harm to that person protected under Section 92. Such act would be protected even if it was not possible to obtain consent of that person. *Common Cause* v. *Union of India*, (2018) 5 SCC 1.

93. Communication made in good faith.—No communication made in good faith is an offence by reason of any harm to the person to whom it is made, if it is made for the benefit of that person.

Illustration

A, a surgeon, in good faith, communicates to a patient his opinion that he cannot live. The patient dies in consequence of the shock. *A* has committed no offence, though he knew it to be likely that the communication might cause the patient's death.

94. Act to which a person is compelled by threats.—Except murder, and offences against the State punishable with death, nothing is an offence which is done by a person who is compelled to do it by threats, which, at the time of doing it, reasonably cause the apprehension that instant death to that person will otherwise be the consequence:

Provided the person doing the act did not of his own accord, or from a reasonable apprehension of harm to himself short of instant death, place himself in the situation by which he became subject to such constraint.

Explanation 1.—A person who, of his own accord, or by reason of a threat of being beaten, joins a gang of dacoits, knowing their character, is not entitled to the benefit of this exception, on the ground of his having been compelled by his associates to do anything that is an offence by law.

Explanation 2.—A person seized by a gang of dacoits, and forced, by threat of instant death, to do a thing which is an offence by law; for example, a smith compelled to take his tools and to force the door of a house for the dacoits to enter and plunder it, is entitled to the benefit of this exception.

95. Act causing slight harm.—Nothing is an offence by reason that it causes, or that it is intended to cause, or that it is known to be likely to cause, any harm, if that harm is so slight that no person of ordinary sense and temper would complain of such harm.

Of the right of private defence

96. Things done in private defence.—Nothing is an offence which is done in the exercise of the right of private defence.

CASE LAW ▸ Right to private defence.—Principles summarised regarding right to private defence, *Sukumaran* v. *State*, (2019) 15 SCC 117.

97. Right of private defence of the body and of property.—Every person has a right, subject to the restrictions contained in Section 99, to defend—

First.—His own body, and the body of any other person, against any offence affecting the human body;

Secondly.—The property, whether movable or immovable, of himself or of any other person, against any act which is an offence falling under the definition of theft, robbery, mischief or criminal trespass, or which is an attempt to commit theft, robbery, mischief or criminal trespass.

98. Right of private defence against the act of a person of unsound mind, etc.—When an act, which would otherwise be a certain offence, is not that offence,

by reason of the youth, the want of maturity of understanding, the unsoundness of mind or the intoxication of the person doing that act, or by reason of any misconception on the part of that person, every person has the same right of private defence against that act which he would have if the act were that offence.

Illustrations

(*a*) Z, under the influence of madness, attempts to kill *A*; Z is guilty of no offence. But *A* has the same right of private defence which he would have if Z were sane.

(*b*) *A* enters by night a house which he is legally entitled to enter Z, in good faith, taking *A* for a house breaker, attacks *A*. Here Z, by attacking *A* under this misconception, commits no offence. But *A* has the same right of private defence against Z, which he would have if Z were not acting under that misconception.

99. Acts against which there is no right of private defence.—There is no right of private defence against an act which does not reasonably cause the apprehension of death or of grievous hurt, if done, or attempted to be done, by a public servant acting in good faith under colour of his office, though that act may not be strictly justifiable by law.

There is no right of private defence against an act which does not reasonably cause the apprehension of death or of grievous hurt, if done, or attempted to be done, by the direction of a public servant acting in good faith under colour of his office, though that direction may not be strictly justifiable by law.

There is no right of private defence in cases in which there is time to have recourse to the protection of the public authorities.

Extent to which the right may be exercised.—The right of private defence in no case extends to the inflicting of more harm than it is necessary to inflict for the purpose of defence.

Explanation 1.—A person is not deprived of the right of private defence against an act done, or attempted to be done, by a public servant, as such, unless he knows or has reason to believe, that the person doing the act is such public servant.

Explanation 2.—A person is not deprived of the right of private defence against an act done, or attempted to be done, by the direction of a public servant, unless he knows, or has reason to believe, that the person doing the act is acting by such direction, or unless such person states the authority under which he acts, or if he has authority in writing, unless he produces such authority, if demanded.

100. When the right of private defence of the body extends to causing death.—The right of private defence of the body extends, under the restrictions mentioned in the last preceding section, to the voluntary causing of death or of any other harm to the assailant, if the offence which occasions the exercise of the right be of any of the descriptions hereinafter enumerated, namely:—

First.—Such an assault as may reasonably cause the apprehension that death will otherwise be the consequence of such assault;

Secondly.—Such an assault as may reasonably cause the apprehension that grievous hurt will otherwise be the consequence of such assault;

Thirdly.—An assault with the intention of committing rape;

Fourthly.—An assault with the intention of gratifying unnatural lust;

Fifthly.—An assault with the intention of kidnapping or abducting;

Sixthly.—An assault with the intention of wrongfully confining a person, under circumstances which may reasonably cause him to apprehend that he will be unable to have recourse to the public authorities for his release.

[82][*Seventhly*.—An act of throwing or administering acid or an attempt to throw or administer acid which may reasonably cause the apprehension that grievous hurt will otherwise be the consequence of such act.]

▸ **Right of private defence of body**.—To claim such a right, the accused must be able to demonstrate that the circumstances were such that there existed a reasonable ground to apprehend that he would suffer grievous hurt that would even cause death. Thus, necessity of averting an impending danger, held, is the core criteria for exercising such a right, *Mahadev* v. *Border Security Force*, (2022) 8 SCC 502.

101. When such right extends to causing any harm other than death.—If the offence be not of any of the descriptions enumerated in the last preceding section, the right of private defence of the body does not extend to the voluntary causing of death to the assailant, but does extend, under the restrictions mentioned in Section 99, to the voluntary causing to the assailant of any harm other than death.

102. Commencement and continuance of the right of private defence of the body.—The right of private defence of the body commences as soon as a reasonable apprehension of danger to the body arises from an attempt or threat to commit the offence though the offence may not have been committed; and it continues as long as apprehension of danger to the body continues.

CASE LAW ▸ **Exercise of right of private defence**.—To say that a person can only claim the right to use force after he has sustained a serious injury by an aggressive wrongful assault is a complete misunderstanding of the law embodied in Section 102, IPC, *Deo Narayan* v. *State of U.P.*, (1973) 1 SCC 347 : 1973 SCC (Cri) 330.

103. When the right of private defence of property extends to causing death.—The right of private defence of property extends, under the restrictions mentioned in Section 99, to the voluntary causing of death or of any other harm to the wrong-doer, if the offence, the committing of which, or the attempting to commit which, occasions the exercise of the right, be an offence of any of the descriptions hereinafter enumerated, namely:—

First.—Robbery;

Secondly.—House-breaking by night;

Thirdly.—Mischief by fire committed on any building, tent or vessel, which building, tent or vessel is used as a human dwelling, or as a place for the custody of property;

Fourthly.—Theft, mischief or house-trespass, under such circumstances as may reasonably cause apprehension that death or grievous hurt will be the consequence, if such right of private defence is not exercised.

---

82. *Ins*. by Act 13 of 2013, S. 2 (w.r.e.f. 3-2-2013).

STATE AMENDMENTS

Karnataka.—In its application to the State of Karnataka, in Section 103—

(1) in clause thirdly,—

(*i*) after the words "mischief by fire", the words "or any explosive substance" shall be *inserted*;

(*ii*) after the words "as a human dwelling or", the words "as a place of worship or" shall be *inserted*.

(2) after clause Fourthly, the following clause shall be inserted, namely:—

"*Fifthly*.—Mischief by fire or any explosive substance committed on any property used or intended to be used for the purpose of Government or any local authority, statutory body or company owned or controlled by Government or railway or on any vehicle used or adapted to be used for the carriage of passengers for hire or reward." [*Vide* Karnataka Act 8 of 1972, S. 2, dt. 7-10-1972.]

Maharashtra.—In its application to the State of Maharashtra, in Section 103, add the following at the end, namely:—

"*Fifthly*.—Mischief by fire or any explosive substance committed on any property used or intended to be used for the purposes of any Government or any local authority, statutory body, company owned or controlled by Government, railway or tramway, or on any vehicle used or adapted to be used, for the carriage of passengers for hire or reward." [*Vide* Maharashtra Act 19 of 1971, S. 26. dt. 31-12-1971.]

Uttar Pradesh.—In its application to the State of Uttar Pradesh, in Section 103, after clause fourthly, add the following clause, namely:—

"*Fifthly*.—Mischief by fire or any explosive substance committed on—

(*a*) any property used or intended to be used for the purpose of Government or any local authority or other corporation owned or controlled by Government; or

(*b*) any railway as defined in clause (4) of Section 3 of the Indian Railways Act, 1890 or railways stores as defined in the Railways Stores (Unlawful Possession) Act, 1955; or

(*c*) any transport vehicle as defined in clause (33) of Section 2 of the Motor Vehicles Act, 1939." [*Vide* U.P. Act 29 of 1970, S. 2, dt. 17-7-1970.]

104. When such right extends to causing any harm other than death.—If the offence, the committing of which, or the attempting to commit which, occasions the exercise of the right of private defence, be theft, mischief, or criminal trespass, not of any of the descriptions enumerated in the last preceding section, that right does not extend to the voluntary causing of death, but does extend, subject to the restrictions mentioned in Section 99, to the voluntary causing to the wrong-doer of any harm other than death.

CASE LAW ▸ Applicability.—If the threat to the person or property which the accused was entitled to defend was real and immediate he was not required to weigh in golden scales the kind of instrument and the force which he used at the spur of the moment, *Paridihat* v. *State of M.P.*, AIR 1972 SC 535 : 1972 Cri LJ 322.

105. Commencement and continuance of the right of private defence of property.—The right of private defence of property commences when a reasonable apprehension of danger to the property commences.

The right of private defence of property against theft continues till the offender has effected his retreat with the property or either the assistance of the public authorities is obtained, or the property has been recovered.

The right of private defence of property against robbery continues as long as the offender causes or attempts to cause to any person death or hurt or wrongful restraint or as long as the fear of instant death or of instant hurt or of instant personal restraint continues.

The right of private defence of property against criminal trespass or mischief continues as long as the offender continues in the commission of criminal trespass or mischief.

The right of private defence of property against house-breaking by night continues as long as the house-trespass which has been begun by such house-breaking continues.

106. Right of private defence against deadly assault when there is risk of harm to innocent person.—If in the exercise of the right of private defence against an assault which reasonably causes the apprehension of death, the defender be so situated that he cannot effectually exercise that right without risk of harm to an innocent person, his right of private defence extends to the running of that risk.

Illustration

A is attacked by a mob who attempt to murder him. He cannot effectually exercise his right of private defence without firing on the mob, and he cannot fire without risk of harming young children who are mingled with the mob. *A* commits no offence if by so firing he harms any of the children.

CHAPTER V
OF ABETMENT

107. Abetment of a thing.—A person abets the doing of a thing, who—

First.—Instigates any person to do that thing; or

Secondly.—Engages with one or more other person or persons in any conspiracy for the doing of that thing, if an act or illegal omission takes place in pursuance of that conspiracy, and in order to the doing of that thing; or

Thirdly.—Intentionally aids, by any act or illegal omission, the doing of that thing.

Explanation 1.—A person who, by wilful misrepresentation, or by wilful concealment of a material fact which he is bound to disclose, voluntarily causes or procures, or attempts to cause or procure, a thing to be done, is said to instigate the doing of that thing.

Illustration

A, a public officer, is authorised by a warrant from a Court of Justice to apprehend *Z*. *B*, knowing that fact and also that *C* is not *Z*, wilfully represents to *A* that *C* is *Z*, and thereby intentionally causes *A* to apprehend *C*. Here *B* abets by instigation the apprehension of *C*.

Explanation 2.—Whoever, either prior to or at the time of the commission of an act, does anything in order to facilitate the commission of that act, and thereby facilitates the commission thereof, is said to aid the doing of that act.

CASE LAW ▸ Abetment.—To constitute abetment, there must be course of conduct or action of intentionally aiding or facilitating another person to end life, *Common Cause* v. *Union of India*, (2018) 5 SCC 1.

▸ **Abetment by conspiracy.**— Abetment by conspiracy is only one form of abetment. There can be alternate charges. There can be abetment by instigation and intentional acting even when there is no conspiracy and, therefore, no abetment by conspiracy. *Somasundaram* v. *State*, (2020) 7 SCC 722.

▸ **Punishment for abetment.**— Punishment for abetment varies according to different circumstances. The effect of, (i) if the act abetted is not committed, and (ii) where the actual player who commits the offence is not criminally liable, on punishment for abetment, explained. *Somasundaram* v. *State*, (2020) 7 SCC 722.

108. Abettor.—A person abets an offence, who abets either the commission of an offence, or the commission of an act which would be an offence, if committed by a person capable by law of committing an offence with the same intention or knowledge as that of the abettor.

Explanation 1.—The abetment of the illegal omission of an act may amount to an offence although the abettor may not himself be bound to do that act.

Explanation 2.—To constitute the offence of abetment it is not necessary that the act abetted should be committed, or that the effect requisite to constitute the offence should be caused.

Illustrations

(*a*) *A* instigates *B* to murder *C*. *B* refuses to do so. *A* is guilty of abetting *B* to commit murder.

(*b*) *A* instigates *B* to murder D. *B* in pursuance of the instigation stabs D. D recovers from the wound. *A* is guilty of instigating *B* to commit murder.

Explanation 3.—It is not necessary that the person abetted should be capable by law of committing an offence, or that he should have the same guilty intention or knowledge as that of the abettor, or any guilty intention or knowledge.

Illustrations

(*a*) A, with a guilty intention, abets a child or lunatic to commit an act which would be an offence, if committed by a person capable by law of committing an offence, and having the same intention as A. Here A, whether the act be committed or not, is guilty of abetting an offence.

(*b*) A, with the intention of murdering Z, instigates B, a child under seven years of age, to do an act which causes Z's death. B, in consequence of the abetment, does the act in the absence of A and thereby causes Z's death. Here, though B was not capable by law of committing an offence, A is liable to be punished in the same manner as if B had been capable by law of committing an offence, and had committed murder, and he is therefore subject to the punishment of death.

(*c*) A instigates B to set fire to a dwelling-house B, in consequence of the unsoundness of his mind, being incapable of knowing the nature of the act, or that he is doing what is wrong or contrary to law, sets fire to the house in consequence of A's instigation. B has committed no offence, but A is guilty of abetting the offence of setting fire to a dwelling-house, and is liable to the punishment provided for that offence.

(*d*) A, intending to cause a theft to be committed, instigates B to take property belonging to Z out of Z's possession. A induces B to believe that the property belongs to A. B takes the property out of Z's possession, in good faith, believing it to be A's property. B, acting under this misconception, does not take dishonestly, and therefore does not commit theft. But A is guilty of abetting theft, and is liable to the same punishment as if B had committed theft.

Explanation 4.—The abetment of an offence being an offence, the abetment of such an abetment is also an offence.

Illustration

A instigates *B* to instigate *C* to murder *Z*. *B* accordingly instigates *C* to murder *Z*, and *C* commits that offence in consequence of *B*'s instigation. *B* is liable to be punished for his offence with the punishment for murder; and, as *A* instigated *B* to commit the offence, *A* is also liable to the same punishment.

Explanation 5.—It is not necessary to the commission of the offence of abetment by conspiracy that the abettor should concert the offence with the person who commits it. It is sufficient if he engages in the conspiracy in pursuance of which the offence is committed.

Illustration

A concerts with *B* a plan for poisoning *Z*. It is agreed that *A* shall administer the poison. *B* then explains the plan to *C* mentioning that a third person is to administer the poison, but without mentioning *A*'s name. *C* agrees to procure the poison, and procures and delivers it to *B* for the purpose of its being used in the manner explained. *A* administers the poison; *Z* dies in consequence. Here, though *A* and *C* have not conspired together, yet *C* has been engaged in the conspiracy in pursuance of which *Z* has been murdered. *C* has therefore committed the offence defined in this section and is liable to the punishment for murder.

[83][**108-A. Abetment in India of offences outside India.**—A person abets an offence within the meaning of this Code who, in [84][India], abets the commission of any act without and beyond [85][India] which would constitute an offence if committed in [86][India].

Illustration

A, in [87][India], instigates *B*, a foreigner in Goa, to commit a murder in Goa. *A* is guilty of abetting murder.]

109. Punishment of abetment if the act abetted is committed in consequence and where no express provision is made for its punishment.—Whoever abets any offence shall, if the act abetted is committed in consequence of the abetment, and no express provision is made by this Code for the punishment of such abetment, be punished with the punishment provided for the offence.

Explanation.—An act or offence is said to be committed in consequence of abetment, when it is committed in consequence of the instigation, or in pursuance of the conspiracy, or with the aid which constitutes the abetment.

Illustrations

(*a*) *A* offers a bribe to *B*, a public servant, as a reward for showing *A* some favour in the exercise of *B*'s official functions. *B* accepts the bribe. *A* has abetted the offence defined in S. 161.

---

83. *Added* by Act 4 of 1898, S. 3.
84. *Subs.* for "the States" by Act 3 of 1951 (w.e.f. 1-4-1951).
85. *Subs.* for "the States" by Act 3 of 1951 (w.e.f. 1-4-1951).
86. *Subs.* for "the States" by Act 3 of 1951 (w.e.f. 1-4-1951).
87. *Subs.* for "the States" by Act 3 of 1951 (w.e.f. 1-4-1951).

(*b*) *A* instigates *B* to give false evidence. *B*, in consequence of the instigation, commits that offence. *A* is guilty of abetting that offence, and is liable to the same punishment as *B*.

(*c*) *A* and *B* conspire to poison *Z*. *A*, in pursuance of the conspiracy, procures the poison and delivers it to *B* in order that he may administer it to *Z*. *B*, in pursuance of the conspiracy, administers the poison to *Z* in *A*'s absence and thereby causes *Z*'s death. Here *B* is guilty of murder. *A* is guilty of abetting that offence by conspiracy, and is liable to the punishment for murder.

CASE LAW ▸ Abetment by conspiracy.— Abetment by conspiracy is only one form of abetment. There can be alternate charges. There can be abetment by instigation and intentional acting even when there is no conspiracy and, therefore, no abetment by conspiracy. *Somasundaram* v. *State*, (2020) 7 SCC 722.

110. Punishment of abetment if person abetted does act with different intention from that of abettor.—Whoever abets the commission of an offence shall, if the person abetted does the act with a different intention or knowledge from that of the abettor, be punished with the punishment provided for the offence which would have been committed if the act had been done with the intention or knowledge of the abettor and with no other.

111. Liability of abettor when one act abetted and different act done.—When an act is abetted and a different act is done, the abettor is liable for the act done, in the same manner and to the same extent as if he had directly abetted it:

Proviso.—Provided the act done was a probable consequence of the abetment, and was committed under the influence of the instigation, or with the aid or in pursuance of the conspiracy which constituted the abetment.

Illustrations

(*a*) *A* instigates a child to put poison into the food of *Z*, and gives him poison for that purpose. The child, in consequence of the instigation, by mistake puts the poison into the food of *Y*, which is by the side of that of *Z*. Here if the child was acting under the influence of *A*'s instigation, and the act done was under the circumstances a probable consequence of the abetment. *A* is liable in the same manner and to the same extent as if he had instigated the child to put the poison into the food of *Y*.

(*b*) *A* instigates *B* to burn *Z*'s house. *B* sets fire to the house and at the same time commits theft of property there. *A*, though guilty of abetting the burning of the house, is not guilty of abetting the theft; for the theft was a distinct act, and not a probable consequence of the burning.

(*c*) *A* instigates *B* and *C* to break into an inhabited house at midnight for the purpose of robbery, and provides them with arms for that purpose. *B* and *C* break into the house, and being resisted by *Z*, one of the inmates, murder *Z*. Here, if that murder was the probable consequence of the abetment, *A* is liable to the punishment provided for murder.

112. Abettor when liable to cumulative punishment for act abetted and for act done.—If the act for which the abettor is liable under the last preceding section is committed in addition to the act abetted, and constitutes a distinct offence, the abettor is liable to punishment for each of the offences.

Illustration

A instigates *B* to resist by force a distress made by a public servant. *B*, in consequence resists that distress. In offering the resistance, *B* voluntarily causes grievous hurt to the officer executing the distress. As *B* has committed both the offence of resisting the distress, and the offence of voluntarily causing grievous hurt, *B* is liable to punishment for both these offences; and, if *A* knew that *B* was likely voluntarily to cause grievous hurt in resisting the distress *A* will also be liable to punishment for each of the offences.

113. Liability of abettor for an effect caused by the act abetted different from that intended by the abettor.—When an act is abetted with the intention on the part of the abettor of causing a particular effect, and an act for which the abettor is liable in consequence of the abetment, caused a different effect from that intended by the abettor, the abettor is liable for the effect caused, in the same manner and to the same extent as if he had abetted the act with the intention of causing that effect, provided he knew that the act abetted was likely to cause that effect.

Illustration

A instigates *B* to cause grievous hurt to *Z*. *B*, in consequence of the instigation, causes grievous hurt to *Z*. *Z* dies in consequence. Here, if *A* knew that the grievous hurt abetted was likely to cause death, *A* is liable to be punished with the punishment provided for murder.

114. Abettor present when offence is committed.—Whenever any person, who if absent would be liable to be punished as an abettor, is present when the act or offence for which he would be punishable in consequence of the abetment is committed, he shall be deemed to have committed such act or offence.

115. Abetment of offence punishable with death or imprisonment for life—if offence not committed.—Whoever abets the commission of an offence punishable with death or [88][imprisonment for life], shall, if that offence be not committed in consequence of the abetment, and no express provision is made by this Code for the punishment of such abetment, be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine;

if act causing harm be done in consequence.—and if any act for which the abettor is liable in consequence of the abetment, and which causes hurt to any person, is done, the abettor shall be liable to imprisonment of either description for a term which may extend to fourteen years, and shall also be liable to fine.

Illustration

A instigates *B* to murder *Z*. The offence is not committed. If *B* had murdered *Z*, he would have been subject to the punishment of death or [89][imprisonment for life]. Therefore *A* is liable to imprisonment for a term which may extend to seven years and also to a fine; and, if any hurt be done to *Z* in consequence of the abetment, he will be liable to imprisonment for a term which may extend to fourteen years, and to fine.

116. Abetment of offence punishable with imprisonment—if offence be not committed.—Whoever abets an offence punishable with imprisonment shall, if that offence be not committed in consequence of the abetment, and no express provision is made by this Code for the punishment of such abetment, be punished with imprisonment of any description provided for that offence for a term which may extend to one-fourth part of the longest term provided for that offence; or with such fine as is provided for that offence, or with both;

if abettor or person abetted be a public servant whose duty it is to prevent offence.—and if the abettor or the person abetted is a public servant, whose duty

---

88. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch. (w.e.f. 1-1-1956).
89. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch. (w.e.f. 1-1-1956).

it is to prevent the commission of such offence, the abettor shall be punished with imprisonment of any description provided for that offence, for a term which may extend to one-half of the longest term provided for that offence, or with such fine as is provided for the offence, or with both.

Illustrations

(*a*) *A* offers a bribe to *B*, a public servant, as a reward for showing *A* some favour in the exercise of *B*'s official function. *B* refuses to accept the bribe. A is punishable under this section.

(*b*) *A* instigates *B* to give false evidence. Here, if *B* does not give false evidence, *A* has nevertheless committed the offence defined in this section, and is punishable accordingly.

(*c*) *A*, a police-officer, whose duty it is to prevent robbery, abets the commission of robbery. Here, though the robbery be not committed, *A* is liable to one-half of the longest term of imprisonment provided for that offence, and also to fine.

(*d*) *B* abets the commission of a robbery by *A*, a police-officer, whose duty it is to prevent that offence. Here, though the robbery be not committed, *B* is liable to one-half of the longest term of imprisonment provided for the offence of robbery, and also to fine.

117. Abetting commission of offence by the public or by more than ten persons.—Whoever abets the commission of an offence by the public generally or by any number or class of persons exceeding ten, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

Illustration

A affixes in a public place a placard instigating a sect consisting of more than ten members to meet at a certain time and place, for the purpose of attacking the members of an adverse sect, while engaged in a procession. *A* has committed the offence defined in this section.

118. Concealing design to commit offence punishable with death or imprisonment for life.—Whoever intending to facilitate or knowing it to be likely that he will thereby facilitate the commission of an offence punishable with death or [90][imprisonment for life],

[91][voluntarily conceals by any act or omission or by the use of encryption or any other information hiding tool, the existence of a design] to commit such offence or makes any representation which he knows to be false respecting such design,

if offence be committed — if offence be not committed.—shall, if that offence be committed, be punished with imprisonment of either description for a term which may extend to seven years, or, if the offence be not committed, with imprisonment of either description, for a term which may extend to three years; and in either case shall also be liable to fine.

Illustration

A, knowing that dacoity is about to be committed at *B*, falsely informs the Magistrate that a dacoity is about to be committed at *C*, a place in an opposite direction, and thereby misleads the Magistrate with intent to facilitate the commission of the offence. The dacoity is committed at *B* in pursuance of the design. *A* is punishable under this section.

---

90. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch. (w.e.f. 1-1-1956).
91. *Subs.* by Act 10 of 2009, S. 51(*c*) (w.e.f. 27-10-2009). Prior to substitution it read as: "voluntarily conceals, by any act or illegal omission, the existence of a design".

119. Public servant concealing design to commit offence which it is his duty to prevent.—Whoever, being a public servant, intending to facilitate or knowing it to be likely that he will thereby facilitate the commission of an offence which it is his duty as such public servant to prevent;

[92][voluntarily conceals by any act or omission or by the use of encryption or any other information hiding tool, the existence of a design] to commit such offence, or makes any representation which he knows to be false respecting such design,

if offence be committed.—shall, if the offence be committed, be punished with imprisonment of any description provided for the offence, for a term which may extend to one-half of the longest term of such imprisonment, or with such fine as is provided for that offence, or with both;

if offence be punishable with death, etc..—or, if the offence be punishable with death or [93][imprisonment for life], with imprisonment of either description for a term which may extend to ten years;

if offence be not committed.—or, if the offence be not committed, shall be punished with imprisonment of any description provided for the offence for a term which may extend to one-fourth part of the longest term of such imprisonment or with such fine as is provided for the offence, or with both.

Illustration

A, an officer of police, being legally bound to give information of all designs to commit robbery which may come to his knowledge, and knowing that *B* designs to commit robbery, omits to give such information, with intent to facilitate the commission of that offence. Here *A* has by an illegal omission concealed the existence of *B*'s design, and is liable to punishment according to the provision of this section.

120. Concealing design to commit offence punishable with imprisonment.—Whoever, intending to facilitate or knowing it to be likely that he will thereby facilitate the commission of an offence punishable with imprisonment,

voluntarily conceals, by any act or illegal omission, the existence of a design to commit such offence, or makes any representation which he knows to be false respecting such design,

if offence be committed — if offence be not committed.—shall, if the offence be committed, be punished with imprisonment of the description provided for the offence, for a term which may extend to one-fourth, and, if the offence be not committed, to one-eighth, of the longest term of such imprisonment, or with such fine as is provided for the offence, or with both.

---

92. *Subs.* by Act 10 of 2009, S. 51(*d*) (w.e.f. 27-10-2009). Prior to substitution it read as:
"voluntarily conceals, by any act or illegal omission, the existence of a design".

93. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch. (w.e.f. 1-1-1956).

[94][CHAPTER V-A
CRIMINAL CONSPIRACY

120-A. Definition of criminal conspiracy.—When two or more persons agree to do, or cause to be done,—

(1) an illegal act, or

(2) an act which is not illegal by illegal means, such an agreement is designated a criminal conspiracy:

Provided that no agreement except an agreement to commit an offence shall amount to a criminal conspiracy unless some act besides the agreement is done by one or more parties to such agreement in pursuance thereof.

Explanation.—It is immaterial whether the illegal act is the ultimate object of such agreement, or is merely incidental to that object.

CASE LAW ▸ Criminal conspiracy — Essential ingredients of.—To prove the charge of criminal conspiracy the prosecution is required to establish that two or more persons had agreed to do or caused to be done, an illegal act or an act which is not legal, by illegal means. It is immaterial whether the illegal act is the ultimate object of such crime or is merely incidental to that object, *Saju* v. *State of Kerala*, (2001) 1 SCC 378 : 2001 SCC (Cri) 160.

120-B. Punishment of criminal conspiracy.—(1) Whoever is a party to a criminal conspiracy to commit an offence punishable with death, [95][imprisonment for life] or rigorous imprisonment for a term of two years or upwards, shall, where no express provision is made in this Code for the punishment of such a conspiracy, be punished in the same manner as if he had abetted such offence.

(2) Whoever is a party to a criminal conspiracy other than a criminal conspiracy to commit an offence punishable as aforesaid shall be punished with imprisonment of either description for a term not exceeding six months, or with fine or with both.]

CASE LAW ▸ Criminal Conspiracy.—There may be a conspiracy in general one and a separate one. There may be larger conspiracy and smaller conspiracy which may develop in successive stages involving different accused persons. when defalcations have been made in various years by combination of different accused persons, there can be separate trials on the basis of law, *State of Jharkhand* v. *Lalu Prasad*, (2017) 8 SCC 1.

▸ **Essential requirements to prove the charge of criminal conspiracy.**—To bring home the charge of conspiracy within the ambit of Section 120-B IPC, it is necessary to establish that there was an agreement between the parties for doing an unlawful act. It is no doubt true that it is difficult to establish conspiracy by direct evidence and, therefore, from the established facts an inference could be drawn but there must be some material from which it would be reasonable to establish a connection between the alleged conspiracy and the act done pursuant to the said conspiracy, *Vijayan* v. *State of Kerala*, (2017) 8 SCC 1.

▸ **Separate trials.**—If conspiracy is furthered into several distinct offences there have to be separate trials. There may be a situation where in furtherance of general conspiracy, offences take place in various

94. *Ins.* by Act 8 of 1913, S. 3.
95. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch. (w.e.f. 1-1-1956).

parts of India and several persons are killed at different times. Each trial has to be separately held and the accused to be punished separately for the offence committed in furtherance of conspiracy. In case there is only one trial for such conspiracy for separate offences, it would enable the accused person to go scotfree and commit number of offences which is not the intendment of law, *State of Jharkhand* v. *Lalu Prasad*, (2017) 8 SCC 1.

▸ **Proof of Conspiracy.**—A criminal conspiracy is generally hatched in secrecy, and it is difficult, if not impossible, to obtain direct evidence. Each conspirator plays his separate part in one integrated and united effort to achieve the common purpose. Each one is aware that he has a part to play in the general conspiracy, to accomplish the common object. Conspiracy is mostly proved by circumstantial evidence by taking into account the cumulative effect of the circumstances indicating the guilt of the accused, rather than adopting an approach by isolating the role played by each of the accused. The acts or conduct of the parties must be conscious and clear enough to infer their concurrence as to the common design and its execution, *State (NCT of Delhi)* v. *Shiv Charan Bansal*, (2020) 2 SCC 290.

▸ **Abetment by conspiracy.**— Abetment by conspiracy is only one form of abetment. There can be alternate charges. There can be abetment by instigation and intentional acting even when there is no conspiracy and, therefore, no abetment by conspiracy. *Somasundaram* v. *State*, (2020) 7 SCC 722.

CHAPTER VI
OF OFFENCES AGAINST THE STATE

121. Waging, or attempting to wage war, or abetting waging of war, against the Government of India.—Whoever wages war against the [96][Government of India], or attempts to wage such war, or abets the waging of such war, shall be punished with death, or [97][imprisonment for life], [98][and shall also be liable to fine].

[99][*Illustration*]

(*a*) *A* joins an insurrection against the [100][Government of India]. *A* has committed the offence defined in this section.

(*b*) [101][* * *]

[102][**121-A. Conspiracy to commit offences punishable by Section 121.**—Whoever within or without [103][India] conspires to commit any of the offences punishable by Section 121, [104][* * *] or conspires to overawe, by means of criminal force or the show of criminal force, [105][the Central Government

96. *Subs.* for "Queen" by the A.O. 1950.
97. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch. (w.e.f. 1-1-1956).
98. *Subs.* for "and shall forfeit all his property" by Act 16 of 1921, S. 2.
99. *Subs.* for "Illustrations" by Act 36 of 1957, S. 3 and Sch. II (w.e.f. 17-9-1957).
100. *Subs.* for "Queen" by the A.O. 1950.
101. *Omitted* by the A.O. 1950. Prior to omission it read as:
"(*b*) A in India abets in insurrection against the Queen's Government of Ceylon by sending arms to the insurgents. A is guilty of abetting the waging of war against the Queen."
102. S. 121-A was *ins.* by Act 27 of 1870, S. 4.
103. *Subs.* for "the States" by Act 3 of 1951, S. 3 and Sch. (w.e.f. 1-4-1951).
104. The words "or to deprive the Queen of the sovereignty of the Provinces or to any part thereof" *omitted* by the A.O. 1950.
105. *Subs.* for "the Government of India/Local Government" by the A.O. 1937.

HIGH COURT JUDGES LIBRARY AGARTALA

or any [106][State] Government [107][* * *]], shall be punished with [108][imprisonment for life], or with imprisonment of either description which may extend to ten years, [109][and shall also be liable to fine].

Explanation.—To constitute a conspiracy under this section, it is not necessary that any act or illegal omission shall take place in pursuance thereof.]

122. Collecting arms, etc., with intention of waging war against the Government of India.—Whoever collects men, arms or ammunition or otherwise prepares to wage war with the intention of either waging or being prepared to wage war against the [110][Government of India], shall be punished with [111][imprisonment for life] or imprisonment of either description for a term not exceeding ten years, [112][and shall also be liable to fine].

123. Concealing with intent to facilitate design to wage war.—Whoever by any act, or by any illegal omission, conceals the existence of a design to wage war against the [113][Government of India], intending by such concealment to facilitate, or knowing it to be likely that such concealment will facilitate, the waging of such war, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

124. Assaulting President, Governor, etc., with intent to compel or restrain the exercise of any lawful power.—Whoever, with the intention of inducing or compelling the [114][President] of India, or the [115][Governor [116][* * *]] of any [117][State], [118][* * *] [119][* * *] [120][* * *] to exercise or refrain from exercising in any manner any of the lawful powers of such [121][President or [122][Governor [123][* * *]]],

assaults or wrongfully restrains, or attempts wrongfully to restrain, or overawes, by means of criminal force or the show of criminal force, or attempts so to overawe, such [124][President or [125][Governor [126][* * *]]],

---

106. *Subs.* for "Provincial" by the A.O. 1950.
107. The words "or the Govt. of Burma" *omitted* by the A.O. 1948.
108. *Subs.* for "transportation for life or any shorter term" by Act 26 of 1955, S. 117 and Sch. (w.e.f. 1-1-1956)
109. *Ins.* by Act 16 of 1921, S. 3.
110. *Subs.* for "Queen" by the A.O. 1950.
111. *Subs.* for "transportation of life" by Act 26 of 1955, S. 117 and Sch.
112. *Subs.* for "and shall forfeit all his property" by Act 16 of 1921, S. 2.
113. *Subs.* for "Queen" by the A.O. 1950.
114. *Subs.* for "Governor General" by the A.O. 1950.
115. *Subs.* for "Governor" by Act 3 of 1951, S. 3 and Sch.
116. The words "or Rajpramukh" *omitted* by the A.O. (No. 2) 1956.
117. *Subs.* for "Province" by the A.O. 1950. Earlier the word "Province" was *subs.* by the A.O. 1937, for the word "Presidency".
118. The words "or a Lieutenant-Governor" *omitted* by the A.O. 1937.
119. The words "or a Member of the Council of the Governor General of India" *omitted* by the A.O. 1948.
120. The words "or of the Council of any Presidency" *omitted* by the A.O. 1937.
121. The original words "Governor General, Governor, Lieutenant-Governor or Member of Council" have successively been amended by the A.O. 1937, A.O. 1948 and A.O. 1950 to read as above.
122. *Subs.* for "Governor" by Act 3 of 1951.
123. The words "or Rajpramukh" *omitted* by the A.O. 1956.
124. The original words "Governor General, Governor, Lieutenant-Governor or Member of Council" have successively been amended by the A.O. 1937, A.O. 1948 and A.O. 1950 to read as above.
125. *Subs.* for "Governor" by Act 3 of 1951.
126. The words "or Rajpramukh" *omitted* by the A.O. 1956.

shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

[127][**124-A. Sedition.**—Whoever, by words, either spoken or written, or by signs, or by visible representation, or otherwise, brings or attempts to bring into hatred or contempt, or excites or attempts to excite disaffection towards, [128][* * *] the Government established by law in [129][India], [130][* * *] shall be punished with [131][imprisonment for life], to which fine may be added, or with imprisonment which may extend to three years, to which fine may be added, or with fine.

Explanation 1.—The expression "disaffection" includes disloyalty and all feelings of enmity.

Explanation 2.—Comments expressing disapprobation of the measures of the Government with a view to obtain their alteration by lawful means, without exciting or attempting to excite hatred, contempt or disaffection, do not constitute an offence under this section.

Explanation 3.—Comments expressing disapprobation of the administrative or other action of the Government without exciting or attempting to excite hatred, contempt or disaffection, do not constitute an offence under this section.]

[**Ed.**: Suspended by *S.G. Vombatkere* v. *Union of India*, 2022 SCC OnLine SC 609]

CASE LAW ▸ Constitutionality of.—Section 124-A is constitutionally valid. The restrictions imposed on the freedom of speech and expression are in the interest of public order and are within the ambit of permissible legislative interference with the fundamental right. But the section must be so construed as to limit its application to acts involving intention or tendency to create disorder or disturbance of law and order or incitement to violence, *Kedar Nath Singh* v. *State of Bihar*, AIR 1962 SC 655.

▸Sedition — Ingredients.—Expression of a view which is a dissent from decision taken by Central Government, by itself, held, cannot be said to be seditious, *Rajat Sharma* v. *Union of India*, (2021) 5 SCC 585.

125. Waging war against any Asiatic Power in alliance with the Government of India.—Whoever wages war against the Government of any Asiatic Power in alliance or at peace with the [132][Government of India], or attempts to wage such war, or abets the waging of such war, shall be punished with [133][imprisonment for life], to which fine may be added, or with imprisonment of either description for a term which may extend to seven years, to which fine may be added, or with fine.

126. Committing depredation on territories of Power at peace with the Government of India.—Whoever commits depredation, or makes preparations

---

127. *Subs.* by Act 4 of 1898, S. 4. Earlier, *inserted* by Act 27 of 1870, S. 5.
128. The words "Her Majesty or" *omitted* by the A.O. 1950. The words "or the Crown Representative" *ins.* after the word "Majesty" by the A.O. 1937 and *omitted* by the A.O. 1948.
129. *Subs.* for "the States" by Act 3 of 1951 (w.e.f. 1-4-1951).
130. The words "or British Burma" *omitted* by the A.O. 1948. Earlier, *inserted* by the A.O. 1937.
131. *Subs.* for "transportation for life or any shorter term" by Act 26 of 1955, S. 117 and Sch.
132. *Subs.* for "Queen" by the A.O. 1950.
133. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch.

to commit depredation, on the territories of any Power in alliance or at peace with the [134][Government of India], shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine and to forfeiture of any property used or intended to be used in committing such depredation, or acquired by such depredation.

127. Receiving property taken by war or depredation mentioned in Sections 125 and 126.—Whoever receives any property knowing the same to have been taken in the commission of any of the offences mentioned in Sections 125 and 126, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine and to forfeiture of the property so received.

128. Public servant voluntarily allowing prisoner of State or war to escape.—Whoever, being a public servant and having the custody of any State prisoner or prisoner of war, voluntarily allows such prisoner to escape from any place in which such prisoner is confined, shall be punished with [135][imprisonment for life], or imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

129. Public servant negligently suffering such prisoner to escape.—Whoever, being a public servant and having the custody of any State prisoner or prisoner of war, negligently suffers such prisoner to escape from any place of confinement in which such prisoner is confined, shall be punished with simple imprisonment for a term which may extend to three years, and shall also be liable to fine.

130. Aiding escape of, rescuing or harbouring such prisoner.—Whoever knowingly aids or assists any State prisoner or prisoner of war in escaping from lawful custody, or rescues or attempts to rescue any such prisoner, or harbours or conceals any such prisoner who has escaped from lawful custody, or offers or attempts to offer any resistance to the recapture of such prisoner shall be punished with [136][imprisonment for life], or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

Explanation.—A State prisoner or prisoner of war, who is permitted to be at large on his parole within certain limits in [137][India], is said to escape from lawful custody if he goes beyond the limits within which he is allowed to be at large.

CHAPTER VII

OF OFFENCES RELATING TO THE ARMY, [138][NAVY AND AIR FORCE]

131. Abetting mutiny, or attempting to seduce a soldier, sailor or airman from his duty.—Whoever abets the committing of mutiny by an officer, soldier,

---

134. *Subs.* for "Queen" by the A.O. 1950.
135. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch.
136. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch.
137. *Subs.* for "the States" by Act 3 of 1951.
138. *Subs.* for "and Navy" by Act 10 of 1927, S. 2 and Sch. I.

[139][sailor or airman], in the Army, [140][Navy or Air Force] of the [141][Government of India] or attempts to seduce any such officer, soldier, [142][sailor or airman] from his allegiance or his duty, shall be punished with [143][imprisonment for life], or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

[144][*Explanation.*—In this section the words "officer", [145]["soldier", [146]["sailor"] and "airman"] include any person subject to the [147][Army Act, [148][the Army Act, 1950 (46 of 1950)], [149][the Naval Discipline Act, [150][* * *] the Indian Navy (Discipline) Act, 1934 (34 of 1934)], [151][the Air Force Act or [152][the Air Force Act, 1950 (45 of 1950)]], as the case may be].]

132. Abetment of mutiny, if mutiny is committed in consequence thereof.—Whoever abets the committing of mutiny by an officer, soldier, [153][sailor or airman], in the Army, [154][Navy or Air Force] of the [155][Government of India], shall, if mutiny be committed in consequence of that abetment, be punished with death or with [156][imprisonment for life], or imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

133. Abetment of assault by soldier, sailor or airman on his superior officer, when in execution of his office.—Whoever abets an assault by an officer, soldier, [157][sailor or airman], in the Army, [158][Navy or Air Force] of the [159][Government of India], on any superior officer being in the execution of his office, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.

134. Abetment of such assault, if the assault is committed.—Whoever abets an assault by an officer, soldier, [160][sailor or airman], in the Army, [161][Navy or

---

139. *Subs.* for "or sailor" by Act 10 of 1927, S. 2 and Sch. I.
140. *Subs.* for "or Navy" by Act 10 of 1927, S. 2 and Sch. I.
141. *Subs.* for "Queen" by the A.O. 1950.
142. *Subs.* for "or sailor" by Act 10 of 1927, S. 2 and Sch. I.
143. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch.
144. *Ins.* by Act 27 of 1870, S. 6.
145. *Subs.* for "and 'soldier' " by Act 10 of 1927, S. 2 and Sch. I.
146. *Ins.* by Act 35 of 1934, S. 2 and Sch.
147. *Subs.* by Act 10 of 1927, S. 2 and Sch. I. Prior to substitution it read as:
"Articles of War, for the better government of Her Majesty's Army, or to the Articles of War contained in Act No. 5 of 1869".
148. *Subs.* for "the Indian Army Act, 1911" by Act 3 of 1951.
149. *Ins.* by Act 35 of 1934, S. 2 and Sch.
150. The words "or that Act as modified by" were *omitted* by the A.O. 1950.
151. *Subs.* for "or the Air Force Act" by Act 14 of 1932, S. 130 and Sch.
152. *Subs.* for "the Indian Air Force Act, 1932" by Act 3 of 1951.
153. *Subs.* for "or sailor" by Act 10 of 1927, S. 2 and Sch. I.
154. *Subs.* for "or Navy" by Act 10 of 1927, S. 2 and Sch. I.
155. *Subs.* for "Queen" by the A.O. 1950.
156. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch.
157. *Subs.* for "or sailor" by Act 10 of 1927, S. 2 and Sch. I.
158. *Subs.* for "or Navy" by Act 10 of 1927, S. 2 and Sch. I.
159. *Subs.* for "Queen" by the A.O. 1950.
160. *Subs.* for "or sailor" by Act 10 of 1927, S. 2 and Sch. I.
161. *Subs.* for "or Navy" by Act 10 of 1927, S. 2 and Sch. I.

Air Force] of the [162][Government of India], on any superior officer being in the execution of his office, shall, if such assault be committed in consequence of that abetment be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

135. Abetment of desertion of soldier, sailor or airman.—Whoever abets the desertion of any officer, soldier, [163][sailor or airman], in the Army, [164][Navy or Air Force] of the [165][Government of India], shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

136. Harbouring deserter.—Whoever, except as hereinafter excepted, knowing or having reason to believe that an officer, soldier, [166][sailor or airman], in the Army, [167][Navy or Air Force] of the [168][Government of India], has deserted, harbours such officer, soldier, [169][sailor or airman], shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

Exception.—This provision does not extend to the case in which the harbour is given by a wife to her husband.

137. Deserter concealed on board merchant vessel through negligence of master.—The master or person in charge of a merchant vessel, on board of which any deserter from the Army, [170][Navy or Air Force] of the [171][Government of India] is concealed, shall, though ignorant of such concealment, be liable to a penalty not exceeding five hundred rupees, if he might have known of such concealment but for some neglect of his duty as such master or person in charge, or but for some want of discipline on board of the vessel.

138. Abetment of act of insubordination by soldier, sailor or airman.—Whoever abets what he knows to be an act of insubordination by an officer, soldier, [172][sailor or airman], in the Army, [173][Navy or Air Force], of the [174][Government of India], shall, if such act of insubordination be committed in consequence of that abetment, be punished with imprisonment of either description for a term which may extend to six months, or with fine, or with both.

---

162. *Subs.* for "Queen" by the A.O. 1950.
163. *Subs.* for "or sailor" by Act 10 of 1927, S. 2 and Sch. I.
164. *Subs.* for "or Navy" by Act 10 of 1927, S. 2 and Sch. I.
165. *Subs.* for "Queen" by the A.O. 1950.
166. *Subs.* for "or sailor" by Act 10 of 1927, S. 2 and Sch. I.
167. *Subs.* for "or Navy" by Act 10 of 1927, S. 2 and Sch. I.
168. *Subs.* for "Queen" by the A.O. 1950.
169. *Subs.* for "or sailor" by Act 10 of 1927, S. 2 and Sch. I.
170. *Subs.* for "or Navy" by Act 10 of 1927, S. 2 and Sch. I.
171. *Subs.* for "Queen" by the A.O. 1950.
172. *Subs.* for "or sailor" by Act 10 of 1927, S. 2 and Sch. I.
173. *Subs.* for "or Navy" by Act 10 of 1927, S. 2 and Sch. I.
174. *Subs.* for "Queen" by the A.O. 1950.

138-A. Application of foregoing sections to the Indian Marine Service.—[175][* * *].

139. Persons subject to certain Acts.—No person subject to [176][the Army Act, [177][the Army Act, 1950 (46 of 1950)], the Naval Discipline Act, [178][[179][* * *] the Indian Navy (Discipline) Act, 1934 (34 of 1934)], [180][the Air Force Act or [181][the Air Force Act, 1950 (45 of 1950)]], is subject to punishment under this Code for any of the offences defined in this Chapter.

140. Wearing garb or carrying token used by soldier, sailor or airman.—Whoever, not being a soldier, [182][sailor or airman] in the Military, [183][Naval or Air] services of the [184][Government of India], wears any garb or carries any token resembling any garb or token used by such a soldier, [185][sailor or airman] with the intention that it may be believed that he is such a soldier, [186][sailor or airman], shall be punished with imprisonment of either description for a term which may extend to three months, or with fine which may extend to five hundred rupees, or with both.

CHAPTER VIII

OF OFFENCES AGAINST THE PUBLIC TRANQUILLITY

141. Unlawful assembly.—An assembly of five or more persons is designated an "unlawful assembly", if the common object of the persons composing that assembly is—

First.—To overawe by criminal force, or show of criminal force, [187][the Central or any State Government or Parliament or the Legislature of any State], or any public servant in the exercise of the lawful power of such public servant; or

Second.—To resist the execution of any law, or of any legal process; or

Third.—To commit any mischief or criminal trespass, or other offence; or

Fourth.—By means of criminal force, or show of criminal force, to any person to take or obtain possession of any property, or to deprive any person of the enjoyment of a right of way, or of the use of water or other incorporeal right of which he is in possession or enjoyment, or to enforce any right or supposed right; or

---

175. *Omitted* by the Act 35 of 1934, S. 2 and Sch.
176. *Subs.* by Act 10 of 1927, S. 2 and Sch. I. Prior to substitution it read as:
"any Articles of War for the Army or Navy of the Queen, or for any part of such Army or Navy".
177. *Subs.* for "the Indian Army Act, 1911" by Act 3 of 1951.
178. *Ins.* by Act 35 of 1934, S. 2 and Sch.
179. The words "or that Act as modified by" were *omitted* by the A.O. 1950.
180. *Subs.* for "or the Air Force Act" by Act 14 of 1932, S. 130 and Sch.
181. *Subs.* for "the Indian Air Force Act, 1932" by Act 3 of 1951.
182. *Ins.* by Act 10 of 1927, S. 2 and Sch. I.
183. *Subs.* for "or Naval" by Act 10 of 1927, S. 2 and Sch. I.
184. *Subs.* for "Queen" by the A.O. 1950.
185. *Ins.* by Act 10 of 1927, S. 2 and Sch. I.
186. *Ins.* by Act 10 of 1927, S. 2 and Sch. I.
187. *Subs.* by the A.O. 1950. Prior to substitution it read as:
"the Central or any Provincial Government or Legislature".

Fifth.—By means of criminal force, or show of criminal force, to compel any person to do what he is not legally bound to do, or to omit to do what he is legally entitled to do.

Explanation.—An assembly which was not unlawful when it assembled, may subsequently become an unlawful assembly.

CASE LAW ► Ingredients of unlawful assembly.—The important ingredients of an unlawful assembly are the number of persons forming it i.e. five; and their common object. Common object of the persons composing that assembly could be formed on the spur of the moment and does not require prior deliberations. The course of conduct adopted by the members of such assembly; their behaviour before, during, and after the incident; and the arms carried by them are a few basic and relevant factors to determine the common object, *Manjit Singh* v. *State of Punjab*, (2019) 8 SCC 529.

► **Punishment for offence(s) committed in furtherance of common object of unlawful assembly**.—Non-inclusion of Section 141 while framing charges, would not render complete trial illegal, nor would it result in finding that there would be no occasion to invoke Section 149, held, as long as necessary ingredients of unlawful assembly are set out and proved, as enunciated in Section 141. Actions of unlawful assembly and punishment thereafter, are set out in subsequent provisions, after Section 141, and as long as such ingredients are met, Section 149 can be invoked. Section 141 IPC only defines what is an unlawful assembly and in what manner the unlawful assembly conducts itself, and in what cases the common object would make the assembly unlawful is specified in the sections thereafter, inviting the consequences of the appropriate punishment in the context of Section 149 IPC, *Dev Karan* v. *State of Haryana*, (2019) 8 SCC 596.

► **Unlawful assembly**.—Mere fact that appellant was not brave enough to conceal where victim was hiding did not make him a part of the unlawful assembly that had the common object to murder the victim. Duty of court towards mere passive onlookers who do not share common object of unlawful assembly, explained, *Taijuddin* v. *State of Assam*, (2022) 1 SCC 395.

142. Being member of unlawful assembly.—Whoever, being aware of facts which render any assembly an unlawful assembly, intentionally joins that assembly, or continues in it, is said to be a member of an unlawful assembly.

143. Punishment.—Whoever is a member of an unlawful assembly, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine, or with both.

144. Joining unlawful assembly armed with deadly weapon.—Whoever, being armed with any deadly weapon, or with anything which, used as a weapon of offence, is likely to cause death, is a member of an unlawful assembly, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

145. Joining or continuing in unlawful assembly, knowing it has been commanded to disperse.—Whoever joins or continues in an unlawful assembly, knowing that such unlawful assembly has been commanded in the manner prescribed by law to disperse, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

146. Rioting.—Whenever force or violence is used by an unlawful assembly, or by any member thereof, in prosecution of the common object of such assembly, every member of such assembly is guilty of the offence of rioting.

147. Punishment for rioting.—Whoever is guilty of rioting, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

CASE LAW ▸ Rioting.— Failure to attribute specific role to accused persons is not fatal, because in case of large number of assailants, it can be difficult for witnesses to identify each assailant and attribute specific role to him. Force or violence need not be by all accused, because every member of the unlawful assembly is guilty of the offence of rioting even though he may not have himself used force or violence, *Lakshman Singh* v. *State of Bihar*, (2021) 9 SCC 191.

148. Rioting, armed with deadly weapon.—Whoever is guilty of rioting, being armed with a deadly weapon or with anything which, used as a weapon of offence, is likely to cause death, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

CASE LAW ▸ Conviction.—Conviction with aid of Sections 148/149 cannot be recorded in the absence of at least 5 accused: either at least 5 accused should stand convicted, or total number of convicted accused plus unnamed accused should not be less than 5, *Ramvir* v. *State of U.P.*, (2019) 2 SCC 237.

149. Every member of unlawful assembly guilty of offence committed in prosecution of common object.—If an offence is committed by any member of an unlawful assembly in prosecution of the common object of that assembly, or such as the members of that assembly knew to be likely to be committed in prosecution of that object, every person who, at the time of the committing of that offence, is a member of the same assembly, is guilty of that offence.

CASE LAW ▸ Ingredients for applicability of Section 149 or Section 120-B.—In absence of evidence of any conspiracy or common object being established, accused liable for their individual acts only. Moreover, mere presence does not make a person member of unlawful assembly unless he actively participates in rioting or does some overt act with necessary criminal intention or shares common object of unlawful assembly, *Vijay Pandurang Thakre* v. *State of Maharashtra*, (2017) 4 SCC 377.

▸ Common object.—It is necessary to establish common object before a person can be convicted with aid of S. 149, *Dauwalal* v. *State of M.P.*, (2019) 4 SCC 538.

Inference of common object of accused, held, in each case would depend upon cumulative effects of facts of that particular case. Words of a judgment cannot be treated as words in legislative enactment. Judicial orders are delivered on facts of particular case. Circumstantial flexibility, one additional or different fact can make world of difference between conclusions in two cases, *Mahendran* v. *State of T.N.*, (2019) 5 SCC 67.

▸ Common object to murder.—When once, participation of each member of an unlawful assembly of five or more persons is shown, who indulge in an offence as a member of such an unlawful assembly, for the purposes of invoking Section 149, it is not necessary that there must be specific overt act played by each of the member of such an unlawful assembly in the commission of an offence. What is required to be shown is the participation as a member in pursuance of a common object of the assembly or being a member of that assembly, such person knew as to what is likely to be committed in prosecution of any such common object.

In the event of the proof of showing of either of the above conduct of a member of an unlawful assembly, the offence, as stipulated in Section 149 IPC, will stand proved, *Susanta Das* v. *State of Orissa*, (2016) 4 SCC 371.

150. Hiring, or conniving at hiring, of persons to join unlawful assembly.—Whoever hires or engages, or employs, or promotes, or connives at the hiring, engagement or employment of any person to join or become a member of any unlawful assembly, shall be punishable as a member of such unlawful assembly, and for any offence which may be committed by any such person as a member of such unlawful assembly in pursuance of such hiring, engagement or employment, in the same manner as if he had been a member of such unlawful assembly, or himself had committed such offence.

151. Knowingly joining or continuing in assembly of five or more persons after it has been commanded to disperse.—Whoever knowingly joins or continues in any assembly of five or more persons likely to cause a disturbance of the public peace, after such assembly has been lawfully commanded to disperse, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine, or with both.

Explanation.—If the assembly is an unlawful assembly within the meaning of Section 141, the offender will be punishable under Section 145.

152. Assaulting or obstructing public servant when suppressing riot, etc.—Whoever assaults or threatens to assault, or obstructs or attempts to obstruct, any public servant in the discharge of his duty as such public servant, in endeavouring to disperse an unlawful assembly, or to suppress a riot or affray, or uses, or threatens, or attempts to use criminal force to such public servant, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

153. Wantonly giving provocation with intent to cause riot—if rioting be committed — if not committed.—Whoever malignantly, or wantonly, by doing anything which is illegal, gives provocation to any person intending or knowing it to be likely that such provocation will cause the offence of rioting to be committed, shall, if the offence of rioting be committed in consequence of such provocation, be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both; and if the offence of rioting be not committed, with imprisonment of either description for a term which may extend to six months, or with fine, or with both.

[188][**153-A. Promoting enmity between different groups on grounds of religion, race, place of birth, residence, language, etc., and doing acts prejudicial to maintenance of harmony.**—(1) Whoever—

---

188. *Subs.* by Criminal and Election Laws (Amendment) Act, 1969 (35 of 1969), S. 2. Prior to *substitution* it read as:

"153-A. *Promoting enmity between classes.*—Whoever by words, either spoken or written, or by signs or by visible representations, or otherwise, promotes or attempts to promote feelings of enmity or hatred between different classes of the citizens of India, shall be punished with imprisonment which may extend to two years, or with fine or with both.

(*a*) by words, either spoken or written, or by signs or by visible representations or otherwise, promotes or attempts to promote, on grounds of religion, race, place of birth, residence, language, caste or community or any other ground whatsoever, disharmony or feelings of enmity, hatred or ill-will between different religious, racial, language or regional groups or castes or communities, or

(*b*) commits any act which is prejudicial to the maintenance of harmony between different religious, racial, language or regional groups or castes or communities, and which disturbs or is likely to disturb the public tranquillity, [189][or]

[190][(*c*) organises any exercise, movement, drill or other similar activity intending that the participants in such activity shall use or be trained to use criminal force or violence or knowing it to be likely that the participants in such activity will use or be trained to use criminal force or violence, or participates in such activity intending to use or be trained to use criminal force or violence or knowing it to be likely that the participants in such activity will use or be trained to use criminal force or violence, against any religious, racial, language or regional group or caste or community and such activity, for any reason whatsoever causes or is likely to cause fear or alarm or a feeling of insecurity amongst members of such religious, racial, language or regional group or caste or community,]

shall be punished with imprisonment which may extend to three years, or with fine, or with both.

Offence committed in place of worship, etc.—(2) Whoever commits an offence specified in sub-section (1) in any place of worship or in any assembly engaged in the performance of religious worship or religious ceremonies, shall be punished with imprisonment which may extend to five years and shall also be liable to fine.]

CASE LAW ▸Interpretation/Construction.— Words "whosoever makes, publishes or circulates" in Section 505(2) to be read conjunctively and as supplemental to each other. So read, while publication is essential under Section 505(2), it is not so in Section 153-A, *Amish Devgan* v. *Union of India*, (2021) 1 SCC 1.

▸Babri Masjid case.—Invoking its extraordinary constitutional powers under Article 142 of the Constitution, the Supreme Court restored criminal conspiracy charges against senior BJP leaders L.K. Advani, Union Minister Uma Bharti, Murli Manohar Joshi and 13 other in the 1992 Babri Masjid case. The Court also transferred the pending separate trial in a Rae Bareilly Magistrate court and clubbed it with criminal proceedings in the Lucknow CBI Court, *State* v. *Kalyan Singh*, (2017) 7 SCC 444.

Explanation.—It does not amount to an offence within the meaning of this section to point out, without malicious intention and with an honest view to their removal, matters which are producing or have a tendency to produce, feelings of enmity or hatred between different classes of the citizens of India.".

189. *Ins.* by Criminal Law Amendment Act, 1972 (31 of 1972), S. 2, dt. 14-6-1972.

190. *Ins.* by Criminal Law Amendment Act, 1972 (31 of 1972), S. 2, dt. 14-6-1972.

►**Word "attempt" - Meaning.**— It is short of actual causation of crime and more than mere preparation. It is a deliberate act or step which manifests clear intention to commit offence aimed and is reasonably proximate to consummation of offence, *Amish Devgan* v. *Union of India*, (2021) 1 SCC 1.

►**Hate speech or controversial speech.**— In case of speech or publication, content should be something more than mere thought or preparation. Intent should be reasonably proximate to consummation of offence. As regards harm's element same test as applicable in case of "likely" would apply, provided, for intervening reasons or grounds public disorder or violence may not have taken place, *Amish Devgan* v. *Union of India*, (2021) 1 SCC 1.

►**"Public tranquillity" — Meaning.**—This expression should be read in restricted sense, synonymous with public order and safety but not law and order. Public order includes acts of local significance which disturbs public order. Public order does not make any distinction between majority and minority groups with reference to population of the particular area, *Amish Devgan* v. *Union of India*, (2021) 1 SCC 1.

[191][**153-AA. Punishment for knowingly carrying arms in any procession or organising, or holding or taking part in any mass drill or mass training with arms.**—Whoever knowingly carries arms in any procession or organises or holds or takes part in any mass drill or mass training with arms in any public place in contravention of any public notice or order issued or made under Section 144-A of the Code of Criminal Procedure, 1973 (2 of 1974) shall be punished with imprisonment for a term which may extend to six months and with fine which may extend to two thousand rupees.

Explanation.—"Arms" means articles of any description designed or adapted as weapons for offence or defence and includes fire arms, sharp edged weapons, lathis, dandas and sticks.]

[192][**153-B. Imputations, assertions prejudicial to national integration.**—(1) Whoever, by words either spoken or written or by signs or by visible representations or otherwise,—

(*a*) makes or publishes any imputation that any class of persons cannot, by reason of their being members of any religious, racial, language or regional group or caste or community, bear true faith and allegiance to the Constitution of India as by law established or uphold the sovereignty and integrity of India, or

(*b*) asserts, counsels, advises, propagates or publishes that any class of persons shall, by reason of their being members of any religious, racial, language or regional group or caste or community, be denied or deprived of their rights as citizens of India, or

(*c*) makes or publishes any assertion, counsel, plea or appeal concerning the obligation of any class of persons, by reason of their being members of any religious, racial, language or regional group or caste or community, and such assertion, counsel, plea or appeal causes or is likely to cause

191. *Ins.* by Act 25 of 2005, S. 44(*a*) (w.e.f. a date to be notified).
192. *Ins.* by Criminal Law Amendment Act, 1972 (31 of 1972), S. 2, dt. 14-6-1972.

disharmony or feelings of enmity or hatred or ill-will between such members and other persons,

shall be punished with imprisonment which may extend to three years, or with fine, or with both.

(2) Whoever commits an offence specified in sub-section (1), in any place of worship or in any assembly engaged in the performance of religious worship or religious ceremonies, shall be punished with imprisonment which may extend to five years and shall also be liable to fine.]

154. Owner or occupier of land on which an unlawful assembly is held.—Whenever any unlawful assembly or riot takes place, the owner or occupier of the land upon which such unlawful assembly is held, or such riot is committed, and any person having or claiming an interest in such land, shall be punishable with fine not exceeding one thousand rupees, if he or his agent or manager, knowing that such offence is being or has been committed, or having reason to believe it is likely to be committed, do not give the earliest notice thereof in his or their power to the principal officer at the nearest police station, and do not, in the case of his or their having reason to believe that it was about to be committed, use all lawful means in his or their power to prevent it, and, in the event of its taking place, do not use all lawful means in his or their power to disperse or suppress the riot or unlawful assembly.

155. Liability of person for whose benefit riot is committed.—Whenever a riot is committed for the benefit or on behalf of any person who is the owner or occupier of any land respecting which such riot takes place or who claims any interest in such land, or in the subject of any dispute which gave rise to the riot, or who has accepted or derived any benefit therefrom, such person shall be punishable with fine, if he or his agent or manager, having reason to believe that such riot was likely to be committed or that the unlawful assembly by which such riot was committed was likely to be held, shall not respectively use all lawful means in his or their power to prevent such assembly or riot from taking place, and for suppressing and dispersing the same.

156. Liability of agent of owner or occupier for whose benefit riot is committed.—Whenever a riot is committed for the benefit or on behalf of any person who is the owner or occupier of any land respecting which such riot takes place, or who claims any interest in such land, or in the subject of any dispute which gave rise to the riot, or who has accepted or derived any benefit therefrom,

the agent or manager of such person shall be punishable with fine, if such agent or manager, having reason to believe that such riot was likely to be committed, or that the unlawful assembly by which such riot was committed was likely to be held, shall not use all lawful means in his power to prevent such riot or assembly from taking place and for suppressing and dispersing the same.

157. Harbouring persons hired for an unlawful assembly.—Whoever harbours, receives or assembles, in any house or premises in his occupation or charge, or under his control any persons, knowing that such persons have been

hired, engaged, employed, or are about to be hired, engaged or employed, to join or become members of an unlawful assembly, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine, or with both.

158. Being hired to take part in an unlawful assembly or riot.—Whoever is engaged, or hired, or offers or attempts to be hired or engaged, to do or assist in doing any of the acts specified in Section 141, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine, or with both,

or to go armed.—and whoever, being so engaged or hired as aforesaid, goes armed, or engages or offers to go armed, with any deadly weapon or with anything which used as a weapon of offence is likely to cause death, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

159. Affray.—When two or more persons, by fighting in a public place, disturb the public peace, they are said to "commit an affray".

CASE LAW ▸ Affray.—The offence of affray as defined in Section 159, IPC postulates the commission of a definite assault and a breach of the peace. Mere quarrelling or abusing in a street without exchange of blows is not sufficient to attract the application of this section, *Korga Shetty* v. *State of Mysore*, 1971 Cri LJ 1041.

160. Punishment for committing affray.—Whoever commits an affray, shall be punished with imprisonment of either description for a term which may extend to one month, or with fine which may extend to one hundred rupees, or with both.

CHAPTER IX

OF OFFENCES BY OR RELATING TO PUBLIC SERVANTS

161. Public servant taking gratification other than legal remuneration in respect of an official act.—[193][* * *]

---

193. *Omitted* by Act 49 of 1988, S. 31 of the Prevention of Corruption Act, 1988 provides that Section 6 of the General Clauses Act, 1897 shall apply to such omission as if the said sections had been repealed by a Central Act.

Prior to omission by Prevention of Corruption Act, 1988, Section 161 read as:

'161. *Public servant taking gratification other than legal remuneration in respect of an official act.*—Whoever, being or expecting to be a public servant, accepts or obtains, or agrees to accept, or attempts to obtain from any person, for himself or for any other person, any gratification whatever, other than legal remuneration, as a motive or reward for doing or forbearing to do any official act or for showing or forbearing to show, in the exercise of his official functions, favour or disfavour to any person, or for rendering or attempting to render any service or disservice to any person, with the Central or any State Government or Parliament or the Legislature of any State, or with any local authority, corporation or Government company referred to in Section 21, or with any public servant, as such, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

Explanations.—"Expecting to be a public servant". If a person not expecting to be in office obtains a gratification by deceiving others into a belief that he is about to be in office, and that he will then serve them, he may be guilty of cheating, but he is not guilty of the offence defined in this section.

"Gratification." The word "gratification" is not restricted to pecuniary gratifications, or to gratifications estimable in money.

162. Taking gratification, in order, by corrupt or illegal means, to influence public servant.—[194][*Omitted*]

163. Taking gratification, for exercise of personal influence with public servant.—[195][*Omitted*]

164. Punishment for abetment by public servant of offences defined in Section 162 or Section 163.—[196][*Omitted*]

"Legal remuneration." The words "legal remuneration" are not restricted to remuneration which a public servant can lawfully demand, but include all remuneration which he is permitted by the Government, which he serves, to accept.

"A motive or reward for doing". A person who receives a gratification as a motive for doing what he does not intend to do, or as a reward for doing what he has not done, comes within these words.

Illustrations

(*a*) *A*, a munsif, obtains from *Z*, a banker, a situation in *Z*'s bank for *A*'s brother, as a reward to *A* for deciding a cause in favour of *Z*. A has committed the offence defined in this section.

(*b*) *A*, holding the officer of Consul in a Foreign State, accept a lakh of rupees from the Minister of that State. It does not appear that *A* accepted this sum as a motive or reward for doing or forbearing to do any particular official act, or for rendering or attempting to render any particular service to that State with the Government of India. But it does appear that *A* accepted the sum as a motive or reward for generally showing favour in the exercise of his official functions to that State. *A* has committed the offence defined in this section.

(*c*) *A*, a public servant, induces *Z* erroneously to believe that *A*'s influence with the Government has obtained a title for *Z* and thus induces *Z* to give *A* money as a reward for this service. *A* has committed the offence defined in this section.'.

194. *Omitted* by Act 49 of 1988, S. 31 of the Prevention of Corruption Act, 1988 provides that Section 6 of the General Clauses Act, 1897 shall apply to such omission as if the said sections had been repealed by a Central Act.

Prior to omission by Prevention of Corruption Act, 1988, Section 162 read as:

"162. *Taking gratification, in order, by corrupt or illegal means, to influence public servant.*—Whoever accepts or obtains, or agrees to accept, or attempts to obtain, from any person, for himself or for any other person, any gratification whatever as a motive or reward for inducing, by corrupt or illegal means, any public servant to do or to forbear to do any official act, or in the exercise of the official functions of such public servant to show favour or disfavour to any person, or to render or attempt to render any service or disservice to any person, with the Central or any State Government or Parliament or the Legislature of any State or with any local authority, corporation or Government company referred to in Section 21, or with any public servant, as such, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.".

195. *Omitted* by Act 49 of 1988, S. 31 of the Prevention of Corruption Act, 1988 provides that Section 6 of the General Clauses Act, 1897 shall apply to such omission as if the said sections had been repealed by a Central Act.

Prior to omission by Prevention of Corruption Act, 1988, Section 163 read as:

"163. *Taking gratification, for exercise of personal influence with public servant.*—Whoever accepts or obtains, or agrees to accept or attempts to obtain, from any person, for himself or for any other person, any gratification whatever, as a motive or reward for inducing, by the exercise of personal influence, any public servant to do or to forbear to do any official act, or in the exercise of the official functions of such public servant to show favour or disfavour to any person, or to render or attempt to render any service or disservice to any person with the Central or any State Government or Parliament or the Legislature of any State, or with any local authority, corporation or Government company referred to in Section 21, or with any public servant, as such, shall be punished with simple imprisonment for a term which may extend to one year, or with fine, or with both.

Illustrations

An advocate who receives a fee for arguing a case before a Judge; a person who receives pay for arranging and correcting a memorial addressed to Government, setting forth the services and claims of the memorialist; a paid agent for condemned criminal, who lays before the Government statements tending to show that the condemnation was unjust,—are not within this section, inasmuch as they do not exercise or profess to exercise personal influence.".

196. *Omitted* by Act 49 of 1988, S. 31 of the Prevention of Corruption Act, 1988 provides that Section 6 of the General Clauses Act, 1897 shall apply to such omission as if the said sections had been repealed by a Central Act.

165. Public servant obtaining valuable thing, without consideration, from person concerned in proceeding or business transacted by such public servant.—[197][* * *]

165-A. Punishment for abetment of offences defined in Section 161 or Section 165.—[198][* * *]

NOTE ▸ The Statement of Objects and Reasons of the Prevention of Corruption Act, 1988 provides:

1. The Bill is intended to make the existing anti-corruption laws more effective by widening their coverage and by strengthening the provisions.

2. The Prevention of Corruption Act, 1947, was amended in 1964 based on the recommendations of the Santhanam Committee. There are provisions in Chapter IX of the Penal Code to deal with public servants and those who abet them by way of the criminal misconduct, there are also provisions in the Criminal Law

---

Prior to omission by Prevention of Corruption Act, 1988, Section 164 read as:

"164. *Punishment for abetment by public servant of offences defined in Section 162 and or 163.*—Whoever, being a public servant, in respect of whom either of the offences defined in the last two preceding sections is committed, abets the offence, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

Illustrations

A is a public servant. *B*, *A*'s wife, receives a present as a motive for soliciting *A* to give an office to a particular person. *A* abets her doing so. *B* is punishable with imprisonment for a term not exceeding one year, or with fine, or with both. *A* is punishable with imprisonment for a term which may extend to three years, or with fine, or both.".

197. *Omitted* by Act 49 of 1988, S. 31 of the Prevention of Corruption Act, 1988 provides that Section 6 of the General Clauses Act, 1897 shall apply to such omission as if the said sections had been repealed by a Central Act.

Prior to omission by Prevention of Corruption Act, 1988, Section 165 read as:

"165. *Public servant obtaining valuable thing, without consideration, from person concerned in proceeding or business transacted by such public servant.*—Whoever, being a public servant, accepts or obtains, or agrees to accept or attempts to obtain, for himself, or for any other person, any valuable thing without consideration, or for a consideration which he knows to be inadequate,

from any person whom he knows to have been, or to be, or to be likely to be concerned in any proceeding or business transacted or about to be transacted by such public servant, or having any connection with the official functions of himself or of any public servant to whom he is subordinate,

or from any person whom he knows to be interested in or related to the person so concerned,

shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

Illustrations

(*a*) *A*, a Collector, hires a house of *Z*, who has a settlement case pending before him. It is agreed that *A* shall pay fifty rupees a month, the house being such that, if the bargain were made in good faith, *A* would be required to pay two hundred rupees a month. *A* has obtained a valuable thing from *Z* without adequate consideration.

(*b*) *A*, a Judge, buys of *Z*, who has a cause pending in *A*'s Court, Government promissory notes at a discount, when they are selling in the market at a premium. *A* has obtained a valuable thing from *Z* without adequate consideration.

(*c*) *Z*'s brother is apprehended and taken before *A*, a Magistrate, on a charge of perjury. *A* sells to *Z* shares in a bank at a premium, when they are selling in the market at a discount. *Z* pays *A* for the shares accordingly. The money so obtained by *A* is a valuable thing obtained by him without adequate consideration.".

198. *Omitted* by Act 49 of 1988, S. 31 of the Prevention of Corruption Act, 1988 provides that Section 6 of the General Clauses Act, 1897 shall apply to such omission as if the said sections had been repealed by a Central Act.

Prior to omission by Prevention of Corruption Act, 1988, Section 165-A read as:

"165-A. *Punishment for abetment of offences defined in Section 161 or Section 165.*—Whoever, abets any offence punishable under Section 161 or Section 165, whether or not that offence is committed in consequence of the abetment, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.".

Amendment Ordinance, 1944, to enable attachment of ill-gotton wealth. The Bill seeks to incorporate all these provisions with modifications so as to make the provisions more effective in combating corruption among public servants.

3. The Bill, inter alia, envisages widening the scope of the definition of the expression "public servant", incorporation of offences under Sections 161 to 165-A of the Penal Code enhancement of penalties provided for these offences and incorporation of a provision that the order of the trial court upholding the grant of sanction for prosecution would be final if it has not already been challenged and the trial has commenced. In order to expedite the proceedings, provisions for day-to-day trial of cases and prohibitory provisions with regard to grant of stay and exercise of powers of revision on interlucatory orders have also been included.

4. Since the provisions of Sections 161 to 165-A are incorporated in the proposed legislation with an enhanced punishment, it is not necessary to retain those sections in the Penal Code. Consequently, it is proposed to delete those sections with the necessary saving provision.

5. The notes on clauses explain in detail the provisions of the Bill.

166. Public servant disobeying law, with intent to cause injury to any person.—Whoever, being a public servant, knowingly disobeys any direction of the law as to the way in which he is to conduct himself as such public servant, intending to cause, or knowing it to be likely that he will, by such disobedience, cause injury to any person, shall be punished with simple imprisonment for a term which may extend to one year, or with fine, or with both.

Illustration

A, being an officer directed by law to take property in execution, in order to satisfy a decree pronounced in *Z*'s favour by a Court of Justice, knowingly disobeys that direction of law, with the knowledge that he is likely thereby to cause injury to *Z*. *A* has committed the offence defined in the section.

[199][**166-A. Public servant disobeying direction under law.**—Whoever, being a public servant,—

(*a*) knowingly disobeys any direction of the law which prohibits him from requiring the attendance at any place of any person for the purpose of investigation into an offence or any other matter, or

(*b*) knowingly disobeys, to the prejudice of any person, any other direction of the law regulating the manner in which he shall conduct such investigation, or

(*c*) fails to record any information given to him under sub-section (1) of Section 154 of the Code of Criminal Procedure, 1973 (2 of 1974), in relation to cognizable offence punishable under Section 326-A, Section 326-B, Section 354, Section 354-B, Section 370, Section 370-A, Section 376, Section 376-A, [200][Section 376-AB, Section 376-B, Section 376-C, Section 376-D, Section 376-DA, Section 376-DB], Section 376-E or Section 509,

199. *Ins.* by Act 13 of 2013, S. 3 (w.r.e.f. 3-2-2013).

200. *Subs.* for "Section 376-B, Section 376-C, Section 376-D" by Act 22 of 2018, S. 2 (w.r.e.f. 21-4-2018).

shall be punished with rigorous imprisonment for a term which shall not be less than six months but which may extend to two years, and shall also be liable to fine.

STATE AMENDMENTS

Arunachal Pradesh.—In its application to the State of Arunanchal Pradesh, in Section 166-A, in clause (*c*), for the words, figures and letters "Section 326-A, Section 326-B, Section 354, Section 354-B, Section 370, Section 370-A, Section 376, Section 376-A, Section 376-B, Section 376-C, Section 376-D, Section 376-E or Section 509" the words, figures and letters "Section 326-A, Section 326-B, Section 354, sub-sections (2) and (3) ot Section 354-A, Section 354-B, Section 354-C, sub-section (2) of Section 354-D, Section 370, Section 370-A, Section 376, Section 376-A, Section 376-AA, Section 376-B, Section 376-C, Section 376-D, Section 376-DA, Section 376-E or Section 509" shall be *substituted*. [*Vide* Arunachal Pradesh Act 3 of 2019, S. 3, dt. 2-4-2019].

166-B. Punishment for non-treatment of victim.—Whoever, being in charge of a hospital, public or private, whether run by the Central Government, the State Government, local bodies or any other person, contravenes the provisions of Section 357-C of the Code of Criminal Procedure, 1973 (2 of 1974), shall be punished with imprisonment for a term which may extend to one year or with fine or with both.]

167. Public servant framing an incorrect document with intent to cause injury.—Whoever, being a public servant, and being, as [201][such public servant, charged with the preparation or translation of any document or electronic record, frames, prepares or translates that document or electronic record] in a manner which he knows or believes to be incorrect, intending thereby to cause or knowing it to be likely that he may thereby cause injury to any person, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

168. Public servant unlawfully engaging in trade.—Whoever, being a public servant, and being legally bound as such public servant not to engage in trade, engages in trade, shall be punished with simple imprisonment for a term which may extend to one year, or with fine, or with both.

CASE LAW ▸ Trade.—The word "trade" does not include receiving apprenticeship training, *State of Gujarat* v. *Mahesh Kumar*, (1980) 2 SCC 322 : 1980 SCC (Cri) 442.

169. Public servant unlawfully buying or bidding for property.—Whoever, being a public servant, and being legally bound as such public servant, not to purchase or bid for certain property, purchases or bids for that property, either in his own name or in the name of another, or jointly, or in shares with others, shall be punished with simple imprisonment for a term which may extend to two years, or with fine, or with both; and the property, if purchased, shall be confiscated.

170. Personating a public servant.—Whoever pretends to hold any particular office as a public servant, knowing that he does not hold such office or falsely personates any other person holding such office, and in such assumed character

---

201. *Subs.* by Act 21 of 2000, S. 91 & Sch. I (w.e.f. 17-10-2000). Prior to substitution it read as:
"such public servant, charged with the preparation or translation of any document, frames or translates that document"

does or attempts to do any act under colour of such office, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

171. Wearing garb or carrying token used by public servant with fraudulent intent.—Whoever, not belonging to a certain class of public servants, wears any garb or carries any token resembling any garb or token used by that class of public servants, with the intention that it may be believed, or with the knowledge that it is likely to be believed, that he belongs to that class of public servants, shall be punished with imprisonment of either description, for a term which may extend to three months, or with fine which may extend to two hundred rupees, or with both.

[202][CHAPTER IX-A
OF OFFENCES RELATING TO ELECTIONS

171-A. "Candidate", "Electoral right" defined.—For the purposes of the Chapter—

[203][(*a*) "candidate" means a person who has been nominated as a candidate at any election;]

(*b*) "electoral right" means the right of a person to stand, or not to stand as, or to withdraw from being, a candidate or to vote or refrain from voting at an election.

171-B. Bribery.—(1) Whoever—

(*i*) gives a gratification to any person with the object of inducing him or any other person to exercise any electoral right or of rewarding any person for having exercised any such right; or

(*ii*) accepts either for himself or for any other person any gratification as a reward for exercising any such right or for inducing or attempting to induce any other person to exercise any such right,

commits the offence of bribery:

Provided that a declaration of public policy or a promise of public action shall not be an offence under this section.

(2) A person who offers, or agrees to give, or offers or attempts to procure, a gratification shall be deemed to give a gratification.

(3) A person who obtains or agrees to accept or attempts to obtain a gratification shall be deemed to accept a gratification, and a person who accepts a gratification as a motive for doing what he does not intend to do, or as a reward for doing what he has not done, shall be deemed to have accepted the gratification as a reward.

171-C. Undue influence at elections.—(1) Whoever voluntarily interferes or attempts to interfere with the free exercise of any electoral right commits the offence of undue influence at an election.

---

202. Chapter IX-A was *ins.* by Act 39 of 1920, S. 2.
203. *Subs.* by the Election Law (Amendment) Act, 1975 (40 of 1975), S. 9, dt. 6-8-1975.

(2) Without prejudice to the generality of the provisions of sub-section (1), whoever—

(*a*) threatens any candidate or voter, or any person in whom a candidate or voter is interested, with injury of any kind, or

(*b*) induces or attempts to induce a candidate or voter to believe that he or any person in whom he is interested will become or will be rendered an object of Divine displeasure or of spiritual censure,

shall be deemed to interfere with the free exercise of the electoral right of such candidate or voter, within the meaning of sub-section (1).

(3) A declaration of public policy or a promise of public action, or the mere exercise of a legal right without intent to interfere with an electoral right, shall not be deemed to be interference within the meaning of this section.

171-D. Personation at elections.—Whoever at an election applies for a voting paper or votes in the name of any other person, whether living or dead, or in a fictitious name, or who having voted once at such election applies at the same election for a voting paper in his own name, and whoever abets, procures or attempts to procure the voting by any person in any such way, commits the offence of personation at an election:

[204][Provided that nothing in this section shall apply to a person who has been authorised to vote as proxy for an elector under any law for the time being in force insofar as he votes as a proxy for such elector.]

171-E. Punishment for bribery.—Whoever commits the offence of bribery shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both:

Provided that bribery by treating shall be punished with fine only.

Explanation.—"Treating" means that form of bribery where the gratification consists in food, drink, entertainment, or provision.

171-F. Punishment for undue influence or personation at an election.—Whoever commits the offence of undue influence or personation at an election shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.

171-G. False statement in connection with an election.—Whoever with intent to affect the result of an election makes or publishes any statement purporting to be a statement of fact which is false and which he either knows or believes to be false or does not believe to be true, in relation to the personal character or conduct of any candidate shall be punished with fine.

171-H. Illegal payments in connection with an election.—Whoever without the general or special authority in writing of a candidate incurs or authorizes expenses on account of the holding of any public meeting, or upon any advertisement, circular or publication, or in any other way whatsoever for the

---

204. *Ins.* by Act 24 of 2003, S. 5 (w.e.f. 22-9-2003).

purpose of promoting or procuring the election of such candidate, shall be punished with fine which may extend to five hundred rupees:

Provided that if any person having incurred any such expenses not exceeding the amount of ten rupees without authority obtains within ten days from the date on which such expenses were incurred the approval in writing of the candidate, he shall be deemed to have incurred such expenses with the authority of the candidate.

171-I. Failure to keep election accounts.—Whoever being required by any law for the time being in force or any rule having the force of law to keep accounts of expenses incurred at or in connection with an election fails to keep such accounts shall be punished with fine which may extend to five hundred rupees.]

CHAPTER X

OF CONTEMPTS OF THE LAWFUL AUTHORITY OF PUBLIC SERVANTS

172. Absconding to avoid service of summons or other proceeding.—Whoever absconds in order to avoid being served with a summons, notice or order proceeding from any public servant legally competent, as such public servant, to issue such summons, notice or order, shall be punished with simple imprisonment for a term which may extend to one month, or with fine which may extend to five hundred rupees, or with both;

or, if the summons or notice or order is to attend in person or by agent, or to [205][produce a document or an electronic record] in a Court of Justice, with simple imprisonment for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

173. Preventing service of summons or other proceeding, or preventing publication thereof.—Whoever in any manner intentionally prevents the serving on himself, or on any other person, of any summons, notice or order proceeding from any public servant legally competent, as such public servant, to issue such summons, notice or order,

or intentionally prevents the lawful affixing to any place of any such summons, notice or order,

or intentionally removes any such summons, notice or order from any place to which it is lawfully affixed,

or intentionally prevents the lawful making of any proclamation, under the authority of any public servant legally competent, as such public servant, to direct such proclamation to be made,

shall be punished with simple imprisonment for a term which may extend to one month, or with fine which may extend to five hundred rupees, or with both;

or, if the summons, notice, order or proclamation is to attend in person or by agent, or to produce a document [206][or electronic record] in a Court of Justice,

---

205. *Subs.*. by Act 21 of 2000, S. 91 & Sch. I (w.e.f. 17-10-2000).
206. *Subs.*. by Act 21 of 2000, S. 91 & Sch. I (w.e.f. 17-10-2000).

with simple imprisonment for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

174. Non-attendance in obedience to an order from public servant.—Whoever, being legally bound to attend in person or by an agent at a certain place and time in obedience to a summons, notice, order or proclamation proceeding from any public servant legally competent, as such public servant, to issue the same,

intentionally omits to attend at that place or time, or departs from the place where he is bound to attend before the time at which it is lawful for him to depart,

shall be punished with simple imprisonment for a term which may extend to one month, or with fine which may extend to five hundred rupees, or with both;

or, if the summons, notice, order or proclamation is to attend in person or by agent in a Court of Justice, with simple imprisonment for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

Illustrations

(*a*) *A*, being legally bound to appear before the [207][High Court] at Calcutta in obedience to a subpoena issuing from that Court, intentionally omits to appear. *A* has committed the offence defined in this section.

(*b*) *A*, being legally bound to appear before a [208][District Judge], as a witness, in obedience to a summons issued by that [209][District Judge] intentionally omits to appear. *A* has committed the offence defined in this section.

[210][**174-A. Non-appearance in response to a proclamation under Section 82 of Act 2 of 1974.**—Whoever fails to appear at the specified place and the specified time as required by a proclamation published under sub-section (1) of Section 82 of the Code of Criminal Procedure, 1973 shall be punished with imprisonment for a term which may extend to three years or with fine or with both, and where a declaration has been made under sub-section (4) of that section pronouncing him as a proclaimed offender, he shall be punished with imprisonment for a term which may extend to seven years and shall also be liable to fine.]

175. Omission to produce document [211][or electronic record] to public servant by person legally bound to produce it.—Whoever, being legally bound to produce or deliver up any document [212][or electronic record] to any public servant, as such, intentionally omits so to produce or deliver up the same, shall be punished with simple imprisonment for a term which may extend to one month, or with fine which may extend to five hundred rupees, or with both;

---

207. *Subs.* for "Supreme Court" by the A.O. 1950.
208. *Subs.* for "Zila Judge" by the A.O. 1950.
209. *Subs.* for "Zila Judge" by the A.O. 1950.
210. *Ins.* by Act 25 of 2005, S. 44(*b*) (w.e.f. 23-6-2006).
211. *Ins.* by Act 21 of 2000, S. 91 & Sch. I (w.e.f. 17-10-2000).
212. *Ins.* by Act 21 of 2000, S. 91 & Sch. I (w.e.f. 17-10-2000).

or, if the document [213][or electronic record] is to be produced or delivered up to a Court of Justice, with simple imprisonment for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

Illustration

A, being legally bound to produce a document before a [214][District Court], intentionally omits to produce the same. *A* has committed the offence defined in this section.

176. Omission to give notice or information to public servant by person legally bound to give it.—Whoever, being legally bound to give any notice or to furnish information on any subject to any public servant, as such, intentionally omits to give such notice or to furnish such information in the manner and at the time required by law, shall be punished with simple imprisonment for a term which may extend to one month, or with fine which may extend to five hundred rupees, or with both;

or, if the notice or information required to be given respects the commission of an offence, or is required for the purpose of preventing the commission of an offence, or in order to the apprehension of an offender, with simple imprisonment for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both;

[215][or, if the notice or information required to be given is required by an order passed under sub-section (1) of Section 565 of the Code of Criminal Procedure, 1898 (5 of 1898)[216], with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.]

177. Furnishing false information.—Whoever, being legally bound to furnish information on any subject to any public servant, as such, furnishes, as true, information on the subject which he knows or has reason to believe to be false, shall be punished with simple imprisonment for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both;

or, if the information which he is legally bound to give respects the commission of an offence, or is required for the purpose of preventing the commission of an offence, or in order to the apprehension of an offender, with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

Illustrations

(*a*) *A*, a landholder, knowing of the commission of a murder within the limits of his estate, wilfully misinforms the Magistrate of the district that the death has occurred by accident in consequence of the bite of a snake. *A* is guilty of the offence defined in this section.

(*b*) *A*, a village watchman, knowing that a considerable body of strangers has passed through his village in order to commit a dacoity in the house of *Z*, a wealthy merchant residing in a neighbouring

---

213. *Ins.* by Act 21 of 2000, S. 91 & Sch. I (w.e.f. 17-10-2000).
214. *Subs.* for "Zila Court" by the A.O. 1950.
215. *Ins.* by Act 22 of 1939, S. 2.
216. *See* now S. 356, CrPC, 1973 (2 of 1974).

place, and being bound under Clause 5, Section VII, [217]Regulation III, 1821, of the Bengal Code, to give early and punctual information of the above fact to the officer of the nearest police station, wilfully misinforms the police-officer that a body of suspicious characters passed through the village with a view to commit dacoity in a certain distant place in a different direction. Here *A* is guilty of the offence defined in the latter part of this section.

[218][*Explanation*.—In Section 176 and in this section the word "offence" includes any act committed at any place out of [219][India], which, if committed in [220][India], would be punishable under any of the following sections, namely, 302, 304, 382, 392, 393, 394, 395, 396, 397, 398, 399, 402, 435, 436, 449, 450, 457, 458, 459 and 460; and the word "offender" includes any person who is alleged to have been guilty of any such act.]

178. Refusing oath or affirmation when duly required by public servant to make it.—Whoever refuses to bind himself by an oath [221][or affirmation] to state the truth, when required so to bind himself by a public servant legally competent to require that he shall so bind himself, shall be punished with simple imprisonment for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

179. Refusing to answer public servant authorised to question.—Whoever, being legally bound to state the truth on any subject to any public servant, refuses to answer any question demanded of him touching that subject by such public servant in the exercise of the legal powers of such public servant, shall be punished with simple imprisonment for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

180. Refusing to sign statement.—Whoever refuses to sign any statement made by him, when required to sign that statement by a public servant legally competent to require that he shall sign that statement, shall be punished with simple imprisonment for a term which may extend to three months, or with fine which may extend to five hundred rupees, or with both.

181. False statement on oath or affirmation to public servant or person authorised to administer an oath or affirmation.—Whoever, being legally bound by an oath [222][or affirmation] to state the truth on any subject to any public servant or other person authorised by law to administer such oath [223][or affirmation], makes, to such public servant or other person as aforesaid, touching that subject, any statement which is false, and which he either knows or believes to be false or does not believe to be true, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.

---

217. *Rep.* by Act 17 of 1862.
218. *Ins.* by Act 3 of 1894, S. 5.
219. *Subs.* for "the States" by Act 3 of 1951 (w.e.f. 1-4-1951).
220. *Subs.* for "the States" by Act 3 of 1951 (w.e.f. 1-4-1951).
221. *Ins.* by Act 10 of 1873, S. 15.
222. *Ins.* by Act 10 of 1873, S. 15.
223. *Ins.* by Act 10 of 1873, S. 15.

[224][**182. False information, with intent to cause public servant to use his lawful power to the injury of another person.**—Whoever gives to any public servant any information which he knows or believes to be false, intending thereby to cause, or knowing it to be likely that he will thereby cause, such public servant—

(*a*) to do or omit anything which such public servant ought not to do or omit if the true state of facts respecting which such information is given were known by him, or

(*b*) to use the lawful power of such public servant to the injury or annoyance of any person,

shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

Illustrations

(*a*) *A* informs a Magistrate that *Z*, a police officer, subordinate to such Magistrate, has been guilty of neglect of duty or misconduct, knowing such information to be false, and knowing it to be likely that the information will cause the Magistrate to dismiss *Z*. *A* has committed the offence defined in this section.

(*b*) *A* falsely informs a public servant that *Z* has contraband salt in a secret place, knowing such information to be false, and knowing that it is likely that the consequence of the information will be a search of *Z*'s premises, attended with annoyance to *Z*. *A* has committed the offence defined in this section.

(*c*) *A* falsely informs a policeman that he has been assaulted and robbed in the neighbourhood of a particular village. He does not mention the name of any person as one of his assailants, but knows it to be likely that in consequence of this information the police will make enquiries and institute searches in the village to the annoyance of the villagers or some of them. *A* has committed an offence under this section.]

183. Resistance to the taking of property by the lawful authority of a public servant.—Whoever offers any resistance to the taking of any property by the lawful authority of any public servant, knowing or having reason to believe that he is such public servant, shall be punished with imprisonment of either description

---

224. *Subs.* by Act 3 of 1895, S. 1. Prior to substitution it read as:

"182. *False information, with intent to cause a public servant to use his lawful power to the injury of another person.*—Whoever gives to any public servant any information which he knows or believes to be false, intending thereby to cause, or knowing it to be likely that he will thereby cause, such public servant to use the lawful power of such public servant to the injury or annoyance of any person, or to do or omit anything which such public servant ought not to do or omit, if the true state of facts respecting which such information is given were known by him, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

Illustrations

(*a*) *A* informs a Magistrate that *Z*, a police officer, subordinate to such Magistrate, has been guilty of neglect of duty or misconduct, knowing such information to be false, and knowing it to be likely that the information will cause the Magistrate to dismiss *Z*. *A* has committed the offence defined in this section.

(*b*) *A* falsely informs a public servant that *Z* has contraband salt in a secret place, knowing such information to be false, and knowing that it is likely that the consequence of the information will be a search of *Z*'s premises, attended with annoyance to *Z*. *A* has committed the offence defined in this section."

for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

184. Obstructing sale of property offered for sale by authority of public servant.—Whoever intentionally obstructs any sale of property offered for sale by the lawful authority of any public servant, as such, shall be punished with imprisonment of either description for a term which may extend to one month, or with fine which may extend to five hundred rupees, or with both.

185. Illegal purchase or bid for property offered for sale by authority of public servant.—Whoever, at any sale of property held by the lawful authority of a public servant, as such, purchases or bids for any property on account of any person, whether himself or any other, whom he knows to be under a legal incapacity to purchase that property at that sale, or bids for such property not intending to perform the obligations under which he lays himself by such bidding, shall be punished with imprisonment of either description for a term which may extend to one month, or with fine which may extend to two hundred rupees, or with both.

186. Obstructing public servant in discharge of public functions.—Whoever voluntarily obstructs any public servant in the discharge of his public functions, shall be punished with imprisonment of either description for a term which may extend to three months, or with fine which may extend to five hundred rupees, or with both.

STATE AMENDMENTS

Andhra Pradesh.—Offence under Section 186 is cognizable. [*Vide* A.P.G.O. Ms. No. 732, dt. 5-12-1991].

187. Omission to assist public servant when bound by law to give assistance.—Whoever, being bound by law to render or furnish assistance to any public servant in the execution of his public duty, intentionally omits to give such assistance, shall be punished with simple imprisonment for a term which may extend to one month, or with fine which may extend to two hundred rupees, or with both;

and if such assistance be demanded of him by a public servant legally competent to make such demand for the purposes of executing any process lawfully issued by a Court of Justice, or of preventing the commission of an offence, or of suppressing a riot, or affray, or of apprehending a person charged with or guilty of an offence, or of having escaped from lawful custody, shall be punished with simple imprisonment for a term which may extend to six months, or with fine which may extend to five hundred rupees, or with both.

188. Disobedience to order duly promulgated by public servant.—Whoever, knowing that, by an order promulgated by a public servant lawfully empowered to promulgate such order, he is directed to abstain from a certain act, or to take certain order with certain property in his possession or under his management, disobeys such direction,

shall, if such disobedience causes or tends to cause obstruction, annoyance or injury, or risk of obstruction, annoyance or injury, to any persons lawfully

employed, be punished with simple imprisonment for a term which may extend to one month or with fine which may extend to two hundred rupees, or with both:

and if such disobedience causes or tends to cause danger to human life, health or safety, or causes or tends to cause a riot or affray, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

Explanation.—It is not necessary that the offender should intend to produce harm, or contemplate his disobedience as likely to produce harm. It is sufficient that he knows of the order which he disobeys, and that his disobedience produces, or is likely to produce, harm.

Illustration

An order is promulgated by a public servant lawfully empowered to promulgate such order, directing that a religious procession shall not pass down a certain street. *A* knowingly disobeys the order, and thereby causes danger of riot. *A* has committed the offence defined in this section.

CASE LAW Scope.— It does not only cover breach of law and order, disobedience of which is punishable. It is attracted even in cases where act complained of causes or tends to cause danger to human life, health or safety as well. *State of Maharashtra* v. *Sayyed Hassan Sayyed Subhan*, (2019) 18 SCC 145.

189. Threat of injury to public servant.—Whoever holds out any threat of injury to any public servant, or to any person in whom he believes that public servant to be interested, for the purpose of inducing that public servant to do any act, or to forbear or delay to do any act, connected with the exercise of the public functions of such public servant, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

STATE AMENDMENTS

Andhra Pradesh.—Offence under Section 189 is cognizable. [*Vide* A.P.G.O. Ms. No. 732, dt. 5-12-1991].

190. Threat of injury to induce person to refrain from applying for protection to public servant.—Whoever holds out any threat of injury to any person for the purpose of inducing that person to refrain or desist from making a legal application for protection against any injury to any public servant legally empowered as such to give such protection, or to cause such protection to be given, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.

STATE AMENDMENTS

Andhra Pradesh.—Offence under Section 190 is cognizable. [*Vide* A.P.G.O. Ms. No. 732, dt. 5-12-1991].

CHAPTER XI

OF FALSE EVIDENCE AND OFFENCES AGAINST PUBLIC JUSTICE

191. Giving false evidence.—Whoever, being legally bound by an oath or by an express provision of law to state the truth, or being bound by law to make a declaration upon any subject, makes any statement which is false, and which he

either knows or believes to be false or does not believe to be true, is said to give false evidence.

Explanation 1.—A statement is within the meaning of this section, whether it is made verbally or otherwise.

Explanation 2.—A false statement as to the belief of the person attesting is within the meaning of this section, and a person may be guilty of giving false evidence by stating that he believes a thing which he does not believe, as well as by stating that he knows a thing which he does not know.

Illustrations

(*a*) *A*, in support of a just claim which *B* has against *Z* for one thousand rupees, falsely swears on a trial that he heard *Z* admit the justice of *B*'s claim. *A* has given false evidence.

(*b*) *A*, being bound by an oath to state the truth, states that he believes a certain signature to be the handwriting of *Z*, when he does not believe it to be the handwriting of *Z*. Here *A* states that which he knows to be false, and therefore gives false evidence.

(*c*) *A*, knowing the general character of *Z*'s handwriting, states that he believes a certain signature to be the handwriting of *Z*; *A* in good faith believing it to be so. Here *A*'s statement is merely as to his belief, and is true as to his belief, and therefore, although the signature may not be the handwriting of *Z*, *A* has not given false evidence.

(*d*) *A*, being bound by an oath to state the truth, states that he knows that *Z* was at a particular place on a particular day, not knowing anything upon the subject. *A* gives false evidence whether *Z* was at that place on the day named or not.

(*e*) *A*, an interpreter or translator, gives or certifies as a true interpretation or translation of a statement or document, which he is bound by oath to interpret or translate truly, that which is not and which he does not believe to be a true interpretation or translation. *A* has given false evidence.

192. Fabricating false evidence.—Whoever causes any circumstance to exist or makes any false entry in any book or record, [225][or electronic record] or makes any document [226][or electronic record] containing a false statement, intending that such circumstance, false entry or false statement may appear in evidence in a judicial proceeding, or in a proceeding taken by law before a public servant as such, or before an arbitrator, and that such circumstance, false entry or false statement, so appearing in evidence, may cause any person who in such proceeding is to form an opinion upon the evidence, to entertain an erroneous opinion touching any point material to the result of such proceeding, is said "to fabricate false evidence".

Illustrations

(*a*) *A*, puts jewels into a box belonging to *Z*, with the intention that they may be found in that box, and that this circumstance may cause *Z* to be convicted of theft. *A* has fabricated false evidence.

(*b*) *A* makes a false entry in his shop-book for the purpose of using it as corroborative evidence in a Court of Justice. *A* has fabricated false evidence.

(*c*) *A*, with the intention of causing *Z* to be convicted of a criminal conspiracy, writes a letter in imitation of *Z*'s handwriting, purporting to be addressed to an accomplice in such criminal conspiracy, and puts the letter in a place which he knows that the officers of the police are likely to search. *A* has fabricated false evidence.

---

225. *Ins.* by Act 21 of 2000, S. 91 & Sch. I (w.e.f. 17-10-2000).
226. *Ins.* by Act 21 of 2000, S. 91 & Sch. I (w.e.f. 17-10-2000).

CASE LAW ▸ False affidavit.—Filing of false affidavit is covered by Sections 191 and 192 and not by Section 199, *Baban Singh* v. *Jagdish Singh*, AIR 1967 SC 68 : 1967 Cri LJ 6.

193. Punishment for false evidence.—Whoever intentionally gives false evidence in any stage of a judicial proceeding, or fabricates false evidence for the purpose of being used in any stage of a judicial proceeding, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine;

and whoever intentionally gives or fabricates false evidence in any other case, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.

Explanation 1.—A trial before a Court-martial [227][* * *] is a judicial proceeding.

Explanation 2.—An investigation directed by law preliminary to a proceeding before a Court of Justice, is a stage of judicial proceeding, though that investigation may not take place before a Court of Justice.

Illustration

A, in an enquiry before a Magistrate for the purpose of ascertaining whether *Z* ought to be committed for trial, makes on oath a statement which he knows to be false. As this enquiry is a stage of a judicial proceeding, *A* has given false evidence.

Explanation 3.—An investigation directed by a Court of Justice according to law, and conducted under the authority of a Court of Justice, is a stage of a judicial proceeding, though that investigation may not take place before a Court of Justice.

Illustration

A, in an enquiry before an officer deputed by a Court of Justice to ascertain on the spot the boundaries of land, makes on oath a statement which he knows to be false. As this enquiry is a stage of a judicial proceeding, *A* has given false evidence.

CASE LAW ▸ Perjury.—Cognizance of offence punishable under Section 193 IPC on basis of private complaint, not permissible, *Narendra Kumar Srivastava* v. *State of Bihar*, (2019) 3 SCC 318.

194. Giving or fabricating false evidence with intent to procure conviction of capital offence.—Whoever gives or fabricates false evidence, intending thereby to cause, or knowing it to be likely that he will thereby cause, any person to be convicted of an offence which is capital [228][by the law for the time being in force in [229][India]] shall be punished with [230][imprisonment for life], or with rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine;

if innocent person be thereby convicted and executed.—and if an innocent person be convicted and executed in consequence of such false evidence, the person

---

227. The words "or before a Military Court of Request" *omitted* by Act 13 of 1889, S. 2 & Sch.
228. *Subs.* for "by the law of British India or England" by the A.O. 1948.
229. *Subs.* for "the States" by Act 3 of 1951, S. 3 & Sch. (w.e.f. 1-4-1951).
230. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch.

who gives such false evidence shall be punished either with death or the punishment hereinbefore described.

195. Giving or fabricating false evidence with intent to procure conviction of offence punishable with imprisonment for life or imprisonment.—Whoever gives or fabricates false evidence intending thereby to cause, or knowing it to be likely that he will thereby cause, any person to be convicted of an offence which [231][by the law for the time being in force in [232][India]] is not capital, but punishable with [233][imprisonment for life], or imprisonment for a term of seven years or upwards, shall be punished as a person convicted of that offence would be liable to be punished.

Illustration

A gives false evidence before a Court of Justice, intending thereby to cause *Z* to be convicted of a dacoity. The punishment of dacoity is [234][imprisonment for life], or rigorous imprisonment for a term which may extend to ten years, with or without fine. *A*, therefore, is liable to [235][imprisonment for life] or imprisonment, with or without fine.

[236][**195-A. Threatening any person to give false evidence.**—Whoever threatens another with any injury to his person, reputation or property or to the person or reputation of any one in whom that person is interested, with intent to cause that person to give false evidence shall be punished with imprisonment of either description for a term which may extend to seven years, or with fine, or with both;

and if innocent person is convicted and sentenced in consequence of such false evidence, with death or imprisonment for more than seven years, the person who threatens shall be punished with the same punishment and sentence in the same manner and to the same extent such innocent person is punished and sentenced.]

196. Using evidence known to be false.—Whoever corruptly uses or attempts to use as true or genuine evidence any evidence which he knows to be false or fabricated, shall be punished in the same manner as if he gave or fabricated false evidence.

197. Issuing or signing false certificate.—Whoever issues or signs any certificate required by law to be given or signed, or relating to any fact of which such certificate is by law admissible in evidence, knowing or believing that such certificate is false in any material point, shall be punished in the same manner as if he gave false evidence.

198. Using as true a certificate known to be false.—Whoever corruptly uses or attempts to use any such certificate as a true certificate, knowing the same to be false in any material point, shall be punished in the same manner as if he gave false evidence.

---

231. *Subs.* for "by the law of British India or England" by the A.O. 1948.
232. *Subs.* for "the States" by Act 3 of 1951, S. 3 & Sch. (w.e.f. 1-4-1951).
233. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch.
234. *Subs.* for "such transportation" by Act 26 of 1955, S. 117 and Sch.
235. *Subs.* for "such transportation" by Act 26 of 1955, S. 117 and Sch.
236. *Ins.* by Act 2 of 2006, S. 2 (w.e.f. 16-4-2006). Heading of Section 195-A corrected by the corrigendum published in the Gazette of India, Extra., Part II, Section 1, dated 3-3-2006.

199. False statement made in declaration which is by law receivable as evidence.—Whoever, in any declaration made or subscribed by him, which declaration any Court of Justice, or any public servant or other person, is bound or authorised by law to receive as evidence of any fact, makes any statement which is false, and which he either knows or believes to be false or does not believe to be true, touching any point material to the object for which the declaration is made or used, shall be punished in the same manner as if he gave false evidence.

CASE LAW ▸ False statement.—It must be proved that a false statement touches any point material to the object for which declaration is made, *Jotish Chandra* v. *State of Bihar*, AIR 1969 SC 7.

200. Using as true such declaration knowing it to be false.—Whoever corruptly uses or attempts to use as true any such declaration, knowing the same to be false in any material point, shall be punished in the same manner as if he gave false evidence.

Explanation.—A declaration which is inadmissible merely upon the ground of some informality, is a declaration within the meaning of Sections 199 and 200.

CASE LAW ▸ Ingredients.— One of the ingredients of Section 200 is that the declaration should be used corruptly, *Jotish Chandra* v. *State of Bihar*, AIR 1969 SC 7.

201. Causing disappearance of evidence of offence, or giving false information to screen offender.—Whoever, knowing or having reason to believe that an offence has been committed, causes any evidence of the commission of that offence to disappear, with the intention of screening the offender from legal punishment, or with that intention gives any information respecting the offence which he knows or believes to be false,

if a capital offence.—shall, if the offence which he knows or believes to have been committed is punishable with death, be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine;

if punishable with imprisonment for life.—and if the offence is punishable with [237][imprisonment for life], or with imprisonment which may extend to ten years, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine;

if punishable with less than ten years' imprisonment.—and if the offence is punishable with imprisonment for any term not extending to ten years, shall be punished with imprisonment of the description provided for the offence, for a term which may extend to one-fourth part of the longest term of the imprisonment provided for the offence, or with fine, or with both.

Illustration

A, knowing that *B* has murdered *Z*, assists *B* to hide the body with the intention of screening *B* from punishment. *A* is liable to imprisonment of either description for seven years, and also to fine.

202. Intentional omission to give information of offence by person bound to inform.—Whoever, knowing or having reason to believe that an offence has

---

237. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch.

been committed, intentionally omits to give any information respecting that offence which he is legally bound to give, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine, or with both.

203. Giving false information respecting an offence committed.—Whoever, knowing or having reason to believe that an offence has been committed, gives any information respecting that offence which he knows or believes to be false, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

[238][*Explanation.*—In Sections 201 and 202 and in this section the word "offence", includes any act committed at any place out of [239][India], which, if committed in [240][India], would be punishable under any of the following sections, namely, 302, 304, 382, 392, 393, 394, 395, 396, 397, 398, 399, 402, 435, 436, 449, 450, 457, 458, 459 and 460.]

204. Destruction of [241][document or electronic record] to prevent its production as evidence.—Whoever secrets or destroys any [242][document or electronic record] which he may be lawfully compelled to produce as evidence in a Court of Justice, or in any proceeding lawfully held before a public servant, as such, or obliterates or renders illegible the whole or any part of such [243][document or electronic record] with the intention of preventing the same from being produced or used as evidence before such Court or public servant as aforesaid, or after he shall have been lawfully summoned or required to produce the same for that purpose, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

205. False personation for purpose of act or proceeding in suit or prosecution.—Whoever falsely personates another, and in such assumed character makes any admission or statement, or confesses judgment, or causes any process to be issued or becomes bail or security, or does any other act in any suit or criminal prosecution, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

206. Fraudulent removal or concealment of property to prevent its seizure as forfeited or in execution.—Whoever fraudulently removes, conceals, transfers or delivers to any person any property or any interest therein, intending thereby to prevent that property or interest therein from being taken as a forfeiture or in satisfaction of a fine, under a sentence which has been pronounced, or which he knows to be likely to be pronounced, by a Court of Justice or other competent authority, or from being taken in execution of a decree or order which has been made, or which he knows to be likely to be made by a Court of Justice in a civil

---

238. *Ins.* by Act 3 of 1894, S. 6.
239. *Subs.* for "the States" by Act 3 of 1951.
240. *Subs.* for "the States" by Act 3 of 1951.
241. *Subs.* by Act 21 of 2000, S. 91 & Sch. I (w.e.f. 17-10-2000).
242. *Subs.* by Act 21 of 2000, S. 91 & Sch. I (w.e.f. 17-10-2000).
243. *Subs.* by Act 21 of 2000, S. 91 & Sch. I (w.e.f. 17-10-2000).

suit, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

207. Fraudulent claim to property to prevent its seizure as forfeited or in execution.—Whoever fraudulently accepts, receives or claims any property or any interest therein, knowing that he has no right or rightful claim to such property or interest, or practises any deception touching any right to any property or any interest therein, intending thereby to prevent that property or interest therein from being taken as a forfeiture or in satisfaction of a fine, under a sentence which has been pronounced, or which he knows to be likely to be pronounced by a Court of Justice or other competent authority, or from being taken in execution of a decree or order which has been made, or which he knows to be likely to be made by a Court of Justice in a civil suit, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

208. Fraudulently suffering decree for sum not due.—Whoever fraudulently causes or suffers a decree or order to be passed against him at the suit of any person for a sum not due or for a larger sum than is due to such person or for any property or interest in property to which such person is not entitled, or fraudulently causes or suffers a decree or order to be executed against him after it has been satisfied, or for anything in respect of which it has been satisfied, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

Illustration

A institutes a suit against *Z*. *Z*, knowing that *A* is likely to obtain a decree against him, fraudulently suffers a judgment to pass against him for a larger amount at the suit of *B*, who has no just claim against him, in order that *B*, either on his own account or for the benefit of *Z*, may share in the proceeds of any sale of *Z*'s property which may be made under *A*'s decree. *Z* has committed an offence under this section.

209. Dishonestly making false claim in Court.—Whoever fraudulently or dishonestly, or with intent to injure or annoy any person, makes in a Court of Justice any claim which he knows to be false, shall be punished with imprisonment of either description for a term which may extend to two years, and shall also be liable to fine.

210. Fraudulently obtaining decree for sum not due.—Whoever fraudulently obtains a decree or order against any person for a sum not due, or for a larger sum than is due, or for any property or interest in property to which he is not entitled, or fraudulently causes a decree or order to be executed against any person after it has been satisfied or for anything in respect of which it has been satisfied, or fraudulently suffers or permits any such act to be done in his name, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

211. False charge of offence made with intent to injure.—Whoever, with intent to cause injury to any person, institutes or causes to be instituted any criminal proceeding against that person, or falsely charges any person with having committed an offence, knowing that there is no just or lawful ground for such

proceeding or charge against that person, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both;

and if such criminal proceeding be instituted on a false charge of an offence punishable with death, [244][imprisonment for life], or imprisonment for seven years or upwards, shall be punishable with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

STATE AMENDMENTS

Chhattisgarh.—After Section 345-D, the following shall be *inserted*, namely—

"Provided that, if such criminal proceeding be instituted on a false charge, of an offence punishable under Section 354, Section 354-A, Section 354-B, Section 354-C, Section 354-D, Section 354-E, Section 376-B, Section 376-C, Section 376-F, Section 509, Section 509-A or Section 509-B shall be punishable with imprisonment of either description which shall not be less than three years but which may extend to five years and shall also be liable to fine.". [*Vide* Chhattisgarh Act 25 of 2015, S. 2, dt. 21-7-2015.]

212. Harbouring offender.—Whenever an offence has been committed, whoever harbours or conceals a person whom he knows or has reason to believe to be the offender, with the intention of screening him from legal punishment,

if a capital offence.—shall, if the offence is punishable with death, be punished with imprisonment of either description for a term which may extend to five years, and shall also be liable to fine;

if punishable with imprisonment for life, or with imprisonment.—and if the offence is punishable with [245][imprisonment for life], or with imprisonment which may extend to ten years, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine;

and if the offence is punishable with imprisonment which may extend to one year, and not to ten years, shall be punished with imprisonment of the description provided for the offence for a term which may extend to one-fourth part of the longest term of imprisonment provided for the offence, or with fine, or with both.

[246]["Offence" in this section includes any act committed at any place out of [247][India], which, if committed in [248][India], would be punishable under any of the following sections, namely, 302, 304, 382, 392, 393, 394, 395, 396, 397, 398, 399, 402, 435, 436, 449, 450, 457, 458, 459 and 460; and every such act shall, for the purposes of this section, be deemed to be punishable as if the accused person had been guilty of it in [249][India].]

Exception.—This provision shall not extend to any case in which the harbour or concealment is by the husband or wife of the offender.

---

244. *Subs*. for "transportation for life" by Act 26 of 1955, S. 117 and Sch.
245. *Subs*. for "transportation for life" by Act 26 of 1955, S. 117 and Sch.
246. *Ins*. by Act 3 of 1894, S. 7.
247. *Subs*. for "the States" by Act 3 of 1951, S. 3 & Sch. (w.e.f. 1-4-1951).
248. *Subs*. for "the States" by Act 3 of 1951, S. 3 & Sch. (w.e.f. 1-4-1951).
249. *Subs*. for "the States" by Act 3 of 1951, S. 3 & Sch. (w.e.f. 1-4-1951).

Illustration

A, knowing that *B* has committed dacoity, knowingly conceals *B* in order to screen him from legal punishment. Here, as *B* is liable to [250][imprisonment for life], *A* is liable to imprisonment of either description for a term not exceeding three years, and is also liable to fine.

213. Taking gift, etc., to screen an offender from punishment.—Whoever accepts or attempts to obtain, or agrees to accept, any gratification for himself or any other person, or any restitution of property to himself or any other person, in consideration of his concealing an offence or of his screening any person from legal punishment for any offence, or of his not proceeding against any person for the purpose of bringing him to legal punishment,

if a capital offence.—shall, if the offence is punishable with death, be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine;

if punishable with imprisonment for life, or with imprisonment.—and if the offence is punishable with [251][imprisonment for life], or with imprisonment which may extend to ten years, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine;

and if the offence is punishable with imprisonment not extending to ten years, shall be punished with imprisonment of the description provided for the offence for a term which may extend to one-fourth part of the longest term of imprisonment provided for the offence, or with fine, or with both.

214. Offering gift or restoration of property in consideration of screening offender.—Whoever gives or causes, or offers or agrees to give or cause, any gratification to any person, or [252][restores or causes the restoration of] any property to any person, in consideration of that person's concealing an offence, or of his screening any person from legal punishment for any offence, or of his not proceeding against any person for the purpose of bringing him to legal punishment,

if a capital offence.—shall, if the offence is punishable with death, be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine;

if punishable with imprisonment for life, or with imprisonment.—and if the offence is punishable with [253][imprisonment for life], or with imprisonment which may extend to ten years, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine;

and if the offence is punishable with imprisonment not extending to ten years, shall be punished with imprisonment of the description provided for the offence for

---

250. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch.
251. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch.
252. *Subs.* for "to restore or cause the restoration of" by Act 42 of 1953, S. 4 and Sch. III.
253. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch.

a term which may extend to one-fourth part of the longest term of imprisonment provided for the offence, or with fine, or with both.

[254][*Exception*.—The provisions of Sections 213 and 214 do not extend to any case in which the offence may lawfully be compounded.]

Illustrations

[255][* * *]

215. Taking gift to help to recover stolen property, etc.—Whoever takes or agrees or consents to take any gratification under pretence or on account of helping any person to recover any movable property of which he shall have been deprived by any offence punishable under this Code, shall, unless he uses all means in his power to cause the offender to be apprehended and convicted of the offence, be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

216. Harbouring offender who has escaped from custody or whose apprehension has been ordered.—Whenever any person convicted of or charged with an offence, being in lawful custody for that offence, escapes from such custody,

or whenever a public servant, in the exercise of the lawful powers of such public servant, orders a certain person to be apprehended for an offence, whoever, knowing of such escape or order for apprehension, harbours of conceals that person with the intention of preventing him from being apprehended, shall be punished in the manner following, that is to say,—

if a capital offence.—if the offence for which the person was in custody or is ordered to be apprehended is punishable with death, he shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine;

if punishable with imprisonment for life, or with imprisonment.—if the offence is punishable with [256][imprisonment for life] or imprisonment for ten years, he shall be punished with imprisonment of either description for a term which may extend to three years, with or without fine;

and if the offence is punishable with imprisonment which may extend to one year and not to ten years, he shall be punished with imprisonment of the description

---

254. *Subs.* by Act 8 of 1882, S. 6.

255. *Omitted* by Act 10 of 1882, S. 2 & Sch. I. Prior to omission it read as:

"*Illustrations*

(*a*) *A* assaults *B* with intent to commit murder. Here, as the offence does not consist of the assault only, irrespective of the intention to commit murder, it does not fall within the exception, and cannot therefore be compounded.

(*b*) *A* assaults *B*. Here, as the offence consists simply of the act, irrespective of the intention of the offender and as *B* may have a civil action for the assault, it is within the exception and may be compounded.

(*c*) *A* commits the offence of bigamy. Here as the offence is not the subject of a civil action, it cannot be compounded.

(*d*) *B* commits the offence of adultery with a married woman. The offence may be compounded."

256. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch.

provided for the offence for a term which may extend to one-fourth part of the longest term of the imprisonment provided for such offence, or with fine, or with both.

[257]["Offence" in this section includes also any act or omission of which a person is alleged to have been guilty out of [258][India], which, if he had been guilty of it in [259][India], would have been punishable as an offence, and for which he is, under any law relating to extradition, [260][* * *], or otherwise, liable to be apprehended or detained in custody in [261][India]; and every such act or omission shall, for the purposes of this section, be deemed to be punishable as if the accused person had been guilty of it in [262][India].]

Exception.—The provision does not extend to the case in which the harbour or concealment is by the husband or wife of the person to be apprehended.

[263][**216-A. Penalty for harbouring robbers or dacoits.**—Whoever, knowing or having reason to believe that any persons are about to commit or have recently committed robbery or dacoity, harbours them or any of them, with the intention of facilitating the commission of such robbery or dacoity or of screening them or any of them from punishment, shall be punished with rigorous imprisonment for a term which may extend to seven years, and shall also be liable to fine.

Explanation.—For the purposes of this section it is immaterial whether the robbery or dacoity is intended to be committed, or has been committed, within or without [264][India].

Exception.—This provision does not extend to the case in which the harbour is by the husband or wife of the offender.]

216-B. Definition of "harbour" in Sections 212, 216 and 216-A.—[265][* * *]

217. Public servant disobeying direction of law with intent to save person from punishment or property from forfeiture.—Whoever, being a public servant, knowingly disobeys any direction of the law as to the way in which he is to conduct himself as such public servant, intending thereby to save, or knowing it to be likely that he will thereby save, any person from legal punishment, or subject him to a less punishment than that to which he is liable, or with intent to save, or knowing that he is likely thereby to save, any property from forfeiture or any charge to which it is liable by law, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

---

257. *Ins.* by Act 10 of 1886, S. 23.
258. *Subs.* for "the States" by Act 3 of 1951 (w.e.f. 1-4-1951).
259. *Subs.* for "the States" by Act 3 of 1951 (w.e.f. 1-4-1951).
260. The words "or under the Fugitive Offenders Act, 1881" *omitted* by Act 3 of 1951.
261. *Subs.* for "the States" by Act 3 of 1951 (w.e.f. 1-4-1951).
262. *Subs.* for "the States" by Act 3 of 1951 (w.e.f. 1-4-1951).
263. *Ins.* by Act 3 of 1894, S. 8.
264. *Subs.* for "the States" by Act 3 of 1951 (w.e.f. 1-4-1951).
265. *Omitted* by the Act 8 of 1942, S. 3.

218. Public servant framing incorrect record or writing with intent to save person from punishment or property from forfeiture.—Whoever, being a public servant, and being as such public servant, charged with the preparation of any record or other writing, frames that record or writing in a manner which he knows to be incorrect, with intent to cause, or knowing it to be likely that he will thereby cause, loss or injury to the public or to any person, or with intent thereby to save, or knowing it to be likely that he will thereby save, any person from legal punishment, or with intent to save, or knowing that he is likely thereby to save, any property from forfeiture or other charge to which it is liable by law, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

219. Public servant in judicial proceeding corruptly making report, etc., contrary to law.—Whoever, being a public servant, corruptly or maliciously makes or pronounces in any stage of a judicial proceeding, any report, order, verdict, or decision which he knows to be contrary to law, shall be punished with imprisonment of either description for a term which may extend to seven years, or with fine, or with both.

220. Commitment for trial or confinement by person having authority who knows that he is acting contrary to law.—Whoever, being in any office which gives him legal authority to commit persons for trial or to confinement, or to keep persons in confinement, corruptly or maliciously commits any person for trial or confinement, or keeps any person in confinement, in the exercise of that authority knowing that in so doing he is acting contrary to law, shall be punished with imprisonment of either description for a term which may extend to seven years, or with fine, or with both.

221. Intentional omission to apprehend on the part of public servant bound to apprehend.—Whoever, being a public servant, legally bound as such public servant to apprehend or to keep in confinement any person charged with or liable to be apprehended for an offence, intentionally omits to apprehend such person, or intentionally suffers such person to escape, or intentionally aids such person in escaping or attempting to escape from such confinement, shall be punished as follows, that is to say:—

with imprisonment of either description for a term which may extend to seven years, with or without fine, if the person in confinement, or who ought to have been apprehended, was charged with, or liable to be apprehended for, an offence punishable with death; or

with imprisonment of either description for a term which may extend to three years, with or without fine, if the person in confinement, or who ought to have been apprehended, was charged with, or liable to be apprehended for, an offence punishable with [266][imprisonment for life] or imprisonment for a term which may extend to ten years; or

---

266. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch.

with imprisonment of either description for a term which may extend to two years, with or without fine, if the person in confinement, or who ought to have been apprehended, was charged with, or liable to be apprehended for, an offence punishable with imprisonment for a term less than ten years.

222. Intentional omission to apprehend on the part of public servant bound to apprehend person under sentence or lawfully committed.—Whoever, being a public servant, legally bound as such public servant to apprehend or to keep in confinement any person under sentence of a Court of Justice for any offence [267][or lawfully committed to custody], intentionally omits to apprehend such person, or intentionally suffers such person to escape or intentionally aids such person in escaping or attempting to escape from such confinement, shall be punished as follows, that is to say:—

with [268][imprisonment for life] or with imprisonment of either description for a term which may extend to fourteen years, with or without fine, if the person in confinement, or who ought to have been apprehended, is under sentence of death; or

with imprisonment of either description for a term which may extend to seven years, with or without fine, if the person in confinement or who ought to have been apprehended, is subject, by a sentence of a Court of Justice, or by virtue of a commutation of such sentence, to [269][imprisonment for life] [270][* * *] [271][* * *] [272][* * *] [273][* * *] or imprisonment for a term of ten years or upwards; or

with imprisonment of either description for a term which may extend to three years, or with fine, or with both, if the person in confinement, or who ought to have been apprehended is subject, by a sentence of a Court of Justice, to imprisonment for a term not extending to ten years [274][or if the person was lawfully committed to custody].

223. Escape from confinement or custody negligently suffered by public servant.—Whoever, being a public servant legally bound as such public servant to keep in confinement any person charged with or convicted of any offence [275][or lawfully committed to custody], negligently suffers such person to escape from confinement, shall be punished with simple imprisonment for a term which may extend to two years, or with fine, or with both.

224. Resistance or obstruction by a person to his lawful apprehension.—Whoever intentionally offers any resistance or illegal obstruction to the lawful apprehension of himself for any offence with which he is charged or of which he has been convicted, or escapes or attempts to escape from any

---

267. *Ins.* by Act 27 of 1870, S. 8.
268. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch.
269. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch.
270. The words "or penal servitude for life" *omitted* by Act 17 of 1949, S. 2.
271. The words "or to" *omitted* by Act 36 of 1957, S. 3 and Sch. II (w.e.f. 17-9-1957).
272. The words "transportation" *omitted* by Act 26 of 1955, S. 117 and Sch.
273. The words "or penal servitude" *omitted* by Act 17 of 1949, S. 2
274. *Ins.* by Act 27 of 1870, S. 8.
275. *Ins.* by Act 27 of 1870, S. 8.

custody in which he is lawfully detained for any such offence, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

Explanation.—The punishment in this section is in addition to the punishment for which the person to be apprehended or detained in custody was liable for the offence with which he was charged, or of which he was convicted.

225. Resistance or obstruction to lawful apprehension of another person.—Whoever intentionally offers any resistance or illegal obstruction to the lawful apprehension of any other person for an offence, or rescues or attempts to rescue any other person from any custody in which that person is lawfully detained for an offence, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both;

or, if the person to be apprehended, or the person rescued or attempted to be rescued, is charged with or liable to be apprehended for an offence punishable with [276][imprisonment for life] or imprisonment for a term which may extend to ten years, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine;

or, if the person to be apprehended or rescued, or attempted to be rescued, is charged with or liable to be apprehended for an offence punishable with death, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine;

or, if the person to be apprehended or rescued, or attempted to be rescued, is liable under the sentence of a Court of Justice, or by virtue of a commutation of such a sentence, to [277][imprisonment for life] [278][* * *] [279][* * *] [280][* * *] or imprisonment, for a term of ten years or upwards, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine;

or, if the person to be apprehended or rescued, or attempted to be rescued, is under sentence of death, shall be punished with [281][imprisonment for life] or imprisonment of either description for a term not exceeding ten years, and shall also be liable to fine.

[282][**225-A. Omission to apprehend, or sufferance of escape, on part of public servant, in cases not otherwise provided for.**—Whoever, being a public servant legally bound as such public servant to apprehend, or to keep in confinement, any person in any case not provided for in Section 221, Section 222 or Section 223, or in any other law for the time being in force, omits to apprehend that person or suffers him to escape from confinement, shall be punished—

---

276. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch.
277. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch.
278. The words "or to" *omitted* by Act 36 of 1957. S. 3 and Sch. II (w.e.f. 17-9-1957).
279. The word "transportation" *omitted* by Act 26 of 1955.
280. The words "penal servitude" *omitted*. by Act 17 of 1949, S. 2.
281. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch.
282. *Subs.* by Act 10 of 1886, S. 24(1). Earlier *inserted* by Act 27 of 1870, S. 9.

(*a*) if he does so intentionally, with imprisonment of either description for a term which may extend to three years, or with fine, or with both; and

(*b*) if he does so negligently, with simple imprisonment for a term which may extend to two years, or with fine, or with both.

[283]**225-B. Resistance or obstruction to lawful apprehension, or escape or rescue in cases not otherwise provided for.**—Whoever, in any case not provided for in Section 224 or Section 225 or in any other law for the time being in force, intentionally offers any resistance or illegal obstruction to the lawful apprehension of himself or of any other person, or escapes or attempts to escape from any custody in which he is lawfully detained, or rescues or attempts to rescue any other person from any custody in which that person is lawfully detained, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine, or with both.]

226. Unlawful return from transportation.—[284][* * *]

227. Violation of condition of remission of punishment.—Whoever, having accepted any conditional remission of punishment, knowingly violates any condition on which such remission was granted, shall be punished with the punishment to which he was originally sentenced, if he has already suffered no part of that punishment, and if he has suffered any part of that punishment, then with so much of that punishment as he has not already suffered.

228. Intentional insult or interruption to public servant sitting in judicial proceeding.—Whoever intentionally offers any insult, or causes any interruption to any public servant, while such public servant is sitting in any stage of a judicial proceeding, shall be punished with simple imprisonment for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

STATE AMENDMENTS

Andhra Pradesh.—Offence under Section 228 is cognizable. [*Vide* A.P.G.O. Ms. No. 732, dt. 5-12-1991].

CASE LAW ▸ Essential Ingredients.—The essential ingredients of the offence under Section 228, IPC are (*i*) intention, (*ii*) insult or interruption to a public servant, and (*iii*) the public servant insulted or interrupted must be sitting in any stage of a judicial proceeding. The question whether an insult offered to a public servant is intentional or not has to depend upon the facts of each particular case and it is neither necessary nor advisable to lay down any hard and fast rule, *State of Madhya Pradesh* v. *Revashankar*, AIR 1959 SC 102 : 1959 Cri LJ 251; *K.C. Nanda* v. *Certificate Officer*, 1971 Cri LJ 742.

---

283. *Subs.* by Act 10 of 1886, S. 24(1).

284. *Omitted* by the Act 26 of 1955, S. 117 and Sch. Prior to omission it read as:

"226. *Unlawful return from transportation.*—Whoever, having been lawfully transported, returns from such transportation, the term of such transportation not having expired, and his punishment not having been remitted, shall be punished with transportation for life, and shall also be liable to fine, and to be imprisoned with rigorous imprisonment for a term not exceeding three years before he is so transported.".

▸ **Judicial Proceedings.**—Proceedings under Section 37(*a*) of the Income Tax Act, 1922, before an Income Tax Officer are judicial proceedings within the meaning of Section 228, IPC, *Lalji Hari Das* v. *State of Maharashtra*, AIR 1964 SC 1154 : (1964) 2 Cri LJ 249.

Inquiry under Section 108, Customs Act, 1962 is deemed to be a judicial proceeding within the meaning of Sections 193 and 228, *Percy Rustomji Basta* v. *State of Maharashtra*, (1971) 1 SCC 847 : 1971 SCC (Cri) 345.

▸ **Intentional insult or interruption to public servant sitting in judicial proceeding.**—Adjudication proceedings under S. 7-A, Employees' Provident Funds and Miscellaneous Provisions Act, 1952 are deemed judicial proceeding, within meaning of Ss. 193 and 228 IPC, hence, complaint under S. 228 IPC, maintainable, on obstruction and interference with such proceeding by accused. S. 195(1)(b)(i) CrPC, invocable, *Amit Vashistha* v. *Suresh*, (2018) 15 SCC 240 : (2018) 2 SCC (L&S) 775.

[285][**228-A. Disclosure of identity of the victim of certain offences, etc.**—(1) Whoever prints or publishes the name or any matter which may make known the identity of any person against whom an [286][offence under Section 376, [287][Saction 376-A, Section 376-AB, Section 376-B, Section 376-C, Section 376-D, Section 376-DA, Section 376-DB] or Section 376-E] is alleged or found to have been committed (hereafter in this section referred to as the victim) shall be punished with imprisonment of either description for a term which may extend to two years and shall also be liable to fine.

(2) Nothing in sub-section (1) extends to any printing or publication of the name or any matter which may make known the identity of the victim if such printing or publication is—

(*a*) by or under the order in writing of the officer-in-charge of the police station or the police-officer making the investigation into such offence acting in good faith for the purposes of such investigation; or

(*b*) by, or with the authorisation in writing of, the victim; or

(*c*) where the victim is dead or minor or of unsound mind, by, or with the authorisation in writing of, the next of kin of the victim:

Provided that no such authorisation shall be given by the next of kin to anybody other than the chairman or the secretary, by whatever name called, of any recognised welfare institution or organisation.

Explanation.—For the purposes of this sub-section, "recognised welfare institution or organisation" means a social welfare institution or organisation recognised in this behalf by the Central or State Government.

(3) Whoever prints or publishes any matter in relation to any proceeding before a court with respect to an offence referred to in sub-section (1) without the previous permission of such court shall be punished with imprisonment of either description for a term which may extend to two years and shall also be liable to fine.

---

285. *Ins.* by Criminal Law Amendment Act, 1983, S. 2 (Act 43 of 1983).

286. *Subs.* by Act 13 of 2013, S. 4 (w.r.e.f. 3-2-2013). Prior to substitution it read as:
"offence under Section 376, Section 376-A, Section 376-B, Section 376-C or Section 376-D"

287. *Subs.* by Act 22 of 2018, S. 3 (w.r.e.f. 21-4-2018). Prior to substitution it read as:
"offence under Section 376, Section 376-A, Section 376-B, Section 376-C or Section 376-D"

Explanation.—The printing or publication of the judgment of any High Court or the Supreme Court does not amount to an offence within the meaning of this section.]

STATE AMENDMENTS

Arunachal Pradesh.—In its application to the State of Arunanchal Pradesh, in Section 228-A, in sub-section (1), for the words, figures and letters "offence under Section 376, Section 376-A, Section 376-B, Section 376-C or Section 376-D or Section 376-E", the words, figures and letters "offence under Section 376, Section 376-A, Section 376-AA, Section 376-B, Section 376-C, Section 376-D, Section 376-DA or Section 376-E" shall be *substituted*. [*Vide* Arunachal Pradesh Act 3 of 2019, S. 4, dt. 2-4-2019].

CASE LAW ▸ Use of name of victim in rape case.—Use of name of victim all through in judgments of both trial court and High Court is not consistent with Section 228-A, though Explanation makes exception in favour of superior court judgments. Nonetheless, every attempt should be made by all courts not to disclose identity of victim in terms of Section 228-A, *Lalit Yadav* v. *State of Chhattisgarh*, (2018) 7 SCC 499.

▸ **Prohibition on disclosure of name and identity of victims of sexual offences.**—Considering the exceptions to the said prohibition, held, S. 228-A prohibits not only the publication of the name of the victim but also the disclosure of any other matter which may make known the identity of the victim. No person can print or publish in print, electronic, social media, etc. the name of the victim or even in a remote manner disclose any fact which can lead to the victim being identified and which should make her identity known to the public at large. Object behind such legislation is to protect the aforesaid victims from any hostile discrimination or harassment in future, *Nipun Saxena* v. *Union of India*, (2019) 2 SCC 703.

▸ **Disclosure of identities.**—The mandate of not disclosing identities of the victims of sexual offences, held, should be followed by all courts including Supreme Court, *Ravishankar* v. *State of M.P.*, (2019) 9 SCC 689.

229. Personation of a juror or assessor.—Whoever, by personation or otherwise, shall intentionally cause, or knowingly suffer himself to be returned, empanelled or sworn as a juryman or assessor in any case in which he knows that he is not entitled by law to be so returned, empanelled or sworn, or knowing himself to have been so returned, empanelled or sworn contrary to law, shall voluntarily serve on such jury or as such assessor, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

[288][**229-A. Failure by person released on bail or bond to appear in Court.**—Whoever, having been charged with an offence and released on bail or on bond without sureties, fails without sufficient cause (the burden of proving which shall lie upon him), to appear in Court in accordance with the terms of the bail or bond, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.

Explanation.—The punishment under this section is—

(*a*) in addition to the punishment to which the offender would be liable on a conviction for the offence with which he has been charged; and

288. *Ins.* by Act 25 of 2005, S. 44(*c*) (w.e.f. 23-6-2006).

(*b*) without prejudice to the power of the Court to order forfeiture of the bond.]

CHAPTER XII

OF OFFENCES RELATING TO COIN AND GOVERNMENT STAMPS

230. "Coin" defined.—[289][Coin is metal used for the time being as money, and stamped and issued by the authority of some State or Sovereign Power in order to be so used.]

[290][**Indian coin.**—Indian coin is metal stamped and issued by the authority of the Government of India in order to be used as money; and metal which has been so stamped and issued shall continue to be Indian coin for the purposes of this Chapter, notwithstanding that it may have ceased to be used as money.]

Illustrations

(*a*) Cowries are not coin.

(*b*) Lumps of unstamped copper, though used as money, are not coin.

(*c*) Medals are not coin, inasmuch as they are not intended to be used as money.

(*d*) The coin denominated as the Company's rupee is [291][Indian coin].

[292][(*e*) The "Farukhabad" rupee, which was formerly used as money under the authority of the Government of India, is [293][Indian coin] although it is no longer so used.]

231. Counterfeiting coin.—Whoever counterfeits or knowingly performs any part of the process of counterfeiting coin, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

Explanation.—A person commits this offence who intending to practise deception, or knowing it to be likely that deception will thereby be practised, causes a genuine coin to appear like a different coin.

232. Counterfeiting Indian coin.—Whoever counterfeits, or knowingly performs any part of the process of counterfeiting [294][Indian coin], shall be punished with [295][imprisonment for life], or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

233. Making or selling instrument for counterfeiting coin.—Whoever makes or mends, or performs any part of the process of making or mending, or buys, sells or disposes of, any die or instrument, for the purpose of being used, or

---

289. *Subs.* by Act 19 of 1872, S. 1. Prior to substitution it read as:
"Coin is metal used as money stamped and issued by the authority of some Government in order to be so used."

290. *Subs.* by the A.O. 1950. Prior to substitution it read as:
"*Queen's Coin.*—Coin stamped and issued by the authority of the Queen, or by the authority of the Government of India, or of the Government of any Presidency, or of any Government in the Queen's dominions is designated as the Queen's coin.

291. *Subs.* for "the Queen's coin" by the A.O. 1950.

292. *Ins.* by Act 6 of 1896, S. 1.

293. *Subs.* for "the Queen's coin" by the A.O. 1950.

294. *Subs.* for "the Queen's coin" by the A.O. 1950.

295. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch.

knowing or having reason to believe that it is intended to be used, for the purpose of counterfeiting coin, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.

234. Making or selling instrument for counterfeiting Indian coin.—Whoever makes or mends, or performs any part of the process of making or mending, or buys, sells or disposes of, any die or instrument, for the purpose of being used, or knowing or having reason to believe that it is intended to be used, for the purpose of counterfeiting [296][Indian coin], shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

235. Possession of instrument, or material for the purpose of using the same for counterfeiting coin.—Whoever is in possession of any instrument or material, for the purpose of using the same for counterfeiting coin, or knowing or having reason to believe that the same is intended to be used for that purpose, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine;

if Indian coin.—and if the coin to be counterfeited is [297][Indian coin], shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

236. Abetting in India the counterfeiting out of India of coin.—Whoever, being within [298][India], abets the counterfeiting of coin out of [299][India], shall be punished in the same manner as if he abetted the counterfeiting of such coin within [300][India].

237. Import or export of counterfeit coin.—Whoever imports into [301][India], or exports therefrom, any counterfeit coin, knowingly or having reason to believe that the same is counterfeit, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.

238. Import or export of counterfeits of the Indian coin.—Whoever imports into [302][India], or exports therefrom, any counterfeit coin which he knows or has reason to believe to be a counterfeit of [303][Indian coin], shall be punished with [304][imprisonment for life], or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

239. Delivery of coin, possessed with knowledge that it is counterfeit.—Whoever, having any counterfeit coin, which at the time when he

---

296. *Subs.* for "the Queen's coin" by the A.O. 1950.
297. *Subs.* for "the Queen's coin" by the A.O. 1950.
298. *Subs.* for "the States" by Act 3 of 1951 (w.e.f. 1-4-1951).
299. *Subs.* for "the States" by Act 3 of 1951 (w.e.f. 1-4-1951).
300. *Subs.* for "the States" by Act 3 of 1951 (w.e.f. 1-4-1951).
301. *Subs.* for "the States" by Act 3 of 1951 (w.e.f. 1-4-1951).
302. *Subs.* for "the States" by Act 3 of 1951 (w.e.f. 1-4-1951).
303. *Subs.* for "the Queen's coin" by the A.O. 1950.
304. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch.

became possessed of it he knew to be counterfeit, fraudulently or with intent that fraud may be committed, delivers the same to any person, or attempts to induce any person to receive it shall be punished with imprisonment of either description for a term which may extend to five years, and shall also be liable to fine.

240. Delivery of Indian coin, possessed with knowledge that it is counterfeit.—Whoever, having any counterfeit coin, which is a counterfeit of [305][Indian coin], and which, at the time when he became possessed of it, he knew to be a counterfeit of [306][Indian coin], fraudulently or with intent that fraud may be committed, delivers the same to any person, or attempts to induce any person to receive it shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

241. Delivery of coin as genuine, which, when first possessed, the deliverer did not know to be counterfeit.—Whoever delivers to any other person as genuine, or attempts to induce any other person to receive as genuine, any counterfeit coin which he knows to be counterfeit, but which he did not know to be counterfeit at the time when he took it into his possession, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine to an amount which may extend to ten times the value of the coin counterfeited, or with both.

Illustration

A, a coiner, delivers counterfeit Company's rupees to his accomplice *B*, for the purpose of uttering them. *B* sells the rupees to *C*, another utterer, who buys them knowing them to be counterfeit. *C* pays away the rupees for goods to *D*, who receives them, not knowing them to be counterfeit. *D*, after receiving the rupees, discovers that they are counterfeit and pays them away as if they were good. Here *D* is punishable only under this section, but *B* and *C* are punishable under Section 239 or 240, as the case may be.

242. Possession of counterfeit coin by person who knew it to be counterfeit when he became possessed thereof.—Whoever, fraudulently or with intent that fraud may be committed, is in possession of counterfeit coin, having known at the time when he became possessed thereof that such coin was counterfeit, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.

243. Possession of Indian coin by person who knew it to be counterfeit when he became possessed thereof.—Whoever, fraudulently or with intent that fraud may be committed, is in possession of counterfeit coin, which is a counterfeit of [307][Indian coin], having known at the time when he became possessed of it that it was counterfeit, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

244. Person employed in mint causing coin to be of different weight or composition from that fixed by law.—Whoever, being employed in any mint

---

305. *Subs.* for "the Queen's coin" by the A.O. 1950.
306. *Subs.* for "the Queen's coin" by the A.O. 1950.
307. *Subs.* for "the Queen's coin" by the A.O. 1950.

lawfully established in [308][India], does any act, or omits what he is legally bound to do, with the intention of causing any coin issued from that mint to be of a different weight or composition from the weight or composition fixed by law, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

245. Unlawfully taking coining instrument from mint.—Whoever, without lawful authority, takes out of any mint, lawfully established in [309][India], any coining tool or instrument, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

246. Fraudulently or dishonestly diminishing weight or altering composition of coin.—Whoever fraudulently or dishonestly performs on any coin any operation which diminishes the weight or alters the composition of that coin, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.

Explanation.—A person who scoops out part of the coin and puts anything else into the cavity alters the composition of the coin.

247. Fraudulently or dishonestly diminishing weight or altering composition of Indian coin.—Whoever fraudulently or dishonestly performs on [310][any Indian coin] any operation which diminishes the weight or alters the composition of that coin, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

248. Altering appearance of coin with intent that it shall pass as coin of different description.—Whoever performs on any coin any operation which alters the appearance of that coin, with the intention that the said coin shall pass as a coin of a different description, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.

249. Altering appearance of Indian coin with intent that it shall pass as coin of different description.—Whoever performs on [311][any Indian coin] any operation which alters the appearance of that coin, with the intention that the said coin shall pass as a coin of a different description, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

250. Delivery of coin possessed with knowledge that it is altered.—Whoever, having coin in his possession with respect to which the offence defined in Section 246 or 248 has been committed, and having known at the time when he became possessed of such coin that such offence had been committed with respect to it, fraudulently or with intent that fraud may be committed, delivers such coin to any other person, or attempts to induce any other person to receive the

---

308. *Subs.* for "the States" by Act 3 of 1951 (w.e.f. 1-4-1951).
309. *Subs.* for "the States" by Act 3 of 1951 (w.e.f. 1-4-1951).
310. *Subs.* for "any of the Queen's coin" by the A.O. 1950.
311. *Subs.* for "any of the Queen's coin" by the A.O. 1950.

same, shall be punished with imprisonment of either description for a term which may extend to five years, and shall also be liable to fine.

251. Delivery of Indian coin, possessed with knowledge that it is altered.—Whoever, having coin in his possession with respect to which the offence defined in Section 247 or 249 has been committed, and having known at the time when he became possessed of such coin that such offence had been committed with respect to it, fraudulently or with intent that fraud may be committed, delivers such coin to any other person, or attempts to induce any other person to receive the same, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

252. Possession of coin by person who knew it to be altered when he became possessed thereof.—Whoever fraudulently or with intent that fraud may be committed, is in possession of coin with respect to which the offence defined in either of the Sections 246 or 248 has been committed, having known at the time of becoming possessed thereof that such offence had been committed with respect to such coin, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.

253. Possession of Indian coin by person who knew it to be altered when he became possessed thereof.—Whoever, fraudulently or with intent that fraud may be committed, is in possession of coin with respect to which the offence defined in either of the Sections 247 or 249 has been committed, having known at the time of becoming possessed thereof, that such offence had been committed with respect to such coin, shall be punished with imprisonment of either description for a term which may extend to five years, and shall also be liable to fine.

254. Delivery of coin as genuine which, when first possessed, the deliverer did not know to be altered.—Whoever delivers to any other person as genuine or as a coin of a different description from what it is, or attempts to induce any person to receive as genuine, or as a different coin from what it is, any coin in respect of which he knows that any such operation as that mentioned in Sections 246, 247, 248 or 249 has been performed, but in respect of which he did not, at the time when he took it into his possession, know that such operation had been performed, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine to an amount which may extend to ten times the value of the coin for which the altered coin is passed, or attempted to be passed.

255. Counterfeiting Government stamp.—Whoever counterfeits, or knowingly performs any part of the process of counterfeiting, any stamp issued by Government for the purpose of revenue, shall be punished with [312][imprisonment for life], or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

---

312. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch.

Explanation.—A person commits this offence who counterfeits by causing a genuine stamp of one denomination to appear like a genuine stamp of a different denomination.

256. Having possession of instrument or material for counterfeiting Government stamp.—Whoever has in his possession any instrument or material for the purpose of being used, or knowing or having reason to believe that it is intended to be used, for the purpose of counterfeiting any stamp issued by Government for the purpose of revenue, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

257. Making or selling instrument for counterfeiting Government stamp.—Whoever makes or performs any part of the process of making, or buys, or sells, or disposes of, any instrument for the purpose of being used, or knowing or having reason to believe that it is intended to be used, for the purpose of counterfeiting any stamp issued by Government for the purpose of revenue, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

258. Sale of counterfeit Government stamp.—Whoever, sells, or offers for sale, any stamp which he knows or has reason to believe to be a counterfeit of any stamp issued by Government for the purpose of revenue, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

259. Having possession of counterfeit Government stamp.—Whoever has in his possession any stamp which he knows to be a counterfeit of any stamp issued by Government for the purpose of revenue, intending to use, or dispose of the same as a genuine stamp, or in order that it may be used as a genuine stamp, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

260. Using as genuine a Government stamp known to be counterfeit.—Whoever uses as genuine any stamp, knowing it to be a counterfeit of any stamp issued by Government for the purpose of revenue, shall be punished with imprisonment of either description for a term which may extend to seven years, or with fine, or with both.

261. Effacing, writing from substance bearing Government stamp, or removing from document a stamp used for it, with intent to cause loss to Government.—Whoever, fraudulently or with intent to cause loss to the Government, removes or effaces from any substance, bearing any stamp issued by Government for the purpose of revenue, any writing or document for which such stamp has been used, or removes from any writing or document a stamp which has been used for such writing or document, in order that such stamp may be used for a different writing or document, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

262. Using Government stamp known to have been before used.—Whoever fraudulently or with intent to cause loss to the Government, uses for any purpose a stamp issued by Government for the purpose of revenue, which he knows to have been before used, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

263. Erasure of mark denoting that stamp has been used.—Whoever, fraudulently or with intent to cause loss to Government, erases or removes from a stamp issued by Government for the purpose of revenue, any mark, put or impressed upon such stamp for the purpose of denoting that the same has been used, or knowingly has in his possession or sells or disposes of any such stamp from which such mark has been erased or removed, or sells or disposes of any such stamp which he knows to have been used, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

[313][**263-A. Prohibition of fictitious stamps.**—(1) Whoever—

(*a*) makes, knowingly utters, deals in or sells any fictitious stamps, or knowingly uses for any postal purpose any fictitious stamp, or

(*b*) has in his possession, without lawful excuse, any fictitious stamp, or

(*c*) makes or, without lawful excuse, has in his possession any die, plate, instrument or materials for making any fictitious stamp,

shall be punished with fine which may extend to two hundred rupees.

(2) Any such stamp, die, plate, instrument or material in the possession of any person for making any fictitious stamp [314][may be seized and, if seized], shall be forfeited.

(3) In this section "fictitious stamp" means any stamp falsely purporting to be issued by Government for the purpose of denoting a rate of postage or any facsimile or imitation or representation, whether on paper or otherwise, of any stamp issued by Government for that purpose.

(4) In this section and also in Sections 255 to 263, both inclusive, the word "Government", when used in connection with, or in reference to, any stamp issued for the purpose of denoting a rate of postage, shall, notwithstanding anything in Section 17, be deemed to include the person or persons authorised by law to administer executive government in any part of India, and also in any part of Her Majesty's dominions or in any foreign country.]

CHAPTER XIII

OF OFFENCES RELATING TO WEIGHTS AND MEASURES

264. Fraudulent use of false instrument for weighing.—Whoever fraudulently uses any instrument for weighing which he knows to be false, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.

---

313. *Ins.* by Act 3 of 1895, S. 2.

314. *Subs.* for "may be seized and" by Act 42 of 1953, S. 4 and Sch. III.

265. Fraudulent use of false weight or measure.—Whoever fraudulently uses any false weight or false measure of length or capacity, or fraudulently uses any weight or any measure of length or capacity as a different weight or measure from what it is, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.

266. Being in possession of false weight or measure.—Whoever is in possession of any instrument for weighing, or of any weight, or of any measure of length or capacity, which he knows to be false [315][* * *], intending that the same may be fraudulently used, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.

267. Making or selling false weight or measure.—Whoever makes, sells or disposes of any instrument for weighing, or any weight, or any measure of length or capacity which he knows to be false, in order that the same may be used as true, or knowing that the same is likely to be used as true, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.

CHAPTER XIV

OF OFFENCES AFFECTING THE PUBLIC HEALTH, SAFETY, CONVENIENCE, DECENCY AND MORALS

268. Public nuisance.—A person is guilty of a public nuisance who does any act or is guilty of an illegal omission, which causes any common injury, danger or annoyance to the public or to the people in general who dwell or occupy property in the vicinity, or which must necessarily cause injury, obstruction, danger or annoyance to persons who may have occasion to use any public right.

A common nuisance is not excused on the ground that it causes some convenience or advantage.

269. Negligent act likely to spread infection of disease dangerous to life.—Whoever unlawfully or negligently does any act which is, and which he knows or has reason to believe to be, likely to spread the infection of any disease dangerous to life, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine, or with both.

270. Malignant act likely to spread infection of disease dangerous to life.—Whoever malignantly does any act which is, and which he knows or has reason to believe to be, likely to spread the infection of any disease dangerous to life, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

271. Disobedience to quarantine rule.—Whoever knowingly disobeys any rule made and promulgated [316][by the [317][* * *] Government [318][* * *]] for putting

---

315. The word "and" *omitted* by Act 42 of 1953, S. 4 and Sch. III.
316. *Subs.* for "by the G. of I., or by any Govt." by the A.O. 1937.
317. The words "Central or any Provincial" *omitted* by the A.O. 1950.
318. The words "or the Crown Representative" *omitted* by the A.O. 1948.

any vessel into a state of quarantine, or for regulating the intercourse of vessels in a state of quarantine with the shore or with other vessels, or for regulating the intercourse between places where an infectious disease prevails and other places, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine, or with both.

272. Adulteration of food or drink intended for sale.—Whoever adulterates any article of food or drink, so as to make such article noxious as food or drink, intending to sell such article as food or drink, or knowing it to be likely that the same will be sold as food or drink, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

STATE AMENDMENTS

Orissa.—In its application to the State of Orissa, in Sections 272, 273, 274, 275 and 276, for the words "shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both", the following shall be *substituted*, namely:—

"shall be punished with imprisonment for life and shall also be liable to fine:

Provided that the Court may, for adequate and special reasons to be mentioned in the judgment, impose a sentence of imprisonment which is less than imprisonment for life." [*Vide* Orissa Act 3 of 1999, S. 2.]

Uttar Pradesh.—In its application to the State of Uttar Pradesh, in Sections 272, 273, 274, 275 and 276 for the words "shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both", the following shall be *substituted*, namely—

"shall be punished with imprisonment for life and shall also be liable to fine:

Provided that the court may, for adequate and special reasons to be mentioned in the judgment, impose a sentence of imprisonment which is less than imprisonment for life." [*Vide* U.P. Act 47 of 1975.]

West Bengal.—In its application to the State of West Bengal, in Sections 272, 273, 274, 275 and 276, for the words "of either description for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both", the words "for life with or without fine:

Provided that the Court may, for adequate and special reasons to be mentioned in the judgment, impose a sentence of imprisonment which is less than imprisonment for life", shall be *substituted*. [*Vide* West Bengal Act 42 of 1973.]

273. Sale of noxious food or drink.—Whoever sells, or offers or exposes for sale, as food or drink, any article which has been rendered or has become noxious, or is in a state unfit for food or drink, knowing or having reason to believe that the same is noxious as food or drink, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

See State Amendments under Section 272.

274. Adulteration of drugs.—Whoever adulterates any drug or medical preparation in such a manner as to lessen the efficacy or change the operation of such drug or medical preparation, or to make it noxious, intending that it shall be sold or used for, or knowing it to be likely that it will be sold or used for, any

medicinal purpose, as if it had not undergone such adulteration, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

See State Amendments under Section 272.

275. Sale of adulterated drugs.—Whoever, knowing any drug or medical preparation to have been adulterated in such a manner as to lessen its efficacy, to change its operation, or to render it noxious, sells the same, or offers or exposes it for sale, or issues it from any dispensary for medicinal purposes as unadulterated, or causes it to be used for medicinal purposes by any person not knowing of the adulteration, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

See State Amendments under Section 272.

276. Sale of drug as a different drug or preparation.—Whoever knowingly sells, or offers or exposes for sale, or issues from a dispensary for medicinal purposes, any drug or medical preparation, as a different drug or medical preparation, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

See State Amendments under Section 272.

277. Fouling water of public spring or reservoir.—Whoever voluntarily corrupts or fouls the water of any public spring or reservoir, so as to render it less fit for the purpose for which it is ordinarily used, shall be punished with imprisonment of either description for a term which may extend to three months, or with fine which may extend to five hundred rupees, or with both.

278. Making atmosphere noxious to health.—Whoever voluntarily vitiates the atmosphere in any place so as to make it noxious to the health of persons in general dwelling or carrying on business in the neighbourhood or passing along a public way, shall be punished with fine which may extend to five hundred rupees.

279. Rash driving or riding on a public way.—Whoever drives any vehicle, or rides, on any public way in a manner so rash or negligent as to endanger human life, or to be likely to cause hurt or injury to any other person, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

280. Rash navigation of vessel.—Whoever navigates any vessel in a manner so rash or negligent as to endanger human life, or to be likely to cause hurt or injury to any other person, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

281. Exhibition of false light, mark or buoy.—Whoever exhibits any false light, mark or buoy, intending or knowing it to be likely that such exhibition will mislead any navigator, shall be punished with imprisonment of either description for a term which may extend to seven years, or with fine, or with both.

282. Conveying person by water for hire in unsafe or overloaded vessel.—Whoever knowingly or negligently conveys, or causes to be conveyed for hire, any person by water in any vessel, when that vessel is in such a state or so loaded as to endanger the life of that person, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

CASE LAW ▸ Liability of owners/partners/master.—When the launch was capsized by reason of the stampede that followed the sudden rush of persons waiting at the jetty on to the launch which resulted in displacement of the balance of the launch and breaking away of the ropes, it cannot be said that the capsizing of the launch was because of any negligence of the owners or the master. Therefore, the conviction under Section 282 of the Penal Code, 1860 cannot be sustained in such case. *V.R. Bhate* v. *State of Maharashtra*, (1970) 3 SCC 13 : 1970 SCC (Cri) 363.

283. Danger or obstruction in public way or line of navigation.—Whoever, by doing any act, or by omitting to take order with any property in his possession or under his charge, causes danger, obstruction or injury to any person in any public way or public line of navigation, shall be punished with fine which may extend to two hundred rupees.

284. Negligent conduct with respect to poisonous substance.—Whoever does, with any poisonous substance, any act in a manner so rash or negligent as to endanger human life, or to be likely to cause hurt or injury to any person,

or knowingly or negligently omits to take such order with any poisonous substance in his possession as is sufficient to guard against any probable danger to human life from such poisonous substance,

shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

285. Negligent conduct with respect to fire or combustible matter.—Whoever does, with fire or any combustible matter, any act so rashly or negligently as to endanger human life, or to be likely to cause hurt or injury to any other person,

or knowingly or negligently omits to take such order with any fire or any combustible matter in his possession as is sufficient to guard against any probable danger to human life from such fire or combustible matter,

shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

286. Negligent conduct with respect to explosive substance.—Whoever does, with any explosive substance, any act so rashly or negligently as to endanger human life, or to be likely to cause hurt or injury to any other person,

or knowingly or negligently omits to take such order with any explosive substance in his possession as is sufficient to guard against any probable danger to human life from that substance,

shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

287. Negligent conduct with respect to machinery.—Whoever does, with any machinery, any act so rashly or negligently as to endanger human life or to be likely to cause hurt or injury to any other person,

or knowingly or negligently omits to take such order with any machinery in his possession or under his care as is sufficient to guard against any probable danger to human life from such machinery,

shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

288. Negligent conduct with respect to pulling down or repairing buildings.—Whoever, in pulling down or repairing any building, knowingly or negligently omits to take such order with that building as is sufficient to guard against any probable danger to human life from the fall of that building, or of any part thereof, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

289. Negligent conduct with respect to animal.—Whoever knowingly or negligently omits to take such order with any animal in his possession as is sufficient to guard against any probable danger to human life, or any probable danger of grievous hurt from such animal, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

STATE AMENDMENTS

Himachal Pradesh.—In its application to the State of Himachal Pradesh, the following section shall be *added*, namely:—

"289-A. *Feeding of Monkeys in public place.*—Whoever throws eatables in public place, other than those notified by the State Government in the Official Gazette, and thereby entice monkeys to assemble at such place for taking eatables which result in causing danger to human life or to be likely to cause injury or annoyance to the public or to the people in general or to cause hindrance in smooth running of vehicular traffic, shall be punished with imprisonment of either description for a term which may extend to one month or with fine which may extend to one thousand rupees or with both.". [*Vide* H.P. Act 15 of 2006, S. 2, w.e.f. 29-6-2006]

290. Punishment for public nuisance in cases not otherwise provided for.—Whoever commits a public nuisance in any case not otherwise punishable by this Code, shall be punished with fine which may extend to two hundred rupees.

291. Continuance of nuisance after injunction to discontinue.—Whoever repeats or continues a public nuisance, having been enjoined by any public servant who has lawful authority to issue such injunction not to repeat or continue such nuisance, shall be punished with simple imprisonment for a term which may extend to six months, or with fine, or with both.

[319][**292. Sale, etc., of obscene books, etc.**—[320][(1) For the purposes of sub-section (2), book, pamphlet, paper, writing, drawing, painting, representation, figure or any other object, shall be deemed to be obscene if it is lascivious or appeals to the prurient interest or if its effect, or (where it comprises two or more distinct items) the effect of any one of its items, is, if taken as a whole, such as to tend to deprave and corrupt person who are likely, having regard to all relevant circumstances, to read, see or hear the matter contained or embodied in it.]

[321][(2)] Whoever—

(*a*) sells, lets to hire, distributes, publicly exhibits or in any manner puts into circulation, or for purposes of sale, hire, distribution, public exhibition or circulation, makes, produces or has in his possession any obscene book, pamphlet, paper, drawing, painting, representation or figure or any other obscene object whatsoever, or

(*b*) imports, exports or conveys any obscene object for any of the purposes aforesaid, or knowing or having reason to believe that such object will be sold, let to hire, distributed or publicly exhibited or in any manner put into circulation, or

(*c*) takes part in or receives profits from any business in the course of which he knows or has reason to believe that any such obscene objects are for any of the purposes aforesaid, made, produced, purchased, kept, imported, exported, conveyed, publicly exhibited or in any manner put into circulation, or

(*d*) advertises or makes known by any means whatsoever that any person is engaged or is ready to engage in any act which is an offence under this section, or that any such obscene object can be procured from or through any person, or

(*e*) offers or attempts to do any act which is an offence under this section,

shall be punished [322][on first conviction with imprisonment of either description for a term which may extend to two years, and with fine which may extend to two thousand rupees, and, in the event of a second or subsequent conviction, with imprisonment of either description for a term which may extend to five years, and also with fine which may extend to five thousand rupees].

---

319. *Subs.* by Act 8 of 1925, S. 2. Prior to substitution it read as:
"292. *Sale etc. of obscene books.*—Whoever sells or distributes, or imports or prints for sale or hire, or willfully exhibits to public view, any obscene book, pamphlet, paper, drawing, painting, representation, or figure, or attempts or offers so to do, shall be punished with imprisonment of either description, for a term which may extend to three months, or with fine, or with both.
Exception.—This Section does not extend to any representation sculptured, engraved, painted, or otherwise represented, on or in any Temple, or on any car used for the conveyance of idols, or kept or used for any religious purpose."

320. *Ins.* by Act 36 of 1969, S. 2 (w.e.f. 7-9-1969).

321. S. 292 was *renumbered* as sub-section (2) of that section by Act 36 of 1969, S. 2 (w.e.f. 7-9-1969).

322. *Subs.* by Act 36 of 1969, S. 2.

[323][*Exception.*—This section does not extend to—

(*a*) any book, pamphlet, paper, writing, drawing, painting, representation or figure—

(*i*) the publication of which is proved to be justified as being for the public good on the ground that such book, pamphlet, paper, writing, drawing, painting, representation or figure is in the interest of science, literature, art or learning or other objects of general concern, or

(*ii*) which is kept or used bona fide for religious purposes;

(*b*) any representation sculptured, engraved, painted or otherwise represented on or in—

(*i*) any ancient monument within the meaning of the Ancient Monuments and Archaeological Sites and Remains Act, 1958 (24 of 1958), or

(*ii*) any temple, or on any car used for the conveyance of idols, or kept or used for any religious purpose.]]

STATE AMENDMENTS

Orissa.—*Amended by Orissa Act 13 of 1962* [same as that of Tamil Nadu].

Tamil Nadu.—In its application to the whole of the State of Tamil Nadu, in Section 292 the words "shall be punished with imprisonment of either description for a term which may extend to three months or with fine or with both" *substitute* the following, namely,—

"shall be punished with imprisonment of either description for a term which may extend to two years or with fine or with both:

Provided that for a second or any subsequent offence under this section, he shall be punished with imprisonment of either description for a term which shall not be less than six months and not more than two years and with fine." [*Vide* Tamil Nadu Act 25 of 1960.]

SECTION 292-A

Orissa.—Amended by Orissa Act 13 of 1962 [same as that of Tamil Nadu as originally inserted before amendment by Tamil Nadu Act 13 of 1982].

Tamil Nadu.—In its application to the whole of the State of Tamil Nadu, after Section 292 insert the following new section, namely,—

"292-A.—*Printing, etc. of grossly indecent or scurrilous matter or matter intended for blackmail.*—Whoever,—

(*a*) prints or causes to be printed in any newspaper, periodical or circular, or exhibits or causes to be exhibited, to public view or distributes or causes to be distributed or in any manner puts into circulation any picture or any printed or written document which is grossly indecent, or is scurrilous or intended for blackmail, or

(*b*) sells or lets for hire, or for purposes of sale or hire makes, produces or has in his possession, any picture or any printed or written document which is grossly indecent or is scurrilous or intended for blackmail, or

(*c*) conveys any picture or any printed or written document which is grossly indecent or is scurrilous or intended for blackmail knowing or having reason to believe that

---

323. *Subs.* by Act 36 of 1969, S. 2.

such picture or document will be printed, sold, let for hire, distributed or publicly exhibited or in manner put into circulation, or

(*d*) takes part in, or receives profits from, any business in the course of which he knows or has reason to believe that any such newspaper, periodical, circular, picture or other printed or written document is printed, exhibited, distributed, circulated, sold, let for hire, made, produced, kept, conveyed or purchased, or

(*e*) advertises or makes known by any means whatsoever that any person is engaged or is ready to engage in any act which is an offence under this section, or that any such newspaper, periodical, circular, picture or other printed or written document which is grossly indecent or is scurrilous or intended for blackmail can be procured from or through any person, or

(*f*) offers or attempts to do any act which is an offence under this section,

[324][shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both:]

Provided that for a second or any subsequent offence under this section, he shall be punished with imprisonment of either description for a term which shall not be less than six months [325][and not more than two years].

Explanation I.—For the purposes of this section, the word 'scurrilous' shall be deemed to include any matter which is likely to be injurious to morality or is calculated to injure any person:

Provided that it is not scurrilous to express in good faith anything whatever respecting the conduct of—

(*i*) a public servant in the discharge of his public functions or respecting his character so far as his character appears in that conduct and no further; or

(*ii*) any person touching any public question, and respecting his character, so far as his character appears in that conduct and no further.

Explanation II.—In deciding whether any person has committed an offence under this section, the court shall have regard, inter alia, to the following considerations—

(*a*) the general character of the person charged, and where relevant, the nature of his business;

(*b*) the general character and dominant effect of the matter alleged to be grossly indecent or scurrilous or intended for blackmail;

(*c*) any evidence offered or called by or on behalf of the accused person as to his intention in committing any of the acts specified in this section." [*Vide* Tamil Nadu Act 25 of 1960, S. 3, dt. 9-11-1960.]

CASE LAW ► Test of obscenity.—When historically respected person is employed as a medium of expression, in such a case, contemporary community standards test of obscenity becomes applicable with more vigour. What can otherwise pass the contemporary community standards test as not being obscene, can be considered obscene if a historically respected person is used as a medium of expression, as a symbol or allusion or surrealistic voice, etc. to express obscene words or to show him doing such acts, etc. which are obscene, *Devidas Ramachandra Tuljapurkar* v. *State of Maharashtra*, (2015) 6 SCC 1.

[326][**293. Sale, etc., of obscene objects to young person.**—Whoever sells, lets to hire, distributes, exhibits or circulates to any person under the age of twenty years any such obscene object as is referred to in the last preceding section, or offers or

---

324. *Subs.* by T.N. Act 30 of 1984, S. 2 (w.e.f. 28-6-1984).
325. *Ins.* by T.N. Act 30 of 1984, S. 2 (w.e.f. 28-6-1984).
326. *Subs.* by Act 8 of 1925, S. 293.

attempts so to do, shall be punished [327][on first conviction with imprisonment of either description for a term which may extend to three years, and with fine which may extend to two thousand rupees, and, in the event of a second or subsequent conviction, with imprisonment of either description for a term which may extend to seven years, and also with fine which may extend to five thousand rupees].]

STATE AMENDMENTS

Orissa.—*Amended by Orissa Act 13 of 1962* [same as that of Tamil Nadu].

Tamil Nadu.—In its application to the whole of the State of Tamil Nadu, in Section 293—

(*a*) for the words "any such obscene object as is referred to in the last preceding section" substitute the words, figures and letter, "any such obscene object as is referred to in Section 292 or any such newspaper, periodical, circular, picture or other printed or written document as is referred to in Section 292-A";

(*b*) for the words "which may extend to six months" *substitute* the words "which may extend to three years";

(*c*) in the marginal note, after the words "obscene objects" *insert* the words "and grossly indecent or scurrilous matter intended for blackmail". [*Vide* by Tamil Nadu Act 25 of 1960.]

[328][**294. Obscene acts and songs.**—Whoever, to the annoyance of others,—

(*a*) does any obscene act in any public place, or

(*b*) sings, recites or utters any obscene songs, ballad or words, in or near any public place,

shall be punished with imprisonment of either description for a term which may extend to three months, or with fine, or with both.]

[329][**294-A. Keeping lottery office.**—Whoever keeps any office or place for the purpose of drawing any lottery [330][not being [331][a State lottery] or a lottery authorised by the State Government], shall be punished with imprisonment of either description for a term which may extend to six months, or with fine, or with both.

And whoever publishes any proposal to pay any sum, or to deliver any goods, or to do or forbear from doing anything for the benefit of any person, on any event or contingency relative or applicable to the drawing of any ticket, lot, number or figure in any such lottery shall be punished with fine which may extend to one thousand rupees.]

STATE AMENDMENTS

Andhra Pradesh.—In its application to the State of Andhra Pradesh, the provisions of Section 294-A are *repealed*. [*Vide* A.P. Act 16 of 1968, S. 27]

---

327. *Subs.* by IPC (Amendment) Act, 1969 (36 of 1969), S. 2.

328. *Subs.* by Act 3 of 1895, S. 3. Prior to substitution it read as:
"294. *Obscene songs.*—Whoever sings, recites, or utters in or near any public place any obscene songs, balled, or words, to the annoyance of others, shall be punished with imprisonment of either description, for a term which may extend to three months, or with fine, or with both."

329. *Ins.* by Act 27 of 1870, S. 10.

330. *Subs.* for "not authorised by Government" by the A.O. 1937.

331. *Subs.* by Act 3 of 1951, S. 3 and Sch. Prior to substitution it read as:
"a lottery organised by the Central Government or the Government of a Part A State or a Part B State". Earlier, *substituted* for "a State lottery" by the A.O. 1950.

Gujarat.—*Amended by Bombay Act 82 of 1958* (same as that of Maharashtra).

Karnataka.—In its application to the whole of the Mysore area except Bellary district, the provisions of Section 294-A are *repealed*. [*Vide* Mysore Act 27 of 1951.]

Maharashtra.—In its application to the State of Maharashtra the provisions of Section 294-A are *repealed*. [*Vide* Bombay Act 82 of 1958.]

Manipur.—In its application to the State of Manipur the provisions of Section 294-A are *repealed*. [*Vide* Manipur Act 2 of 1992, S. 30.]

Uttar Pradesh.—In its application to the State of Uttar Pradesh, Section 294-A shall be *omitted*. [*Vide* U.P. Act 24 of 1995, S. 11].

CHAPTER XV

OF OFFENCES RELATING TO RELIGION

295. Injuring or defiling place of worship with intent to insult the religion of any class.—Whoever destroys, damages or defiles any place of worship, or any object held sacred by any class of persons with the intention of thereby insulting the religion of any class of persons or with the knowledge that any class of persons is likely to consider such destruction, damage or defilement as an insult to their religion, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

[332][**295-A. Deliberate and malicious acts intended to outrage religious feelings of any class by insulting its religion or religious beliefs.**—Whoever, with deliberate and malicious intention of outraging the religious feelings of any class of [333][citizens of India], [334][by words, either spoken or written, or by signs or by visible representations or otherwise], insults or attempts to insult the religion or the religious beliefs of that class, shall be punished with imprisonment of either description for a term which may extend to [335][three years], or with fine, or with both.]

CASE LAW ▸ Essentials.—Aggravated form of insult to religion perpetrated with deliberate and malicious intention of outraging religious feelings/beliefs of a class of citizens and disrupting public order, is necessary. Insults to religion offered unwittingly or carelessly or without any malicious or deliberate intention to outrage feelings of that class, is not culpable, *Mahendra Singh Dhoni* v. *Yerraguntla Shyamsundar*, (2017) 7 SCC 760.

296. Disturbing religious assembly.—Whoever voluntarily causes disturbance to any assembly lawfully engaged in the performance of religious worship, or religious ceremonies, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.

297. Trespassing on burial places, etc.—Whoever, with the intention of wounding the feelings of any person, or of insulting the religion of any person, or with the knowledge that the feelings of any person are likely to be wounded, or that the religion of any person is likely to be insulted thereby,

---

332. *Ins.* by Act 25 of 1927, S. 2.
333. *Subs.* for "His Majesty's subjects" by the A.O. 1950.
334. *Subs.* by Act 41 of 1961, S. 3 (w.e.f. 12-9-1961).
335. *Subs.* for "two years" by Act 41 of 1961, S. 3 (w.e.f. 12-9-1961).

commits any trespass in any place of worship or on any place of sepulture, or any place set apart for the performance of funeral rites or as a depository for the remains of the dead, or offers any indignity to any human corpse, or causes disturbance to any persons assembled for the performance of funeral ceremonies,

shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.

298. Uttering words, etc., with deliberate intent to wound religious feelings.—Whoever, with the deliberate intention of wounding the religious feelings of any person, utters any word or makes any sound in the hearing of that person or makes any gesture in the sight of that person or places any object in the sight of that person, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.

STATE AMENDMENTS

Andhra Pradesh.—In its application to the State of Andhra Pradesh, offence under Section 298 is cognizable. [*Vide* A.P. G.O. Ms. No. 732, dt. 5-12-1991]

CHAPTER XVI
OF OFFENCES AFFECTING THE HUMAN BODY
Of offences affecting life

299. Culpable homicide.—Whoever causes death by doing an act with the intention of causing death, or with the intention of causing such bodily injury as is likely to cause death, or with the knowledge that he is likely by such act to cause death, commits the offence of culpable homicide.

Illustrations

(*a*) *A* lays sticks and turf over a pit, with the intention of thereby causing death, or with the knowledge that death is likely to be thereby caused. *Z* believing the ground to be firm, treads on it, falls in and is killed. *A* has committed the offence of culpable homicide.

(*b*) *A* knows *Z* to be behind a bush. *B* does not know it. *A*, intending to cause, or knowing it to be likely to cause *Z*'s death induces *B* to fire at the bush. *B* fires and kills *Z*. Here *B* may be guilty of no offence; but *A* has committed the offence of culpable homicide.

(*c*) *A*, by shooting at a fowl with intent to kill and steal it, kills *B*, who is behind a bush; *A* not knowing that he was there. Here, although *A* was doing an unlawful act, he was not guilty of culpable homicide, as he did not intend to kill *B*, or to cause death by doing an act that he knew was likely to cause death.

Explanation 1.—A person who causes bodily injury, to another who is labouring under a disorder, disease or bodily infirmity, and thereby accelerates the death of that other, shall be deemed to have caused his death.

Explanation 2.—Where death is caused by bodily injury, the person who causes such bodily injury shall be deemed to have caused the death, although by resorting to proper remedies and skilful treatment the death might have been prevented.

Explanation 3.—The causing of the death of a child in the mother's womb is not homicide. But it may amount to culpable homicide to cause the death of a

living child, if any part of that child has been brought forth, though the child may not have breathed or been completely born.

CASE LAW ▸ Intention and Knowledge.—An offence under Section 302 presupposes an offence under Section 299. But an offence under Section 299 becomes an offence under Section 302 if it is committed with the intention or knowledge described in the four clauses of Section 300. If the requisite intention or knowledge is not proved then the offence is one under Section 299 provided the intention or the knowledge mentioned in the clauses (*a*) to (*c*) of that section are proved, *Suresh Chand* v. *State*, 1972 Cri LJ 1416.

▸ **Duty of Court.**—Whenever a court is confronted with the question whether the offence is 'murder' or 'culpable homicide not amounting to murder', on the facts of a case, it will be convenient for it to approach the problem in three stages. The question to be considered at the first stage would be, whether the accused has done an act by doing which he has caused the death of another. Proof of such causal connection between the act of the accused and the death leads to the second stage for considering whether that act of the accused amounts to "culpable homicide" as defined in Section 299. If the answer to this question is prima facie found in the affirmative, the stage for considering the operation of Section 300, Penal Code, is reached. This is the stage at which the court should determine whether the facts proved by the prosecution bring the case within the ambit of any of the four clauses of the definition of 'murder' contained in Section 300. If the answer to this question is in the negative the offence would be 'culpable homicide not amounting to murder', punishable under the first or the second part of Section 304, depending, respectively, on whether the second or the third clause of Section 299 is applicable. If this question is found in the positive, but the case comes within any of the exceptions enumerated in Section 300, the offence would still be 'culpable homicide not amounting to murder', punishable under the first part of Section 304, Penal Code. Ingredients of Sections 299 and 300 compared clause by clause, *State of A.P.* v. *Rayavarapu Punnayya*, (1976) 4 SCC 382 : 1976 SCC (Cri) 659; *Jaswant Singh* v. *State of Kerala*, AIR 1966 SC 1874 and *Veera Singh* v. *State of Punjab*, AIR 1958 SC 465, *followed*.

▸ **Euthanasia.**—Decision not to prolong life of a terminally ill/permanent vegetative state patient by medical treatment does not involve intention to cause death. *Common Cause* v. *Union of India*, (2018) 5 SCC 1.

300. Murder.—Except in the cases hereinafter excepted, culpable homicide is murder, if the act by which the death is caused is done with the intention of causing death, or—

2ndly.—If it is done with the intention of causing such bodily injury as the offender knows to be likely to cause the death of the person to whom the harm is caused, or—

3rdly.—If it is done with the intention of causing bodily injury to any person and the bodily injury intended to be inflicted is sufficient in the ordinary course of nature to cause death, or—

4thly.—If the person committing the act knows that it is so imminently dangerous that it must, in all probability, cause death or such bodily injury as is likely to cause death, and commits such act without any excuse for incurring the risk of causing death or such injury as aforesaid.

Illustrations

(*a*) *A* shoots *Z* with the intention of killing him. *Z* dies in consequence. *A* commits murder.

(*b*) *A*, knowing that *Z* is labouring under such a disease that a blow is likely to cause his death, strikes him with the intention of causing bodily injury. *Z* dies in consequence of the blow. *A* is guilty of murder, although the blow might not have been sufficient in the ordinary course of nature to cause the death of a person in a sound state of health. But if *A*, not knowing that *Z* is labouring under any disease, gives him such a blow as would not in the ordinary course of nature kill a person in a sound state of health, here *A*, although he may intend to cause bodily injury, is not guilty of murder, if he did not intend to cause death or such bodily injury as in the ordinary course of nature would cause death.

(*c*) *A* intentionally gives *Z* a sword-cut or club-wound sufficient to cause the death of a man in the ordinary course of nature. *Z* dies in consequence. Here *A*, is guilty of murder, although he may not have intended to cause *Z*'s death.

(*d*) *A* without any excuse fires a loaded cannon into a crowd of persons and kills one of them. *A* is guilty of murder, although he may not have had a premeditated design to kill any particular individual.

***Exception 1.*—When culpable homicide is not murder.**—Culpable homicide is not murder if the offender, whilst deprived of the power of self-control by grave and sudden provocation, causes the death of the person who gave the provocation or causes the death of any other person by mistake or accident.

The above exception is subject to the following provisos:—

First.—That the provocation is not sought or voluntarily provoked by the offender as an excuse for killing or doing harm to any person.

Secondly.—That the provocation is not given by anything done in obedience to the law, or by a public servant in the lawful exercise of the powers of such public servant.

Thirdly.—That the provocation is not given by anything done in the lawful exercise of the right of private defence.

Explanation.—Whether the provocation was grave and sudden enough to prevent the offence from amounting to murder is a question of fact.

Illustrations

(*a*) *A*, under the influence of passion excited by a provocation given by *Z*, intentionally kills *Y*, *Z*'s child. This is murder, inasmuch as the provocation was not given by the child, and the death of the child was not caused by accident or misfortune in doing an act caused by the provocation.

(*b*) *Y* gives grave and sudden provocation to *A*. *A*, on this provocation, fires a pistol at *Y*, neither intending nor knowing himself to be likely to kill *Z*, who is near him, but out of sight. *A* kills *Z*. Here *A* has not committed murder, but merely culpable homicide.

(*c*) *A* is lawfully arrested by *Z*, a bailiff. *A* is excited to sudden and violent passion by the arrest, and kills *Z*. This is murder, inasmuch as the provocation was given by a thing done by a public servant in the exercise of his powers.

(*d*) *A* appears as a witness before *Z*, a Magistrate. *Z* says that he does not believe a word of *A*'s deposition, and that *A* has perjured himself. *A* is moved to sudden passion by these words, and kills *Z*. This is murder.

(*e*) *A* attempts to pull *Z*'s nose, *Z*, in the exercise of the right of private defence, lays hold of *A* to prevent him from doing so. *A* is moved to sudden and violent passion in consequence, and kills *Z*. This is murder, inasmuch as the provocation was given by a thing done in the exercise of the right of private defence.

(*f*) *Z* strikes *B*. *B* is by this provocation excited to violent rage. *A*, a bystander, intending to take advantage of *B*'s rage, and to cause him to kill *Z*, puts a knife into *B*'s hand for that purpose. *B* kills *Z* with the knife. Here *B* may have committed only culpable homicide, but *A* is guilty of murder.

Exception 2.—Culpable homicide is not murder if the offender, in the exercise in good faith of the right of private defence of person or property, exceeds the power given to him by law and causes the death of the person against whom he is exercising such right of defence without premeditation, and without any intention of doing more harm than is necessary for the purpose of such defence.

Illustration

Z attempts to horsewhip *A*, not in such a manner as to cause grievous hurt to *A*. *A* draws out a pistol. *Z* persists in the assault. *A* believing in good faith that he can by no other means prevent himself from being horsewhipped, shoots *Z* dead. *A* has not committed murder, but only culpable homicide.

Exception 3.—Culpable homicide is not murder if the offender, being a public servant or aiding a public servant acting for the advancement of public justice, exceeds the powers given to him by law, and causes death by doing an act which he, in good faith, believes to be lawful and necessary for the due discharge of his duty as such public servant and without ill-will towards the person whose death is caused.

Exception 4.—Culpable homicide is not murder if it is committed without premeditation in a sudden fight in the heat of passion upon a sudden quarrel and without the offender having taken undue advantage or acted in a cruel or unusual manner.

Explanation.—It is immaterial in such cases which party offers the provocation or commits the first assault.

CASE LAW ▸ Conditions for applicability of.—The requirements of Exception 4 of Section 300 IPC are:

(*a*) without premeditation in a sudden fight;
(*b*) in the heat of passion upon a sudden quarrel;
(*c*) the offender has not taken undue advantage; and
(*d*) the offender has not acted in a cruel or unusual manner.

Where these requirements are satisfied, culpable homicide would not be murder, *Mahesh Balmiki* v. *State of M.P.*, (2000) 1 SCC 319 : 2000 SCC (Cri) 178, *distinguishing*; *Tholan* v. *State of T.N.*, (1984) 2 SCC 133 : 1984 SCC (Cri) 164; *Balbir Singh* v. *State of Punjab*, 1995 Supp (3) SCC 472 : 1995 SCC (Cri) 951. *See* also *Jai Prakash* v. *State (Delhi Administration)*, (1991) 2 SCC 32.

Exception 5.—Culpable homicide is not murder when the person whose death is caused, being above the age of eighteen years, suffers death or takes the risk of death with his own consent.

Illustration

A, by instigation, voluntarily causes *Z*, a person under eighteen years of age to commit suicide. Here, on account of *Z*'s youth, he was incapable of giving consent to his own death; *A* has therefore abetted murder.

CASE LAW ▸ Scope and Applicability.—Intention to cause death, held, not necessary to attract Section 300 Fourthly. Rather, the applicability of Section 300 Fourthly depends on the knowledge that can be attributed to the accused. Thus, for determining the applicability of Section 300 Fourthly, the guiding principle is that even if there be no intention to cause death, if there is such callousness towards the result and the risk taken is such that it may be stated that the person knows that the act is likely to cause death or such bodily injury as is likely to cause death, Section 300 Fourthly will get attracted and that the offender must be taken to have known that he was running the risk of causing the death or such bodily injury as was likely to cause the death of the victim, *Shatrughna Baban Meshram* v. *State of Maharashtra*, (2021) 1 SCC 596.

▸ **Euthanasia.**—Active euthanasia constitutes offence of murder under Section 300 firstly but passive euthanasia falls under Exception 5 to Section 300, *Common Cause* v. *Union of India*, (2018) 5 SCC 1.

▸ **Conditions to be satisfied, in order to bring case within.**—Following conditions must be satisfied in order to bring case within the exception: (i) act must be committed without premeditation in a sudden fight in the heat of passion; (ii) upon a sudden quarrel; (iii) without offenders having taken undue advantage; and (iv) accused had not acted in a cruel or unusual manner. However, even if fight is unpremeditated and sudden, if weapon or manner of retaliation is disproportionate to the offence and if accused had taken undue advantage of deceased, accused cannot be protected under Exception 4 to Section 300, *Nandlal* v. *State of Maharashtra*, (2019) 5 SCC 224.

▸ **Burden of proof.**—There can be no doubt that the burden of proving that the case falls within the four corners of any of the Exceptions under Section 300 IPC is on the accused. It is equally true that even without adducing any defence evidence it may be possible for the accused to discharge the said burden with reference to material appearing by virtue of the prosecution evidence which includes cross-examination of prosecution witnesses. The test is one of preponderance of probability, *Paul* v. *State of Kerala*, (2020) 3 SCC 115.

301. Culpable homicide by causing death of person other than person whose death was intended.—If a person, by doing anything which he intends or knows to be likely to cause death, commits culpable homicide by causing the death of any person, whose death he neither intends nor knows himself to be likely to cause, the culpable homicide committed by the offender is of the description of which it would have been if he had caused the death of the person whose death he intended or knew himself to be likely to cause.

302. Punishment for murder.—Whoever commits murder shall be punished with death, or [336][imprisonment for life], and shall also be liable to fine.

CASE LAW ▸ Constitutional validity.—Constitutionality of death sentence, upheld, *Bachan Singh* v. *State of Punjab*, (1982) 3 SCC 24 : 1982 SCC (Cri) 535.

"Rarest of rare" case.—Guidelines which are to be kept in view when considering the question whether the case belongs to the rarest of the rare category, indicated, *Machhi Singh* v. *State of Punjab*, (1983) 3 SCC 470.

336. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch.

Non-remittable special category sentence.—Warrantedness of non-remittable special category sentence in substitution of death sentence, laid down, *Swamy Shraddananda (2)* v. *State of Karnataka*, (2008) 13 SCC 767 : (2009) 3 SCC (Cri) 113.

Review of death sentence cases in open court.—The fundamental right to life under Article 21 of the Constitution viewed in the light of irreversibility of death sentence mandates that review of death sentence should be in open court and not by circulation. Further, the number of death review cases before Supreme Court are roughly 60 per annum and therefore, the Supreme Court should be able to manage the same by limited oral hearing of 30 minutes. Such a procedure for review of death sentence cases is in compliance with the principle of "due process of law": is just, fair and reasonable, which would not be so if review by circulation is adopted instead of such oral hearing. Furthermore, considering procedure laid down under Order 6 Rule 3 of the Supreme Court Rules, 2013, pending and future review petitions against death sentence confirmed by Supreme Court, shall be heard by Benches of three Judges after giving the counsel a maximum of 30 minutes to make oral submissions. This special procedure shall also apply where a review petition has been already dismissed but death sentence has not yet been executed. It would also apply to TADA cases. Where review petition has been dismissed, but death sentence not executed, petitioners can apply for reopening of review petition within one month from the date of this judgment. However, in those matters where a curative petition has been dismissed, it would not be proper to reopen such matters, *Mohd. Arif* v. *Supreme Court of India*, (2014) 9 SCC 737 : (2014) 5 SCC (Cri) 408.

▸ **Mitigating circumstances.**—When offence is gruesome and has been committed in a calculated, cold-blooded and diabolical manner, age of accused may not be a relevant factor for ....., *Shabnam* v. *State of U.P.*, (2015) 6 SCC 632.

Compassionate grounds are not available in cases of calculated cold-blooded murders, *Shabnam* v. *State of U.P.*, (2015) 6 SCC 632.

▸ **Aggravating circumstance.**—Gang rape and murder by persons in trust, is an additional aggravating circumstance for award of death sentence, *Purushottam Dashrath Borate* v. *State of Maharashtra*, (2015) 6 SCC 652.

Conviction for previous similar offence can be considered as an aggravating circumstance, *Ishwari Lal Yadav* v. *State of Chhattisgarh*, (2019) 10 SCC 423.

▸ **Honour Killing.**—Honour killings, for whatever reason, come within the category of the rarest of rare cases deserving death punishment. As circumstantial evidence clearly established singular conclusion that anger of brother on involvement of sister with deceased (a person of lower caste) was the only motive behind murder and the crime was committed in a planned and cold-blooded manner because of this unwarranted superiority feeling based on caste, life imprisonment by trial court converted to minimum non-remittable fixed term of 25 years by High Court, held, appropriate, *Vikas Yadav* v. *State of U.P.*, (2016) 9 SCC 541 : (2016) 3 SCC (Cri) 621.

▸ **Death Sentence for Rape.**—In this case of brutal, barbaric gang rape, unnatural sex and assault leading to death of victim, principles of balancing of aggravating and mitigating circumstances, applied and death sentence confirmed even though there were many mitigating factors, *Mukesh* v. *State (NCT of Delhi)*, (2017) 6 SCC 1.

▸ **Imposition of Death sentence, based on circumstantial evidence — Law summarized.**—In cases based on circumstantial evidence, though concept of residual doubt is not given much importance in

Indian capital sentencing, Court has stressed on higher quality of evidence for imposition of death sentence in a number of cases, and has applied doctrine of prudence for this, which only reflects the principle laid down in *Bachan Singh*, (1980) 2 SCC 684, that is, while awarding death sentence, alternative option i.e. imposition of life imprisonment must be unquestionably foreclosed. Irrevocable punishment of death must only be imposed when there is no other alternative, and in cases resting on circumstantial evidence, the doctrine of prudence should be invoked, *Sudam* v. *State of Maharashtra*, (2019) 9 SCC 388.

Same firstly, is not impermissible. However, secondly held, for imposition of death sentence in a case based on circumstantial evidence, circumstances relied upon by the prosecution not only must be of an unimpeachable character in establishing the guilt of the accused, but it must lead to an exceptional case and convince the judicial mind that the option of a sentence lesser than death penalty is foreclosed. Thirdly, held, though mitigating circumstances and the aggravating circumstances have to be balanced, but in the balance sheet of such circumstances, the fact that the case rests on circumstantial evidence has no role to play. In fact in most of the cases where death sentences are awarded for rape and murder and the like, there is practically no scope for having an eyewitness. They are not committed in the public view. By the very nature of things in such cases, the available evidence is circumstantial evidence. If the circumstantial evidence has been found to be credible, cogent and trustworthy for the purpose of recording conviction, to treat that evidence as a mitigating circumstance, would amount to consideration of an irrelevant aspect. For the same reason, held, the theory of "residual doubt" cannot apply at the sentencing stage as a mitigating factor. In any case the theory of "residual doubt" is theoretically unsound, *Shatrughna Baban Meshram* v. *State of Maharashtra*, (2021) 1 SCC 596.

▸ **Death sentence.**—Legislature has distanced itself from propounders of "No-Death Sentence" in "No Circumstances" theory as recently in 2019. Significantly, by 2019 Amendment of Section 6, POCSO Act, 2012, death sentence has been introduced as a penalty for offence of aggravated penetrative sexual assault on a child below 12 yrs. If Parliament, armed with adequate facts and figures, has decided to introduce capital punishment for the offence of sexual abuse of a child, in 2019, the court hitherto will bear in mind the latest Legislative Policy even though it has no applicability in a case where the offence was committed prior thereto. Judicial precedents rendered before this recent amendment of 2019 came into force, therefore, ought to be viewed with a purposive approach so that the legislative and judicial approaches are well harmonized, *Ravi* v. *State of Maharashtra*, (2019) 9 SCC 622.

Death sentence, held, can be awarded in appropriate cases. The act that case is based on circumstantial evidence cannot by itself be a ground for not awarding death sentence. Victims owing to their tender age can put up no resistance. Thus, it is likely that there would be no ocular evidence. Not awarding death sentence for lack of ocular evidence even if case proved beyond reasonable doubt, and if case satisfies all requirements for award of death sentence, is not a correct approach. Such reasoning, if applied uniformly and mechanically will have devastating effects on society which is dominant stakeholder in the administration of our criminal justice system, *Ravishankar* v. *State of M.P.*, (2019) 9 SCC 689.

▸ **Execution of death warrants.**—Issuance of death warrants without allowing condemned convicts to exhaust all legal remedies, violative of Article 21, *Shabnam* v. *Union of India*, (2015) 6 SCC 702.

▸ **Sentence.**—Once accused is convicted with aid of Section 34 IPC, there is no justification to single out accused for differential treatment for sentencing, *Shamim* v. *State (Government of NCT of Delhi)*, (2018) 10 SCC 509.

▸ **Duty of court before awarding conviction.**—Before awarding conviction against accused for offence under Section 302 IPC, courts should be mindful of fact that there should be no room to suspect evidence of key prosecution witnesses based on whose evidence conviction is being awarded. As a general rule, while appreciating evidence in a criminal case, court should bear in mind, that it is not quantity, but quality of evidence that is material. It is the duty of court to consider the trustworthiness of witness and evidence adduced on record and to assess the same in a prudent manner, whether the same inspires confidence, so as to accept and act upon, before convicting accused, *Shanker* v. *State of M.P.*, (2018) 15 SCC 725.

▸ **Circumstantial evidence of last seen together.**—Time-lag between occurrence of death and when accused was last seen in company of deceased has to be reasonably close, to permit inference of guilt to be drawn. When time-lag is considerably large, it would be safer for court to look for corroboration, *Ravi* v. *State of Karnataka*, (2018) 16 SCC 102.

▸ **Murder or culpable homicide not amounting to murder.**—Culpable homicide is not murder if offender causes death of person who gave provocation, whilst deprived of power of self-control by grave and sudden provocation and provocation should be one which is not sought or voluntarily provoked by offender as an excuse for killing or doing harm to any person, *State of U.P.* v. *Faquirey*, (2019) 5 SCC 605.

▸ **Murder or culpable homicide.**—There is no absolute proposition of law that in all cases where deceased died due to septicaemia, case would fall under Section 304. The same has to be determined in the facts and circumstances of each case, *Khokan* v. *State of Chhattisgarh*, (2021) 3 SCC 365.

▸ **Murder — Unlawful.**— It is the quality of evidence that matters and not the quantity. Even the testimony of a single witness may be sufficient to establish the identity of an accused as member of an unlawful assembly but, when the size of assembly is quite large and many persons have witnessed the incident; and when a witness deposes in general terms, it would be useful to adopt the test of consistency of more than one witness i.e. the two-witness theory, so as to remove any doubt about identity of an accused as a member of assembly in question, *Duleshwar* v. *State of M.P.*, (2020) 11 SCC 440.

▸ **Murder, rape and robbery.**—In *Ankush Maruti Shinde* v. *State of Maharashtra*, (2019) 15 SCC 470, there was false implication of poor, innocent labourers from nomadic tribes while real culprits identified from album of notorious criminals by allegedly raped but surviving eyewitness soon after the incident, not proceeded against at all. As prosecution failed to prove case against accused persons beyond reasonable doubt, hence, all accused stand acquitted and death and life sentences imposed upon them, set aside. The prosecution directed to conduct further investigation under Section 173(8) CrPC against the notorious criminals identified by eyewitness and compensation of Rs 5 lakhs each directed to be paid to falsely implicated accused who had served 16 years of imprisonment as death convicts.

▸ **Single blow/injury.**—There is no fixed rule that whenever a single blow is inflicted, Section 302 would not be attracted. Nature of weapon used and vital part of body, where blow is struck, would prove intention of accused to cause death of deceased. Once such ingredients are proved, it is irrelevant whether there was a single blow struck or multiple blows, *State of Rajasthan* v. *Kanhaiya Lal*, (2019) 5 SCC 639.

▸ **Post-conviction mental illness of accused/death row convict.**—Mental illness should be of such serious kind that accused rendered unable to understand nature and purpose of sentence. Assessment of mental disability must be conducted by a multi-disciplinary team of qualified professionals. If death sentence is reduced to life imprisonment or imprisonment for remainder of life of accused without remission, court

may direct State to consider case of accused under appropriate provisions of Mental Healthcare Act, 2017, *'X'* v. *State of Maharashtra*, (2019) 7 SCC 1.

▸ **Minimum sentence.**— Minimum sentence under Section 302 is life imprisonment. Any punishment less than life imprisonment, as prescribed under Section 302 IPC, if awarded by any court, is per se illegal and without authority of law, *Bharatkumar Rameshchandra Barot* v. *State of Gujarat*, (2018) 18 SCC 388.

▸ **Standard of proof required for conviction in murder case.**—Chain of evidence must be so far complete as not to leave any reasonable ground for a conclusion consistent with the innocence of the accused person. Factual circumstances and inferences must be compatible with singular hypothesis wherein all the intermediate facts and the case itself are proved beyond reasonable doubt, *Suresh* v. *State of Haryana*, (2018) 18 SCC 654.

▸ **Extra-judicial confession.**—Extra-judicial confession cannot be sole basis of conviction and cannot be relied on when surrounding circumstances are improbable and create suspicion. It is a weak piece of evidence and court needs to consider whether other circumstances prove the prosecution case, *Suresh* v. *State of Haryana*, (2018) 18 SCC 654.

▸ **Minor discrepancies.**—Undue importance should not be attached to omissions, contradictions and discrepancies which do not go to the heart of the matter and do not shake the basic version of prosecution witness — This is particularly true when prosecution case is corroborated by medical and forensic evidence, *Rohtas* v. *State of Haryana*, (2019) 10 SCC 554.

▸ **Medical evidence of throttling, strangulation and hanging.**—Medical jurisprudence and case-law extensively surveyed and medical evidence of throttling, strangulation and hanging, meticulously distinguished, *Javed Abdul Rajjaq Shaikh* v. *State of Maharashtra*, (2019) 10 SCC 778.

▸ **Rape/Sodomy and murder of minor.**—Ordinarily it is not advisable to impose death sentence in a case based on circumstantial evidence but there is no hard-and-fast rule in this regard. However, court must take certain precautions. If the court has no doubt, on the circumstantial evidence, accused can be convicted. For imposition of death penalty, there must be some exceptional circumstances. It is not only the crime, but also the criminal that must be kept in mind. The reason for the second precaution is that the death sentence, upon execution, is irrevocable and irretrievable, *Rajendra Pralhadrao Wasnik* v. *State of Maharashtra*, (2019) 12 SCC 460.

▸ **Rape and murder of 5yr old girl by strangulation.**—Low age of victim cannot be considered as only or sufficient factor by Supreme Court for imposing death sentence. Sentences awarded to appellant under Sections 376, 364, 366-A and 201 IPC, upheld. However, considering mitigating circumstances, death sentence awarded under Section 302, is commuted to life imprisonment with stipulation that appellant shall not be entitled to premature release/remission before undergoing actual imprisonment of 30 yrs. Further held, further sentences awarded shall run concurrently and not consecutively, *Irappa Siddappa Murgannavar* v. *State of Karnataka*, (2022) 2 SCC 801.

▸ **Dying declaration, when can form sole basis of conviction.**—As there were two consistent dying declarations duly recorded after issuance of fitness certificate by doctor inspiring confidence of court and also corroborated by persons recording them and endorsed by the witness, concurrent conviction of appellant under Section 302 IPC for burning victim alive by pouring kerosene on her for not cooking for him, affirmed, *Madan* v. *State of Maharashtra*, (2019) 13 SCC 464.

▸ **Right of private defence.**—Right of private defence cannot be claimed by accused if disproportionate harm is caused, *Jangir Singh* v. *State of Punjab*, (2019) 13 SCC 813.

▸ **Appeal against acquittal.**—In appeal against acquittal in respect of charge under Section 302, when accused had been convicted only under Section 323, interference, held, not warranted when accused had already served more than 14 yrs' imprisonment, *State of M.P.* v. *Amar Lal*, (2020) 2 SCC 64.

▸ **Claim of juvenility.**—In *Chaddu* v. *State of U.P.*, (2019) 15 SCC 519, school certificate showed that appellant was juvenile on date of incident, found to be genuine. Family register maintained by Panchayat, as corrected, corroborated the same. In any case, as per Rule 12 of the Juvenile Justice (Care and Protection of Children) Rules, 2007, it is reliable school certificate that must have precedence. Thus, held, appellant was juvenile on date of incident.

▸ **Abetment by conspiracy.**— Abetment by conspiracy is only one form of abetment. There can be alternate charges. There can be abetment by instigation and intentional acting even when there is no conspiracy and, therefore, no abetment by conspiracy. *Somasundaram* v. *State*, (2020) 7 SCC 722.

▸ **Presumption of murder against those who abducted or illegally confined the victim.** — Abduction followed by murder in appropriate cases can enable court to presume that abductor is the murderer. Principle in this regard is that after abduction, the abductor would be in a position to explain what happened to his victim and if he failed to do so, it is only natural and logical that an irresistible inference may be drawn that he has done away with the hapless victim. Section 106 of the Evidence Act would come to assistance of prosecution in such matter. Said principle would also apply to those persons who illegally confine the person who stands abducted even if there is no evidence that they have themselves carried out the abduction. However, further held, this is not an inexorable rule, but to be applied based on factual matrix presented before the court. *Somasundaram* v. *State*, (2020) 7 SCC 722.

▸ **Mob assault.**— In a case of a mob assault, especially when there is no doubt with regard to ocular evidence, held, to look for corroboration of each injury by correlating it with the evidence of a prosecution witness to a particular accused and then to discredit the prosecution case on that basis cannot be upheld. *State of U.P.* v. *Ravindra*, (2019) 19 SCC 65.

▸ **Related eyewitnesses.**— Presence of related eyewitnesses on the spot, held, not believable, when the claim of the witnesses regarding taking the deceased to the hospital from the spot, not supported by the FIR, which was lodged by one of the said witnesses and indicated removal of deceased to the hospital by two other persons, *Rajesh* v. *State of Haryana*, (2021) 1 SCC 118.

▸ **Non-examination of ballistics expert.**— Non-examination of ballistics expert in incident of firing is held to be fatal, when there were discrepancies in the FSL report and the eyewitness testimony found not free from doubt. Legal position regarding necessity of examination of ballistics expert in case of assault by means of lethal weapon, reiterated, *Rajesh* v. *State of Haryana*, (2021) 1 SCC 118.

▸ **Parity.**— If some accused are acquitted based on unreliability of particular witnesses or evidence, then that benefit must extend to all accused who are implicated based on testimony of those same unreliable witnesses or that same unreliable evidence, *Jodhraj* v. *State of Rajasthan*, (2020) 14 SCC 205.

▸ **Review petition against death sentence.**—Converting death sentence to life imprisonment, when both High Court and Supreme Court affirmed death sentence, when warranted, *M.A. Antony* v. *State of Kerala*, (2020) 17 SCC 751.

▸ **Time of death — Expert evidence.**—The opinion of the expert can only suggest the time range, and not the precise time of death, *Arvind Singh* v. *State of Maharashtra*, (2021) 11 SCC 1 : AIR 2020 SC 2451.

▸ **Death sentence.**—What is required to be examined is whether there is a possibility of rehabilitation and whether it is the rarest of the rare cases where the collective conscience of the community is so shocked that it will expect the holders of judicial power to inflict death penalty irrespective of their personal opinion as regards desirability or otherwise of retaining death penalty, *Arvind Singh* v. *State of Maharashtra*, (2021) 11 SCC 1 : AIR 2020 SC 2451.

Law summarised regarding death sentence, whether to be confirmed/imposed, or, not, upon application of "crime test", "criminal test" and "rarest of the rare test", *Manoj Pratap Singh* v. *State of Rajasthan*, (2022) 9 SCC 81.

▸ **Injury on accused.**—Injury on accused is not material, when not only the injured accused took plea of their absence from the place of occurrence, but the doctor's evidence and the evidence of the eyewitnesses clearly explained the reasons behind the injury suffered by them, *Jafarudheen* v. *State of Kerala*, (2022) 8 SCC 440.

▸ **Related eyewitnesses and chance witnesses.**—Related eyewitnesses and chance witnesses, is not material when nothing was found to impeach evidence of the witnesses and they were found likely to be seen near the place of occurrence, *Jafarudheen* v. *State of Kerala*, (2022) 8 SCC 440.

▸ **Child rape and murder — Defect in investigation.**—Solely on account of defects or shortcomings in investigation an accused is not entitled to get acquitted and, thus, lapse or omission (purposeful or otherwise) to carry out DNA profiling, by itself, cannot be permitted to decide the fate of a trial for the offence of rape especially, when it is combined with the commission of the offence of murder. Even if such a flaw had occurred in the investigation in a given case, the Court has still a duty to consider whether the materials and evidence available on record before it, is enough and cogent to prove the case of the prosecution. Further, in a case which rests on circumstantial evidence, the Court has to consider whether, despite such a lapse, the various links in the chain of circumstances forms a complete chain pointing to the guilt of the accused alone in exclusion of all hypothesis of innocence in his favour, *Veerendra* v. *State of M.P.*, (2022) 8 SCC 668.

▸ **Sentence/punishment.**—Sentence/punishment less than imprisonment for life, when accused is convicted for offence punishable under Section 302 is not permissible, as punishment for murder under Section 302 is death or imprisonment for life and fine. Any punishment less than imprisonment for life under Section 302 would be contrary to Section 302, *State of M.P.* v. *Nandu*, (2022) 9 SCC 184.

[337][***303. Punishment for murder by life-convict.***—*Whoever, being under sentence of* [338][*imprisonment for life*], *commits murder, shall be punished with death.*]

CASE LAW ▸ Constitutional validity.—Section 303 is unconstitutional and must be struck down, *Mithu* v. *State of Punjab*, (1983) 2 SCC 277 : 1983 SCC (Cri) 405.

304. Punishment for culpable homicide not amounting to murder.—Whoever commits culpable homicide not amounting to murder, shall

337. S. 303 struck down in *Mithu* v. *State of Punjab*, (1983) 2 SCC 277 : AIR 1983 SC 473 : 1983 SCC (Cri) 405.

338. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch.

be punished with [339][imprisonment for life], or imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine, if the act by which the death is caused is done with the intention of causing death, or of causing such bodily injury as is likely to cause death;

or with imprisonment of either description for a term which may extend to ten years, or with fine, or with both, if the act is done with the knowledge that it is likely to cause death, but without any intention to cause death, or to cause such bodily injury as is likely to cause death.

CASE LAW ▸ Sections 304-B and 306 — Relative scope.—An unnatural dowry death, whether homicidal or suicidal, would attract Section 304-B. It would mean death, not in the normal course. Section 306 is much broader in its application and takes within its fold one aspect of Section 304-B. These two sections are not mutually exclusive. If a conviction for causing a suicide is based on Section 304-B, it will necessarily attract Section 306. However, the converse is not true, *Bhupendra* v. *State of M.P.*, (2014) 2 SCC 106 : (2014) 1 SCC (Cri) 1.

[340][**304-A. Causing death by negligence.**—Whoever causes the death of any person by doing any rash or negligent act not amounting to culpable homicide shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.]

STATE AMENDMENTS

Himachal Pradesh.—In its application to the State of Himachal Pradesh, after Section 304-A, the following section shall be *inserted*, namely—

'304-AA. *Causing death or injury by driving a public service vehicle while in a state of intoxication.*—Whoever, while in a state of intoxication, drives or attempts to drive a public service vehicle and causes the death of any person not amounting to culpable homicide, or causes any bodily injury likely to cause death, shall be punished with imprisonment for life, or imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine, as if the act by which death or bodily injury is caused, is done with the knowledge that he is likely by such act to cause death or cause such bodily injury as is likely to cause death.

Explanation.—"Public service vehicle" means any motor vehicle used or adapted to be used for the carriage of passengers for hire or reward, and includes a maxicab, a motorcab, contract carriage and stage carriage'. [*Vide* Criminal Law (Himachal Pradesh Amendment) Act, 1997 (19 of 1997), S. 2 (w.e.f. 30-8-1997)]

In its application to the State of Himachal Pradesh, in Section 304-AA,—

(*a*) for the words "a public service vehicle" where ever these occur, *substitute* the words "any vehicle"; and

(*b*) *omit* the Explanation.

[*Vide* The Criminal Law (Himachal Pradesh Amendment) Act, 2011 (7 of 2012), S. 2 (w.e.f. 9-2-2012)]

[341][**304-B. Dowry death.**—(1) Where the death of a woman is caused by any burns or bodily injury or occurs otherwise than under normal circumstances within seven years of her marriage and it is shown that soon before her death she was

---

339. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch.
340. *Ins.* by Act 27 of 1870, S. 12.
341. *Ins.* by Act 43 of 1986, S. 10 (w.e.f. 19-11-1986).

subjected to cruelty or harassment by her husband or any relative of her husband for, or in connection with, any demand for dowry, such death shall be called "dowry death", and such husband or relative shall be deemed to have caused her death.

Explanation.—For the purpose of this sub-section, "dowry" shall have the same meaning as in Section 2 of the Dowry Prohibition Act, 1961 (28 of 1961).

(2) Whoever commits dowry death shall be punished with imprisonment for a term which shall not be less than seven years but which may extend to imprisonment for life.]

CASE LAW ▸ "Dowry"—Meaning.—It should be any property or valuable security given or agreed to be given in connection with the marriage. Customary gift or payment in connection with birth of child or other ceremonies unrelated to the marriage ceremony, held, do not fall within the ambit of "dowry", *Satvir Singh* v. *State of Punjab*, (2001) 8 SCC 633.

▸ **"Dowry" — Scope of.**—"Dowry" ought to be ascribed an expansive meaning so as to encompass any demand made on a woman, whether in respect of a property or a valuable security of any nature. Interpretation of a provision of law that will defeat the very intention of the legislature must be shunned in favour of an interpretation that will promote the object sought to be achieved through the legislation meant to uproot a social evil like dowry demand. Further, demand for money raised by the accused on the deceased for construction of a house, held, falls within the definition of the word "dowry", *State of M.P.* v. *Jogendra*, (2022) 5 SCC 401.

▸ **Ingredients of.**—The essential components of Section 304-B are: (*i*) Death of a woman occurring otherwise than under normal circumstances, within 7 years of marriage. (*ii*) Soon before her death she should have been subject to cruelty and harassment in connection with any demand for dowry. When the above ingredients are fulfilled, the husband or his relative, who subjected her to such cruelty or harassment, can be presumed to be guilty of offence under Section 304-B, *Satvir Singh* v. *State of Punjab*, (2001) 8 SCC 633, relying on *Shanti* v. *State of Haryana*, (1991) 1 SCC 371 : 1991 SCC (Cri) 191; *Kans Raj* v. *State of Punjab*, (2000) 5 SCC 207 : 2000 SCC (Cri) 935.

▸ **"Soon before her death".**—The expression indicates that there must be a perceptible nexus between the infliction of dowry-related harassment and cruelty on the woman and death, *Satvir Singh* v. *State of Punjab*, (2001) 8 SCC 633.

▸ **Term "soon before" — Meaning.**—It is a relative term which is required to be considered under specific circumstances of each case and no straitjacket formula can be laid down by fixing any time-limit. Furthermore, the said term is not synonymous with the term "immediately before" and is the opposite of the expression "soon after" as used and understood in Section 114 Ill. (a) of the Evidence Act, *State of M.P.* v. *Jogendra*, (2022) 5 SCC 401.

▸ **Dowry death**—Death caused "otherwise than under normal circumstances—Meaning.—The expression "otherwise than under normal circumstances" would mean death not in the usual course but apparently under suspicious circumstances, if not caused by burns or bodily injury. *Kans Raj* v. *State of Punjab*, (2000) 5 SCC 207: 2000 SCC (Cri) 935.

Under Section 304-B prosecution cannot escape from discharging its burden of proving that harassment or cruelty was related to demand for dowry soon before death, *State of Haryana* v. *Angoori Devi*, (2020) 18 SCC 773.

▸ **Words "shown" and "deemed" — Interpretation of.**—"Shown" should be read as "proved" and "deemed" should be read as "presumed". Initial burden is on prosecution to prove by preponderance of probabilities the ingredients of Section 304-B. Requiring prosecution to prove these ingredients beyond reasonable doubt would defeat purpose of Section 304-B. Once such initial burden is discharged by prosecution, initial presumption of innocence of accused would get replaced by deemed presumption of guilt of accused. Burden would then be shifted on accused to rebut that deemed presumption of guilt by proving beyond reasonable doubt his innocence. Right to life and liberty of accused cannot be jeopardised without providing accused opportunity to prove his innocence, *Sher Singh* v. *State of Haryana*, (2015) 3 SCC 724.

▸ **Phrase "soon before" — Interpretation.**—Being a criminal statute, generally it is to be interpreted strictly. However, where strict interpretation leads to absurdity or goes against the spirit of legislation, the courts may in appropriate cases place reliance upon the genuine import of the words, taken in their usual sense to resolve such ambiguities. Therefore, courts should use their discretion to determine if the period between the cruelty or harassment and the death of the victim would come within the term "soon before". Thus, held, phrase "soon before" cannot be construed to mean "immediately before". Prosecution must establish existence of "proximate and live link" between the dowry death and cruelty or harassment for dowry demand by the husband or his relatives, *Satbir Singh* v. *State of Haryana*, (2021) 6 SCC 1.

305. Abetment of suicide of child or insane person.—If any person under eighteen years of age, any insane person, any delirious person, any idiot, or any person in a state of intoxication commits suicide, whoever abets the commission of such suicide shall be punished with death or [342][imprisonment for life], or imprisonment for a term not exceeding ten years, and shall also be liable to fine.

306. Abetment of suicide.—If any person commits suicide, whoever abets the commission of such suicide, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

CASE LAW ▸ Essential ingredients.—The basic ingredients of Section 306 IPC are suicidal death and abetment thereof. To constitute abetment, intention and involvement of accused to aid or instigate commission of suicide is imperative. Any severance or absence of any of these constituents would militate against said indictment. Remoteness of culpable acts or omissions rooted in intention of accused to actualise the suicide would fall short of offence of abetment essential to attract Section 306 IPC. Contiguity, continuity, culpability and complicity of indictable acts or omission are concomitant indices of abetment. Section 306 IPC thus criminalises sustained incitement for suicide, *Gurcharan Singh* v. *State of Punjab*, (2017) 1 SCC 433.

▸ **Abetment, what constitutes.**—To constitute abetment, there must be course of conduct or action of intentionally aiding or facilitating another person to end life. *Common Cause* v. *Union of India*, (2018) 5 SCC 1.

▸ **Abetment of suicide.**—Insulting deceased by using abusive language will not, by itself, constitute abetment of suicide. There should be evidence capable of suggesting that accused intended by such act(s) to instigate deceased to commit suicide. Unless ingredients of instigation/abetment to commit suicide are satisfied, accused cannot be convicted under Section 306 IPC, *M. Arjunan* v. *State*, (2019) 3 SCC 315.

▸ **Abetment of suicide and cruelty.**—In case of abetment of suicide and cruelty, there is need to establish conduct of accused which drove deceased to commit suicide. As in this case allegations of cruelty,

---

342. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch.

harassment, mistreatment, etc. by appellant husband which allegedly drove deceased wife to commit suicide, were not established at all and were neither based on testimony of family of deceased, nor alleged letter written by deceased shortly before her death, hence, acquittal was restored, *Jagdishraj Khatta* v. *State of H.P.*, (2019) 9 SCC 248.

▸ **Sections 306 & 498-A.**—Sections 498-A and 306 IPC are independent and constitute different offences. Merely because accused is found guilty under Section 498-A he should not necessarily be held to be guilty under Section 306 on the basis of the same evidence, *Ramesh Kumar* v. *State of Chhattisgarh*, (2001) 9 SCC 618.

▸ **Instigation to commit suicide.**—A word uttered in the fit of anger or emotion without intending the consequences to actually follow cannot be said to be instigation. To draw the inference of instigation it all depends on facts and circumstances of the case, *State of W.B.* v. *Indrajit Kundu*, (2019) 10 SCC 188.

307. Attempt to murder.—Whoever does any act with such intention or knowledge, and under such circumstances that, if he by that act caused death, he would be guilty of murder, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine; and if hurt is caused to any person by such act, the offender shall be liable either to [343][imprisonment for life], or to such punishment as is hereinbefore mentioned.

Attempts by life convicts.—[344][When any person offending under this section is under sentence of [345][imprisonment for life], he may, if hurt is caused, be punished with death.]

Illustrations

(*a*) *A* shoots at *Z* with intention to kill him, under such circumstances that, if death ensued, *A* would be guilty of murder. *A* is liable to punishment under this section.

(*b*) *A*, with the intention of causing the death of a child of tender years, exposes it in a desert place. *A* has committed the offence defined by this section, though the death of the child does not ensue.

(*c*) *A*, intending to murder *Z*, buys a gun and loads it. *A* has not yet committed the offence. *A* fires the gun at *Z*. He has committed the offence defined in this section, and, if by such firing he wounds *Z*, he is liable to the punishment provided by the latter part of [346][the first paragraph of] this section.

(*d*) *A*, intending to murder *Z*, by poison, purchases poison and mixes the same with food which remains in *A*'s keeping; *A* has not yet committed the offence in this section. *A* places the food on *Z*'s table or delivers it to *Z*'s servants to place it on *Z*'s table. *A* has committed the offence defined in this section.

CASE LAW ▸ Ingredients.—Proof of grievous or life threatening hurt is not a sine qua non for offence under S. 307. Intention of accused can be ascertained from actual injury, if any, as well as from surrounding circumstances. Among other things, nature of weapon used and severity of blows inflicted, can be considered to infer intent, *State of M.P.* v. *Kanha*, (2019) 3 SCC 605.

▸ **Effect of time gap between occurrence and trial on investigation.**— When there is time gap between occurrence and trial, it is impossible for police/investigating officer to recall minute details nor is it

---

343. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch.
344. *Ins.* by Act 27 of 1870, S. 11.
345. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch.
346. *Ins.* by Act 12 of 1891, S. 2 and Sch. II.

possible for surgeon performing operation to remove bullet from body of patient, to throw light on chain of custody of bullet, after it was made over to attending nurse, *Mustak* v. *State of Gujarat*, (2020) 7 SCC 237.

▸ **Proportionate sentence.**—While considering the quantum of sentence, the courts are expected to consider all relevant facts and circumstances of the case, in particular, nature of injuries and the weapon used. The courts are bound to impose sentence commensurate with the gravity of the offence. The courts must not only keep in view the right of accused, but must also keep in view the interest of victim and society at large. A reasonable proportion has to be maintained between gravity of offence and the punishment. Inadequacy of sentence may lead to sufferance of the victim and the community at large, *Suryakant Baburao* v. *State of Maharashtra*, (2020) 17 SCC 518.

▸ **Attempt to murder — Requisite ingredients.**—In order to attract Section 307, the prosecution has to prove, "whoever does any act, with the intention or knowledge, which may cause death and in furtherance to the said intention and knowledge, he was doing an act towards it", *Vasudev* v. *State of M.P.*, (2022) 4 SCC 735.

308. Attempt to commit culpable homicide.—Whoever does any act with such intention or knowledge and under such circumstances that, if he by that act caused death, he would be guilty of culpable homicide not amounting to murder, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both; and, if hurt is caused to any person by such act, shall be punished with imprisonment of either description for a term which may extend to seven years, or with fine, or with both.

Illustration

A, on grave and sudden provocation, fires a pistol at *Z*, under such circumstances that if he thereby caused death he would be guilty of culpable homicide not amounting to murder. *A* has committed the offence defined in this section.

309. Attempt to commit suicide.—Whoever attempts to commit suicide and does any act towards the commission of such offence, shall be punished with simple imprisonment for a term which may extend to one year [347][or with fine, or with both].

NOTE ▸ Ed.: Effect of Section 309 read down vide Section 115 Mental Healthcare Act, 2017 (10 of 2017). Section 115 reads as:

"**115. Presumption of severe stress in case of attempt to commit suicide.**—(1) Notwithstanding anything contained in Section 309 of the Penal Code (45 of 1860) any person who attempts to commit suicide shall be presumed, unless proved otherwise, to have severe stress and shall not be tried and punished under the said Code.

(2) The appropriate Government shall have a duty to provide care, treatment and rehabilitation to a person, having severe stress and who attempted to commit suicide, to reduce the risk of recurrence of attempt to commit suicide."

310. Thug.—Whoever, at any time after the passing of this Act, shall have been habitually associated with any other or others for the purpose of committing robbery or child-stealing by means of or accompanied with murder, is a thug.

---

347. *Subs.* for "and shall also be liable to fine" by Act 8 of 1882, S. 7.

311. Punishment.—Whoever is a thug, shall be punished with [348][imprisonment for life], and shall also be liable to fine.

Of the causing of miscarriage, of injuries to unborn children, of the exposure of infants, and of the concealment of births

312. Causing miscarriage.—Whoever voluntarily causes a woman with child to miscarry shall, if such miscarriage be not caused in good faith for the purpose of saving the life of the woman, be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both; and, if the woman be quick with child, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

Explanation.—A woman who causes herself to miscarry, is within the meaning of this section.

313. Causing miscarriage without woman's consent.—Whoever commits the offence defined in the last preceding section without the consent of the woman, whether the woman is quick with child or not, shall be punished with [349][imprisonment for life], or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

314. Death caused by act done with intent to cause miscarriage.—Whoever, with intent to cause the miscarriage of a woman with child, does any act which causes the death of such woman, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine;

if act done without woman's consent.—And if the act is done without the consent of the woman, shall be punished either with [350][imprisonment for life], or with the punishment above mentioned.

Explanation.—It is not essential to this offence that the offender should know that the act is likely to cause death.

315. Act done with intent to prevent child being born alive or to cause it to die after birth.—Whoever before the birth of any child does any act with the intention of thereby preventing that child from being born alive or causing it to die after its birth, and does by such act prevent that child from being born alive, or causes it to die after its birth, shall, if such act be not caused in good faith for the purpose of saving the life of the mother, be punished with imprisonment of either description for a term which may extend to ten years, or with fine, or with both.

316. Causing death of quick unborn child by act amounting to culpable homicide.—Whoever does any act under such circumstances, that if he thereby caused death he would be guilty of culpable homicide, and does by such act cause the death of a quick unborn child, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

---

348. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch.
349. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch.
350. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch.

Illustration

A, knowing that he is likely to cause the death of a pregnant woman, does an act which, if it caused the death of the woman, would amount to culpable homicide. The woman is injured but does not die; but the death of an unborn quick child with which she is pregnant is thereby caused. *A* is guilty of the offence defined in this section.

317. Exposure and abandonment of child under twelve years, by parent or person having care of it.—Whoever being the father or mother of a child under the age of twelve years, or having the care of such child, shall expose or leave such child in any place with the intention of wholly abandoning such child, shall be punished with imprisonment of either description for a term which may extend to seven years, or with fine, or with both.

Explanation.—This section is not intended to prevent the trial of the offender for murder or culpable homicide, as the case may be, if the child dies in consequence of the exposure.

318. Concealment of birth by secret disposal of dead body.—Whoever, by secretly burying or otherwise disposing of the dead body of a child whether such child dies before or after or during its birth, intentionally conceals or endeavours to conceal the birth of such child, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

Of hurt

319. Hurt.—Whoever causes bodily pain, disease or infirmity to any person is said to cause hurt.

320. Grievous hurt.—The following kinds of hurt only are designated as "grievous":

First.—Emasculation.

Secondly.—Permanent privation of the sight of either eye.

Thirdly.—Permanent privation of the hearing of either ear.

Fourthly.—Privation of any member or joint.

Fifthly.—Destruction or permanent impairing of the powers of any member or joint.

Sixthly.—Permanent disfiguration of the head or face.

Seventhly.—Fracture or dislocation of a bone or tooth.

Eighthly.—Any hurt which endangers life or which causes the sufferer to be during the space of twenty days in severe bodily pain, or unable to follow his ordinary pursuits.

321. Voluntarily causing hurt.—Whoever does any act with the intention of thereby causing hurt to any person, or with the knowledge that he is likely thereby to cause hurt to any person, and does thereby cause hurt to any person, is said "voluntarily to cause hurt".

322. Voluntarily causing grievous hurt.—Whoever voluntarily causes hurt, if the hurt which he intends to cause or knows himself to be likely to cause is

grievous hurt, and if the hurt which he causes is grievous hurt, is said "voluntarily to cause grievous hurt".

Explanation.—A person is not said voluntarily to cause grievous hurt except when he both causes grievous hurt and intends or knows himself to be likely to cause grievous hurt. But he is said voluntarily to cause grievous hurt, if intending or knowing himself to be likely to cause grievous hurt of one kind, he actually causes grievous hurt of another kind.

Illustration

A, intending or knowing himself to be likely permanently to disfigure *Z*'s face, gives *Z* a blow which does not permanently disfigure *Z*'s face, but which causes *Z* to suffer severe bodily pain for the space of twenty days. *A* has voluntarily caused grievous hurt.

323. Punishment for voluntarily causing hurt.—Whoever, except in the case provided for by Section 334, voluntarily causes hurt, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine which may extend to one thousand rupees, or with both.

CASE LAW ▸ Causing "hurt" — Scope of.—Production of an injury report, held, not a sine qua non for establishing case under Section 323. Non-visible injuries and even causing bodily pain, held, come within ambit of causing "hurt". Thus, non-production of injury report, held, not fatal, when offence under Section 323 proved otherwise based on evidence on record, *Lakshman Singh* v. *State of Bihar*, (2021) 9 SCC 191.

324. Voluntarily causing hurt by dangerous weapons or means.—Whoever, except in the case provided for by Section 334, voluntarily causes hurt by means of any instrument for shooting, stabbing or cutting, or any instrument which, used as a weapon of offence, is likely to cause death, or by means of fire or any heated substance, or by means of any poison or any corrosive substance, or by means of any explosive substance or by means of any substance which it is deleterious to the human body to inhale, to swallow, or to receive into the blood, or by means of any animal, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

325. Punishment for voluntarily causing grievous hurt.—Whoever, except in the case provided for by Section 335, voluntarily causes grievous hurt, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

CASE LAW ▸ Imposition of jail sentence and fine on accused.—Once accused is held guilty of commission of offence punishable under Section 325 IPC, then imposition of jail sentence and fine on accused is mandatory. In other words, award of punishment would include both i.e. jail sentence and fine. So far as jail sentence is concerned, it may extend up to 7 years as per court's discretion whereas so far as fine amount is concerned, its quantum would also depend upon the court's discretion. Also, under Section 428 CrPC, period of detention of accused spent in jail as undertrial or as convict will be set off against his total jail sentence once awarded to him in connection with the same offence. *State of U.P.* v. *Tribhuwan*, (2018) 1 SCC 90.

326. Voluntarily causing grievous hurt by dangerous weapons or means.—Whoever, except in the case provided for by Section 335, voluntarily

causes grievous hurt by means of any instrument for shooting, stabbing or cutting, or any instrument which, used as a weapon of offence, is likely to cause death, or by means of fire or any heated substance, or by means of any posion or any corrosive substance, or by means of any explosive substance, or by means of any substance which it is deleterious to the human body to inhale, to swallow, or to receive into the blood, or by means of any animal, shall be punished with [351][imprisonment for life], or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

CASE LAW ► Sentence for causing grievous hurt.—Sentence for causing grievous hurt must be adequate. Brutality of the crime should also be considered, *Sumer Singh* v. *Surajbhan Singh*, (2014) 7 SCC 323 : (2014) 3 SCC (Cri) 184.

[352][**326-A. Voluntarily causing grievous hurt by use of acid, etc.**—Whoever causes permanent or partial damage or deformity to, or burns or maims or disfigures or disables, any part or parts of the body of a person or causes grievous hurt by throwing acid on or by administering acid to that person, or by using any other means with the intention of causing or with the knowledge that he is likely to cause such injury or hurt, shall be punished with imprisonment of either description for a term which shall not be less than ten years but which may extend to imprisonment for life, and with fine:

Provided that such fine shall be just and reasonable to meet the medical expenses of the treatment of the victim:

Provided further that any fine imposed under this section shall be paid to the victim.]

CASE LAW ► Acid Attack.—Considering seriousness of crime, reduction of sentence by the High Court to the period already undergone which was only 30 days, not justified and resultantly, sentence of one year as imposed by the trial Court directed to be restored. Further, as the attack resulted in disfiguration in some part of her body, the accused directed to pay a compensation of Rs 50,000 and the State directed to pay a compensation of Rs 3 lakhs, *Ravad Sasikala* v. *State of A.P.*, (2017) 4 SCC 546.

The nature of injury or gravity of injury is irrelevant in applicability of Section 326-A. Categories of injuries falling under Sections 326-A and 326-B, enumerated. Distinction between Sections 326-A and 326-B, explained, *Maqbool* v. *State of U.P.*, (2019) 11 SCC 395.

326-B. Voluntarily throwing or attempting to throw acid.—Whoever throws or attempts to throw acid on any person or attempts to administer acid to any person, or attempts to use any other means, with the intention of causing permanent or partial damage or deformity or burns or maiming or disfigurement or disability or grievous hurt to that person, shall be punished with imprisonment of either description for a term which shall not be less than five years but which may extend to seven years, and shall also be liable to fine.

---

351. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch.
352. *Ins.* by Act 13 of 2013, S. 5 (w.r.e.f. 3-2-2013).

Explanation 1.—For the purposes of Section 326-A and this section, "acid" includes any substance which has acidic or corrosive character or burning nature, that is capable of causing bodily injury leading to scars or disfigurement or temporary or permanent disability.

Explanation 2.—For the purposes of Section 326-A and this section, permanent or partial damage or deformity shall not be required to be irreversible.]

327. Voluntarily causing hurt to extort property, or to constrain to an illegal act.—Whoever voluntarily causes hurt, for the purpose of extorting from the sufferer, or from any person interested in the sufferer, any property or valuable security, or of constraining the sufferer or any person interested in such sufferer to do anything which is illegal, or which may facilitate the commission of an offence, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

328. Causing hurt by means of poison, etc., with intent to commit an offence.—Whoever administers to or causes to be taken by any person any poison or any stupefying, intoxicating or unwholesome drug, or other thing with intent to cause hurt to such person, or with intent to commit or to facilitate the commission of an offence or knowing it to be likely that he will thereby cause hurt, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

329. Voluntarily causing grievous hurt to extort property, or to constrain to an illegal act.—Whoever voluntarily causes grievous hurt for the purpose of extorting from the sufferer or from any person interested in the sufferer any property or valuable security, or of constraining the sufferer or any person interested in such sufferer to do anything that is illegal or which may facilitate the commission of an offence, shall be punished with [353][imprisonment for life], or imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

330. Voluntarily causing hurt to extort confession, or to compel restoration of property.—Whoever voluntarily causes hurt for the purpose of extorting from the sufferer or any person interested in the sufferer any confession or any information which may lead to the detection of an offence or misconduct, or for the purpose of constraining the sufferer or any person interested in the sufferer to restore or to cause the restoration of any property or valuable security or to satisfy any claim or demand or to give information which may lead to the restoration of any property or valuable security, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

Illustrations

(*a*) *A*, a police officer, tortures *Z* in order to induce *Z* to confess that he committed a crime. *A* is guilty of an offence under this section.

(*b*) *A*, a police officer, tortures *B* to induce him to point out where certain stolen property is deposited. *A* is guilty of an offence under this section.

---

353. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch.

(*c*) *A*, a revenue officer, tortures *Z* in order to compel him to pay certain arrears of revenue due from *Z*. *A* is guilty of an offence under this section.

(*d*) *A*, a zamindar, tortures a raiyat in order to compel him to pay his rent. *A* is guilty of an offence under this section.

331. Voluntarily causing grievous hurt to extort confession, or to compel restoration of property.—Whoever voluntarily causes grievous hurt for the purpose of extorting from the sufferer or any person interested in the sufferer any confession or any information which may lead to the detection of an offence or misconduct, or for the purpose of constraining the sufferer or any person interested in the sufferer to restore or to cause the restoration of any property or valuable security, or to satisfy any claim or demand or to give information which may lead to the restoration of any property or valuable security, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

332. Voluntarily causing hurt to deter public servant from his duty.—Whoever voluntarily causes hurt to any person being a public servant in the discharge of his duty as such public servant, or with intent to prevent or deter that person or any other public servant from discharging his duty as such public servant, or in consequence of anything done or attempted to be done by that person in the lawful discharge of his duty as such public servant, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

STATE AMENDMENTS

Maharashtra.—In its application to the State of Maharashtra, in Section 332, for the words "three years" the words "five years" shall be *substituted*. [*Vide* Mah. Act 40 of 2018, S. 2, dated 7-6-2018]

333. Voluntarily causing grievous hurt to deter public servant from his duty.—Whoever voluntarily causes grievous hurt to any person being a public servant in the discharge of his duty as such public servant, or with intent to prevent or deter that person or any other public servant from discharging his duty as such public servant, or in consequence of anything done or attempted to be done by that person in the lawful discharge of his duty as such public servant, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

334. Voluntarily causing hurt on provocation.—Whoever voluntarily causes hurt on grave and sudden provocation, if he neither intends nor knows himself to be likely to cause hurt to any person other than the person who gave the provocation, shall be punished with imprisonment of either description for a term which may extend to one month, or with fine which may extend to five hundred rupees, or with both.

335. Voluntarily causing grievous hurt on provocation.—Whoever [354][voluntarily] causes grievous hurt on grave and sudden provocation, if he neither

---

354. *Ins.* by Act 8 of 1882, S. 8.

intends nor knows himself to be likely to cause grievous hurt to any person other than the person who gave the provocation, shall be punished with imprisonment of either description for a term which may extend to four years, or with fine which may extend to two thousand rupees, or with both.

Explanation.—The last two sections are subject to the same provisions as Exception 1, Section 300.

336. Act endangering life or personal safety of others.—Whoever does any act so rashly or negligently as to endanger human life or the personal safety of others, shall be punished with imprisonment of either description for a term which may extend to three months, or with fine which may extend to two hundred and fifty rupees, or with both.

337. Causing hurt by act endangering life or personal safety of others.—Whoever causes hurt to any person by doing any act so rashly or negligently as to endanger human life, or the personal safety of others, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to five hundred rupees, or with both.

338. Causing grievous hurt by act endangering life or personal safety of others.—Whoever causes grievous hurt to any person by doing any act so rashly or negligently as to endanger human life, or the personal safety of others, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine which may extend to one thousand rupees, or with both.

Of wrongful restraint and wrongful confinement

339. Wrongful restraint.—Whoever voluntarily obstructs any person so as to prevent that person from proceeding in any direction in which that person has a right to proceed, is said wrongfully to restrain that person.

Exception.—The obstruction of a private way over land or water which a person in good faith believes himself to have a lawful right to obstruct, is not an offence within the meaning of this section.

Illustration

A obstructs a path along which *Z* has a right to pass, *A* not believing in good faith that he has a right to stop the path. *Z* is thereby prevented from passing. *A* wrongfully restrains *Z*.

340. Wrongful confinement.—Whoever wrongfully restrains any person in such a manner as to prevent that person from proceedings beyond certain circumscribing limits, is said "wrongfully to confine" that person.

Illustrations

(*a*) *A* causes *Z* to go within a walled space, and locks *Z* in. *Z* is thus prevented from proceeding in any direction beyond the circumscribing line of wall. *A* wrongfully confines *Z*.

(*b*) *A* places men with firesarms at the outlets of a building, and tells *Z* that they will fire at *Z* if *Z* attempts to leave the building. *A* wrongfully confines *Z*.

341. Punishment for wrongful restraint.—Whoever wrongfully restrains any person, shall be punished with simple imprisonment for a term which may extend to one month, or with fine which may extend to five hundred rupees, or with both.

342. Punishment for wrongful confinement.—Whoever wrongfully confines any person, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine which may extend to one thousand rupees, or with both.

343. Wrongful confinement for three or more days.—Whoever wrongfully confines any person for three days or more, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

344. Wrongful confinement for ten or more days.—Whoever wrongfully confines any person for ten days, or more, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.

345. Wrongful confinement of person for whose liberation writ has been issued.—Whoever keeps any person in wrongful confinement, knowing that a writ for the liberation of the person has been duly issued, shall be punished with imprisonment of either description for a term which may extend to two years in addition to any term of imprisonment to which he may be liable under any other section of this Chapter.

346. Wrongful confinement in secret.—Whoever wrongfully confines any person in such manner as to indicate an intention that the confinement of such person may not be known to any person interested in the person so confined, or to any public servant, or that the place of such confinement may not be known to or discovered by any such person or public servant as hereinbefore mentioned, shall be punished with imprisonment of either description for a term which may extend to two years in addition to any other punishment to which he may be liable for such wrongful confinement.

347. Wrongful confinement to extort property, or constrain to illegal act.—Whoever wrongfully confines any person for the purpose of extorting from the person confined, or from any person interested in the person confined, any property or valuable security or of constraining the person confined or any person interested in such person to do anything illegal or to give any information which may facilitate the commission of an offence, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.

348. Wrongful confinement to extort confession, or compel restoration of property.—Whoever wrongfully confines any person for the purpose of extorting from the person confined or any person interested in the person confined any confession or any information which may lead to the detection of an offence or misconduct, or for the purpose of constraining the person confined or any person interested in the person confined to restore or to cause the restoration of any property or valuable security or to satisfy any claim or demand, or to give information which may lead to the restoration of any property or valuable security,

shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.

Of criminal force and assault

349. Force.—A person is said to use force to another if he causes motion, change of motion, or cessation of motion to that other, or if he causes to any substance such motion, or change of motion, or cessation of motion as brings that substance into contact with any part of that other's body, or with anything which that other is wearing or carrying, or with anything so situated that such contact affects that other's sense of feeling: Provided that the person causing the motion, or change of motion, or cessation of motion, causes that motion, change of motion, or cessation of motion in one of the three ways hereinafter described:

First.—By his own bodily power.

Secondly.—By disposing any substance in such a manner that the motion or change or cessation of motion takes place without any further act on his part, or on the part of any other person.

Thirdly.—By inducing any animal to move, to change its motion, or to cease to move.

350. Criminal force.—Whoever intentionally uses force to any person, without that person's consent, in order to the committing of any offence, or intending by the use of such force to cause, or knowing it to be likely that by the use of such force he will cause injury, fear or annoyance to the person to whom the force is used, is said to use criminal force to that other.

Illustrations

(*a*) *Z* is sitting in a moored boat on a river. *A* unfastens the moorings, and thus intentionally causes the boat to drift down the stream. Here *A* intentionally causes motion to *Z*, and he does this by disposing substances in such a manner that the motion is produced without any other action on any person's part. *A* has therefore intentionally used force to *Z*; and if he has done so without *Z*'s consent, in order to the committing of any offence, or intending or knowing it to be likely that this use of force will cause injury, fear or annoyance to *Z*, *A* has used criminal force to *Z*.

(*b*) *Z* is riding in a chariot. *A* lashes *Z*'s horses, and thereby causes them to quicken their pace. Here *A* has caused change of motion to *Z* by inducing the animals to change their motion. *A* has therefore used force to *Z*; and if *A* has done this without *Z*'s consent, intending or knowing it to be likely that he may thereby injure, frighten or annoy *Z*, *A* has used criminal force to *Z*.

(*c*) *Z* is riding in palanquin. *A*, intending to rob *Z*, seizes the pole and stops the palanquin. Here *A* has caused cessation of motion to *Z*, and he has done this by his own bodily power. *A* has therefore used force to *Z*; and as *A* has acted thus intentionally, without *Z*'s consent, in order to the commission of an offence, *A* has used criminal force to *Z*.

(*d*) *A* intentionally pushes against *Z* in the street. Here *A* has by his own bodily power moved his own person so as to bring it into contact with *Z*. He has therefore intentionally used force to *Z*; and if he has done so without *Z*'s consent, intending or knowing it to be likely that he may thereby injure, frighten or annoy *Z*, he has used criminal force to *Z*.

(*e*) *A* throws a stone, intending or knowing it to be likely that the stone will be thus brought into contact with *Z*, or with *Z*'s clothes, or with something carried by *Z*, or that it will strike water, and dash up the water against *Z*'s clothes or something carried by *Z*. Here, if the throwing of the stone produce the effect of causing any substance to come into contact with *Z*, or *Z*'s clothes, *A* has used

force to Z; and if he did so without Z's consent, intending thereby to injure, frighten or annoy Z, he has used criminal force to Z.

(*f*) *A* intentionally pulls up a woman's veil. Here *A* intentionally uses force to her, and if he does so without her consent, intending or knowing it to be likely that he may thereby injure, frighten or annoy her, he has used criminal force to her.

(*g*) *Z* is bathing. *A* pours into the bath water which he knows to be boiling. Here *A* intentionally by his own bodily power causes such motion in the boiling water as brings that water into contact with *Z*, or with other water so situated that such contact must affect *Z*'s sense of feeling *A* has therefore intentionally used force to *Z*; and if he has done this without *Z*'s consent intending or knowing it to be likely that he may thereby cause injury, fear or annoyance to *Z*, *A* has used criminal force.

(*h*) *A* incites a dog to spring upon *Z*, without *Z*'s consent. Here, if *A* intends to cause injury, fear or annoyance to *Z*, he uses criminal force to *Z*.

351. Assault.—Whoever makes any gesture, or any preparation intending or knowing it to be likely that such gesture or preparation will cause any person present to apprehend that he who makes that gesture or preparation is about to use criminal force to that person, is said to commit an assault.

Explanation.—Mere words do not amount to an assault. But the words which a person uses may give to his gestures or preparation such a meaning as may make those gestures or preparations amount to an assault.

Illustrations

(*a*) *A* shakes his fist at *Z*, intending or knowing it to be likely that he may thereby cause *Z* to believe that *A* is about to strike *Z*, *A* has committed an assault.

(*b*) *A* begins to unloose the muzzle of a ferocious dog, intending or knowing it to be likely that he may thereby cause *Z* to believe that he is about to cause the dog to attack *Z*. *A* has committed an assault upon *Z*.

(*c*) *A* takes up a stick, saying to *Z*, "I will give you a beating". Here, though the words used by *A* could in no case amount to an assault, and though the mere gesture, unaccompanied by any other circumstances, might not amount to an assault, the gesture explained by the words may amount to an assault.

352. Punishment for assault or criminal force otherwise than on grave provocation.—Whoever assaults or uses criminal force to any person otherwise than on grave and sudden provocation given by that person, shall be punished with imprisonment of either description for a term which may extend to three months, or with fine which may extend to five hundred rupees, or with both.

Explanation.—Grave and sudden provocation will not mitigate the punishment for an offence under this section, if the provocation is sought or voluntarily provoked by the offender as an excuse for the offence, or

if the provocation is given by anything done in obedience to the law, or by a public servant, in the lawful exercise of the powers of such public servant, or

if the provocation is given by anything done in the lawful exercise of the right of private defence.

Whether the provocation was grave and sudden enough to mitigate the offence, is a question of fact.

353. Assault or criminal force to deter public servant from discharge of his duty.—Whoever assaults or uses criminal force to any person being a public servant in the execution of his duty as such public servant, or with intent to prevent or deter that person from discharging his duty as such public servant, or in consequence of anything done or attempted to be done by such person in the lawful discharge of his duty as such public servant, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

STATE AMENDMENTS

Maharashtra.—In its application to the State of Maharashtra, in Section 353, for the words "two years" the words "five years" shall be *substituted*. [*Vide* Mah. Act 40 of 2018, S. 3, dated 7-6-2018]

354. Assault or criminal force to woman with intent to outrage her modesty.—Whoever assaults or uses criminal force to any woman, intending to outrage or knowing it to be likely that he will thereby outrage her modesty, [355][shall be punished with imprisonment of either description for a term which shall not be less than one year but which may extend to five years, and shall also be liable to fine].

STATE AMENDMENTS

Andhra Pradesh.—In its application to the State of Andhra Pradesh, for Section 354, the following section shall be *substituted*, namely—

"354. *Assault or criminal force to woman with intent to outrage her modesty.*—Whoever assaults or uses criminal force to any woman intending to outrage or knowing it to be likely that he will thereby outrage her modesty shall be punished with imprisonment of either description for a term which shall not be less than five years but which may extend to seven years and shall also be liable to fine:

Provided that the Court may, for adequate and special reasons to be mentioned in the judgment, impose a sentence of imprisonment of either description for a term which may be less than five years, but which shall not be less than two years." [*Vide* Andhra Pradesh Act 6 of 1991, S. 2 (w.e.f. 1-4-1991).]

Note.—The Act came into force on April 1, 1991 vide GOMs No. 165, dt. 25-3-1992.

Arunachal Pradesh.—In its application to the State of Arunanchal Pradesh, in Section 354, for the words "shall be punished with imprisonment of either description for a term which shall not be less than one year but which may extend to five years, and shall also be liable to fine" the words "shall be punished with imprisonment of either description for a term which shall not be less than two years but which may extend to seven years, and shall also be liable to fine" shall be *substituted*. [*Vide* Arunachal Pradesh Act 3 of 2019, S. 5, dt. 2-4-2019].

Chhattisgarh.—In Section 354, the following proviso shall be *inserted*, namely——

"Provided that where offence is committed, under this Section by a relative, guardian or teacher or a person in a position of trust or authority towards the person assaulted, he shall be punishable with imprisonment of either description for a term which shall not be less than two years but which may extend to seven years and shall also be liable to fine.". [*Vide* Chhattisgarh Act 25 of 2015, S. 3, w.e.f. 21-7-2015]

---

355. *Subs.* by Act 13 of 2013, S. 6 (w.r.e.f. 3-2-2013). Prior to substitution it read as:
"shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both"

CASE LAW ▸ Husband is not immune from prosecution.—As far as sexual crimes against women are concerned, these are covered by Sections 354, 354-A, 354-B, 354-C, 354-D IPC. These relate to assault or use of criminal force against a woman with intent to outrage her modesty; sexual harassment and punishment for sexual harassment; assault or use of criminal force to woman with intent to disrobe; voyeurism; and stalking respectively. There is no exception clause giving immunity to the husband for such offences. The Domestic Violence Act will also apply in such cases and the husband does not get immunity, *Independent Thought* v. *Union of India*, (2017) 10 SCC 800.

[356][**354-A. Sexual harassment and punishment for sexual harassment.**—(1) A man committing any of the following acts—

(*i*) physical contact and advances involving unwelcome and explicit sexual overtures; or

(*ii*) a demand or request for sexual favours; or

(*iii*) showing pornography against the will of a woman; or

(*iv*) making sexually coloured remarks,

shall be guilty of the offence of sexual harassment.

(2) Any man who commits the offence specified in clause (*i*) or clause (*ii*) or clause (*iii*) of sub-section (1) shall be punished with rigorous imprisonment for a term which may extend to three years, or with fine, or with both.

(3) Any man who commits the offence specified in clause (*iv*) of sub-section (1) shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.]

CASE LAW ▸ Eve teasing.—Menace of eve teasing, which has become a pernicious, horrid and disgusting practice in India, deeply deprecated. In this case of abetment of suicide, where a young girl committed suicide as an outcome of the psychological harassment and continuous eve-teasing by the accused, reversal of judgment of acquittal of appellant-accused, upheld, *Pawan Kumar* v. *State of H.P.*, (2017) 7 SCC 780.

▸ Husband is not immune from prosecution.—As far as sexual crimes against women are concerned, these are covered by Sections 354, 354-A, 354-B, 354-C, 354-D IPC. These relate to assault or use of criminal force against a woman with intent to outrage her modesty; sexual harassment and punishment for sexual harassment; assault or use of criminal force to woman with intent to disrobe; voyeurism; and stalking respectively. There is no exception clause giving immunity to the husband for such offences. The Domestic Violence Act will also apply in such cases and the husband does not get immunity, *Independent Thought* v. *Union of India*, (2017) 10 SCC 800.

STATE AMENDMENTS

SECTION 354-A

Madhya Pradesh.—In its application to the State of Madhya Pradesh, after Section 354, the following section shall be *inserted*, namely:—

"354-A. *Assault or use of Criminal force to woman with intent to disrobe her.*—Whoever assaults or uses criminal force to any woman or abets or conspires to assault or uses such criminal force to any woman intending to outrage or knowing it to be likely that by such assault, he will

---

356. *Ins.* by Act 13 of 2013, S. 7 (w.r.e.f. 3-2-2013).

thereby outrage or causes to be outraged the modesty of the woman by disrobing or compel her to be naked on any public place, shall be punished with imprisonment of either description for a term which shall not be less than one year but which may extend to ten years and shall also be liable to fine." [*Vide* Madhya Pradesh Act 14 of 2004, S. 3].

354-B. Assault or use of criminal force to woman with intent to disrobe.—Any man who assaults or uses criminal force to any woman or abets such act with the intention of disrobing or compelling her to be naked, shall be punished with imprisonment of either description for a term which shall not be less than three years but which may extend to seven years, and shall also be liable to fine.

STATE AMENDMENTS

Arunachal Pradesh.—In its application to the State of Arunanchal Pradesh, in Section 354-B, for the words "shall be punished with imprisonment of either description for a term which shall not be less than three years but which may extend to seven years and shall also be liable to fine", the words "shall be punished on first conviction with imprisonment of either description for a term which shall not be less than three years but which may extend to seven years and shall also be liable to fine; and be punished on a second or subsequent conviction with rigorous imprisonment for a term which shall not be less than seven years but which may extend to ten years and with fine which shall not be less than one lakh rupees" shall be *substituted*. [*Vide* Arunachal Pradesh Act 3 of 2019, S. 6, dt. 2-4-2019].

CASE LAW ▸ Husband is not immune from prosecution.—As far as sexual crimes against women are concerned, these are covered by Sections 354, 354-A, 354-B, 354-C, 354-D IPC. These relate to assault or use of criminal force against a woman with intent to outrage her modesty; sexual harassment and punishment for sexual harassment; assault or use of criminal force to woman with intent to disrobe; voyeurism; and stalking respectively. There is no exception clause giving immunity to the husband for such offences. The Domestic Violence Act will also apply in such cases and the husband does not get immunity, *Independent Thought* v. *Union of India*, (2017) 10 SCC 800.

354-C. Voyeurism.—Any man who watches, or captures the image of a woman engaging in a private act in circumstances where she would usually have the expectation of not being observed either by the perpetrator or by any other person at the behest of the perpetrator or disseminates such image shall be punished on first conviction with imprisonment of either description for a term which shall not be less than one year, but which may extend to three years, and shall also be liable to fine, and be punished on a second or subsequent conviction, with imprisonment of either description for a term which shall not be less than three years, but which may extend to seven years, and shall also be liable to fine.

Explanation 1.—For the purpose of this section, "private act" includes an act of watching carried out in a place which, in the circumstances, would reasonably be expected to provide privacy and where the victim's genitals, posterior or breasts are exposed or covered only in underwear; or the victim is using a lavatory; or the victim is doing a sexual act that is not of a kind ordinarily done in public.

Explanation 2.—Where the victim consents to the capture of the images or any act, but not to their dissemination to third persons and where such image or act is disseminated, such dissemination shall be considered an offence under this section.

CASE LAW ▸ Husband is not immune from prosecution.—As far as sexual crimes against women are concerned, these are covered by Sections 354, 354-A, 354-B, 354-C, 354-D IPC. These relate to assault or use of criminal force against a woman with intent to outrage her modesty; sexual harassment and punishment for sexual harassment; assault or use of criminal force to woman with intent to disrobe; voyeurism; and stalking respectively. There is no exception clause giving immunity to the husband for such offences. The Domestic Violence Act will also apply in such cases and the husband does not get immunity, *Independent Thought* v. *Union of India*, (2017) 10 SCC 800.

354-D. Stalking.—(1) Any man who—

(*i*) follows a woman and contacts, or attempts to contact such woman to foster personal interaction repeatedly despite a clear indication of disinterest by such woman; or

(*ii*) monitors the use by a woman of the internet, email or any other form of electronic communication,

commits the offence of stalking:

Provided that such conduct shall not amount to stalking if the man who pursued it proves that—

(*i*) it was pursued for the purpose of preventing or detecting crime and the man accused of stalking had been entrusted with the responsibility of prevention and detection of crime by the State; or

(*ii*) it was pursued under any law or to comply with any condition or requirement imposed by any person under any law; or

(*iii*) in the particular circumstances such conduct was reasonable and justified.

(2) Whoever commits the offence of stalking shall be punished on first conviction with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine; and be punished on a second or subsequent conviction, with imprisonment of either description for a term which may extend to five years, and shall also be liable to fine.]

STATE AMENDMENTS

Arunachal Pradesh.—In its application to the State of Arunanchal Pradesh, in Section 354-D, for sub-section (2), the following sub-section shall be *substituted*, namely—

"(2) Whoever commits the offence of stalking shall be punished on first conviction with imprisonment of either description for a term which may extend to three years and shall also be liable to fine; and be punished on a second or subsequent conviction with imprisonment of either description for a term which shall not be less than three years but which may extend to seven years and with fine which shall not be less than one lakh rupees:

Provided that the court may, for adequate and special reasons to be mentioned in the judgment, impose a sentence of lesser period of imprisonment than specified minimum imprisonment.". [*Vide* Arunachal Pradesh Act 3 of 2019, S. 7, dt. 2-4-2019].

Chhattisgarh.—After Section 354-D, the following shall be *inserted*, namely—

"354-E. *Liability person present who fails to prevert the commission of offence under Sections 354, 354-A, 354-B, 354-C, 354-D.*—Whoever, being present at the time of commission of an offence under Section 354, Section 354-A, Section 354-B, Section 354-C or Section 354-D and

being able to prevent such offence, fails to prevent the commission of such offence or not being in position to prevent the commission of such offence, fails to give information of the commission of such offence to the nearest magistrate or police officer, by any mode, with the intention of screening the offender from legal punishment, shall be liable for abetment of such offence and shall be punished with imprisonment of either description which may extend to three years or with fine or with both.". [*Vide* Chhattisgarh Act 25 of 2015, S. 4, w.e.f. 21-7-2015]

Union Territory of Jammu and Kashmir.—In its application to the Union Territory of Jammu and Kashmir, after Section 354-D, *insert* the following section, namely:—

"354-E. *Sextortion*.—(1) Whoever,—

(*a*) being in a position of authority; or

(*b*) being in a fiduciary relationship; or

(*c*) being a public servant,

abuses such authority or fiduciary relationship or misuses his official position to employ physical or non physical forms of coercion to extort or demand sexual favours from any woman in exchange of some benefits or other favours that such person is empowered to grant or withhold, shall be guilty of offence of sextortion.

Explanation.—For the purpose of this section, 'sexual favour' shall mean and include any kind of unwanted sexual activity ranging from sexually suggestive conduct, sexually explicit actions such as touching, exposure of private body parts to sexual intercourse, including exposure over the electronic mode of communication.

(2) Any person who commits the offence of sextortion shall be punished with rigorous imprisonment for a term which shall not be less than three years but may extend to five years and with fine." [*Vide* S.O. 1123(E), dated 18-3-2020 (w.e.f. 18-3-2020)].

Union Territory of Ladakh.—In its application to the Union Territory of Ladakh — Same as that of UT of Jammu and Kashmir. [*Vide* S.O. 3774(E), dated 23-10-2020].

CASE LAW ▸ Husband is not immune from prosecution.—As far as sexual crimes against women are concerned, these are covered by Sections 354, 354-A, 354-B, 354-C, 354-D IPC. These relate to assault or use of criminal force against a woman with intent to outrage her modesty; sexual harassment and punishment for sexual harassment; assault or use of criminal force to woman with intent to disrobe; voyeurism; and stalking respectively. There is no exception clause giving immunity to the husband for such offences. The Domestic Violence Act will also apply in such cases and the husband does not get immunity, *Independent Thought* v. *Union of India*, (2017) 10 SCC 800.

355. Assault or criminal force with intent to dishonour person, otherwise than on grave provocation.—Whoever assaults or uses criminal force to any person, intending thereby to dishonour that person, otherwise than on grave and sudden provocation given by that person, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

356. Assault or criminal force in attempt to commit theft of property carried by a person.—Whoever assaults or uses criminal force to any person, in attempting to commit theft on any property which that person is then wearing or carrying, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

357. Assault or criminal force in attempt wrongfully to confine a person.—Whoever assaults or uses criminal force to any person, in attempting

wrongfully to confine that person, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine which may extend to one thousand rupees, or with both.

358. Assault or criminal force on grave provocation.—Whoever assaults or uses criminal force to any person on grave and sudden provocation given by that person, shall be punished with simple imprisonment for a term which may extend to one month, or with fine which may extend to two hundred rupees, or with both.

Explanation.—The last section is subject to the same explanation as Section 352.

Of kidnapping, abduction, slavery and forced labour

359. Kidnapping.—Kidnapping is of two kinds: kidnapping from [357][India], and kidnapping from lawful guardianship.

360. Kidnapping from India.—Whoever conveys any person beyond the limits of [358][India] without the consent of that person, or of some person legally authorised to consent on behalf of that person, is said to kidnap that person from [359][India].

361. Kidnapping from lawful guardianship.—Whoever takes or entices any minor under [360][sixteen] years of age if a male, or under [361][eighteen] years of age if a female, or any person of unsound mind, out of the keeping of the lawful guardian of such minor or person of unsound mind, without the consent of such guardian, is said to kidnap such minor or person from lawful guardianship.

Explanation.—The words "lawful guardian" in this section include any person lawfully entrusted with the care or custody of such minor or other person.

Exception.—This section does not extend to the act of any person who in good faith believes himself to be the father of an illegitimate child, or who in good faith believes himself to be entitled to the lawful custody of such child, unless such act is committed for an immoral or unlawful purpose.

STATE AMENDMENTS

Manipur.—In its application to the Union Territory of Manipur, in Section 361 for the word "eighteen" *substitute* the word "fifteen". [*Vide* Manipur Act 30 of 1950].

362. Abduction.—Whoever by force compels, or by any deceitful means induces, any person to go from any place, is said to abduct that person.

363. Punishment for kidnapping.—Whoever kidnaps any person from [362][India] or from lawful guardianship, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

---

357. *Subs.* for "the States" by Act 3 of 1951, S.3 and Sch. (w.e.f. 1-4-1951).
358. *Subs.* for "the States" by Act 3 of 1951, S.3 and Sch. (w.e.f. 1-4-1951).
359. *Subs.* for "the States" by Act 3 of 1951, S.3 and Sch. (w.e.f. 1-4-1951).
360. *Subs.* for "fourteen" by Act 42 of 1949, S. 2.
361. *Subs.* for "sixteen" by Act 42 of 1949.
362. *Subs.* for "the States" by Act 3 of 1951, S.3 and Sch.

STATE AMENDMENTS

Uttar Pradesh.—In its application to the State of Uttar Pradesh, offence under Section 363, is non-bailable. [*Vide* U.P. Act 1 of 1984, S. 12 (w.e.f. 1-5-1984)]

[363][**363-A. Kidnapping or maiming a minor for purposes of begging.**—(1) Whoever kidnaps any minor or, not being the lawful guardian of a minor, obtains the custody of the minor, in order that such minor may be employed or used for the purpose of begging shall be punishable with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

(2) Whoever maims any minor in order that such minor may be employed or used for the purposes of begging shall be punished with imprisonment for life, and shall also be liable to fine.

(3) Where any person, not being the lawful guardian of a minor, employs or uses such minor for the purposes of begging, it shall be presumed, unless the contrary is proved, that he kidnapped or otherwise obtained the custody of that minor in order that the minor might be employed or used for the purposes of begging.

(4) In this section,—

(*a*) "begging" means—

(*i*) soliciting or receiving alms in a public place, whether under the pretence of singing, dancing, fortune-telling, performing tricks or selling articles or otherwise;

(*ii*) entering on any private premises for the purpose of soliciting or receiving alms;

(*iii*) exposing or exhibiting, with the object of obtaining or extorting alms, any sore, wound, injury, deformity or disease, whether of himself or of any other person or of an animal;

(*iv*) using a minor as an exhibit for the purpose of soliciting or receiving alms;

(*b*) "minor" means—

(*i*) in the case of a male, a person under sixteen years of age; and

(*ii*) in the case of a female, a person under eighteen years of age.]

364. Kidnapping or abducting in order to murder.—Whoever kidnaps or abducts any person in order that such person may be murdered or may be so disposed of as to be put in danger of being murdered, shall be punished with [364][imprisonment for life] or rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine.

Illustrations

(*a*) *A* kidnaps *Z* from [365][India], intending or knowing it to be likely that *Z* may be sacrificed to an idol. *A* has committed the offence defined in this section.

(*b*) *A* forcibly carries or entices *B* away from his home in order that *B* may be murdered. *A* has committed the offence defined in this section.

---

363. *Ins.* by Act 52 of 1959, S. 2 (w.e.f. 15-1-1960).
364. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch.
365. *Subs.* for "the States" by Act 3 of 1951, S.3 and Sch.

[366][**364-A. Kidnapping for ransom, etc.**—Whoever kidnaps or abducts any person or keeps a person in detention after such kidnapping or abduction, and threatens to cause death or hurt to such person, or by his conduct gives rise to a reasonable apprehension that such person may be put to death or hurt, or causes hurt or death to such person in order to compel the Government or [367][any foreign State or international inter-governmental organisation or] any other person to do or abstain from doing any act or to pay a ransom, shall be punishable with death, or imprisonment for life, and shall also be liable to fine.]

CASE LAW ▸ Constitutional validity.—Constitutional validity of Section 364-A, upheld, *Vikram Singh* v. *Union of India*, (2015) 9 SCC 502.

▸ **Ingredients of offence.**—All conditions as enumerated in Section 364-A must be fulfilled before recording conviction under Section 364-A. First essential condition, held, must mandatorily be established with at least any one of the three conditions mentioned thereafter also being affirmatively established, to ground conviction under Section 364-A, *Sk. Ahmed* v. *State of Telangana*, (2021) 9 SCC 59.

▸ **Necessary ingredients.**—Act of kidnapping of a child for ransom, held, has inherent threat to cause death as that alone will force relatives of such victim to pay ransom. Such threat will remain a mere threat, if victim returns unhurt. This observation has been clarified in para 32 of Sk. Ahmed, (2021) 9 SCC 59., that it cannot be read to mean that in a case of kidnapping or abduction of a child of a tender age, presumption in law shall arise that kidnapping or abduction has been done to cause hurt or death. Each case has to be decided on its own facts, *Arvind Singh* v. *State of Maharashtra*, (2021) 11 SCC 1 : AIR 2020 SC 2451.

▸ **Interpretation of words "and" and "or" used between the conditions.**—Word "and" is used as conjunction and the use of word "or" is clearly disjunctive. Both the words, held, are used for different purpose and object and, thus, the court should be extremely reluctant in a criminal statute to substitute disjunctive words for conjunctive words, and vice versa, if such action adversely affects the accused, *Sk. Ahmed* v. *State of Telangana*, (2021) 9 SCC 59.

▸ **Kidnapping or abduction of child of a tender age for ransom.**—Merely from tender age of child, held, it cannot be assumed that there is inherent threat to cause death and the second condition i.e. "threatens to cause death or hurt to such person" or at least one of the other conditions mentioned thereafter in Section 364-A is therefore not required to be affirmatively proved by leading evidence thereon. In every case, to establish guilt under Section 364-A prosecution must establish the first essential condition, and must also affirmatively establish at least any one of the three conditions mentioned thereafter, *Sk. Ahmed* v. *State of Telangana*, (2021) 9 SCC 59.

365. Kidnapping or abducting with intent secretly and wrongfully to confine person.—Whoever kidnaps or abducts any person with intent to cause that person to be secretly and wrongfully confined, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

366. Kidnapping, abducting or inducing woman to compel her marriage, etc.—Whoever kidnaps or abducts any woman with intent that she may be

366. *Ins.* by Act 42 of 1993, S. 2 (w.e.f. 22-5-1993).
367. *Ins.* by Act 24 of 1995, S. 2.

compelled, or knowing it to be likely that she will be compelled, to marry any person against her will, or in order that she may be forced or seduced to illicit intercourse, or knowing it to be likely that she will be forced or seduced to illicit intercourse, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine; [368][and whoever, by means of criminal intimidation as defined in this Code or of abuse of authority or any other method of compulsion, induces any woman to go from any place with intent that she may be, or knowing that it is likely that she will be, forced or seduced to illicit intercourse with another person shall also be punishable as aforesaid].

CASE LAW ▸ Ingredients of.—Mere abduction does not bring accused under ambit of Section 366. It must be proved that accused abducted woman with intent that she may be compelled, or knowing it to be likely that she will be compelled to marry any person or in order that she may be forced or seduced to illicit intercourse or knowing it to be likely that she will be forced or seduced to illicit intercourse. Unless prosecution proves that abduction is for purposes mentioned in Section 366, court cannot hold accused guilty and punish him under Section 366, *Kavita Chandrakant Lakhani* v. *State of Maharashtra*, (2018) 6 SCC 664.

Section 366 postulates that once prosecution leads evidence to show that kidnapping was with intention/knowledge to compel marriage of girl or to force/induce her to have illicit intercourse, enhanced punishment of 10 yrs as provided thereunder would stand attracted, *Anversinh* v. *State of Gujarat*, (2021) 3 SCC 12.

[369][**366-A. Procuration of minor girl.**—Whoever, by any means whatsoever, induces any minor girl under the age of eighteen years to go from any place or to do any act with intent that such girl may be, or knowing that it is likely that she will be, forced or seduced to illicit intercourse with another person shall be punishable with imprisonment which may extend to ten years, and shall also be liable to fine.]

[370][**366-B. Importation of girl from foreign country.**—Whoever imports into [371][India] from any country outside India [372][or from the State of Jammu and Kashmir] any girl under the age of twenty-one years with intent that she may be, or knowing it to be likely that she will be, forced or seduced to illicit intercourse with another person, [373][* * *] shall be punishable with imprisonment which may extend to ten years, and shall also be liable to fine.]

367. Kidnapping or abducting in order to subject person to grievous hurt, slavery, etc.—Whoever kidnaps or abducts any person in order that such person may be subjected, or may be so disposed of as to be put in danger of being subjected to grievous hurt, or slavery, or to the unnatural lust of any person, or knowing it to be likely that such person will be so subjected or disposed of, shall be punished

---

368. *Ins.* by Act 20 of 1923, S. 2.
369. *Ins.* by Act 20 of 1923, S. 3.
370. *Ins.* by Act 20 of 1923, S. 3.
371. *Subs.* for "the States" by Act 3 of 1951, S.3 and Sch.
372. *Ins.* by Act 3 of 1951 (w.e.f. 1-4-1951), S.3 and Sch..
373. *Omitted* by Act 3 of 1951 (w.e.f. 1-4-1951). Prior to omission it read as:
"and whoever with such intent and knowledge imports into British India from any State in India any such girl who has with the like intent and knowledge been imported into India, whether by himself or by another person"

with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

368. Wrongfully concealing or keeping in confinement, kidnapped or abducted person.—Whoever, knowing that any person has been kidnapped or has been abducted, wrongfully conceals or confines such person, shall be punished in the same manner as if he had kidnapped or abducted such person with the same intention or knowledge, or for the same purpose as that with or for which he conceals or detains such person in confinement.

CASE LAW ▸ Wrongful Concealment.—To constitute an offence under Section 368, IPC the prosecution must establish the following ingredients, (*a*) the person in question has been kidnapped, (*b*) the accused knew that the said person had been kidnapped, (*c*) the accused having such knowledge, wrongfully conceals or confines the person concerned, *Saroj Kumari* v. *State of U.P.*, (1973) 3 SCC 669.

▸ **Knowledge of offence.**—Knowledge on the part of the accused cannot be presumed to convict him under Section 368, IPC, *Griftar Alla Bux* v. *State*, 1973 Cri LJ 12.

369. Kidnapping or abducting child under ten years with intent to steal from its person.—Whoever kidnaps or abducts any child under the age of ten years with the intention of taking dishonestly any movable property from the person of such child, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

[374][**370. Trafficking of person.**—(1) Whoever, for the purpose of exploitation, (*a*) recruits, (*b*) transports, (*c*) harbours, (*d*) transfers, or (*e*) receives, a person or persons, by—

First.—using threats, or

Secondly.—using force, or any other form of coercion, or

Thirdly.—by abduction, or

Fourthly.—by practising fraud, or deception, or

Fifthly.—by abuse of power, or

Sixthly.—by inducement, including the giving or receiving of payments or benefits, in order to achieve the consent of any person having control over the person recruited, transported, harboured, transferred or received,

commits the offence of trafficking.

Explanation 1.—The expression "exploitation" shall include any act of physical exploitation or any form of sexual exploitation, slavery or practices similar to slavery, servitude, or the forced removal of organs.

Explanation 2.—The consent of the victim is immaterial in determination of the offence of trafficking.

---

374. *Subs.* by Act 13 of 2013, S. 8 (w.r.e.f. 3-2-2013). Prior to substitution it read as:
"370. *Buying or disposing of any person as a slave.*—Whoever imports, exports, removes, buys, sells or disposes of any person as a slave, or accepts, receives or detains against his will any person as a slave, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine."

(2) Whoever commits the offence of trafficking shall be punished with rigorous imprisonment for a term which shall not be less than seven years, but which may extend to ten years, and shall also be liable to fine.

(3) Where the offence involves the trafficking of more than one person, it shall be punishable with rigorous imprisonment for a term which shall not be less than ten years but which may extend to imprisonment for life, and shall also be liable to fine.

(4) Where the offence involves the trafficking of a minor, it shall be punishable with rigorous imprisonment for a term which shall not be less than ten years, but which may extend to imprisonment for life, and shall also be liable to fine.

(5) Where the offence involves the trafficking of more than one minor, it shall be punishable with rigorous imprisonment for a term which shall not be less than fourteen years, but which may extend to imprisonment for life, and shall also be liable to fine.

(6) If a person is convicted of the offence of trafficking of minor on more than one occasion, then such person shall be punished with imprisonment for life, which shall mean imprisonment for the remainder of that person's natural life, and shall also be liable to fine.

(7) When a public servant or a police officer is involved in the trafficking of any person then, such public servant or police officer shall be punished with imprisonment for life, which shall mean imprisonment for the remainder of that person's natural life, and shall also be liable to fine.

370-A. Exploitation of a trafficked person.—(1) Whoever, knowingly or having reason to believe that a minor has been trafficked, engages such minor for sexual exploitation in any manner, shall be punished with rigorous imprisonment for a term which shall not be less than five years, but which may extend to seven years, and shall also be liable to fine.

(2) Whoever, knowingly by or having reason to believe that a person has been trafficked, engages such person for sexual exploitation in any manner, shall be punished with rigorous imprisonment for a term which shall not be less than three years, but which may extend to five years, and shall also be liable to fine.]

371. Habitual dealing in slaves.—Whoever habitually imports, exports, removes, buys, sells, traffics or deals in slaves, shall be punished with [375][imprisonment for life], or with imprisonment of either description for a term not exceeding ten years, and shall also be liable to fine.

372. Selling minor for purposes of prostitution, etc.—Whoever sells, lets to hire, or otherwise disposes of any [376][person under the age of eighteen years with intent that such person shall at any age be employed or used for the purpose of

---

375. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch.
376. *Subs.* by Act 18 of 1924, S. 2. Prior to substitution it read as:
"minor under the age of eighteen years with intent that such minor shall be employed or used for the purpose of prostitution or for any unlawful and immoral purpose, or knowing it to be likely that such minor will be"

prostitution or illicit intercourse with any person or for any unlawful and immoral purpose, or knowing it to be likely that such person will at any age be] employed or used for any such purpose, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

[377][*Explanation I.*—When a female under the age of eighteen years is sold, let for hire, or otherwise disposed of to a prostitute or to any person who keeps or manages a brothel, the person so disposing of such female shall, until the contrary is proved, be presumed to have disposed of her with the intent that she shall be used for the purpose of prostitution.

Explanation II.—For the purposes of this section "illicit intercourse" means sexual intercourse between persons not united by marriage, or by any union or tie which, though not amounting to a marriage, is recognized by the personal law or custom of the community to which they belong or, where they belong to different communities, of both such communities, as constituting between them a quasi-marital relation.]

373. Buying minor for purposes of prostitution, etc.—Whoever buys, hires or otherwise obtains possession of any [378][person under the age of eighteen years with intent that such person shall at any age be employed or used for the purpose of prostitution or illicit intercourse with any person or for any unlawful and immoral purpose, or knowing it to be likely that such person will at any age be] employed or used for any such purpose, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

[379][*Explanation I.*—Any prostitute or any person keeping or managing a brothel, who buys, hires or otherwise obtains possession of a female under the age of eighteen years shall, until the contrary is proved, be presumed to have obtained possession of such female with the intent that she shall be used for the purpose of prostitution.

Explanation II.—"Illicit intercourse" has the same meaning as in Section 372.]

374. Unlawful compulsory labour.—Whoever unlawfully compels any person to labour against the will of that person, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.

[380][*Sexual Offences*]

[381][**375. Rape.**—A man is said to commit "rape" if he—

---

377. *Ins.* by Act 18 of 1924, S. 3.
378. *Subs.* by Act 18 of 1924, S. 2. Prior to substitution it read as:
"minor under the age of eighteen years with intent that such minor shall be employed or used for the purpose of prostitution or for any unlawful and immoral purpose, or knowing it to be likely that such minor will be"
379. *Ins.* by Act 18 of 1924, S. 4
380. *Subs.* for "Of rape" by Act 43 of 1983, S. 3 (w.e.f. 25-12-1983).
381. *Subs.* by Act 13 of 2013, S. 9 (w.r.e.f. 3-2-2013). Prior to substitution it read as:
"375. *Rape.*—A man is said to commit "rape" who, except in the case hereinafter excepted, has sexual intercourse with a woman under circumstances falling under any of the six following descriptions:—
First.—Against her will.

(*a*) penetrates his penis, to any extent, into the vagina, mouth, urethra or anus of a woman or makes her to do so with him or any other person; or

(*b*) inserts, to any extent, any object or a part of the body, not being the penis, into the vagina, the urethra or anus of a woman or makes her to do so with him or any other person; or

(*c*) manipulates any part of the body of a woman so as to cause penetration into the vagina, urethra, anus or any part of body of such woman or makes her to do so with him or any other person; or

(*d*) applies his mouth to the vagina, anus, urethra of a woman or makes her to do so with him or any other person,

under the circumstances falling under any of the following seven descriptions—

First.—Against her will.

Secondly.—Without her consent.

CASE LAW ▸ Intention/Consent/Mens Rea.—"Consent" is stated to be an act of reason coupled with deliberation. It denotes an active will in the mind of a person to permit the doing of an act complained of. "Consent", for the purpose of Section 375, requires voluntary participation not only after the exercise of intelligence based on the knowledge of the significance and moral quality of the act but after having fully exercised the choice between resistance and assent. Whether there was consent or not, is to be ascertained only on a careful study of all relevant circumstances. An inference as to consent can be drawn if only based on evidence or probabilities of the case, *Kaini Rajan* v. *State of Kerala*, (2013) 9 SCC 113 : (2013) 3 SCC (Cri) 858.

▸ **Underage victim.**—Age of victim about 14 years at the time of offence, question of consent was of no consequence, *State of H.P.* v. *Shree Kant Shekari*, (2004) 8 SCC 153.

▸ **Consensual sexual relationship.**—When consent of prosecutrix was based on her own belief that she had duly married the accused (her faith permitting polygamy) and she was aware of previous marriage of appellant-accused and this was absence of any false promise, inducement, persuasion or misstatement of fact or law by accused, consequent sexual indulgement amounted to consensual sexual relationship for which accused cannot be held guilty for rape, *Vinod Kumar* v. *State of Kerala*, (2014) 5 SCC 678 : (2014) 2 SCC (Cri) 663.

Secondly.—Without her consent.

Thirdly.—With her consent, when her consent has been obtained by putting her or any person in whom she is interested in fear of death or of hurt.

Fourthly.—With her consent, when the man knows that he is not her husband, and that her consent is given because she believes that he is another man to whom she is or believes herself to be lawfully married.

Fifthly.—With her consent, when, at the time of giving such consent, by reason of unsoundness of mind or intoxication or the administration by him personally or through another of any stupefying or unwholesome substance, she is unable to understand the nature and consequences of that to which she gives consent.

Sixthly.—With or without her consent, when she is under sixteen years of age.

Explanation.—Penetration is sufficient to constitute the sexual intercourse necessary to the offence of rape.

Exception.—Sexual intercourse by a man with his own wife, the wife not being under fifteen years of age, is not rape."

▸ **Consent of prosecutrix to physical relationship.**— Consent given under misconception of fact is no consent in eyes of law but, misconception of fact, has to be in proximity of time to occurrence, and cannot be spread over period of 4 yrs, as in this case, *Maheshwar Tigga* v. *State of Jharkhand*, (2020) 10 SCC 108.

Thirdly.—With her consent, when her consent has been obtained by putting her or any person in whom she is interested, in fear of death or of hurt.

Fourthly.—With her consent, when the man knows that he is not her husband and that her consent is given because she believes that he is another man to whom she is or believes herself to be lawfully married.

Fifthly.—With her consent when, at the time of giving such consent, by reason of unsoundness of mind or intoxication or the administration by him personally or through another of any stupefying or unwholesome substance, she is unable to understand the nature and consequences of that to which she gives consent.

Sixthly.—With or without her consent, when she is under eighteen years of age.

Seventhly.—When she is unable to communicate consent.

Explanation 1.—For the purposes of this section, "vagina" shall also include labia majora.

Explanation 2.—Consent means an unequivocal voluntary agreement when the woman by words, gestures or any form of verbal or non-verbal communication, communicates willingness to participate in the specific sexual act:

Provided that a woman who does not physically resist to the act of penetration shall not by the reason only of that fact, be regarded as consenting to the sexual activity.

Exception 1.—A medical procedure or intervention shall not constitute rape.

[382][*Exception 2*.—Sexual intercourse or sexual acts by a man with his own wife, the wife not being under fifteen years of age, is not rape].]

CASE LAW ▸ Sex with minor wife.—Sexual intercourse with minor (below 18 years) wife is rape. Exception 2 to Section 375 IPC is arbitrary, capricious, whimsical and violative of Article 14, 15 and 21 of the Constitution of India. However, the verdict will apply prospectively, *Independent Thought* v. *Union of India*, (2017) 10 SCC 800.

Section 198(6) of the CrPC will apply to cases of rape of "wives" below 18 years, and cognizance can be taken only in accordance with the provisions of Section 198(6) of the Code, *Independent Thought* v. *Union of India*, (2017) 10 SCC 800.

▸ **Meaning of "consent" with respect to Section 375.**—"Consent" with respect to Section 375 involves an active understanding of circumstances, actions and consequences of proposed act. Individual who makes a reasoned choice to act after evaluating various alternative actions (or inaction) as well as various possible consequences flowing from such action or inaction, consents to such action. Where a woman does not "consent" to sexual acts described in main body of Section 375, offence of rape has occurred. While

---

382. Read down in *Independent Thought* v. *Union of India*, (2017) 10 SCC 800 in the following terms (at para 197):

"Sexual intercourse or sexual acts by a man with his own wife, the wife not being 18 years, is not rape".

Section 90 IPC does not define term "consent", "consent" based on a "misconception of fact" is not consent in the eye of law. Thus, in case of woman engaging in sexual relations on false promise to marriage, her "consent" is based on "misconception of fact", and such sexual act(s) will amount to rape, *Pramod Suryabhan Pawar* v. *State Of Maharashtra*, (2019) 9 SCC 608.

▸ **Consent under misconception of fact.**—If prosecution proves beyond reasonable doubt that consent of prosecutrix was obtained by accused on false promise to marry her, though knowing well from very beginning that he had no such intention, it cannot be treated as consent but amounts to cheating and consent given under "misconception of fact" within meaning of Section 90. Court would presume under Section 114-A of Evidence Act absence of consent of prosecutrix when sexual intercourse is proved and victim states in her evidence before court that she did not consent, *Anurag Soni* v. *State of Chhattisgarh*, (2019) 13 SCC 1.

▸ **Rape.**—Rape is extremely reprehensible and hated crime. The fact that prosecutrix later got married, is no ground for accused's acquittal. Offence of rape is against entire society. It is extremely reprehensible and hated crime which defiles and degrades victim physically as well as mentally and shakes very core of life and dignity, *Anurag Soni* v. *State of Chhattisgarh*, (2019) 13 SCC 1.

STATE AMENDMENTS

(Made prior to amendment by Central Act 43 of 1983)

Manipur.—In its application to the Union Territory of Manipur, in Section 375—

(*a*) in clause Fifthly (now Sixthly), for the word "sixteen*" *substitute* the word "fourteen"; and

(*b*) in the Exception, for the word "fifteen" *substitute* the word "thirteen". [*Vide* Act 30 of 1950, S. 3(2) (16-4-1950)]

* Amended to "eighteen" by Criminal Law (Amendment) Act, 2013 (13 of 2013).

[383][**376. Punishment for rape.**—(1) Whoever, except in the cases provided for in sub-section (2), commits rape, shall be punished with rigorous imprisonment of

---

383. *Subs.* by Act 13 of 2013, S. 9 (w.r.e.f. 3-2-2013). Prior to substitution it read as:

"376. *Punishment for rape.*—(1) Whoever, except in the cases provided for by sub-section (2), commits rape shall be punished with imprisonment of either description for a term which shall not be less than seven years but which may be for life or for a term which may extend to ten years and shall also be liable to fine unless the woman raped is his own wife and is not under twelve years of age, in which cases, he shall be punished with imprisonment of either description for a term which may extend to two years or with fine or with both:

Provided that the court may, for adequate and special reasons to be mentioned in the judgment, impose a sentence of imprisonment for a term of less than seven years.

(2) Whoever,—

(*a*) being a police officer commits rape—

(*i*) within the limits of the police station to which he is appointed; or

(*ii*) in the premises of any station house whether or not situated in the police station to which he is appointed; or

(*iii*) on a woman in his custody or in the custody of a police officer subordinate to him; or

(*b*) being a public servant, takes advantage of his official position and commits rape on a woman in his custody as such public servant or in the custody of a public servant subordinate to him; or

(*c*) being on the management or on the staff of a jail, remand home or other place of custody established by or under any law for the time being in force or of a women's or children's institution takes advantage of his official position and commits rape on any inmate of such jail, remand home, place or institution; or

(*d*) being on the management or on the staff of a hospital, takes advantage of his official position and commits rape on a woman in that hospital; or

(*e*) commits rape on a woman knowing her to be pregnant; or

(*f*) commits rape on a woman when she is under twelve years of age; or

either description for a term which [384][shall not be less than ten years, but which may extend to imprisonment for life, and shall also be liable to fine].

(2) Whoever,—

(*a*) being a police officer, commits rape—

(*i*) within the limits of the police station to which such police officer is appointed; or

(*ii*) in the premises of any station house; or

(*iii*) on a woman in such police officer's custody or in the custody of a police officer subordinate to such police officer; or

(*b*) being a public servant, commits rape on a woman in such public servant's custody or in the custody of a public servant subordinate to such public servant; or

(*c*) being a member of the armed forces deployed in an area by the Central or a State Government commits rape in such area; or

(*d*) being on the management or on the staff of a jail, remand home or other place of custody established by or under any law for the time being in force or of a women's or children's institution, commits rape on any inmate of such jail, remand home, place or institution; or

(*e*) being on the management or on the staff of a hospital, commits rape on a woman in that hospital; or

(*f*) being a relative, guardian or teacher of, or a person in a position of trust or authority towards the woman, commits rape on such woman; or

(*g*) commits rape during communal or sectarian violence; or

(*h*) commits rape on a woman knowing her to be pregnant; or

(*i*) [385][* * *]

(*j*) commits rape, on a woman incapable of giving consent; or

(*k*) being in a position of control or dominance over a woman, commits rape on such woman; or

---

(*g*) commits gang rape,

shall be punished with rigorous imprisonment for a term which shall not be less than ten years but which may be for life and shall also be liable to fine:

Provided that the court may, for adequate and special reasons to be mentioned in the judgment, impose a sentence of imprisonment of either description for a term of less than ten years.

Explanation 1.—Where a woman is raped by one or more in a group of persons acting in furtherance of their common intention, each of the persons shall be deemed to have committed gang rape within the meaning of this sub-section.

Explanation 2.—"Women's or children's institution" means an institution, whether called an orphanage or a home for neglected women or children or a widows' home or by any other name, which is established and maintained for the reception and care of women or children.

Explanation 3.—"Hospital" means the precincts of the hospital and includes the precincts of any institution for the reception and treatment of persons during convalescence or of persons requiring medical attention or rehabilitation."

384. *Subs.* by Act 22 of 2018, S. 4(*a*) (w.r.e.f. 21-4-2018). Prior to substitution it read as:
"shall not be less than seven years, but which may extend to imprisonment for life, and shall also be liable to fine"

385. *Omitted* by Act 22 of 2018, S. 4(*b*) (w.r.e.f. 21-4-2018). Prior to omission it read as:
"(*i*) commits rape on a woman when she is under sixteen years of age; or"

(*l*) commits rape on a woman suffering from mental or physical disability; or

(*m*) while committing rape causes grievous bodily harm or maims or disfigures or endangers the life of a woman; or

(*n*) commits rape repeatedly on the same woman,

shall be punished with rigorous imprisonment for a term which shall not be less than ten years, but which may extend to imprisonment for life, which shall mean imprisonment for the remainder of that person's natural life, and shall also be liable to fine.

Explanation.—For the purposes of this sub-section,—

(*a*) "armed forces" means the naval, military and air forces and includes any member of the Armed Forces constituted under any law for the time being in force, including the paramilitary forces and any auxiliary forces that are under the control of the Central Government or the State Government;

(*b*) "hospital" means the precincts of the hospital and includes the precincts of any institution for the reception and treatment of persons during convalescence or of persons requiring medical attention or rehabilitation;

(*c*) "police officer" shall have the same meaning as assigned to the expression "police" under the Police Act, 1861 (5 of 1861);

(*d*) "women's or children's institution" means an institution, whether called an orphanage or a home for neglected women or children or a widow's home or an institution called by any other name, which is established and maintained for the reception and care of women or children.]

[386][(3) Whoever, commits rape on a woman under sixteen years of age shall be punished with rigorous imprisonment for a term which shall not be less than twenty years, but which may extend to imprisonment for life, which shall mean imprisonment for the remainder of that person's natural life, and shall also be liable to fine:

Provided that such fine shall be just and reasonable to meet the medical expenses and rehabilitation of the victim:

Provided further that any fine imposed under this sub-section shall be paid to the victim.]

CASE LAW ▸ Rape of young girl children.—When statutory provisions regarding rape of minor girls and punishment therefor exists under Section 376(2)(*i*) IPC, Court can neither enhance punishment so provided nor can it create a new offence and prescribed punishment in that regard. This is a legislative function and Court can only make suggestions to legislature, *Supreme Court Women Lawyers Assn. (SCWLA) v. Union of India*, (2016) 3 SCC 680.

386. *Ins.* by Act 22 of 2018, S. 4(*c*) (w.r.e.f. 21-4-2018).

▸ **Rape of minor.**— In *Hemudan Nanbha Gadhvi* v. *State of Gujarat*, (2019) 17 SCC 523., Prosecutrix (aged 9 yrs) turned hostile and failed to identify accused in dock subsequently (after 6 months) while deposing during trial. The Court held that this fact by itself, not sufficient to efface evidence, including identification in TI parade, which already established guilt of accused. Period of 6 months was sufficient to win over prosecutrix, considering her poor family background. Since conviction of appellant was sustainable, despite having won over prosecutrix, conviction and sentence of 10 yrs' RI, confirmed.

▸ **Rape or gang rape — Determination.**—A case is not of gang rape, when the evidence does not indicate that the other accused committed rape on the prosecutrix, nor that they shared the common intention to rape nor aided the commission of rape by the person who did commit rape, *Manoj Mishra* v. *State of U.P.*, (2021) 10 SCC 763.

▸ **Statement of prosecutrix — Corroboration when required.**—Testimony of the victim in rape cases is vital and unless there are compelling reasons which necessitate looking for corroboration of her statement, the courts should find no difficulty to act on the testimony of a victim of sexual assault alone to convict an accused where her testimony inspires confidence and is found to be reliable. Seeking corroboration of her statement before relying upon the same, as a rule, in such cases amounts to adding insult to injury, *Sham Singh* v. *State of Haryana*, (2018) 18 SCC 34.

▸ **DNA test.**—Traditional "autosomal-STR" DNA analysis vis-à-vis "Y-STR" method of DNA analysis, distinguished. In cases of sexual assault DNA of victim and the perpetrator are often mixed, and, "Y-STR" method provides a unique way of isolating only the male DNA, hence, "Y-STR" method of DNA analysis preferably be followed, *Ravi* v. *State Of Maharashtra*, (2019) 9 SCC 622.

▸ **Promiscuity/Habituation to sexual intercourse of prosecutrix.**—Promiscuity/habituation to sexual intercourse of prosecutrix cannot be a ground to justify rape. Prosecutrix has equal right to privacy and protection of law. No presumption of her being a woman of loose moral character can be drawn merely on basis of some material showing she was habituated to sexual intercourse. Her evidence cannot also be discarded solely on ground of her unchastity, *State (NCT of Delhi)* v. *Pankaj Chaudhary*, (2019) 11 SCC 575.

[387][**376-A. Punishment for causing death or resulting in persistent vegetative state of victim.**—Whoever, commits an offence punishable under sub-section (1) or sub-section (2) of Section 376 and in the course of such commission inflicts an injury which causes the death of the woman or causes the woman to be in a persistent vegetative state, shall be punished with rigorous imprisonment for a term which shall not be less than twenty years, but which may extend to imprisonment for life, which shall mean imprisonment for the remainder of that person's natural life, or with death.]

STATE AMENDMENTS

Arunachal Pradesh.—In its application to the State of Arunanchal Pradesh, after Section 376-A, the following section shall be *inserted*, namely—

"376-AA. *Punishment for rape on a woman up to twelve years of age.*—Whoever commits rape on a woman up to twelve years of age shall be punished with death, or rigorous imprisonment

387. *Subs.* by Act 13 of 2013, S. 9 (w.r.e.f. 3-2-2013). Prior to substitution it read as:
"376-A. *Intercourse by a man with his wife during separation.*—Whoever has sexual intercourse with his own wife, who is living separately from him under a decree of separation or under any custom or usage without her consent shall be punished with imprisonment of either description for a term which may extend to two years and shall also be liable to fine."

for a term which shall not be less than fourteen years but which may extend to imprisonment for life which shall mean imprisonment for the remainder of that person's natural life, and shall also be liable to fine.". [*Vide* Arunachal Pradesh Act 3 of 2019, S. 8, dt. 2-4-2019].

CASE LAW ▸ Applicability of Section 376-A as it stood w.e.f. 3-2-2013 as amended by 2013 Ordinance.— Penal provisions, held, cannot be brought into force with retrospective effect. Thus, held, law as in force as amended by 2013 Ordinance on date of offence would apply. Provisions of 2013 Amendment Act cannot be given retrospective effect as that would violate Article 20(1), *Shatrughna Baban Meshram* v. *State of Maharashtra*, (2021) 1 SCC 596.

[388][**376-AB. Punishment for rape on woman under twelve years of age.**— Whoever, commits rape on a woman under twelve years of age shall be punished with rigorous imprisonment for a term which shall not be less than twenty years, but which may extend to imprisonment for life, which shall mean imprisonment for the remainder of that person's natural life, and with fine or with death:

Provided that such fine shall be just and reasonable to meet the medical expenses and rehabilitation of the victim:

Provided further that any fine imposed under this section shall be paid to the victim.]

[389][**376-B. Sexual intercourse by husband upon his wife during separation.**—Whoever has sexual intercourse with his own wife, who is living separately, whether under a decree of separation or otherwise, without her consent, shall be punished with imprisonment of either description for a term which shall not be less than two years but which may extend to seven years, and shall also be liable to fine.

Explanation.—In this section, "sexual intercourse" shall mean any of the acts mentioned in clauses (*a*) to (*d*) of Section 375.]

[390][**376-C. Sexual intercourse by a person in authority.**—Whoever, being—

(*a*) in a position of authority or in a fiduciary relationship; or

---

388. *Ins.* by Act 22 of 2018, S. 5 (w.r.e.f. 21-4-2018).

389. *Subs.* by Act 13 of 2013, S. 9 (w.r.e.f. 3-2-2013). Prior to substitution it read as:
"376-B. *Intercourse by public servant with woman in his custody.*—Whoever, being a public servant, takes advantage of his official position and induces or seduces, any woman, who is in his custody as such public servant or in the custody of a public servant subordinate to him, to have sexual intercourse with him, such sexual intercourse not amounting to the offence of rape, shall be punished with imprisonment of either description for a term which may extend to five years and shall also be liable to fine."

390. *Subs.* by Act 13 of 2013, S. 9 (w.r.e.f. 3-2-2013). Prior to substitution it read as:
'376-C. *Intercourse by superintendent of jail, remand home, etc.*—Whoever, being the superintendent or manager of a jail, remand home or other place of custody established by or under any law for the time being in force or of a women's or children's institution takes advantage of his official position and induces or seduces any female inmate of such jail, remand home, place or institution to have sexual intercourse with him, such sexual intercourse not amounting to the offence of rape, shall be punished with imprisonment of either description for a term which may extend to five years and shall also be liable to fine.

Explanation 1.—"Superintendent" in relation to a jail, remand home or other place of custody or a women's or children's institution includes a person holding any other office in such jail, remand home, place or institution by virtue of which he can exercise any authority or control over its inmates.

Explanation 2.—The expression "women's or children's institution" shall have the same meaning as in Explanation 2 to sub-section (2) of Section 376.'

(*b*) a public servant; or

(*c*) superintendent or manager of a jail, remand home or other place of custody established by or under any law for the time being in force, or a women's or children's institution; or

(*d*) on the management of a hospital or being on the staff of a hospital,

abuses such position or fiduciary relationship to induce or seduce any woman either in his custody or under his charge or present in the premises to have sexual intercourse with him, such sexual intercourse not amounting to the offence of rape, shall be punished with rigorous imprisonment of either description for a term which shall not be less than five years, but which may extend to ten years, and shall also be liable to fine.

Explanation 1.—In this section, "sexual intercourse" shall mean any of the acts mentioned in clauses (*a*) to (*d*) of Section 375.

Explanation 2.—For the purposes of this section, Explanation 1 to Section 375 shall also be applicable.

Explanation 3.—"Superintendent", in relation to a jail, remand home or other place of custody or a women's or children's institution, includes a person holding any other office in such jail, remand home, place or institution by virtue of which such person can exercise any authority or control over its inmates.

Explanation 4.—The expressions "hospital" and "women's or children's institution" shall respectively have the same meaning as in Explanation to sub-section (2) of Section 376.]

[391][**376-D. Gang rape.**—Where a woman is raped by one or more persons constituting a group or acting in furtherance of a common intention, each of those persons shall be deemed to have committed the offence of rape and shall be punished with rigorous imprisonment for a term which shall not be less than twenty years, but which may extend to life which shall mean imprisonment for the remainder of that person's natural life, and with fine:

Provided that such fine shall be just and reasonable to meet the medical expenses and rehabilitation of the victim:

Provided further that any fine imposed under this section shall be paid to the victim.]

CASE LAW ▸ Gang rape, Joint liability.—Where a woman is raped by one or more in a group of persons acting in furtherance of their common intention, each of the persons shall be deemed to have committed gang rape and all of them shall be liable to be punished under Section 376(2)(Subsequently amended) IPC, *Mukesh* v. *State (NCT of Delhi)*, (2017) 6 SCC 1.

---

391. *Subs.* by Act 13 of 2013, S. 9 (w.r.e.f. 3-2-2013). Prior to substitution it read as:

'376-D. *Intercourse by any member of the management or staff of a hospital with any woman in that hospital.*—Whoever, being on the management of a hospital or being on the staff of a hospital takes advantage of his position and has sexual intercourse with any woman in that hospital, such sexual intercourse not amounting to the offence of rape, shall be punished with imprisonment of either description for a term which may extend to five years and shall also be liable to fine.

Explanation.—The expression "hospital" shall have the same meaning as in Explanation 3 to sub-section (2) of Section 376.'

[392][**376-DA. Punishment for gang rape on woman under sixteen years of age.**—Where a woman under sixteen years of age is raped by one or more persons constituting a group or acting in furtherance of a common intention, each of those persons shall be deemed to have committed the offence of rape and shall be punished with imprisonment for life, which shall mean imprisonment for the remainder of that person's natural life, and with fine:

Provided that such fine shall be just and reasonable to meet the medical expenses and rehabilitation of the victim:

Provided further that any fine imposed under this section shall be paid to the victim.]

STATE AMENDMENTS

Arunachal Pradesh.—In its application to the State of Arunanchal Pradesh, after Section 376-D, the following section shall be *inserted*, namely—

"376-DA. *Punishment for gang rape on a woman twelve years of age.*—Where a woman up to twelve years of age, is raped by one or more persons constituting a group or acting in furtherance of a common intention, each of those persons shall be deemed to have committed the offence of rape and shall be punished with death, or rigorous imprisonment for a term which shall not be less than twenty years, but which may extend to imprisonment for life which shall mean imprisonment for the remainder of that person's natural life, and shall also be liable to fine:

Provided that such fine shall be just and reasonable to meet the medical expenses and rehabilitation of the victim:

Provided further that any fine imposed under this section shall be paid to the victim.". [*Vide* Arunachal Pradesh Act 3 of 2019, S. 9, dt. 2-4-2019].

[393][**376-DB. Punishment for gang rape on woman under twelve years of age.**—Where a woman under twelve years of age is raped by one or more persons constituting a group or acting in furtherance of a common intention, each of those persons shall be deemed to have committed the offence of rape and shall be punished with imprisonment for life, which shall mean imprisonment for the remainder of that person's natural life, and with fine, or with death:

Provided that such fine shall be just and reasonable to meet the medical expenses and rehabilitation of the victim:

Provided further that any fine imposed under this section shall be paid to the victim.]

[394][**376-E. Punishment for repeat offenders.**—Whoever has been previously convicted of an offence punishable under Section 376 or Section 376-A or [395][Section 376-AB or Section 376-D or Section 376-DA or Section 376-DB] and is subsequently convicted of an offence punishable under any of the said sections shall be punished with imprisonment for life which shall mean imprisonment for the remainder of that person's natural life, or with death.]

---

392. *Ins.* by Act 22 of 2018, S. 6 (w.r.e.f. 21-4-2018).
393. *Ins.* by Act 22 of 2018, S. 6 (w.r.e.f. 21-4-2018).
394. *Ins.* by Act 13 of 2013, S. 9 (w.r.e.f. 3-2-2013).
395. *Subs.* for "Section 376-D" by Act 22 of 2018, S. 7 (w.r.e.f. 21-4-2018).

STATE AMENDMENTS

Chhattisgarh.—After Section 376-E, the following shall be *inserted*, namely—

"376-F. *Liability of person in-charge of workplace and others to give information about offence*.—Whoever, being person in-charge of any work place or any other person present at such place, having knowledge that an offence under Section 376 or Section 376-D, is being committed at such place and being in a position to prevent commission of such offence fails so, to prevent such offence or to give information of the commission of such offence, to any magistrate or police officer, by any mode, with the intention of screening the offender from legal punishment, shall be liable to be punished for abetment of such offence with imprisonment of either description which may extend to three years and fine and no such person shall incur any liability for giving such information.

Explanation.—Work place includes any mode of transport owned, hired or otherwise engaged by the person in-charge of the work place for the conveyance of the woman, who was subjected to such offence, to and from her residence to such work place.". [*Vide* Chhattisgarh Act 25 of 2015, S. 5, w.e.f. 21-7-2015]

Of unnatural offences

[396][**377. Unnatural offences.**—Whoever voluntarily has carnal intercourse against the order of nature with any man, woman or animal, shall be punished with [397][imprisonment for life], or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

Explanation.—Penetration is sufficient to constitute the carnal intercourse necessary to the offence described in this section.]

CASE LAW ▸ Constitutional validity.—Section 377, in so far as it criminalizes/penalizes any consensual sexual conduct/relationship between two adults, be it homosexuals (man and a man), heterosexuals (man and a woman) or lesbians (woman and a woman), cannot be regarded as constitutional. However, if anyone, i.e. both a man and a woman, engages in any kind of sexual activity with an animal, the said aspect of Section 377 is constitutional and it shall remain a penal offence under the said section. Any act of the description covered under Section 377 IPC done between two individuals without the consent of any one of them would invite penal liability under the said section, *Suresh Kumar Koushal* v. *Naz Foundation*, (2014) 1 SCC 1, is overruled, *Navtej Singh Johar* v. *Union of India*, (2018) 10 SCC 1.

▸ **Pederasty**.—Consent of minor boy for pederasty (unnatural intercourse between man and boy) is irrelevant, *Anil* v. *State of Maharashtra*, (2014) 4 SCC 69 : (2014) 2 SCC (Cri) 266.

---

396. Partially struck down in *Navtej Singh Johar* v. *Union of India*, (2018) 10 SCC 1. *Held* unconstitutional by the 5-Judge Constitution Bench to the limited extent as mentioned hereinafter:—

"Section 377 IPC, so far as it penalizes any consensual sexual relationship between two adults, be it homosexuals (man and a man), heterosexuals (man and a woman) or lesbians (woman and a woman), cannot be regarded as constitutional. However, if anyone, by which we mean both a man and a woman, engages in any kind of sexual activity with an animal, the said aspect of Section 377 is constitutional and it shall remain a penal offence under Section 377 IPC. Any act of the description covered under Section 377 IPC done between two individuals without the consent of any one of them would invite penal liability under Section 377 IPC."

397. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch.

CHAPTER XVII
OF OFFENCES AGAINST PROPERTY
Of theft

378. Theft.—Whoever, intending to take dishonestly any movable property out of the possession of any person without that person's consent, moves that property in order to such taking, is said to commit theft.

Explanation 1.—A thing so long as it is attached to the earth, not being movable property, is not the subject of theft; but it becomes capable of being the subject of theft as soon as it is severed from the earth.

Explanation 2.—A moving effected by the same act which effects the severance may be a theft.

Explanation 3.—A person is said to cause a thing to move by removing an obstacle which prevented it from moving or by separating it from any other thing, as well as by actually moving it.

Explanation 4.—A person, who by any means causes an animal to move, is said to move that animal, and to move everything which, in consequence of the motion so caused, is moved by that animal.

Explanation 5.—The consent mentioned in the definition may be express or implied, and may be given either by the person in possession, or by any person having for that purpose authority either express or implied.

Illustrations

(*a*) *A* cuts down a tree on *Z*'s ground, with the intention of dishonestly taking the tree out of *Z*'s possession without *Z*'s consent. Here, as soon as *A* has severed the tree in order to such taking, he has committed theft.

(*b*) *A* puts a bait for dogs in his pocket, and thus induces *Z*'s dog to follow it. Here, if *A*'s intention be dishonestly to take the dog out of *Z*'s possession without *Z*'s consent, *A* has committed theft as soon as *Z*'s dog has begun to follow *A*.

(*c*) *A* meets a bullock carrying a box of treasure. He drives the bullock in a certain direction, in order that he may dishonestly take the treasure. As soon as the bullock begins to move, *A* has committed theft of the treasure.

(*d*) *A* being *Z*'s servant, and entrusted by *Z* with the care of *Z*'s plate, dishonestly runs away with the plate, without *Z*'s consent. *A* has committed theft.

(*e*) *Z*, going on a journey, entrusts his plate to *A*, the keeper of a warehouse, till *Z* shall return. *A* carries the plate to a goldsmith and sells it. Here the plate was not in *Z*'s possession. It could not therefore be taken out of *Z*'s possession, and *A* has not committed theft, though he may have committed criminal breach of trust.

(*f*) *A* finds a ring belonging to *Z* on a table in the house which *Z* occupies. Here the ring is in *Z*'s possession, and if *A* dishonestly removes it, *A* commits theft.

(*g*) *A* finds a ring lying on the high road, not in the possession of any person. *A*, by taking it, commits no theft, though he may commit criminal misappropriation of property.

(*h*) *A* sees a ring belonging to *Z* lying on a table in *Z*'s house. Not venturing to misappropriate the ring immediately for fear of search and detection, *A* hides the ring in a place where it is highly improbable that it will ever be found by *Z*, with the intention of taking the ring from the hiding place and selling it when the loss is forgotten. Here *A*, at the time of first moving the ring, commits theft.

(*i*) *A* delivers his watch to *Z*, a jeweller, to be regulated. *Z* carries it to his shop. *A*, not owing to the jeweller any debt for which the jeweller might lawfully detain the watch as a security, enters the shop openly, takes his watch by force out of *Z*'s hand, and carries it away. Here *A*, though he may have committed criminal trespass and assault, has not committed theft, inasmuch as what he did was not done dishonestly.

(*j*) If *A* owes money to *Z* for repairing the watch, and if *Z* retains the watch lawfully as a security for the debt, and *A* takes the watch out of *Z*'s possession, with the intention of depriving *Z* of the property as a security for his debt, he commits theft, inasmuch as he takes it dishonestly.

(*k*) Again, if *A*, having pawned his watch to *Z*, takes it out of *Z*'s possession without *Z*'s consent, not having paid what he borrowed on the watch, he commits theft, though the watch is his own property inasmuch as he takes it dishonestly.

(*l*) *A* takes an article belonging to *Z* out of *Z*'s possession, without *Z*'s consent, with the intention of keeping it until he obtains money from *Z* as a reward for its restoration. Here *A* takes dishonestly; *A* has therefore committed theft.

(*m*) *A*, being on friendly terms with *Z*, goes into *Z*'s library in *Z*'s absence, and takes away a book without *Z*'s express consent for the purpose merely of reading it, and with the intention of returning it. Here, it is probable that *A* may have conceived that he had *Z*'s implied consent to use *Z*'s book. If this was *A*'s impression, *A* has not committed theft.

(*n*) *A*, asks charity from *Z*'s wife. She gives *A* money, food and clothes, which *A* knows to belong to *Z* her husband. Here it is probable that *A* may conceive that *Z*'s wife is authorised to give away alms. If this was *A*'s impression, *A* has not committed theft.

(*o*) *A* is the paramour of *Z*'s wife. She gives a valuable property, which *A* knows to belong to her husband *Z*, and to be such property as she has no authority from *Z* to give. If *A* takes the property dishonestly, he commits theft.

(*p*) *A*, in good faith, believing property belonging to *Z* to be *A*'s own property, takes that property out of *B*'s possession. Here, as *A* does not take dishonestly, he does not commit theft.

379. Punishment for theft.—Whoever commits theft shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

CASE LAW ▸ Bona fide removal of property—The removal of property in the bona fide exercise of right is a good defence, *Survari Sanyasi Apparao* v. *Boddepalli Lakshminarayana*, AIR 1962 SC 586 : (1962) 1 Cri LJ 518.

STATE AMENDMENTS

SECTION 379-A AND SECTION 379-B

Gujarat.—In its application to the State of Gujarat, after Section 379, the following sections shall be *inserted*, namely:—

"**379-A. Snatching.**—(1) Whoever, with the intention to commit theft, suddenly or quickly or forcibly seizes or secures or grabs or takes away from any person or from his physical possession any moveable property, and makes or attempt to make escape with such property, is said to commit snatching.

(2) Whoever attempts to commit snatching shall be punished with rigorous imprisonment for a term which shall not be less than five years but which may extend to ten years, and with fine which may extend to twenty five thousand rupees.

(3) Whoever commits snatching shall be punished with rigorous imprisonment for a term which shall not be less than seven years but which may extend to ten years, and with fine which may extend to twenty five thousand rupees.

(4) Whoever, after committing or attempting to commit snatching, causes hurt or wrongful restraint or fear of hurt, in order to effect his escape shall be punished with rigorous imprisonment for a term which may extend to three years, in addition to the punishment provided for the offence of snatching by the preceding sub-sections.

379-B. Snatching after preparation made for causing death, hurt or restraint in order to the committing of the snatching.—Whoever commits or attempts to commit snatching, having made preparation for causing death, or hurt, or restraint, or fear of death, or of hurt, or of restraint, to any person, in order to the committing of such snatching, or in order to the retaining of property taken by such snatching, shall be punished with rigorous imprisonment for a term which shall not be less than seven years but which may extend to ten years, and with fine which may extend to twenty five thousand rupees.". [*Vide* Guj. Act 6 of 2019, S. 2, assented on 21-5-2019]

Haryana.—In its application to the State of Haryana, after Section 379, the following sections shall be *inserted*, namely:—

"**379-A. Snatching.**—(1) Whoever, with the intention to commit theft, suddenly or quickly or forcibly seizes or secures or grabs or takes away from any person or from his possession any moveable property, and makes or attempts to make escape with such property, is said to commit snatching.

Whoever, commits snatching, shall be punished with rigorous imprisonment for a term, which shall not be less than five years but which may extend to ten years, and shall also be liable to fine of Rupees Twenty five thousand.

379-B. Snatching with hurt, wrongful restraint or fear of hurt. Whoever, in order to commit snatching, or in committing the snatching, causes hurt or wrongful restraint or fear of hurt; or after committing the offence of snatching, causes hurt or wrongful restraint or fear of hurt in order to effect his escape, shall be punished with rigorous imprisonment which shall not be less than ten years but which may extend to fourteen years, and shall also be liable to fine of Rupees Twenty five thousand." [*Vide* Penal Code (Haryana Amendment) Act, 2014 (Haryana Act No. 18 of 2015), S. 2.]

Punjab.—In its application to the State of Punjab, after Section 379, the following sections shall be *inserted*, namely—

"**379-A. Snatching.**—Whoever, with the intention to commit theft, suddenly or quickly or forcibly seizes or secures or grabs or takes away from any person or from his possession any moveable property, and makes or attempts to make escape with such property, is said to commit snatching.

379-B. Punishment for snatching.—(1) Whoever, commits snatching, shall be punished with imprisonment for a term, which shall not be less than five years, but which may extend to ten years and shall also be liable to fine of rupees ten thousand.

(2) If in order to the committing of snatching, or in committing the snatching, the offender causes hurt, or wrongful restraint or fear of hurt or after committing the offence of snatching, causes hurt or wrongful restraint or fear of hurt in order to effect his escape, shall be punished with imprisonment for a term, which shall not be less than ten years and shall also be liable to fine of rupees ten thousand.". [*Vide*: Punjab Act 31 of 2014, S. 2, dt. 5-11-2014].

Union Territory of Chandigarh.—In its application to the Union Territory of Chandigarh, after Section 379, the following sections shall be *inserted*, namely:—

"**379-A. Snatching.**—(1) Whoever, with the intention to commit theft, suddenly or quickly or forcibly seizes or secures or grabs or takes away from any person or from his possession any moveable property, and makes or attempts to make escape with such property, is said to commit snatching.

Whoever, commits snatching, shall be punished with rigorous imprisonment for a term, which shall not be less than five years but which may extend to ten years, and shall also be liable to fine of Rupees Twenty five thousand.

379-B. Snatching with hurt, wrongful restraint or fear of hurt. Whoever, in order to commit snatching, or in committing the snatching, causes hurt or wrongful restraint or fear of hurt; or after committing the offence of snatching, causes hurt or wrongful restraint or fear of hurt in order to effect his escape, shall be punished with rigorous imprisonment which shall not be less than ten years but which may extend to fourteen years, and shall also be liable to fine of Rupees Twenty five thousand." [*Vide* G.S.R. 383(E), dated 29-5-2019 (w.e.f. 29-5-2019).]

380. Theft in dwelling house, etc.—Whoever commits theft in any building, tent or vessel, which building, tent or vessel is used as a human dwelling, or used for the custody of property, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

STATE AMENDMENTS

Tamil Nadu.—In its application to the State of Tamil Nadu, Section 380 shall be *renumbered* as sub-section (1) of that section and after sub-section (1) as so renumbered, the following sub-section shall be *added*, namely:—

"(2) Whoever commits theft in respect of any idol or icon in any building used as a place of worship shall be punished with rigorous imprisonment for a term which shall not be less than two years but which may extend to three years and with fine which shall not be less than two thousand rupees:

Provided that the court may, for adequate and special reasons to be mentioned in the judgment, impose a sentence of imprisonment for a term of less than two years." [*Vide* Tamil Nadu Act 28 of 1993, S. 2 (w.e.f. 13-7-1993).]

381. Theft by clerk or servant of property in possession of master.—Whoever, being a clerk or servant, or being employed in the capacity of a clerk or servant, commits theft in respect of any property in the possession of his master or employer, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

382. Theft after preparation made for causing death, hurt or restraint in order to the committing of the theft.—Whoever commits theft, having made preparation for causing death, or hurt, or restraint, or fear of death, or of hurt, or of restraint, to any person, in order to the committing of such theft, or in order to the effecting of his escape after the committing of such theft, or in order to the retaining of property taken by such theft, shall be punished with rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine.

Illustrations

A commits theft on property in *Z*'s possession; and, while committing this theft, he has a loaded pistol under his garment, having provided this pistol for the purpose of hurting *Z* in case *Z* should resist. *A* has committed the offence defined in this section.

A picks *Z*'s pocket, having posted several of his companions near him, in order that they may restrain *Z*, if *Z* should perceive what is passing and should resist, or should attempt to apprehend *A*. *A* has committed the offence defined in this section.

CASE LAW ▸ Possession of arms—One who keeping a knife with him commits theft may be liable for conviction under Section 382 even though there was no occasion for him to wield the knife or to cause injury, *In re Diwan Singh*, 1980 Cri LJ 760.

STATE AMENDMENTS

Tripura.—In its application to the State of Tripura, the following sections shall be *inserted*, namely:—

"**382-A. Snatching**.—Whoever commits theft stealthily from a person or through assault or by using criminal force and thereby causes hurt or endangers the life of that person is said to commit the offence of 'Snatching'.

382-B. Whoever commits 'Snatching' shall be punished with imprisonment for a term which shall not be less than seven years but may extend to a term of ten years or with fine or with both.

382-C. Vehicle lifting.—Whoever commits theft of a 'vehicle' either from open or close arena, is said to commit the offence of 'vehicle lifting'.

Note.—The term 'vehicle' shall have the same meaning as defined in sub-section (28) of Section 2 of Motor Vehicles Act, 1988.

382-D.—Whoever commits the offence of 'vehicle lifting' shall be punished with imprisonment for a term which shall not be less than seven years but may extend to a term of ten years or with fine or with both.

382-E. Cattle lifting.—Whoever commits theft of a 'Cattle' either from open or close arena, is said to commit the offence of 'Cattle lifting'.

Note.—For the purpose of this section, the term 'Cattle' means a cow and a calf, whether male or female, bull, bullock, buffalo — male or female or calf of she-buffalo, whether male or female and an ox or oxen.

Whoever commits the offence of 'Cattle lifting' shall be punished with imprisonment for a term which shall not be less than seven years but may extend to a term of ten years or with fine or with both.". [*Vide* Tripura Act 4 of 2019, S. 2 (w.e.f. 29-5-2019)]

Of extortion

383. Extortion.—Whoever intentionally puts any person in fear of any injury to that person, or to any other, and thereby dishonestly induces the person so put in fear to deliver to any person any property or valuable security or anything signed or sealed which may be converted into a valuable security, commits "extortion".

Illustrations

(*a*) *A* threatens to publish a defamatory libel concerning *Z* unless *Z* gives him money. He thus induces *Z* to give him money. *A* has committed extortion.

(*b*) *A* threatens *Z* that he will keep *Z*'s child in wrongful confinement, unless *Z* will sign and deliver to *A* a promissory note binding *Z* to pay certain money to *A*. *Z* signs and delivers the note. *A* has committed extortion.

(*c*) *A* threatens to send club-men to plough up *Z*'s field unless *Z* will sign and deliver to *B* a bond binding *Z* under a penalty to deliver certain produce to *B*, and thereby induces *Z* to sign and deliver the bond. *A* has committed extortion.

(*d*) *A*, by putting *Z* in fear of grievous hurt, dishonestly induces *Z* to sign or affix his seal to a blank paper and deliver it to *A*. *Z* signs and delivers the paper to *A*. Here, as the paper so signed may be converted into a valuable security, *A* has committed extortion.

CASE LAW ▸ Inquiry—The injury need not necessarily be physical. Even a terror of a criminal charge whether true or false amounts to a fear of injury, *Habib Khan* v. *State*, AIR 1952 Pat 379 : 53 Cri LJ 1391.

▸ **Property**—The word 'property' in Section 383, IPC means both movable and immovable property, *Hyderabad State* v. *Beerappa*, AIR 1951 Hyd 91 : 52 Cri LJ 912 (FB).

384. Punishment for extortion.—Whoever commits extortion shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

385. Putting person in fear of injury in order to commit extortion.—Whoever, in order to the committing of extortion, puts any person in fear, or attempts to put any person in fear, of any injury, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

386. Extortion by putting a person in fear of death or grievous hurt.—Whoever commits extortion by putting any person in fear of death or of grievous hurt to that person or to any other, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

387. Putting person in fear of death or of grievous hurt, in order to commit extortion.—Whoever, in order to the committing of extortion, puts or attempts to put any person in fear of death or of grievous hurt to that person or to any other, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

388. Extortion by threat of accusation of an offence punishable with death or imprisonment for life, etc.—Whoever commits extortion by putting any person in fear of an accusation against that person or any other, of having committed or attempted to commit any offence punishable with death, or with [398][imprisonment for life], or with imprisonment for a term which may extend to ten years, or of having attempted to induce any other person to commit such offence, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine; and, if the offence be one punishable under Section 377 of this Code, may be punished with [399][imprisonment for life].

389. Putting person in fear of accusation of offence, in order to commit extortion.—Whoever, in order to the committing of extortion, puts or attempts to put any person in fear of an accusation, against that person or any other, of having committed, or attempted to commit, an offence punishable with death or with [400][imprisonment for life], or with imprisonment for a term which may extend to ten years, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine; and, if the offence be

---

398. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch.
399. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch.
400. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch.

S. 391]

punishable under Section 377 of this Code, may be punished with [401][imprisonment for life].

Of robbery and dacoity

390. Robbery.—In all robbery there is either theft or extortion.

When theft is robbery.—Theft is "robbery" if, in order to the committing of the theft, or in committing the theft, or in carrying away or attempting to carry away property obtained by the theft, the offender, for that end, voluntarily causes or attempts to cause to any person death or hurt or wrongful restraint, or fear of instant death or of instant hurt, or of instant wrongful restraint.

When extortion is robbery.—Extortion is "robbery" if the offender, at the time of committing the extortion, is in the presence of the person put in fear, and commits the extortion by putting that person in fear of instant death, of instant hurt, or of instant wrongful restraint to that person, or to some other person, and, by so putting in fear, induces the person so put in fear then and there to deliver up the thing extorted.

Explanation.—The offender is said to be present if he is sufficiently near to put the other person in fear of instant death, of instant hurt, or of instant wrongful restraint.

Illustrations

(*a*) *A* holds *Z* down, and fraudulently takes *Z*'s money and jewels from *Z*'s clothes, without *Z*'s consent. Here *A* has committed theft, and, in order to the committing of that theft, has voluntarily caused wrongful restraint to *Z*. *A* has therefore committed robbery.

(*b*) *A* meets *Z* on the high road, shows a pistol, and demands *Z*'s purse. *Z*, in consequence, surrenders his purse. Here *A* has extorted the purse from *Z* by putting him in fear of instant hurt, and being at the time of committing the extortion in his presence, *A* has therefore committed robbery.

(*c*) *A* meets *Z* and *Z*'s child on the high road. *A* takes the child, and threatens to fling it down a precipice, unless *Z* delivers his purse. *Z*, in consequence, delivers his purse. Here *A* has extorted the purse from *Z*, by causing *Z* to be in fear of instant hurt to the child who is there present. *A* has therefore committed robbery on *Z*.

(*d*) *A* obtains property from *Z* by saying—"Your child is in the hands of my gang, and will be put to death unless you send us ten thousand rupees". This is extortion, and punishable as such; but it is not robbery, unless *Z* is put in fear of the instant death of his child.

391. Dacoity.—When five or more persons conjointly commit or attempt to commit a robbery, or where the whole number of persons conjointly committing or attempting to commit a robbery, and persons present and aiding such commission or attempt, amount to five or more, every person so committing, attempting or aiding, is said to commit "dacoity".

CASE LAW ▸ Commission of dacoity—When a known person is desperate and very much inimical, he can go to commit dacoity without taking the usual precaution of covering his face, *Chandra Bhan* v. *State*, 1981 Cri LJ 196.

401. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch.

392. Punishment for robbery.—Whoever commits robbery shall be punished with rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine; and, if the robbery be committed on the highway between sunset and sunrise, the imprisonment may be extended to fourteen years.

393. Attempt to commit robbery.—Whoever attempts to commit robbery shall be punished with rigorous imprisonment for a term which may extend to seven years, and shall also be liable to fine.

394. Voluntarily causing hurt in committing robbery.—If any person, in committing or in attempting to commit robbery, voluntarily causes hurt, such person, and any other person jointly concerned in committing or attempting to commit such robbery, shall be punished with [402][imprisonment for life], or with rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine.

395. Punishment for dacoity.—Whoever commits dacoity shall be punished with [403][imprisonment for life], or with rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine.

396. Dacoity with murder.—If any one of five or more persons, who are conjointly committing dacoity, commits murder in so committing dacoity, everyone of those persons shall be punished with death, or [404][imprisonment for life], or rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine.

CASE LAW ▸ Dacoity.—Appellant accused, held, rightly convicted for dacoity as the dacoity itself, and his role in guarding the house from the outside with another accused, while dacoity was being committed inside the house by other accused, stood established, *Raju Manjhi* v. *State of Bihar*, (2019) 12 SCC 784.

397. Robbery or dacoity, with attempt to cause death or grievous hurt.—If, at the time of committing robbery or dacoity, the offender uses any deadly weapon, or causes grievous hurt to any person, or attempts to cause death or grievous hurt to any person, the imprisonment with which such offender shall be punished shall not be less than seven years.

398. Attempt to commit robbery or dacoity when armed with deadly weapon.—If, at the time of attempting to commit robbery or dacoity, the offender is armed with any deadly weapon, the imprisonment with which such offender shall be punished shall not be less than seven years.

CASE LAW ▸ Reduction of sentence.—Reduction of sentence, to less than the prescribed minimum impermissible, *Parveen* v. *State of Haryana*, (2016) 3 SCC 129.

399. Making preparation to commit dacoity.—Whoever makes any preparation for committing dacoity, shall be punished with rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine.

---

402. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch.
403. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch.
404. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch.

400. Punishment for belonging to gang of dacoits.—Whoever, at any time after the passing of this Act, shall belong to a gang of persons associated for the purpose of habitually committing dacoity, shall be punished with [405][imprisonment for life], or with rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine.

401. Punishment for belonging to gang of thieves.—Whoever, at any time after the passing of this Act, shall belong to any wandering or other gang of persons associated for the purpose of habitually committing theft or robbery, and not being a gang of thugs or dacoits, shall be punished with rigorous imprisonment for a term which may extend to seven years, and shall also be liable to fine.

402. Assembling for purpose of committing dacoity.—Whoever, at any time after the passing of this Act, shall be one of five or more persons assembled for the purpose of committing dacoity, shall be punished with rigorous imprisonment for a term which may extend to seven years, and shall also be liable to fine.

Of criminal misappropriation of property

403. Dishonest misappropriation of property.—Whoever dishonestly misappropriates or converts to his own use any movable property, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

Illustrations

(*a*) *A* takes property belonging to *Z* out of *Z*'s possession in good faith, believing, at the time when he takes it, that the property belongs to himself. *A* is not guilty of theft; but if *A*, after discovering his mistake, dishonestly appropriates the property to his own use, he is guilty of an offence under this section.

(*b*) *A*, being on friendly terms with *Z*, goes into *Z*'s library in *Z*'s absence, and takes away a book without *Z*'s express consent. Here, if *A* was under the impression that he had *Z*'s implied consent to take the book for the purpose of reading it, *A* has not committed theft. But, if *A* afterwards sells the book for his own benefit, he is guilty of an offence under this section.

(*c*) *A* and *B* being joint owners of a horse, *A* takes the horse out of *B*'s possession, intending to use it. Here, as *A* has a right to use the horse, he does not dishonestly misappropriate it. But, if *A* sells the horse and appropriates the whole proceeds to his own use, he is guilty of an offence under this section.

Explanation 1.—A dishonest misappropriation for a time only is a misappropriation within the meaning of this section.

Illustration

A finds a Government promissory note belonging to *Z*, bearing a blank endorsement. *A*, knowing that the note belongs to *Z*, pledges it with a banker as a security for a loan, intending at a future time to restore it to *Z*. *A* has committed an offence under this section.

Explanation 2.—A person who finds property not in the possession of any other person, and takes such property for the purpose of protecting it for, or of restoring it to, the owner, does not take or misappropriate it dishonestly, and is not guilty of an offence; but he is guilty of the offence above defined, if he appropriates it to his own use, when he knows or has the means of discovering the owner, or

---

405. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch.

before he has used reasonable means to discover and give notice to the owner and has kept the property a reasonable time to enable the owner to claim it.

What are reasonable means or what is a reasonable time in such a case, is a question of fact.

It is not necessary that the finder should know who is the owner of the property, or that any particular person is the owner of it; it is sufficient if, at the time of appropriating it, he does not believe it to be his own property, or in good faith believes that the real owner cannot be found.

Illustrations

(*a*) *A* finds a rupee on the high road, not knowing to whom the rupee belongs. *A* picks up the rupee. Here *A* has not committed the offence defined in this section.

(*b*) *A* finds a letter on the road, containing a banknote. From the direction and contents of the letter he learns to whom the note belongs. He appropriates the note. He is guilty of an offence under this section.

(*c*) *A* finds a cheque payable to bearer. He can form no conjecture as to the person who has lost the cheque. But the name of the person, who has drawn the cheque, appears. *A* knows that this person can direct him to the person in whose favour the cheque was drawn. *A* appropriates the cheque without attempting to discover the owner. He is guilty of an offence under this section.

(*d*) *A* sees *Z* drop his purse with money in it. *A* picks up the purse with the intention of restoring it to *Z*, but afterwards appropriates it to his own use. *A* has committed an offence under this section.

(*e*) *A* finds a purse with money, not knowing to whom it belongs; he afterwards discovers that it belongs to *Z*, and appropriates it to his own use. *A* is guilty of an offence under this section.

(*f*) *A* finds a valuable ring, not knowing to whom it belongs. *A* sells it immediately without attempting to discover the owner. *A* is guilty of an offence under this section.

404. Dishonest misappropriation of property possessed by deceased person at the time of his death.—Whoever dishonestly misappropriates or converts to his own use property, knowing that such property was in the possession of a deceased person at the time of that person's decease, and has not since been in the possession of any person legally entitled to such possession, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine; and if the offender at the time of such person's decease was employed by him as a clerk or servant, the imprisonment may extend to seven years.

Illustration

Z dies in possession of furniture and money. His servant *A*, before the money comes into the possession of any person entitled to such possession, dishonestly misappropriates it. *A* has committed the offence defined in this section.

Of criminal breach of trust

405. Criminal breach of trust.—Whoever, being in any manner entrusted with property, or with any dominion over property, dishonestly misappropriates or converts to his own use that property, or dishonestly uses or disposes of that property in violation of any direction of law prescribing the mode in which such trust is to be discharged, or of any legal contract, express or implied, which he has

made touching the discharge of such trust, or wilfully suffers any other person so to do, commits "criminal breach of trust".

[406][*Explanation* [407][1].—A person, being an employer [408][of an establishment whether exempted under Section 17 of the Employees' Provident Funds and Miscellaneous Provisions Act, 1952 (19 of 1952), or not] who deducts the employee's contribution from the wages payable to the employee for credit to a Provident Fund or Family Pension Fund established by any law for the time being in force, shall be deemed to have been entrusted with the amount of the contribution so deducted by him and if he makes default in the payment of such contribution to the said fund in violation of the said law, shall be deemed to have dishonestly used the amount of the said contribution in violation of a direction of law as aforesaid.]

[409][*Explanation* 2.—A person, being an employer, who deducts the employees' contribution from the wages payable to the employee for credit to the Employees' State Insurance Fund held and administered by the Employees' State Insurance Corporation established under the Employees' State Insurance Act, 1948 (34 of 1948), shall be deemed to have been entrusted with the amount of the contribution so deducted by him and if he makes default in the payment of such contribution to the said Fund in violation of the said Act, shall be deemed to have dishonestly used the amount of the said contribution in violation of a direction of law as aforesaid.]

Illustrations

(*a*) *A*, being executor to the will of a deceased person, dishonestly disobeys the law which directs him to divide the effects according to the will, and appropriates them to his own use. *A* has committed criminal breach of trust.

(*b*) *A* is a warehouse-keeper. *Z*, going on a journey, entrusts his furniture to *A*, under a contract that it shall be returned on payment of a stipulated sum for warehouse room. *A* dishonestly sells the goods. *A* has committed criminal breach of trust.

(*c*) *A*, residing in Calcutta, is agent for *Z*, residing at Delhi. There is an express or implied contract between *A* and *Z*, that all sums remitted by *Z* to *A* shall be invested by *A*, according to *Z*'s direction. *Z* remits a lakh of rupees to *A*, with directions to *A* to invest the same in Company's paper. *A* dishonestly disobeys the directions and employs the money in his own business. *A* has committed criminal breach of trust.

(*d*) But if *A*, in the last illustration, not dishonestly but in good faith, believing that it will be more for *Z*'s advantage to hold shares in the Bank of Bengal, disobeys *Z*'s directions, and buys shares in the Bank of Bengal, for *Z*, instead of buying Company's paper, here, though *Z* should suffer loss, and should be entitled to bring a civil action against *A*, on account of that loss, yet *A*, not having acted dishonestly, has not committed criminal breach of trust.

(*e*) *A*, a revenue officer, is entrusted with public money and is either directed by law, or bound by a contract, express or implied, with the Government, to pay into a certain treasury all the public money which he holds. *A* dishonestly appropriates the money. *A* has committed criminal breach of trust.

(*f*) *A*, a carrier, is entrusted by *Z* with property to be carried by land or by water. *A* dishonestly misappropriates the property. *A* has committed criminal breach of trust.

---

406. *Ins.* by Act 40 of 1973, S. 9 (w.e.f. 1-11-1973).
407. Explanation renumbered as Explanation 1 by Act 38 of 1975, S. 9 (w.e.f. 1-9-1975).
408. *Ins.* by Act 33 of 1988, S. 27 (w.e.f. 1-8-1988).
409. *Ins.* by Act 38 of 1975, S. 9 (w.e.f. 1-9-1975).

CASE LAW ▸ Essential ingredients—To constitute an offence of criminal breach of trust, it is essential that the prosecution must prove first of all that the accused was entrusted with some property or with any dominion or power over it. It has to be established further that in respect of the property so entrusted, there was dishonest misappropriation or dishonest conversion or dishonest use or disposal in violation of a direction of law or legal contract by the accused himself or by someone else which he willingly suffered to do. It follows automatically from this definition that the ownership or beneficial interest in property in respect of which criminal breach of trust is alleged to have been committed must be in some person other than the accused and the latter must hold it on account of some person or in some way for his benefit, *C.M. Narayan* v. *State of T.C.*, AIR 1953 SC 478 : 1954 Cri LJ 102. *See* also *Sardar Singh* v. *State of Haryana*, (1977) 1 SCC 463.

▸ **Criminal breach of trust.**—Where accused being himself owner of property, transferred it to his wife during subsistence of his contract with developer for constructing flats thereon, it did not constitute criminal breach of trust, *Anand Kumar Mohatta* v. *State (NCT of Delhi)*, (2019) 11 SCC 706.

▸ **Criminal breach of trust and cheating.**—Law recognises difference between simple payment/ investment of money and entrustment of money or property. Mere breach of promise, agreement or contract does not, ipso facto, constitute offence of criminal breach of trust under Section 405 without there being clear case of entrustment. In context of contracts distinction between mere breach of contract and cheating would depend upon fraudulent inducement and mens rea. For sustaining these charges, existence of fraudulent or dishonest intention right at the beginning of transaction with mens rea must be shown. Breach of contractual obligations which are accompanied by fraudulent, dishonest or deceptive inducements resulting in involuntary and inefficient transfer stand criminalised under Section 415 IPC, *Satishchandra Ratanlal Shah* v. *State of Gujarat*, (2019) 9 SCC 148.

406. Punishment for criminal breach of trust.—Whoever commits criminal breach of trust shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

CASE LAW ▸ Cheating and forgery.—When issue as to genuineness of documents, forgery of which was the basis of the criminal proceedings, was pending consideration in civil suit, FIR ought not to have been allowed to continue in this case as it would prejudice the interest of parties and the stand taken by them in the civil suit, *Rajeshbhai Muljibhai Patel* v. *State of Gujarat*, (2020) 3 SCC 794.

407. Criminal breach of trust by carrier, etc.—Whoever, being entrusted with property as a carrier, wharfinger or warehouse-keeper, commits criminal breach of trust, in respect of such property, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

408. Criminal breach of trust by clerk or servant.—Whoever, being a clerk or servant or employed as a clerk or servant, and being in any manner entrusted in such capacity with property, or with any dominion over property, commits criminal breach of trust in respect of that property, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

409. Criminal breach of trust by public servant, or by banker, merchant or agent.—Whoever, being in any manner entrusted with property, or with any

dominion over property in his capacity of a public servant or in the way of his business as a banker, merchant, factor, broker, attorney or agent, commits criminal breach of trust in respect of that property, shall be punished with [410][imprisonment for life], or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

CASE LAW ▸ Criminal Conspiracy.—Modus operandi being the same would not make it a single offence when the offences are separate. Commission of offence pursuant to a conspiracy has to be punished; hence, conspiracy charges against accused restored. If conspiracy is furthered into several distinct offences there have to be separate trials. Each trial has to be separately held and the accused to be punished separately for the offence committed in furtherance of conspiracy. In case there is only one trial for such conspiracy for separate offences, it would enable the accused person to go scot-free and commit number of offences which is not the intendment of law, *State of Jharkhand* v. *Lalu Prasad*, (2017) 8 SCC 1.

Of the receiving of stolen property

410. Stolen property.—Property, the possession whereof has been transferred by theft, or by extortion, or by robbery, and property which has been criminally misappropriated or in respect of which [411][* * *] [412][* * *] criminal breach of trust has been committed, is designated as "stolen property", [413][whether the transfer has been made, or the misappropriation or breach of trust has been committed, within or without [414][India]]. But, if such property subsequently comes into the possession of a person legally entitled to the possession thereof, it then ceases to be stolen property.

411. Dishonestly receiving stolen property.—Whoever dishonestly receives or retains any stolen property, knowing or having reason to believe the same to be stolen property, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

STATE AMENDMENTS

Tamil Nadu.—In its application to the State of Tamil Nadu, Section 411 shall be *renumbered* as sub-section (1) of that section and after sub-section (1) as so renumbered, the following sub-section shall be *added*, namely:—

"(2) Whoever dishonestly receives or retains any idol or icon stolen from any building used as a place of worship knowing or having reason to believe the same to be stolen property shall, notwithstanding anything contained in sub-section (1), be punished with rigorous imprisonment which shall not be less than two years but which may extend to three years and with fine which shall not be less than two thousand rupees:

Provided that the court may, for adequate and special reasons to be mentioned in the judgment, impose a sentence of imprisonment for a term of less than two years." [*Vide* Tamil Nadu Act 28 of 1993, S. 3 (w.e.f. 13-7-1993).]

412. Dishonestly receiving property stolen in the commission of a dacoity.—Whoever dishonestly receives or retains any stolen property, the

410. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch.
411. The word "the" *omitted* by Act 12 of 1891, S. 2 and Sch. I.
412. The words "offence of" *omitted* by Act 8 of 1882, S. 9.
413. *Ins.* by Act 8 of 1882, S. 9.
414. *Subs.* for "the States" by Act 3 of 1951 (w.e.f. 1-4-1951).

possession whereof he knows or has reason to believe to have been transferred by the commission of dacoity, or dishonestly receives from a person, whom he knows or has reason to believe to belong or to have belonged to a gang of dacoits, property which he knows or has reason to believe to have been stolen, shall be punished with [415][imprisonment for life], or with rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine.

413. Habitually dealing in stolen property.—Whoever habitually receives or deals in property which he knows or has reason to believe to be stolen property, shall be punished with [416][imprisonment for life], or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

414. Assisting in concealment of stolen property.—Whoever voluntarily assists in concealing or disposing of or making away with property which he knows or has reason to believe to be stolen property, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

Of cheating

415. Cheating.—Whoever, by deceiving any person, fraudulently or dishonestly induces the person so deceived to deliver any property to any person, or to consent that any person shall retain any property, or intentionally induces the person so deceived to do or omit to do anything which he would not do or omit if he were not so deceived, and which act or omission causes or is likely to cause damage or harm to that person in body, mind, reputation or property, is said to "cheat".

Explanation.—A dishonest concealment of facts is a deception within the meaning of this section.

Illustrations

(*a*) *A*, by falsely pretending to be in the Civil Service, intentionally deceives *Z*, and thus dishonestly induces *Z* to let him have on credit goods for which he does not mean to pay. *A* cheats.

(*b*) *A*, by putting a counterfeit mark on an article, intentionally deceives *Z* into a belief that this article was made by a certain celebrated manufacturer, and thus dishonestly induces *Z* to buy and pay for the article. *A* cheats.

(*c*) *A*, by exhibiting to *Z* a false sample of an article, intentionally deceives *Z* into believing that the article corresponds with the sample, and thereby dishonestly induces *Z* to buy and pay for the article. *A* cheats.

(*d*) *A*, by tendering in payment for an article a bill on a house with which *A* keeps no money, and by which *A* expects that the bill will be dishonoured, intentionally deceives *Z*, and thereby dishonestly induces *Z* to deliver the article, intending not to pay for it. *A* cheats.

(*e*) *A*, by pledging as diamonds articles which he knows are not diamonds, intentionally deceives *Z*, and thereby dishonestly induces *Z* to lend money. *A* cheats.

(*f*) *A* intentionally deceives *Z* into a belief that *A* means to repay any money that *Z* may lend to him and thereby dishonestly induces *Z* to lend him money, *A* not intending to repay it. *A* cheats.

---

415. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch. (w.e.f. 1-1-1956).
416. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch. (w.e.f. 1-1-1956).

(*g*) *A* intentionally deceives *Z* into a belief that *A* means to deliver to *Z* a certain quantity of indigo plant which he does not intend to deliver, and thereby dishonestly induces *Z* to advance money upon the faith of such delivery, *A* cheats; but if *A*, at the time of obtaining the money, intends to deliver the indigo plant, and afterwards breaks his contract and does not deliver it, he does not cheat, but is liable only to a civil action for breach of contract.

(*h*) *A* intentionally deceives *Z* into a belief that *A* has performed *A*'s part of a contract made with *Z*, which he has not performed, and thereby dishonestly induces *Z* to pay money. *A* cheats.

(*i*) *A* sells and conveys an estate to *B*. *A*, knowing that in consequence of such sale he has no right to the property, sells or mortgages the same to *Z*, without disclosing the fact of the previous sale and conveyance to *B*, and receives the purchase or mortgage money from *Z*. *A* cheats.

CASE LAW ▸ Essential ingredients.—The ingredients required to constitute an offence of cheating are: (1) There should be fraudulent or dishonest inducement of a person by deceiving him, (2)(*a*) the person so deceived should be induced to deliver any property to any person or to consent that any person shall retain any property; or (*b*) the person so deceived should be intentionally induced to do or omit to do anything which he would not do or omit if he were not so deceived, and (3) in cases covered by (2)(*b*) the act or omission should be one which causes or is likely to cause damage or harm to the person induced in body, mind, reputation or property, *Ram Jas* v. *State of U.P.*, (1970) 2 SCC 740 : 1970 SCC (Cri) 516.

Section 415 has two parts. While in the first part, the person must "dishonestly" or fraudulently induce the complainant to deliver any property; the second part need not necessarily relate to property, *G.V. Rao* v. *L.H.V. Prasad*, (2000) 3 SCC 693 : 2000 SCC (Cri) 733.

▸ **Mens Rea: Dishonest Intention.**— To hold a person guilty of the offence of cheating it has to be shown that his intention was dishonest at the time of making the promise. Such a dishonest intention can be inferred from the mere fact that he could not subsequently fulfil the promise, *State of Kerala* v. *A.P. Pillai*, (1972) 3 SCC 661 : 1972 SCC (Cri) 705.

For the purpose of holding the accused guilty of an offence under Section 415, I.P.C. the prosecution must adduce evidence establishing mens rea on his part, *Raghunath Prasad* v. *State of Bihar*, (1974) 4 SCC 616 : 1974 SCC (Cri) 652.

▸ **Harm.**—The word 'harm' means injury to person in mind, body, reputation or property, *Veeda Menezes* v. *YusufKhan*, AIR 1966 SC 1773 : 1966 Cri LJ 1489.

▸ **Damage.**—Loss or damage must be loss or damage which is the proximate result of the act. It must be the natural consequence of the act complained of, *Prem Chand* v. *State*, AIR 1953 All 381 : 1953 Cri LJ 815.

▸ **Status of Admission Card.**—Admission card enabling a candidate to sit in examination is 'property' for the purposes of Section 415, *Abhayanand Mishra* v. *State of Bihar*, AIR 1961 SC 1698.

▸ **Particular Instances.**—The accused, in applying for a post advertised by the Madras Public Service Commission made certain representations which were found to be false. He was convicted under Section 419, IPC. Held: Cheating can be committed in either of the two ways described in Section 415, IPC. Deceiving a person is common in both the ways of cheating. The appellant's misrepresentation to the Service Commission continued and persisted till the final stage of the Government passing an order of appointment and, therefore, the Government itself was deceived by the misrepresentation made in the application presented to the Service Commission. The Public Service Commission is a statutory advisory body to the Government in the matter of appointment to the service. Deception of such an adviser is deception of the Government

which is expected to pay heed to its advice and act accordingly, *Kanumuk Kala Krishnamurthy* v. *State of A.P.*, AIR 1965 SC 333 : (1965) 1 Cri LJ 355.

▸ **Criminal breach of trust, fraud and cheating, and, breach of contract simpliciter.**—While breach of contract cannot give rise to criminal prosecution for cheating, fraudulent or dishonest intention is the basis of the offence of cheating, held, this has to be determined in the facts and circumstances of each case, *V. Ravi Kumar* v. *State*, (2019) 14 SCC 568.

416. Cheating by personation.—A person is said to "cheat by personation" if he cheats by pretending to be some other person, or by knowingly substituting one person for another, or representing that he or any other person is a person other than he or such other person really is.

Explanation.—The offence is committed whether the individual personated is a real or imaginary person.

Illustrations

(*a*) *A* cheats by pretending to be a certain rich banker of the same name. *A* cheats by personation.

(*b*) *A* cheats by pretending to be *B*, a person who is deceased. *A* cheats by personation.

CASE LAW ▸ Scope.—In order to constitute an offence under Section 416 there must be cheating in addition to personation and the personation must be for the purpose of cheating, *State of M.P.* v. *Padam Singh*, 1973 Cri LJ 877.

417. Punishment for cheating.—Whoever cheats shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.

418. Cheating with knowledge that wrongful loss may ensue to person whose interest offender is bound to protect.—Whoever cheats with the knowledge that he is likely thereby to cause wrongful loss to a person whose interest in the transaction to which the cheating relates, he was bound, either by law, or by a legal contract, to protect, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

419. Punishment for cheating by personation.—Whoever cheats by personation shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

420. Cheating and dishonestly inducing delivery of property.—Whoever cheats and thereby dishonestly induces the person deceived to deliver any property to any person, or to make, alter or destroy the whole or any part of a valuable security, or anything which is signed or sealed, and which is capable of being converted into a valuable security, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

CASE LAW ▸ Death of complainant.—After the death of complainant, the legal heirs of the complainant can prosecute the pending petition. *Chand Devi Daga* v. *Manju K. Humatani*, (2018) 1 SCC 71 : 2017 SCC OnLine SC 1282 : (2018) 1 SCC (Cri) 264

▸ **Concurrent civil and criminal liability.**—When settlement is arrived at between creditors and debtor, offence, if committed, as such does not come to an end. Even a judgment rendered in civil proceedings, when it is rendered on basis of a settlement entered into between parties, would not be of much relevance in criminal proceedings, having regard to provisions contained in Section 43, Evidence Act. Civil settlement of controversy would not suffice to wipe off criminal liability, *CBI* v. *Hari Singh Ranka*, (2019) 16 SCC 687.

Of fraudulent deeds and dispositions of property

421. Dishonest or fraudulent removal or concealment of property to prevent distribution among creditors.—Whoever dishonestly or fraudulently removes, conceals or delivers to any person, or transfers or causes to be transferred to any person, without adequate consideration, any property, intending thereby to prevent, or knowing it to be likely that he will thereby prevent, the distribution of that property according to law among his creditors or the creditors of any other person, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

422. Dishonestly or fraudulently preventing debt being available for creditors.—Whoever dishonestly or fraudulently prevents any debt or demand due to himself or to any other person from being made available according to law for payment of his debts or the debts of such other person, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

423. Dishonest or fraudulent execution of deed of transfer containing false statement of consideration.—Whoever dishonestly or fraudulently signs, executes or becomes a party to any deed or instrument which purports to transfer or subject to any charge, any property, or any interest therein, and which contains any false statement relating to the consideration for such transfer or charge, or relating to the person or persons for whose use or benefit it is really intended to operate, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

424. Dishonest or fraudulent removal or concealment of property.—Whoever dishonestly or fraudulently conceals or removes any property of himself or any other person, or dishonestly or fraudulently assists in the concealment or removal thereof, or dishonestly releases any demand or claim to which he is entitled, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

Of mischief

425. Mischief.—Whoever, with intent to cause, or knowing that he is likely to cause, wrongful loss or damage to the public or to any person, causes the destruction of any property, or any such change in any property or in the situation thereof as destroys or diminishes its value or utility, or affects it injuriously, commits "mischief".

Explanation 1.—It is not essential to the offence of mischief that the offender should intend to cause loss or damage to the owner of the property injured or destroyed. It is sufficient if he intends to cause, or knows that he is likely to cause, wrongful loss or damage to any person by injuring any property, whether it belongs to that person or not.

Explanation 2.—Mischief may be committed by an act affecting property belonging to the person who commits the act, or to that person and others jointly.

Illustrations

(*a*) *A* voluntarily burns a valuable security belonging to *Z* intending to cause wrongful loss to *Z*. *A* has committed mischief.

(*b*) *A* introduces water into an ice-house belonging to *Z* and thus causes the ice to melt, intending wrongful loss to *Z*. *A* has committed mischief.

(*c*) *A* voluntarily throws into a river a ring belonging to *Z*, with the intention of thereby causing wrongful loss to *Z*. *A* has committed mischief.

(*d*) *A*, knowing that his effects are about to be taken in execution in order to satisfy a debt due from him to *Z*, destroys those effects, with the intention of thereby preventing *Z* from obtaining satisfaction of the debt, and of thus causing damage to *Z*. *A* has committed mischief.

(*e*) *A* having insured a ship, voluntarily causes the same to be cast away, with the intention of causing damage to the underwriters. *A* has committed mischief.

(*f*) *A* causes a ship to be cast away, intending thereby to cause damage to *Z* who has lent money on bottomry on the ship. *A* has committed mischief.

(*g*) *A*, having joint property with *Z* in a horse, shoots the horse, intending thereby to cause wrongful loss to *Z*. *A* has committed mischief.

(*h*) *A* causes cattle to enter upon a field belonging to *Z*, intending to cause and knowing that he is likely to cause damage to *Z*'s crop. *A* has committed mischief.

CASE LAW ▸ Wrongful loss.—To attract Section 425, IPC it must be established that there was wrongful loss or damage to the property in question unless it is proved that property was destroyed or underwent such a change that it diminished the utility or value of the property, *Jaddan* v. *State*, 1973 Cri LJ 490.

426. Punishment for mischief.—Whoever commits mischief shall be punished with imprisonment of either description for a term which may extend to three months, or with fine, or with both.

427. Mischief causing damage to the amount of fifty rupees.—Whoever commits mischief and thereby causes loss or damage to the amount of fifty rupees or upwards, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

428. Mischief by killing or maiming animal of the value of ten rupees.—Whoever commits mischief by killing, poisoning, maiming or rendering useless any animal or animals of the value of ten rupees or upwards, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

429. Mischief by killing or maiming cattle, etc., of any value or any animal of the value of fifty rupees.—Whoever commits mischief by killing, poisoning,

maiming or rendering useless, any elephant, camel, horse, mule, buffalo, bull, cow or ox, whatever may be the value thereof, or any other animal of the value of fifty rupees or upwards, shall be punished with imprisonment of either description for a term which may extend to five years, or with fine, or with both.

430. Mischief by injury to works of irrigation or by wrongfully diverting water.—Whoever commits mischief by doing any act which causes, or which he knows to be likely to cause, a diminution of the supply of water for agricultural purposes, or for food or drink for human beings or for animals which are property, or for cleanliness or for carrying on any manufacture, shall be punished with imprisonment of either description for a term which may extend to five years, or with fine, or with both.

431. Mischief by injury to public road, bridge, river or channel.—Whoever commits mischief by doing any act which renders or which he knows to be likely to render any public road, bridge, navigable river or navigable channel, natural or artificial, impassable or less safe for travelling or conveying property, shall be punished with imprisonment of either description for a term which may extend to five years, or with fine, or with both.

432. Mischief by causing inundation or obstruction to public drainage attended with damage.—Whoever commits mischief by doing any act which causes or which he knows to be likely to cause an inundation or an obstruction to any public drainage attended with injury or damage, shall be punished with imprisonment of either description for a term which may extend to five years, or with fine, or with both.

433. Mischief by destroying, moving or rendering less useful a lighthouse or sea-mark.—Whoever commits mischief by destroying or moving any lighthouse or other light used as a sea-mark, or any sea-mark or buoy or other thing placed as a guide for navigators, or by any act which renders any such lighthouse, sea-mark, buoy or other such thing as aforesaid less useful as a guide for navigators, shall be punished with imprisonment of either description for a term which may extend to seven years, or with fine, or with both.

434. Mischief by destroying or moving, etc., a landmark fixed by public authority.—Whoever commits mischief by destroying or moving any landmark fixed by the authority of a public servant, or by any act which renders such landmark less useful as such, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.

435. Mischief by fire or explosive substance with intent to cause damage to amount of one hundred or (in case of agricultural produce) ten rupees.—Whoever commits mischief by fire or any explosive substance intending to cause, or knowing it to be likely that he will thereby cause, damage to any property to the amount of one hundred rupees or upwards [417][or (where the property is agricultural produce) ten rupees or upwards], shall be punished with

---

417. *Ins.* by Act 8 of 1882, S. 10.

imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

436. Mischief by fire or explosive substance with intent to destroy house, etc.—Whoever commits mischief by fire or any explosive substance, intending to cause, or knowing it to be likely that he will thereby cause, the destruction of any building which is ordinarily used as a place of worship or as a human dwelling or as a place for the custody of property, shall be punished with [418][imprisonment for life], or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

437. Mischief with intent to destroy or make unsafe a decked vessel or one of twenty tons burden.—Whoever commits mischief to any decked vessel or any vessel of a burden of twenty tons or upwards, intending to destroy or render unsafe, or knowing it to be likely that he will thereby destroy or render unsafe, that vessel, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

438. Punishment for the mischief described in Section 437 committed by fire or explosive substance.—Whoever commits, or attempts to commit, by fire or any explosive substance, such mischief as is described in the last preceding section, shall be punished with [419][imprisonment for life], or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

439. Punishment for intentionally running vessel aground or ashore with intent to commit theft, etc.—Whoever intentionally runs any vessel aground or ashore, intending to commit theft of any property contained therein or to dishonestly misappropriate any such property, or with intent that such theft or misappropriation of property may be committed, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

440. Mischief committed after preparation made for causing death or hurt.—Whoever commits mischief, having made preparation for causing to any person death, or hurt, or wrongful restraint, or fear of death, or of hurt, or of wrongful restraint, shall be punished with imprisonment of either description for a term which may extend to five years, and shall also be liable to fine.

Of criminal trespass

441. Criminal trespass.—Whoever enters into or upon property in the possession of another with intent to commit an offence or to intimidate, insult or annoy any person in possession of such property,

or having lawfully entered into or upon such property, unlawfully remains there with intent thereby to intimidate, insult or annoy any such person, or with intent to commit an offence,

is said to commit "criminal trespass".

---

418. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch. (w.e.f. 1-1-1956).
419. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch. (w.e.f. 1-1-1956).

STATE AMENDMENTS

Karnataka.—In its application to the State of Karnataka, for Section 441, the following shall be *substituted*, namely—

"441. *Criminal trespass*.—Whoever enters into or upon property in possession of another with intent to commit an offence or to intimidate, insult or annoy any person in possession of such property, or, having lawfully entered into or upon such property, unlawfully remains there with intent thereby to intimidate, insult or annoy any such person or with intent to commit an offence,

or, having entered into or upon such property, whether before or after the coming into force of the Penal Code and the Code of Criminal Procedure (Karnataka Amendment) Act, 2009, with the intention of taking unauthorised possession or making unauthorised use of such property fails to withdraw from such property or its possession or use, when called upon to do so by that another person by notice in writing, duly served upon him, by the date of specified in the notice is said to commit Criminal Trespass". [*Vide* Karnataka Act 40 of 2014, S. 2]

Orissa.—In its application to the State of Orissa, the amendments are same as in Uttar Pradesh except that for the words "whether before or after the coming into force of the Criminal Laws (U.P. Amendment) Act, 1961", *read* "remains there"; and *omit* "by the date specified in the notice,". [*Vide* Orissa Act 22 of 1986 (w.e.f. 6-12-1986).]

Uttar Pradesh.—In its application to the State of Uttar Pradesh, for Section 441, the following shall be *substituted*:—

"441. *Criminal Trespass*.—Whoever enters into or upon property in possession of another with intent to commit an offence or to intimidate, insult or annoy any person in possession of such property, or, having lawfully entered into or upon such property, unlawfully remains there with intent thereby to intimidate, insult or annoy any such person, or with intent to commit an offence,

or having entered into or upon such property, whether before or after the coming into force of the Criminal Laws (U.P. Amendment) Act, 1961, with the intention of taking unauthorised possession or making unauthorised use of such property fails to withdraw from such property, or its possession or use when called upon to do so by that another person by notice in writing, duly served upon him, by the date specified in the notice, is said to commit 'criminal trespass'." [*Vide* U.P. Act 31 of 1961]

442. House-trespass.—Whoever commits criminal trespass by entering into or remaining in any building, tent or vessel used as a human dwelling or any building used as a place for worship, or as a place for the custody of property, is said to commit "house-trespass".

Explanation.—The introduction of any part of the criminal trespasser's body is entering sufficient to constitute house-trespass.

443. Lurking house-trespass.—Whoever commits house-trespass having taken precautions to conceal such house-trespass from some person who has a right to exclude or eject the trespasser from the building, tent or vessel which is the subject of the trespass, is said to commit "lurking house-trespass".

444. Lurking house-trespass by night.—Whoever commits lurking house-trespass after sunset and before sunrise, is said to commit "lurking house-trespass by night".

445. House-breaking.—A person is said to commit "house-breaking" who commits house-trespass if he effects his entrance into the house or any part of it in any of the six ways hereinafter described; or if, being in the house or any part of it

for the purpose of committing an offence, or, having committed an offence therein, he quits the house or any part of it in any of such six ways, that is to say:—

First.—If he enters or quits through a passage made by himself, or by any abettor of the house-trespass, in order to the committing of the house-trespass.

Secondly.—If he enters or quits through any passage not intended by any person, other than himself or an abettor of the offence, for human entrance; or through any passage to which he has obtained access by scaling or climbing over any wall or building.

Thirdly.—If he enters or quits through any passage which he or any abettor of the house-trespass has opened, in order to the committing of the house-trespass by any means by which that passage was not intended by the occupier of the house to be opened.

Fourthly.—If he enters or quits by opening any lock in order to the committing of the house-trespass, or in order to the quitting of the house after a house-trespass.

Fifthly.—If he effects his entrance or departure by using criminal force or committing an assault or by threatening any person with assault.

Sixthly.—If he enters or quits by any passage which he knows to have been fastened against such entrance or departure, and to have been unfastened by himself or by an abettor of the house-trespass.

Explanation.—Any outhouse or building occupied with a house, and between which and such house there is an immediate internal communication, is part of the house within the meaning of this section.

Illustrations

(*a*) *A* commits house-trespass by making a hole through the wall of *Z*'s house, and putting his hand through the aperture. This is house-breaking.

(*b*) *A* commits house-trespass by creeping into a ship at a porthole between decks. This is house-breaking.

(*c*) *A* commits house-trespass by entering *Z*'s house through a window. This is house-breaking.

(*d*) *A* commits house-trespass by entering *Z*'s house through the door, having opened a door which was fastened. This is house-breaking.

(*e*) *A* commits house-trespass by entering *Z*'s house through the door, having lifted a latch by putting a wire through a hole in the door. This is house-breaking.

(*f*) *A* finds the key of *Z*'s house door, which *Z* had lost and commits house-trespass by entering *Z*'s house, having opened the door with that key. This is house-breaking.

(*g*) *Z* is standing in the doorway. *A* forces a passage by knocking *Z* down, and commits house-trespass by entering the house. This is house-breaking.

(*h*) *Z*, the door-keeper of *Y*, is standing in *Y*'s doorway. *A* commits house-trespass by entering the house, having deterred *Z* from opposing him by threatening to beat him. This is house-breaking.

446. House-breaking by night.—Whoever commits house-breaking after sunset and before sunrise, is said to commit "house-breaking by night".

447. Punishment for criminal trespass.—Whoever commits criminal trespass shall be punished with imprisonment of either description for a term which

may extend to three months, or with fine which may extend to five hundred rupees, or with both.

448. Punishment for house-trespass.—Whoever commits house-trespass shall be punished with imprisonment of either description for a term which may extend to one year, or with fine which may extend to one thousand rupees, or with both.

449. House-trespass in order to commit offence punishable with death.—Whoever commits house-trespass in order to the committing of any offence punishable with death, shall be punished with [420][imprisonment for life], or with rigorous imprisonment for a term not exceeding ten years, and shall also be liable to fine.

450. House-trespass in order to commit offence punishable with imprisonment for life.—Whoever commits house-trespass in order to the committing of any offence punishable with [421][imprisonment for life], shall be punished with imprisonment of either description for a term not exceeding ten years, and shall also be liable to fine.

451. House-trespass in order to commit offence punishable with imprisonment.—Whoever commits house-trespass in order to the committing of any offence punishable with imprisonment, shall be punished with imprisonment of either description of a term which may extend to two years, and shall also be liable to fine; and if the offence intended to be committed is theft, the term of the imprisonment may be extended to seven years.

452. House-trespass after preparation for hurt, assault or wrongful restraint.—Whoever commits house-trespass, having made preparation for causing hurt to any person or for assaulting any person, or for wrongfully restraining any person, or for putting any person in fear of hurt, or of assault, or of wrongful restraint, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

453. Punishment for lurking house-trespass or house-breaking.—Whoever commits lurking house-trespass or house-breaking, shall be punished with imprisonment of either description for a term which may extend to two years, and shall also be liable to fine.

454. Lurking house-trespass or house-breaking in order to commit offence punishable with imprisonment.—Whoever commits lurking house-trespass or house-breaking, in order to the committing of any offence punishable with imprisonment, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine; and if the offence intended to be committed is theft, the term of the imprisonment may be extended to ten years.

---

420. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch. (w.e.f. 1-1-1956).
421. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch. (w.e.f. 1-1-1956).

STATE AMENDMENTS

Tamil Nadu.—In its application to the State of Tamil Nadu, Section 454 shall be *renumbered* as sub-section (1) of that section and after sub-section (1) as so renumbered, the following sub-section shall be *added*, namely:—

"(2) Whoever commits lurking house-trespass or house-breaking in any building used as a place of worship, in order to the committing of the offence of theft of any idol or icon from such building, shall notwithstanding anything contained in sub-section (1), be punished with rigorous imprisonment which shall not be less than three years but which may extend to ten years and with fine which shall not be less than five thousand rupees:

Provided that the court may, for adequate and special reasons to be mentioned in the judgment, impose a sentence of imprisonment for a term of less than three years." [*Vide* Tamil Nadu Act 28 of 1993, S. 4 (w.e.f. 13-7-1993).]

455. Lurking house-trespass or house-breaking after preparation for hurt, assault or wrongful restraint.—Whoever commits lurking house-trespass, or house-breaking, having made preparation for causing hurt to any person, or for assaulting any person, or for wrongfully restraining any person, or for putting any person in fear of hurt or of assault or of wrongful restraint, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

456. Punishment for lurking house-trespass or house-breaking by night.—Whoever commits lurking house-trespass by night, or house-breaking by night, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.

457. Lurking house-trespass or house-breaking by night in order to commit offence punishable with imprisonment.—Whoever commits lurking house-trespass by night, or house-breaking by night, in order to the committing of any offence punishable with imprisonment, shall be punished with imprisonment of either description for a term which may extend to five years, and shall also be liable to fine; and, if the offence intended to be committed is theft, the term of the imprisonment may be extended to fourteen years.

STATE AMENDMENTS

Tamil Nadu.—In its application to the State of Tamil Nadu, Section 457 shall be *renumbered* as sub-section (1) of that section and after sub-section (1) as so renumbered, the following sub-section shall be *added*, namely:—

"(2) Whoever commits lurking house-trespass by night or house-breaking by night in any building used as a place of worship, in order to the committing of the offence of theft of any idol or icon from such building, shall, notwithstanding anything contained in sub-section (1), be punished with rigorous imprisonment which shall not be less than three years but which may extend to fourteen years and with fine which shall not be less than five thousand rupees:

Provided that the court may, for adequate and special reasons to be mentioned in the judgment, impose a sentence of imprisonment for a term of less than three years." [*Vide* Tamil Nadu Act 28 of 1993, S. 5 (w.e.f. 13-7-1993).]

458. Lurking house-trespass or house-breaking by night after preparation for hurt, assault, or wrongful restraint.—Whoever commits lurking house-trespass by night, or house-breaking by night, having made preparation for causing

hurt to any person or for assaulting any person, or for wrongfully restraining any person, or for putting any person in fear of hurt, or of assault, or of wrongful restraint, shall be punished with imprisonment of either description for a term which may extend to fourteen years, and shall also be liable to fine.

459. Grievous hurt caused whilst committing lurking house-trespass or house-breaking.—Whoever, whilst committing lurking house-trespass or house-breaking, causes grievous hurt to any person or attempts to cause death or grievous hurt to any person, shall be punished with [422][imprisonment for life], or imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

460. All persons jointly concerned in lurking house-trespass or house-breaking by night punishable where death or grievous hurt caused by one of them.—If, at the time of the committing of lurking house-trespass by night or house-breaking by night, any person guilty of such offence shall voluntarily cause or attempt to cause death or grievous hurt to any person, every person jointly concerned in committing such lurking house-trespass by night or house-breaking by night, shall be punished with [423][imprisonment for life], or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

461. Dishonestly breaking open receptacle containing property.—Whoever dishonestly or with intent to commit mischief, breaks open or unfastens any closed receptacle which contains or which he believes to contain property, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

462. Punishment for same offence when committed by person entrusted with custody.—Whoever, being entrusted with any closed receptacle which contains or which he believes to contain property, without having authority to open the same, dishonestly, or with intent to commit mischief, breaks open or unfastens that receptacle, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

CHAPTER XVIII

OF OFFENCES RELATING TO DOCUMENTS AND TO [424][* * *] PROPERTY MARKS

463. Forgery.—Whoever makes any false documents [425][or false electronic record] or part of a document [426][or electronic record,] with intent to cause damage or injury, to the public or to any person, or to support any claim or title, or to cause any person to part with property, or to enter into any express or implied contract, or with intent to commit fraud or that fraud may be committed, commits forgery.

---

422. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch. (w.e.f. 1-1-1956).
423. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch. (w.e.f. 1-1-1956).
424. The words "trade or" *omitted* by Act 43 of 1958, S. 135 and Sch. (w.e.f. 25-11-1959).
425. *Ins.* by Act 21 of 2000, S. 91 and Sch. I (w.e.f. 17-10-2000).
426. *Ins.* by Act 21 of 2000, S. 91 and Sch. I (w.e.f. 17-10-2000).

CASE LAW ▸ Conviction for making of false document.—Section 463 defines offence of forgery, while Section 464 substantiates the same by providing answer as to when a false document could be said to have been made for the purpose of committing offence of forgery under Section 463. Therefore, Section 464 defines one of ingredients of forgery i.e. making of false document. Charge of forgery cannot be imposed on/sustained against a person who is not the maker of false document in question. Making of a document is different than causing it to be made. As Explanation 2 to Section 464 further clarifies, for constituting offence under Section 464, it is imperative that a false document is made and accused person is maker of the same, otherwise accused person is not liable for offence of forgery, *Sheila Sebastian* v. *R. Jawaharaj*, (2018) 7 SCC 581.

464. Making a false document.—[427][A person is said to make a false document or false electronic record—

First.—Who dishonestly or fraudulently—

(*a*) makes, signs, seals or executes a document or part of a document;

(*b*) makes or transmits any electronic record or part of any electronic record;

(*c*) affixes any [428][electronic signature] on any electronic record;

(*d*) makes any mark denoting the execution of a document or the authenticity of the [429][electronic signature],

with the intention of causing it to be believed that such document or part of a document, electronic record or [430][electronic signature] was made, signed, sealed, executed, transmitted or affixed by or by the authority of a person by whom or by whose authority he knows that it was not made, signed, sealed, executed or affixed; or

Secondly.—Who, without lawful authority, dishonestly or fraudulently, by cancellation or otherwise, alters a document or an electronic record in any material part thereof, after it has been made, executed or affixed with [431][electronic signature] either by himself or by any other person, whether such person be living or dead at the time of such alteration; or

Thirdly.—Who dishonestly or fraudulently causes any person to sign, seal, execute or alter a document or an electronic record or to affix his [432][electronic signature] on any electronic record knowing that such person by reason of unsoundness of mind or intoxication cannot, or that by reason of deception practised upon him, he does not know the contents of the document or electronic record or the nature of the alteration.]

Illustrations

(*a*) *A* has a letter of credit upon *B* for Rs 10,000, written by *Z*. *A*, in order to defraud *B*, adds a cipher to the 10,000 and makes the sum 1,00,000 intending that it may be believed by *B* that *Z* so wrote the letter. *A* has committed forgery.

---

427. *Subs.* by Act 21 of 2000, S. 91 and Sch. I (w.e.f. 17-10-2000).
428. *Subs.* for "digital signature" by Act 10 of 2009, S. 51(*e*) (w.e.f. 27-10-2009).
429. *Subs.* for "digital signature" by Act 10 of 2009, S. 51(*e*) (w.e.f. 27-10-2009).
430. *Subs.* for "digital signature" by Act 10 of 2009, S. 51(*e*) (w.e.f. 27-10-2009).
431. *Subs.* for "digital signature" by Act 10 of 2009, S. 51(*e*) (w.e.f. 27-10-2009).
432. *Subs.* for "digital signature" by Act 10 of 2009, S. 51(*e*) (w.e.f. 27-10-2009).

(*b*) *A*, without *Z*'s authority affixes *Z*'s seal to a document purporting to be a conveyance of an estate from *Z* to *A*, with the intention of selling the estate to *B* and thereby of obtaining from *B* the purchase money. *A* has committed forgery.

(*c*) *A* picks up a cheque on a banker signed by *B*, payable to bearer, but without any sum having been inserted in the cheque. *A* fraudulently fills up the cheque by inserting the sum of ten thousand rupees. *A* commits forgery.

(*d*) *A* leaves with *B*, his agent, a cheque on a banker, signed by *A*, without inserting the sum payable and authorises *B* to fill up the cheque by inserting a sum not exceeding ten thousand rupees for the purpose of making certain payments. *B* fraudulently fills up the cheque by inserting the sum of twenty thousand rupees. *B* commits forgery.

(*e*) *A* draws a bill of exchange on himself in the name of *B* without *B*'s authority, intending to discount it as a genuine bill with a banker and intending to take up the bill on its maturity. Here, as *A* draws the bill with intent to deceive the banker by leading him to suppose that he had the security of *B*, and thereby to discount the bill, *A* is guilty of forgery.

(*f*) *Z*'s will contains these words—"I direct that all my remaining property be equally divided between *A*, *B* and C." *A* dishonestly scratches out *B*'s name, intending that it may be believed that the whole was left to himself and C. *A* has committed forgery.

(*g*) *A* endorses a Government promissory note and makes it payable to *Z* or his order by writing on the bill the words "Pay to *Z* or his order" and signing the endorsement. *B* dishonestly erases the words "Pay to Z or his order", and thereby converts the special endorsement into a blank endorsement. *B* commits forgery.

(*h*) *A* sells and conveys an estate to Z. *A* afterwards, in order to defraud *Z* of his estate, executes a conveyance of the same estate to *B*, dated six months earlier than the date of the conveyance to Z, intending it to be believed that he had conveyed the estate to *B* before he conveyed it to *Z*. *A* has committed forgery.

(*i*) Z dictates his will to *A*. *A* intentionally writes down a different legatee from the legatee named by Z, and by representing to *Z* that he has prepared the will according to his instructions, induces *Z* to sign the will. *A* has committed forgery.

(*j*) *A* writes a letter and signs it with *B*'s name without *B*'s authority, certifying that *A* is a man of good character and in distressed circumstances from unforeseen misfortune, intending by means of such letter to obtain alms from *Z* and other persons. Here, as *A* made a false document in order to induce Z to part with property, *A* has committed forgery.

(*k*) *A* without *B*'s authority writes a letter and signs it in *B*'s name certifying to *A*'s character, intending thereby to obtain employment under *Z*. *A* has committed forgery inasmuch as he intended to deceive Z by the forged certificate, and thereby to induce *Z* to enter into an express or implied contract for service.

Explanation 1.—A man's signature of his own name may amount to forgery.

Illustrations

(*a*) *A* signs his own name to a bill of exchange, intending that it may be believed that the bill was drawn by another person of the same name. *A* has committed forgery.

(*b*) *A* writes the word "accepted" on a piece of paper and signs it with *Z*'s name, in order that *B* may afterwards write on the paper a bill of exchange drawn by *B* upon Z, and negotiate the bill as though it had been accepted by *Z*. *A* is guilty of forgery; and if *B*, knowing the fact, draws the bill upon the paper pursuant to *A*'s intention, *B* is also guilty of forgery.

(*c*) *A* picks up a bill of exchange payable to the order of a different person of the same name. *A* endorses the bill in his own name, intending to cause it to be believed that it was endorsed by the person to whose order it was payable; here *A* has committed forgery.

(*d*) *A* purchases an estate sold under execution of a decree against *B*. *B*, after the seizure of the estate, in collusion with *Z*, executes a lease of the estate to *Z* at a nominal rent and for a long period and dates the lease six months prior to the seizure, with intent to defraud *A*, and to cause it to be believed that the lease was granted before the seizure. *B*, though he executes the lease in his own name, commits forgery by antedating it.

(*e*) *A*, a trader, in anticipation of insolvency, lodges effects with *B* for *A*'s benefit, and with intent to defraud his creditors; and in order to give a colour to the transaction, writes a promissory note binding himself to pay to *B* a sum for value received, and antedates the note, intending that it may be believed to have been made before *A* was on the point of insolvency. *A* has committed forgery under the first head of the definition.

Explanation 2.—The making of a false document in the name of a fictitious person, intending it to be believed that the document was made by a real person, or in the name of a deceased person, intending it to be believed that the document was made by the person in his lifetime, may amount to forgery.

Illustration

A draws a bill of exchange upon a fictitious person, and fraudulently accepts the bill in the name of such fictitious person with intent to negotiate it. *A* commits forgery.

[433][*Explanation 3.*—For the purposes of this section, the expression "affixing [434][electronic signature]" shall have the meaning assigned to it in clause (*d*) of sub-section (1) of Section 2 of the Information Technology Act, 2000.]

NOTE ▸ Section 2(1)(*d*) of the Information Technology Act, 2000 defines "affixing digital signature" as follows:

"(*d*) 'affixing digital signature' with its grammatical variations and cognate expressions means adoption of any methodology or procedure by a person for the purpose of authenticating an electronic record by means of digital signature."

465. Punishment for forgery.—Whoever commits forgery shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

466. Forgery of record of Court or of public register, etc.—Whoever forges a document [435][or an electronic record], purporting to be a record or proceeding of or in a Court of Justice, or a register of birth, baptism, marriage or burial, or a register kept by a public servant as such, or a certificate or document purporting to be made by a public servant in his official capacity, or an authority to institute or defend a suit, or to take any proceedings therein, or to confess judgment, or a power of attorney, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

[436][*Explanation.*—For the purposes of this section "register" includes any list, data or record of any entries maintained in the electronic form as defined in clause (*r*) of sub-section (1) of Section 2 of the Information Technology Act, 2000.]

---

433. *Ins.* by Act 21 of 2000, S. 91 & Sch. I (w.e.f. 17-10-2000).
434. *Subs.* for "digital signature" by Act 10 of 2009, S. 51(*e*) (w.e.f. 27-10-2009).
435. *Ins.* by Act 21 of 2000, S. 91 & Sch. I (w.e.f. 17-10-2000).
436. *Ins.* by Act 21 of 2000, S. 91 & Sch. I (w.e.f. 17-10-2000).

NOTE ▸ Section 2(1)(*r*) of the Information Technology Act, 2000 defines "electronic form" as follows:

"(*r*) 'electronic form' with reference to information means any information generated, sent, received or stored in media, magnetic, optical, computer memory, microfilm, computer-generated micor fiche or similar device."

467. Forgery of valuable security, will, etc.—Whoever forges a document which purports to be a valuable security or a will, or an authority to adopt a son, or which purports to give authority to any person to make or transfer any valuable security, or to receive the principal, interest or dividends thereon, or to receive or deliver any money, movable property, or valuable security, or any document purporting to be an acquittance or receipt acknowledging the payment of money, or an acquittance or receipt for the delivery of any movable property or valuable security, shall be punished with [437][imprisonment for life], or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

468. Forgery for purpose of cheating.—Whoever commits forgery, intending that the document [438][or electronic record] forged shall be used for the purpose of cheating, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

469. Forgery for purpose of harming reputation.—Whoever commits forgery, intending that the document [439][or electronic record] forged shall harm the reputation of any party, or knowing that it is likely to be used for that purpose, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.

470. Forged document [440][or electronic record].—A false document [441][or electronic record] made wholly or in part by forgery is designated "a forged document [442][or electronic record]".

471. Using as genuine a forged document [443][or electronic record].—Whoever fraudulently or dishonestly uses as genuine any document [444][or electronic record] which he knows or has reason to believe to be a forged document [445][or electronic record], shall be punished in the same manner as if he had forged such document [446][or electronic record].

CASE LAW ▸ Opinion by court.—The offence covered by Section 471, IPC from its very nature must be committed in the proceeding itself by a party thereto. With respect to such an offence expression of opinion

---

437. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch. (w.e.f. 1-1-1956).
438. *Ins.* by Act 21 of 2000, S. 91 & Sch. I (w.e.f. 17-10-2000).
439. *Ins.* by Act 21 of 2000, S. 91 & Sch. I (w.e.f. 17-10-2000).
440. *Ins.* by Act 21 of 2000, S. 91 & Sch. I (w.e.f. 17-10-2000).
441. *Ins.* by Act 21 of 2000, S. 91 & Sch. I (w.e.f. 17-10-2000).
442. *Ins.* by Act 21 of 2000, S. 91 & Sch. I (w.e.f. 17-10-2000).
443. *Ins.* by Act 21 of 2000, S. 91 & Sch. I (w.e.f. 17-10-2000).
444. *Ins.* by Act 21 of 2000, S. 91 & Sch. I (w.e.f. 17-10-2000).
445. *Ins.* by Act 21 of 2000, S. 91 & Sch. I (w.e.f. 17-10-2000).
446. *Ins.* by Act 21 of 2000, S. 91 & Sch. I (w.e.f. 17-10-2000).

by the court as to the expediency of prosecution would serve a useful purpose, *Patel Laljibhai Somabhai* v. *State of Gujarat*, (1971) 2 SCC 376.

472. Making or possessing counterfeit seal, etc., with intent to commit forgery punishable under Section 467.—Whoever makes or counterfeits any seal, plate or other instrument for making an impression, intending that the same shall be used for the purpose of committing any forgery which would be punishable under Section 467 of this Code, or, with such intent, has in his possession any such seal, plate or other instrument, knowing the same to be counterfeit, shall be punished with [447][imprisonment for life], or with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

473. Making or possessing counterfeit seal, etc., with intent to commit forgery punishable otherwise.—Whoever makes or counterfeits any seal, plate or other instrument for making an impression, intending that the same shall be used for the purpose of committing any forgery which would be punishable under any section of this Chapter other than Section 467, or, with such intent, has in his possession any such seal, plate or other instrument, knowing the same to be counterfeit, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

474. Having possession of document [448][or electronic record] described in Section 466 or 467, knowing it to be forged and intending to use it as genuine.—[449][Whoever has in his possession any document or electronic record, knowing the same to be forged and intending that the same shall fraudulently or dishonestly be used as a genuine, shall, if the document or electronic record is one of the description mentioned in Section 466 of this Code,] be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine; and if the document is one of the description mentioned in Section 467, shall be punished with [450][imprisonment for life], or with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

475. Counterfeiting device or mark used for authenticating documents described in Section 467, or possessing counterfeit marked material.—Whoever counterfeits upon, or in the substance of, any material, any device or mark used for the purpose of authenticating any document described in Section 467 of this Code, intending that such device or mark shall be used for the purpose of giving the appearance of authenticity to any document then forged or thereafter to be forged on such material, or who, with such intent, has in his possession any material upon or in the substance of which any such device or mark

---

447. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch. (w.e.f. 1-1-1956).
448. *Ins.* by Act 21 of 2000, S. 91 & Sch. I (w.e.f. 17-10-2000).
449. *Subs.* by Act 21 of 2000, S. 91 & Sch. I (w.e.f. 17-10-2000).
450. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch. (w.e.f. 1-1-1956).

has been counterfeited, shall be punished with [451][imprisonment for life], or with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

476. Counterfeiting device or mark used for authenticating documents other than those described in Section 467, or possessing counterfeit marked material.—Whoever counterfeits upon, or in the substance of, any material, any device or mark used for the purpose of authenticating any document [452][or electronic record] other than the documents described in Section 467 of this Code, intending that such device or mark shall be used for the purpose of giving the appearance of authenticity to any document then forged or thereafter to be forged on such material, or who with such intent, has in his possession any material upon or in the substance of which any such device or mark has been counterfeited, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

477. Fraudulent cancellation, destruction, etc., of will, authority to adopt, or valuable security.—Whoever fraudulently or dishonestly, or with intent to cause damage or injury to the public or to any person, cancels, destroys or defaces, or attempts to cancel, destroy or deface, or secrets or attempts to secrete any document which is or purports to be a will, or an authority to adopt a son, or any valuable security, or commits mischief in respect to such document, shall be punished with [453][imprisonment for life], or with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

[454][**477-A. Falsification of accounts.**—Whoever, being a clerk, officer or servant, or employed or acting in the capacity of a clerk, officer or servant, wilfully, and with intent to defraud, destroys, alters, mutilates or falsifies any book, [455][electronic record,] paper, writing, valuable security or account which belongs to or is in the possession of his employer, or has been received by him for or on behalf of his employer, or wilfully, and with intent to defraud, makes or abets the making of any false entry in, or omits or alters or abets the omission or alteration of any material particular from or in, any such book, [456][electronic record,] paper, writing, valuable security or account, shall be punished with imprisonment of either description for a term which may extend to seven years, or with fine, or with both.

Explanation.—It shall be sufficient in any charge under this section to allege a general intent to defraud without naming any particular person intended to be defrauded or specifying any particular sum of money intended to be the subject of the fraud, or any particular day on which the offence was committed.]

---

451. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch. (w.e.f. 1-1-1956).
452. *Ins.* by Act 21 of 2000, S. 91 & Sch. I (w.e.f. 17-10-2000).
453. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch. (w.e.f. 1-1-1956).
454. *Ins.* by Act 3 of 1895, S. 4.
455. *Ins.* by Act 21 of 2000, S. 91 & Sch. I (w.e.f. 17-10-2000).
456. *Ins.* by Act 21 of 2000, S. 91 & Sch. I (w.e.f. 17-10-2000).

Of[457][* * *] *property and other marks*

[458][**478. Trade mark.**—[459][* * *]]

[460][**479. Property mark.**—A mark used for denoting that movable property belongs to a particular person is called a property mark.]

[461][**480. Using a false trade mark.**—[462][* * *]]

[463][**481. Using a false property mark.**—Whoever marks any movable property or goods or any case, package or other receptacle containing movable property or goods, or uses any case, package or other receptacle having any mark thereon, in a manner reasonably calculated to cause it to be believed that the property or goods so marked, or any property or goods contained in any such receptacle so marked, belong to a person to whom they do not belong, is said to use a false property mark.]

[464][**482. Punishment for using a false property mark.**—Whoever uses [465][* * *] any false property mark shall, unless he proves that he acted without intent to defraud, be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.]

[466][**483. Counterfeiting a property mark used by another.**—Whoever counterfeits any [467][* * *] property mark used by any other person shall be punished

---

457. The word "Trade," *omitted* by Act 43 of 1958, S. 135 and Sch. (w.e.f. 25-11-1959).
458. Earlier *subs.* by Act 4 of 1889, S. 3.
459. *Omitted* by Act 43 of 1958, S. 135 and Sch. Prior to omission it read as:
'478. *Trade mark.*—For the purposes of this Code, the expression "trade mark" includes a trade mark registered under the Trade Marks Act, 1940 (5 of 1940), and any mark used in relation to goods for the purpose of indicating or so as to indicate a connection in the course of trade between the goods and some person having the right to use the mark.'
460. *Subs.* by Act 4 of 1889, S. 3. Prior to substitution it read as:
'479. *Property Mark.*—A mark used for denoting that moveable property belongs to a particular person, is called "a property mark".'
461. Earlier *subs.* by Act 4 of 1889, S. 3.
462. *Omitted* by Act 43 of 1958, S. 135 and Sch. Earlier S. 480 was *substituted* by Act 4 of 1889, S. 3. Prior to omission it read as:
"480. *Using a false trade mark.*—Whoever marks any goods or any case, package or other receptacle containing goods, or uses any case, package or other receptacle with any mark thereon, in a manner reasonably calculated to cause it to be believed that the goods so marked, or any goods contained in any such receptacle so marked, have a connection in the course of trade with a person with whom they have not any such connection, is said to use a false trade mark.".
463. *Subs.* by Act 4 of 1889, S. 3. Prior to substitution it read as:
"481. *Using a false property mark.*—Whoever marks any moveable property or goods, or any case, package, or other receptacle containing moveable property or goods, or uses any case, package, or other receptacle having any mark thereon, with the intention of causing it to be believed that the property or goods so marked, or any property or goods contained in any case, package, or other receptacle so marked, belong to a person to whom they do not belong, is said to use a false property-mark."
464. *Subs.* by Act 4 of 1889, S. 3. Prior to substitution it read as:
"482. *Punishment for using false trade or property-mark with intent to deceive or injure any person.*—Whoever uses any false trade-mark or any false property-mark with intent to deceive or injure any person, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both."
465. The words "any false trade mark or" *omitted* by Act 43 of 1958, S. 135 and Sch. (w.e.f. 25-11-1959).
466. *Subs.* by Act 4 of 1889, S. 3. Prior to substitution it read as:
"483. *Counterfeiting a trade or property-mark used by another.*—Whoever, with intent to cause damage or injury to the public or to any person, knowingly counterfeits any trade or property-mark used by any other person, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both."
467. The words "trade mark or" *omitted* by Act 43 of 1958, S. 135 and Sch. (w.e.f. 25-11-1959).

with imprisonment of either description for a term which may extend to two years, or with fine, or with both.]

[468][**484. Counterfeiting a mark used by a public servant.**—Whoever counterfeits any property mark used by a public servant, or any mark used by a public servant to denote that any property has been manufactured by a particular person or at a particular time or place, or that the property is of a particular quality or has passed through a particular office, or that it is entitled to any exemption, or uses as genuine any such mark knowing the same to be counterfeit, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.]

[469][**485. Making or possession of any instrument for counterfeiting a property mark.**—Whoever makes or has in his possession any die, plate or other instrument for the purpose of counterfeiting a property mark, or has in his possession a property mark for the purpose of denoting that any goods belong to a person to whom they do not belong, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.]

[470][**486. Selling goods marked with a counterfeit property mark.**—[471][Whoever sells, or exposes, or has in possession for sale, any goods or things with a counterfeit property mark] affixed to or impressed upon the same or

---

468. *Subs.* by Act 4 of 1889, S. 3. Prior to substitution it read as:
"484. *Counterfeiting a property-mark used by a public servant, or any mark used by him to denote the manufacture, quality, etc., or any property.*—Whoever, with intent to cause damage or injury to the public or to any person, knowingly counterfeits any property-mark used by a public servant, or any mark used by a public servant to denote that any property has been manufactured by a particular person or at a particular time or place, or that the same is of a particular quality or has passed through a particular office, or that it is entitled to any exemption, or uses as genuine any such mark knowing the same to be counterfeit, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine."

469. *Subs.* by Act 43 of 1958, S. 135 and Sch. (w.e.f. 25-11-1959). Earlier *substituted* by Act 4 of 1889, S. 3. Prior to substitution it read as:
"485. *Fraudulent making or having possession of any die, plate or other instrument for counterfeiting any public or private property or trade-mark.*—Whoever makes or has in his possession any die, plate, or other instrument for the purpose of making or counterfeiting any public or private property or trade-mark with intent to use the same for the purpose of counterfeiting such mark, or has in his possession any such property or trade-mark with intent that the same shall be used for the purpose of denoting that any goods or merchandize were made or manufactured by any particular person or firm, by whom they were not made, or at a time or place at which they were not made, or that they are of a particular quality of which they are not, or that they belong to a person to whom they do not belong, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both."

470. *Subs.* by Act 4 of 1889, S. 3. Prior to substitution it read as:
"486. *Knowingly selling goods marked with a counterfeit property or trade-mark.*—Whoever sells any goods with a counterfeit property or trade-mark, whether public or private, affixed to or impressed upon the same or upon any case, wrapper, or receptacle in which such goods are packed or contained, knowing that such mark is forged or counterfeit, or that the same has been affixed to or impressed upon any goods or merchandize not manufactured or made by the person or at the time or place indicated by such mark, or that they are not of the quality indicated by such mark, with intent to deceive, injure, or damage any person, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both."

471. *Subs.* by Act 43 of 1958, S. 135 and Sch. Prior to substitution it read as:
"Whoever sells, or exposes, or has in possession for sale or any purpose of trade or manufacture, any goods or things with a counterfeit trade mark or property mark"

to or upon any case, package or other receptacle in which such goods are contained, shall, unless he proves—

(*a*) that, having taken all reasonable precautions against committing an offence against this section, he had at the time of the commission of the alleged offence no reason to suspect the genuineness of the mark, and

(*b*) that, on demand made by or on behalf of the prosecutor, he gave all the information in his power with respect to the persons from whom he obtained such goods or things, or

(*c*) that otherwise he had acted innocently,

be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.]

[472][**487. Making a false mark upon any receptacle containing goods.**—Whoever makes any false mark upon any case, package or other receptacle containing goods, in a manner reasonably calculated to cause any public servant or any other person to believe that such receptacle contains goods which it does not contain or that it does not contain goods which it does contain, or that the goods contained in such receptacle are of a nature or quality different from the real nature or quality thereof, shall, unlesshe proves that he acted without intent to defraud, be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.]

[473][**488. Punishment for making use of any such false mark.**—Whoever makes use of any such false mark in any manner prohibited by the last foregoing section shall, unless he proves that he acted without intent to defraud, be punished as if he had committed an offence against that section.]

[474][**489. Tampering with property mark with intent to cause injury.**—Whoever removes, destroys, defaces or adds to any property mark, intending or knowing it to be likely that he may thereby cause injury to any person, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.]

---

472. *Subs.* by Act 4 of 1889, S. 3. Prior to substitution it read as:
"487. *Fraudulently making a false mark upon any package or receptacle containing goods.*—Whoever fraudulently makes any false mark upon any package or receptacle containing goods, with intent to cause any public servant or any other person to believe that such package or receptacle contains goods which it does not contain, or that it does not contain goods which it does contain, or that the goods contained in such package or receptacle are of a nature or quality different from the real nature or quality thereof, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both."

473. *Subs.* by Act 4 of 1889, S. 3. Prior to substitution it read as:
"488. *Punishment for making use of any such false mark.*—Whoever fraudulently makes use of any such false mark with the intent last aforesaid, knowing such mark to be false, shall be punished in the manner mentioned in the last preceding Section."

474. *Subs.* by Act 4 of 1889, S. 3. Prior to substitution it read as:
"489. *Defacing any property-mark with intent to cause injury.*—Whoever removes, destroys, or defaces any property-mark, intending or knowing it to be likely that he may thereby cause injury to any person, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both."

Of currency-notes and bank-notes

[475][**489-A. Counterfeiting currency-notes or bank-notes.**—Whoever counterfeits, or knowingly performs any part of the process of counterfeiting, any currency-note or bank-note, shall be punished with [476][imprisonment for life], or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

Explanation.—For the purposes of this section and of Sections 489-B, [477][489-C, 489-D and 489-E], the expression "bank-note" means a promissory note or engagement for the payment of money to bearer on demand issued by any person carrying on the business of banking in any part of the world, or issued by or under the authority of any State or Sovereign Power, and intended to be used as equivalent to, or as a substitute for, money.

[478]**489-B. Using as genuine, forged or counterfeit currency-notes or bank-notes.**—Whoever sells to, or buys or receives from, any other person, or otherwise traffics in or uses as genuine, any forged or counterfeit currency-note or bank-note, knowing or having reason to believe the same to be forged or counterfeit, shall be punished with [479][imprisonment for life], or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

CASE LAW ▸ Ingredients.—Mens rea of offences under Sections 489-B and 489-C is "knowing or having reason to believe the currency notes or banknotes are forged or counterfeit". Without the aforementioned mens rea selling, buying or receiving from another person or otherwise trafficking in or using as genuine forged or counterfeit currency notes or banknotes, is not enough to constitute offence under Section 489-B IPC, *Dipakbhai Jagdishchandra Patel* v. *State of Gujarat*, (2019) 16 SCC 547.

[480]**489-C. Possession of forged or counterfeit currency-notes or bank-notes.**—Whoever has in his possession any forged or counterfeit currency-note or bank-note, knowing or having reason to believe the same to be forged or counterfeit and intending to use the same as genuine or that it may be used as genuine, shall be punished with imprisonment of either description for a term which may extend to seven years, or with fine, or with both.

[481]**489-D. Making or possessing instruments or materials for forging or counterfeiting currency-notes or bank-notes.**—Whoever makes, or performs any part of the process of making, or buys or sells or disposes of, or has in his possession, any machinery, instrument or material for the purpose of being used, or knowing or having reason to believe that it is intended to be used, for forging or counterfeiting any currency-note or bank-note, shall be punished with

---

475. *Ins.* by Act 12 of 1899, S. 2.
476. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch. (w.e.f. 1-1-1956).
477. *Subs.* for "489-C and 489-D" by Act 35 of 1950.
478. *Ins.* by Act 12 of 1899, S. 2.
479. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch. (w.e.f. 1-1-1956).
480. *Ins.* by Act 12 of 1899, S. 2.
481. *Ins.* by Act 12 of 1899, S. 2.

[482][imprisonment for life], or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.]

[483][**489-E. Making or using documents resembling currency-notes or bank-notes.**—(1) Whoever makes, or causes to be made, or uses for any purpose whatsoever, or delivers to any person, any document purporting to be, or in any way resembling, or so nearly resembling as to be calculated to deceive, any currency-note or bank-note shall be punished with fine which may extend to one hundred rupees.

(2) If any person, whose name appears on a document the making of which is an offence under sub-section (1), refuses, without lawful excuse, to disclose to a police-officer on being so required the name and address of the person by whom it was printed or otherwise made, he shall be punished with fine which may extend to two hundred rupees.

(3) Where the name of any person appears on any document in respect of which any person is charged with an offence under sub-section (1) or on any other document used or distributed in connection with that document it may, until the contrary is proved, be presumed that that person caused the document to be made.]

CHAPTER XIX

OF THE CRIMINAL BREACH OF CONTRACTS OF SERVICE

490. Breach of contract of service during voyage or journey.—[484][* * *]

491. Breach of contract to attend on and supply wants of helpless person.—Whoever, being bound by a lawful contract to attend on or to supply the

---

482. *Subs.* for "transportation for life" by Act 26 of 1955, S. 117 and Sch. (w.e.f. 1-1-1956).

483. *Ins.* by Act 6 of 1943, S. 3.

484. *Omitted* by the Act 3 of 1925, S. 2 and Sch. Prior to omission it read as:

"490. *Breach of contract of service during a voyage or journey.*—Whoever, being bound by a lawful contract to render his personal service in conveying or conducting any person, or any property, from one place to another place, or to act as servant to any person during a voyage or journey, or to guard any person or property during a voyage or journey, voluntarily omits so to do, except in the case of illness or ill-treatment, shall be punished with imprisonment of either description fro a term which may extend to one month, or with fine which may extend to one hundred rupees, or with both.

Illustrations

(*a*) *A*, a palanquin bearer, being bound by legal contract to carry *Z* from one place to another, runs away in the middle of the stage. *A* has committed the offence defined in this section.

(*b*) *A*, a cooly, being bound by lawful contract to carry *Z*'s baggage from one place to another throws the baggage away. *A* has committed the offence defined in this Section.

(*c*) *A*, a proprietor of bullocks, being bound by legal contract to convey goods on his bullocks from one place to another, illegally omits to do so. *A* has committed the offence defined in this section.

(*d*) *A* by unlawful means compels *B*, a cooly, to carry his baggage. *B* in the course of the journey puts down the baggage and runs away. Here as *B* was not lawfully bound to carry the baggage, he has not committed any offence.

Explanation.—It is not necessary to this offence that the contract should be made with the person for whom the service is to be performed. It is sufficient if the contract is legally made with any person, either expressly or impliedly, by the person who is to perform the service.

Illustration

A contracts with a Dâk Company to drive his carriage for a month. *B* employs the Dâk Company to convey him on a journey, and during the month the Company supplies *B* with a carriage which is driven by *A*. *A* in the course of the journey voluntarily leaves the carriage. Here although *A* did not contract with *B*, *A* is guilty of an offence under this section.".

wants of any person who, by reason of youth, or of unsoundness of mind, or of a disease or bodily weakness, is helpless or incapable of providing for his own safety or of supplying his own wants, voluntarily omits so to do, shall be punished with imprisonment of either description for a term which may extend to three months, or with fine which may extend to two hundred rupees, or with both.

492. Breach of contract to serve at distant place to which servant is conveyed at master's expense.—[485][* * *]

CHAPTER XX
OF OFFENCES RELATING TO MARRIAGE

493. Cohabitation caused by a man deceitfully inducing a belief of lawful marriage.—Every man who by deceit causes any woman who is not lawfully married to him to believe that she is lawfully married to him and to cohabit or have sexual intercourse with him in that belief, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

494. Marrying again during lifetime of husband or wife.—Whoever, having a husband or wife living, marries in any case in which such marriage is void by reason of its taking place during the life of such husband or wife, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

Exception.—This section does not extend to any person whose marriage with such husband or wife has been declared void by a Court of competent jurisdiction,

nor to any person who contracts a marriage during the life of a former husband or wife, if such husband or wife, at the time of the subsequent marriage, shall have been continually absent from such person for the space of seven years, and shall not have been heard of by such person as being alive within that time provided the person contracting such subsequent marriage shall, before such marriage takes place, inform the person with whom such marriage is contracted of the real state of facts so far as the same are within his or her knowledge.

495. Same offence with concealment of former marriage from person with whom subsequent marriage is contracted.—Whoever commits the offence defined in the last preceding section having concealed from the person with whom the subsequent marriage is contracted, the fact of the former marriage, shall be

---

485. *Omitted* by the Act 3 of 1925, S. 2 and Sch. Prior to omission it read as:

"492. *Breach of contract to serve at a distant place to which the servant is conveyed at the master's expense.*—Whoever, being bound by lawful contract in writing to work for another person as an artificer, workman or laborer, for a period not more than three years, at any place within British India to which by virtue of the contract he has been or is to be conveyed at the expense of such other, voluntarily deserts the service of that other during the continuance of his contract, or without reasonable cause refuses to perform the service which he has contracted to perform, such service being reasonable and proper service, shall be punished with imprisonment of either description for a term not exceeding one month, or with fine not exceeding double the amount of such expense, or with both; unless it shall appear that the employer has ill-treated him or neglected to perform the contract on his part.".

punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

496. Marriage ceremony fraudulently gone through without lawful marriage.—Whoever, dishonestly or with a fraudulent intention, goes through the ceremony of being married, knowing that he is not thereby lawfully married, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

[486][**497. Adultery.**—Whoever has sexual intercourse with a person who is and whom he knows or has reason to believe to be the wife of another man, without the consent or connivance of that man, such sexual intercourse not amounting to the offence of rape, is guilty of the offence of adultery, and shall be punished with imprisonment of either description for a term which may extend to five years, or with fine, or with both. In such case the wife shall not be punishable as an abettor.]

CASE LAW ▸ Constitutional Validity.—Section 497 is struck down as unconstitutional being violative of Articles 14, 15 and 21 of the Constitution. However, if an act of adultry leads to suicide of aggrieved spouse, the adulterous person can be prosecuted under Section 306 IPC for abetment of suicide, *Joseph Shine* v. *Union of India*, (2019) 3 SCC 39.

498. Enticing or taking away or detaining with criminal intent a married woman.—Whoever takes or entices away any woman who is and whom he knows or has reason to believe to be the wife of any other man, from that man, or from any person having the care of her on behalf of that man, with intent that she may have illicit intercourse with any person, or conceals or detains with that intent any such woman, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

[487][CHAPTER XX-A

OF CRUELTY BY HUSBAND OR RELATIVES OF HUSBAND

498-A. Husband or relative of husband of a woman subjecting her to cruelty.—Whoever, being the husband or the relative of the husband of a woman, subjects such woman to cruelty shall be punished with imprisonment for a term which may extend to three years and shall also be liable to fine.

Explanation.—For the purposes of this section, "cruelty" means—

(*a*) any wilful conduct which is of such a nature as is likely to drive the woman to commit suicide or to cause grave injury or danger to life, limb or health (whether mental or physical) of the woman; or

(*b*) harassment of the woman where such harassment is with a view to coercing her or any person related to her to meet any unlawful demand for any property or valuable security or is on account of failure by her or any person related to her to meet such demand.]

---

486. *Held* unconstitutional and struck down in *Joseph Shine* v. *Union of India*, (2019) 3 SCC 39 : *See* Case Law.

487. *Ins.* by Criminal Law (Second Amendment) Act, 1983 (Act 46 of 1983), S. 2.

CASE LAW ▸ Constitutional validity.—Constitutionality of Section 498-A, affirmed, *Social Action Forum for Manav Adhikar* v. *Union of India*, (2018) 10 SCC 443.

▸ **Cruelty — Essential ingredients.**—To bring home the charge under Section 498-A, held, cruelty is the necessary ingredient which is needed to be proved, *State of Maharashtra* v. *Ashok Narayan Dandalwar*, (2000) 9 SCC 257.

▸ **Cruelty by Husband and his relatives.**—Sweeping directions contained in *Rajesh Sharma*, (2018) 10 SCC 472 regarding Family Welfare Committees, and regarding power of Sessions Judge to settle cases, set aside. Further, directions contained regarding preliminary enquiry, arrest, investigation, designation and training of investigating officers, bail, impounding of passport, Red Corner Notice, clubbing of matters, exemption from appearance, affirmed with modifications, *Social Action Forum for Manav Adhikar* v. *Union of India*, (2018) 10 SCC 443.

▸ **Misuse of the provision.**—It is a matter of serious concern that large number of cases continue to be filed under Section 498-A alleging harassment of married women and that most of such complaints are filed in the heat of the moment over trivial issues & many are not bona fide. New set of directions issued to prevent the misuse of Section 498-A. *Rajesh Sharma* v. *State of U.P.*, 2017 SCC OnLine SC 821.

There is need to check tendency to rope in all family members by making omnibus allegations to settle matrimonial disputes. The fact that most of such complaints were filed in heat of moment over trivial issues and were not bona fide, taken judicial notice of. Besides, uncalled for arrests ruin chances of settlement and even when settlement is arrived at, proceedings continue since offence under Section 498-A is non-compoundable resulting in uncalled hardship to parties. Hence, safeguards, against uncalled for arrest or insensitive investigation necessary, *Rajesh Sharma* v. *State of U.P.*, (2018) 10 SCC 472.

▸ **Duty of court while proceeding against relatives.**—The courts should be careful in proceeding against the distant relatives in crimes pertaining to matrimonial disputes and dowry deaths and must keep in mind that relatives of the husband should not be roped in on the basis of omnibus allegations unless specific instances of their involvement in the crime are made out, *Kahkashan Kausar* v. *State of Bihar*, (2022) 6 SCC 599.

CHAPTER XXI
OF DEFAMATION

499. Defamation.—Whoever, by words either spoken or intended to be read, or by signs or by visible representations, makes or publishes any imputation concerning any person intending to harm, or knowing or having reason to believe that such imputation will harm, the reputation of such person, is said, except in the cases hereinafter excepted, to defame that person.

Explanation 1.—It may amount to defamation to impute anything to a deceased person, if the imputation would harm the reputation of that person if living, and is intended to be hurtful to the feelings of his family or other near relatives.

Explanation 2.—It may amount to defamation to make an imputation concerning a company or an association or collection of persons as such.

Explanation 3.—An imputation in the form of an alternative or expressed ironically, may amount to defamation.

Explanation 4.—No imputation is said to harm a person's reputation, unless that imputation directly or indirectly, in the estimation of others, lowers the moral or intellectual character of that person, or lowers the character of that person in respect of his caste or of his calling, or lowers the credit of that person, or causes it to be believed that the body of that person is in a loathsome state, or in a state generally considered as disgraceful.

Illustrations

(*a*) *A* says—"*Z* is an honest man; he never stole *B*'s watch"; intending to cause it to be believed that *Z* did steal *B*'s watch. This is defamation, unless it falls within one of the exceptions.

(*b*) *A* is asked who stole *B*'s watch. *A* points to *Z*, intending to cause it to be believed that *Z* stole *B*'s watch. This is defamation, unless it falls within one of the exceptions.

(*c*) *A* draws a picture of *Z* running away with *B*'s watch intending it to be believed that *Z* stole *B*'s watch. This is defamation, unless it falls within one of the exceptions.

First Exception—Imputation of truth which public good requires to be made or published.—It is not defamation to impute anything which is true concerning any person, if it be for the public good that the imputation should be made or published. Whether or not it is for the public good is a question of fact.

Second Exception—Public conduct of public servants.—It is not defamation to express in good faith any opinion whatever respecting the conduct of a public servant in the discharge of his public functions, or respecting his character, so far as his character appears in that conduct, and no further.

Third Exception—Conduct of any person touching any public question.—It is not defamation to express in good faith any opinion whatever respecting the conduct of any person touching any public question, and respecting his character, so far as his character appears in that conduct, and no further.

Illustration

It is not defamation in *A* to express in good faith any opinion whatever respecting *Z*'s conduct in petitioning Government on a public question, in signing a requisition for a meeting on a public question, in presiding or attending at such meeting, in forming or joining any society which invites the public support, in voting or canvassing for a particular candidate for any situation in the efficient discharge of the duties of which the public is interested.

Fourth Exception.—Publication of reports of proceedings of courts.—It is not defamation to publish a substantially true report of the proceedings of a Court of Justice, or of the result of any such proceedings.

Explanation.—A Justice of the Peace or other officer holding an enquiry in open Court preliminary to a trial in a Court of Justice, is a Court within the meaning of the above section.

Fifth Exception.—Merits of case decided in Court or conduct of witnesses and others concerned.—It is not defamation to express in good faith any opinion whatever respecting the merits of any case, civil or criminal, which has been decided by a Court of Justice, or respecting the conduct of any person as a party, witness or agent, in any such case, or respecting the character of such person, as far as his character appears in that conduct, and no further.

Illustrations

(*a*) *A* says—"I think *Z*'s evidence on that trial is so contradictory that he must be stupid or dishonest." *A* is within this exception if he says this in good faith, inasmuch as the opinion which he expresses respects *Z*'s character as it appears in *Z*'s conduct as a witness, and no further.

(*b*) But if *A* says—"I do not believe what *Z* asserted at that trial because I know him to be a man without veracity"; *A* is not within this exception, inasmuch as the opinion which he expresses of *Z*'s character, is an opinion not founded on *Z*'s conduct as a witness.

Sixth Exception.—Merits of public performance.—It is not defamation to express in good faith any opinion respecting the merits of any performance which its author has submitted to the judgment of the public, or respecting the character of the author so far as his character appears in such performance, and no further.

Explanation.—A performance may be submitted to the judgment of the public expressly or by acts on the part of the author which imply such submission to the judgment of the public.

Illustrations

(*a*) *A* person who publishes a book, submits that book to the judgment of the public.

(*b*) *A* person who makes a speech in public, submits that speech to the judgment of the public.

(*c*) An actor or singer who appears on a public stage, submits his acting or singing to the judgment of the public.

(*d*) *A* says of a book published by Z—"*Z*'s book is foolish; *Z* must be a weak man. *Z*'s book is indecent; *Z* must be a man of impure mind". *A* is within the exception, if he says this in good faith, inasmuch as the opinion which he expresses of *Z* respects *Z*'s character only so far as it appears in *Z*'s book, and no further.

(*e*) But if *A* says—"I am not surprised that *Z*'s book is foolish and indecent, for he is a weak man and a libertine." *A* is not within this exception, inasmuch as the opinion which he expresses of *Z*'s character is an opinion not founded on *Z*'s book.

Seventh Exception.—Censure passed in good faith by person having lawful authority over another.—It is not defamation in a person having over another any authority, either conferred by law or arising out of a lawful contract made with that other, to pass in good faith any censure on the conduct of that other in matters to which such lawful authority relates.

Illustration

A Judge censuring in good faith the conduct of a witness, or of an officer of the Court; a head of a department censuring in good faith those who are under his orders; a parent censuring in good faith a child in the presence of other children; a schoolmaster, whose authority is derived from a parent, censuring in good faith a pupil in the presence of other pupils; a master censuring a servant in good faith for remissness in service; a banker censuring in good faith the cashier of his bank for the conduct of such cashier as such cashier—are within this exception.

Eighth Exception.—Accusation preferred in good faith to authorised person.—It is not defamation to prefer in good faith an accusation against any person to any of those who have lawful authority over that person with respect to the subject-matter of accusation.

Illustration

If *A* in good faith accuses *Z* before a Magistrate; if *A* in good faith complains of the conduct of *Z*, a servant, to *Z*'s master; if *A* in good faith complains of the conduct of *Z*, a child, to *Z*'s father—*A* is within this exception.

Ninth Exception.—Imputation made in good faith by person for protection of his or other's interests.—It is not defamation to make an imputation on the character of another provided that the imputation be made in good faith for the protection of the interest of the person making it, or of any other person, or for the public good.

Illustrations

(*a*) *A*, a shopkeeper, says to *B*, who manages his business—"Sell nothing to *Z* unless he pays you ready money, for I have no opinion of his honesty." *A* is within the exception, if he has made this imputation on *Z* in good faith for the protection of his own interests.

(*b*) *A*, a Magistrate, in making a report to his own superior officer, casts an imputation on the character of *Z*. Here, if the imputation is made in good faith, and for the public good, *A* is within the exception.

Tenth Exception.—Caution intended for good of person to whom conveyed or for public good.—It is not defamation to convey a caution, in good faith, to one person against another, provided that such caution be intended for the good of the person to whom it is conveyed, or of some person in whom that person is interested, or for the public good.

CASE LAW ▸ Constitutional validity.—This provision along with its explanations and Exceptions is neither unreasonable, nor disproportionate and excessive, nor vague nor arbitrary. This provision is enacted in collective social interest and cannot be alleged to be a majoritarian notion meant to cripple freedom of speech and expression, hence constitutionally valid, *Subramanian Swamy* v. *Union of India*, (2016) 7 SCC 221.

Criminal defamation as an offence is not violative of fundamental right to freedom of speech and expression under Article 19(1)(*a*) of the Constitution, being a permissible restriction under Article 19(2). Expression "defamation" in Article 19(2) includes both civil and criminal defamation. Sections 499 and 500 IPC are also not discriminatory, arbitrary, excessive or vague and not violative of right to equality under Article 14 of the Constitution, being reasonable and a proportionate restriction. While in a democracy an individual has a right to criticise and dissent, but his right under Article 19(1)(*a*) is not absolute and he cannot defame another person as that would offend victim's fundamental right to reputation which is a facet of Article 21 of the Constitution. One fundamental right cannot be given a higher status in comparison to the other and what is required is proper balancing of the two and harmonious construction in light of preambular objective of fraternity and fundamental duties envisaged under Articles 51-A(*e*) & (*j*) of the Constitution. So construed Article 499 IPC along with its Explanations and Exceptions and Section 500 IPC are constitutionally valid, *Subramanian Swamy* v. *Union of India*, (2016) 7 SCC 221.

▸ **"Defamation" — Ambit and scope.**—"Defamation" includes both civil and criminal defamation, *Subramanian Swamy* v. *Union of India*, (2016) 7 SCC 221.

▸ **Criminal Defamation.**—Constitutional validity of criminal defamation as offence under Section 499, upheld. Criminal defamation which is in existence in the form of Sections 499 and 500 IPC, is not a restriction on right to freedom of speech and expression that can be characterized as disproportionate. Right

to free speech cannot mean that a citizen can defame the other as protection of reputation is a fundamental right as well as a human right, *Subramanian Swamy* v. *Union of India*, (2016) 7 SCC 221.

▸ **Offence of defamation.**—To constitute an offence of defamation requires a person to make some imputation concerning any other person; (*i*) Such imputation must be made either (*a*) With intention, or (*b*) Knowledge, or (*c*) Having a reason to believe that such an imputation will harm the reputation of the person against whom the imputation is made. (*ii*) Imputation could be, by (*a*) Words, either spoken or written, or (*b*) By making signs, or (*c*) Visible representations (*iii*) Imputation could be either made or published, *Mohd. Abdulla Khan* v. *Prakash K.*, (2018) 1 SCC 615.

▸ **Truth on defence.**—Truth by itself, not a defence in action for criminal defamation if other ingredients of criminal defamation are present, unless it can be shown that imputation in question though truthful was made for the public good. Furthermore, "public good" in this context is not a vague concept. Thus, held, there can be occasions or situations where truth may not be sole defence, and that is why the provision has given emphasis on public good. Needless to say, what is public good is a question of fact depending on the facts and circumstances of the case. Lastly, the onus of proving these two ingredients, namely, truth of the imputation and the publication of the imputation for the public good, is on the accused, *Subramanian Swamy* v. *Union of India*, (2016) 7 SCC 221.

500. Punishment for defamation.—Whoever defames another shall be punished with simple imprisonment for a term which may extend to two years, or with fine, or with both.

501. Printing or engraving matter known to be defamatory.—Whoever prints or engraves any matter, knowing or having good reason to believe that such matter is defamatory of any person, shall be punished with simple imprisonment for a term which may extend to two years, or with fine, or with both.

502. Sale of printed or engraved substance containing defamatory matter.—Whoever sells or offers for sale any printed or engraved substance containing defamatory matter, knowing that it contains such matter, shall be punished with simple imprisonment for a term which may extend to two years, or with fine, or with both.

CHAPTER XXII

OF CRIMINAL INTIMIDATION, INSULT AND ANNOYANCE

503. Criminal intimidation.—Whoever threatens another with any injury to his person, reputation or property, or to the person or reputation of any one in whom that person is interested, with intent to cause alarm to that person, or to cause that person to do any act which he is not legally bound to do, or to omit to do any act which that person is legally entitled to do, as the means of avoiding the execution of such threats, commits criminal intimidation.

Explanation.—A threat to injure the reputation of any deceased person in whom the person threatened is interested, is within this section.

Illustration

A, for the purpose of inducing *B* to desist from prosecuting a civil suit, threatens to burn *B*'s house. *A* is guilty of criminal intimidation.

504. Intentional insult with intent to provoke breach of the peace.—Whoever intentionally insults, and thereby gives provocation to any person, intending or knowing it to be likely that such provocation will cause him to break the public peace, or to commit any other offence, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

[488][**505. Statements conducing to public mischief.**—[489][(1) Whoever makes, publishes or circulates any statement, rumour or report,—

(*a*) with intent to cause, or which is likely to cause, any officer, soldier, [490][sailor or airman] in the Army, [491][Navy or Air Force] [492][of India] to mutiny or otherwise disregard or fail in his duty as such; or

(*b*) with intent to cause, or which is likely to cause, fear or alarm to the public, or to any section of the public whereby any person may be induced to commit an offence against the State or against the public tranquillity; or

(*c*) with intent to incite, or which is likely to incite, any class or community of persons to commcit any offence against any other class or community,

shall be punished with imprisonment which may extend to [493][three years], or with fine, or with both.

[494][(2) **Statements creating or promoting enmity, hatred or ill-will between classes.**—Whoever makes, publishes or circulates any statement or report containing rumour or alarming news with intent to create or promote, or which is likely to create or promote, on grounds of religion, race, place of birth, residence, language, caste or community or any other ground whatsoever, feelings of enmity, hatred or ill-will between different religious, racial, language or regional groups or castes or communities, shall be punished with imprisonment which may extend to three years, or with fine, or with both.

(3) **Offence under sub-section (2) committed in place of worship, etc.**—Whoever commits an offence specified in sub-section (2) in any place of worship or in any assembly engaged in the performance of religious worship or religious ceremo-nies, shall be punished with imprisonment which may extend to five years and shall also be liable to fine.]

---

488. *Subs.* by Act 4 of 1898, S. 6. Prior to substitution it read as:
"505. *False statement, rumours, etc. circulated with intent to cause mutiny, or offences against the public peace.*—Whoever circulates or publishes any statement, rumour, or report, which he knows to be false, with intent to cause any officer, soldier, or sailor in the Army or Navy of the Queen to mutiny, or with intent to cause fear or alarm to the public and thereby to induce any person to commit an offence against the state or against the public tranquillity, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both."

489. S. 505 was *renumbered* as sub-section (1) of that section by Act 35 of 1969, S. 3.

490. *Subs.* for "or sailor" by Act 10 of 1927, S. 2 and Sch. I.

491. *Subs.* for "or navy" by Act 10 of 1927, S. 2 and Sch. I.

492. *Subs.* for "of Her Majesty or in the Imperial Service Troops" by the A.O. 1950. The words "or in the Royal Indian Marine" occurring after the word "Majesty" were *omitted* by Act 35 of 1934.

493. *Subs.* for "two years" by Act 41 of 1961, S. 4 (w.e.f. 12-9-1961).

494. *Ins.* by Act 35 of 1969, S. 3(*i*) (w.e.f. 4-9-1969).

Exception.—It does not amount to an offence, within the meaning of this section, when the person making, publishing or circulating any such statement, rumour or report, has reasonable grounds for believing that such statement, rumour or report is true and makes, publishes or circulates it [495][in good faith and] without any such intent as aforesaid.]

506. Punishment for criminal intimidation.—Whoever commits the offence of criminal intimidation shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both;

if threat be to cause death or grievous hurt, etc.—and if the threat be to cause death or grievous hurt, or to cause the destruction of any property by fire, or to cause an offence punishable with death or [496][imprisonment for life], or with imprisonment for a term which may extend to seven years, or to impute unchastity to a woman, shall be punished with imprisonment of either description for a term which may extend to seven years, or with fine, or with both.

STATE AMENDMENTS

Meghalaya.—In its application to the State of Meghalaya, for the existing Section 506, the following shall be *substitution*, namely—

"**506. Punishment for criminal intimidation.**—Whoever commits, the offence of criminal intimidation shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both;

If threat be to cause death or grievous hurt, etc.—And if the threat be to cause death or grievous hurt, or to cause the destruction of any property by fire, or to cause an offence punishable with death or imprisonment for life, or with imprisonment for a term which may extend to seven years, or to impute unchastity to a woman, shall be punished with imprisonment of either description for a term of three years and which may extend to seven years, or with fine, or with both.". [*Vide*: Meghalaya Act 8 of 2014, S. 2 (w.e.f. 7-7-2014)]

507. Criminal intimidation by an anonymous communication.—Whoever commits the offence of criminal intimidation by an anonymous communication, or having taken precaution to conceal the name or abode of the person from whom the threat comes, shall be punished with imprisonment of either description for a term which may extend to two years, in addition to the punishment provided for the offence by the last preceding section.

508. Act caused by inducing person to believe that he will be rendered an object of the Divine displeasure.—Whoever voluntarily causes or attempts to cause any person to do anything which that person is not legally bound to do, or to omit to do anything which he is legally entitled to do, by inducing or attempting to induce that person to believe that he or any person in whom he is interested will become or will be rendered by some act of the offender an object of Divine displeasure if he does not do the thing which it is the object of the offender to cause him to do, or if he does the thing which it is the object of the offender to cause him to omit, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.

---

495. *Ins.* by Act 35 of 1969, S. 3(*ii*) (w.e.f. 4-9-1969).
496. *Subs.* for "transportation" by Act 26 of 1955, S. 117 and Sch. (w.e.f. 1-1-1956).

Illustrations

(*a*) *A* sits dhurna at *Z*'s door with the intention of causing it to be believed that, by so sitting, he renders *Z* an object of Divine displeasure. *A* has committed the offence defined in this section.

(*b*) *A* threatens *Z* that, unless *Z* performs a certain act, *A* will kill one of *A*'s own children, under such circumstances that the killing would be believed to render *Z* an object of Divine displeasure. *A* has committed the offence defined in this section.

509. Word, gesture or act intended to insult the modesty of a woman.—Whoever, intending to insult the modesty of any woman, utters any word, makes any sound or gesture, or exhibits any object, intending that such word or sound shall be heard, or that such gesture or object shall be seen, by such woman, or intrudes upon the privacy of such woman, [497][shall be punished with simple imprisonment for a term which may extend to three years, and also with fine]

STATE AMENDMENTS

Chhattisgarh.—After Section 509, the following shall be *inserted*, namely—

"509-A. *Sexual harassment by relative.*—Whoever, being related to a woman through blood, adoption or marrige, and not being her husband, takes the advantage of his proximity and induces, seduces or threatens such woman with intent to insult her modesty by word, gesture or act shall be punished with rigorous imprisonment which shall not be less than one year but which may extend to five years and shall also be liable to fine.

509-B. *Sexual harassment by electronic modes.*—Whoever, by means of telecommunication device or by any other electronic mode including internet, makes, creates, solicits or initiates the transmission of any comment, request, suggestion, proposal, image or other communication, which is obscene, lewd, lascivious, filthy or indecent with intent to harass or cause or having knowledge that it would harass or cause annoyance or mental agony to a woman shall be punished with rigorous imprisonment for a term which shall not be less than six months but may extend to two years and shall also be liable to fine.". [*Vide* Chhattisgarh Act 25 of 2015, S. 6, w.e.f. 21-7-2015]

510. Misconduct in public by a drunken person.—Whoever, in a state of intoxication, appears in any public place, or in any place which it is a trespass in him to enter, and there conducts himself in such a manner as to cause annoyance to any person, shall be punished with simple imprisonment for a term which may extend to twenty-four hours, or with fine which may extend to ten rupees, or with both.

CHAPTER XXIII

OF ATTEMPTS TO COMMIT OFFENCES

511. Punishment for attempting to commit offences punishable with imprisonment for life or other imprisonment.—Whoever attempts to commit an offence punishable by this Code with [498][imprisonment for life] or imprisonment, or to cause such an offence to be committed, and in such attempt does any act towards the commission of the offence, shall, where no express provision is made by this Code for the punishment of such attempt, be punished with

---

497. *Subs.* by Act 13 of 2013, S. 10 (w.r.e.f. 3-2-2013). Prior to substitution it read as:
"shall be punished with simple imprisonment for a term which may extend to one year, or with fine, or with both"

498. *Subs.* for "transportation" by Act 26 of 1955, S. 117 and Sch. (w.e.f. 1-1-1956).

[499][imprisonment of any description provided for the offence, for a term which may extend to one-half of the imprisonment for life or, as the case may be, one-half of the longest term of imprisonment provided for that offence], or with such fine as is provided for the offence, or with both.

Illustrations

(*a*) *A* makes an attempt to steal some jewels by breaking open a box, and finds after so opening the box, that there is no jewel in it. He has done an act towards the commission of theft, and therefore is guilty under this section.

(*b*) *A* makes an attempt to pick the pocket of *Z* by thrusting his hand into *Z*'s pocket. *A* fails in the attempt in consequence of *Z*'s having nothing in his pocket. *A* is guilty under this section.

---

499. *Subs.* by Act 26 of 1955, S. 117 and Sch. (w.e.f. 1-1-1956). Prior to substitution it read as:
"transportation or imprisonment of any description provided for the offence, for a term of transportation or imprisonment which may extend to one-half of the longest term provided for that offence"